

Message 1 of 413

credit card

Sender	lhayman@skadden.com
Recipients	[mark.taylor@enron.com]
File	taylor-m/travel/69.

Did Amanda give you my credit card info to pay the Moorings our 3/4? If not, it is a Mastercard and the number is 5410 6584 0536 6574 and the exp is 11/01

Linda Hayman Skadden, Arps, Slate, Meagher & Flom, LLP 4 Times Square, 42nd Floor New York, NY 10036 T: 212-735-2637 F: 917-777-2637

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Further information about the firm, a list of the Partners and their professional qualifications will be provided upon request.
- Linda Hayman.vcf

Message 2 of 413

(01-396) Proposed Amendments to the COMEX Gold and Silver Futures

Sender	marketing@nymex.com
Recipients	[marketing@nymex.com]
File	taylor-m/deleted_items/496.

Notice No. 01-396 November 26, 2001

TO: ALL NYMEX DIVISION MEMBERS ALL COMEX DIVISION MEMBERS

FROM: J. Robert Collins, Jr., President

SUBJECT: Proposed Amendments to the COMEX Gold and Silver Futures Contracts and the NYMEX Platinum and Palladium Futures Contracts to Add a New Location of ScotiaMocatta as an Exchange Licensed Depository.

The Exchange proposes to amend Supplement No. 2 of the COMEX Gold and Silver Futures Contracts and Supplement No. 1 of the NYMEX Platinum and Palladium Futures Contracts. The proposed amendments: (1) add the ScotiaMocatta Depository, A Division of Bank of Nova Scotia, vault facility located at 26 Broadway, New York, NY as a Licensed Depository for the storage of silver, gold, platinum and palladium; and (2) delist the Licensed Depository located at Four World Trade Center.

The proposed amendments must be approved by the Commodity Futures Trading Commission ("CFTC"). The Exchange membership will be notified when CFTC approval is received and when these amendments will take effect.

Copies of the proposed amendments are attached. Underlining indicates additions, bracketing [] indicates deletions.

Should you have any questions regarding the above, please contact Albert J. Getz at 212-299-2608. Proposed Amendments. Underlining indicates additions; Bracketing [] indicates deletions. Gold Supplement No. 2

COMMODITY EXCHANGE, INC. LICENSED DEPOSITORIES AND WEIGHMASTERS FOR GOLD
Depository Facilities Computer Code

NEW YORK

SCOTIAMOCATTA DEPOSITORY, [4 World Trade Center 3002] A DIVISION OF THE BANK OF NOVA SCOTIA [New York, NY] 26 Broadway [4 World Trade Center] New York, NY [10048] 10004 26 Broadway 3001 (Orders: (212) 912-8530) New York, NY

HSBC Bank USA 1 West 39th Street, SC 2 Level 5001 1 West 39th Street, SC 2 Level New York, NY
New York, NY 10018 (Orders: (212) 525-6439)

BRINK'S Incorporated 652 Kent Avenue 4001 Suite 400 Brooklyn, NY 580 5th Avenue New York, New York 10036
(Orders: (718) 260-2200)

ADDITIONAL LICENSED WEIGHMASTERS FOR GOLD

International Testing Laboratories, Inc. 578-582 Market Street Newark, NJ 07105 (Orders: (973) 589-4772)

Ledoux & Company 359 Alfred Avenue Teaneck, NJ 07666 (Orders: NJ (201) 837-7160) Proposed Amendments.
Underlining indicates additions. Bracketing [] indicates deletions. Silver Supplement No. 2

COMMODITY EXCHANGE, INC. LICENSED DEPOSITORIES AND WEIGHMASTERS FOR SILVER

Depository Facilities Computer Code

NEW YORK

SCOTIAMOCATTA DEPOSITORY, A DIVISION OF THE BANK OF NOVA SCOTIA [4 World Trade Center 3002] 26
Broadway [New York, NY] [4 World Trade Center] New York, NY [10048] 10004 Orders: (212) 912-8530 26 Broadway
3001 New York, NY

HSBC Bank USA 1 West 39th Street, SC 2 Level 5001 1 West 39th Street, SC 2 Level New York, NY New York, NY
10018 Orders: (212) 525-6439

BRINK'S Incorporated 652 Kent Avenue 4001 Suite 400 Brooklyn, New York 580 5th Avenue New York, New York 10036
Orders: (718) 260-2200

DELAWARE

Delaware Depository Service Company, LLC 3601 North Market Street 6001 3601 North Market Street Wilmington,
Delaware Wilmington, Delaware 19802 Orders: (302) 765-3884 4200 Governor Printz Blvd. 6002 Wilmington, Delaware

ADDITIONAL LICENSED WEIGHMASTERS FOR SILVER

International Testing Laboratories, Inc. 578-582 Market Street Newark, NJ 07105 Orders: (973) 589-4772

Ledoux & Company 359 Alfred Avenue Teaneck, NJ 07666 Orders: NJ (201) 837-7160 Proposed Amendment.
Underlining indicates additions. Bracketing [] indicates deletions.

PLATINUM FUTURES CONTRACT

Supplement No. 1

OFFICIAL LIST OF APPROVED DEPOSITORIES

Depository Facility at

NEW YORK

SCOTIAMOCATTA DEPOSITORY, A DIVISION OF THE BANK OF NOVA SCOTIA 26 Broadway [4 World Trade Center]
New York, NY [10048] 10004

212-912-8530

HSBC Bank USA 1 West 39th Street SC 2 Level New York, NY 10018

212-525-6439

BRINK's INC. 652 Kent Avenue Brooklyn, NY 11211 718-260-2200

DELAWARE

DELAWARE DEPOSITORY SERVICE COMPANY, LLC 3601 North Market Street

Wilmington, DE 19802

302-765-3889

Proposed Amendment. Underlining indicates additions. Bracketing [] indicates deletions.

PALLADIUM FUTURES CONTRACT

Supplement No. 1

OFFICIAL LIST OF APPROVED DEPOSITORIES

Depository Facility at

NEW YORK

SCOTIAMOCATTA DEPOSITORY, A DIVISION OF THE BANK OF NOVA SCOTIA 26 Broadway [4 World Trade Center]
New York, NY [10048] 10004

212-912-8530

HSBC Bank USA 1 West 39th Street SC 2 Level New York, NY 10018

212-525-6439

BRINK's INC. 652 Kent Avenue Brooklyn, NY 11211 718-260-2200

DELAWARE

DELAWARE DEPOSITORY SERVICE COMPANY, LLC 3601 North Market Street

Wilmington, DE 19802

302-765-3889

Message 3 of 413

More Christmas lists

Sender	mzeleanor@juno.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/1913.

Here are some more lists:

Christmas List Sharon

item description color size price

www.jjill.com or 1-800-642-9989 LH 030At Tencel carpenter jeans "truffle" 12 tall 65.99

www.solutions.catalog.com or 1-877-718-7901 63492 Miracle hair turban 15.00 64117 Moisturizing gel gloves 39.50

www.hammacher.com or 1-800-543-3366 62609M low profile earwarmers black 24.95

www.coldwatercreek.com or 1-800-262-0040 AH0-1412 blue and green jacket med 89.00

www.smithsonianstore.com or 1-800-322-0344 (10% discount on web) 28067 Wool Cape black 67.00 24063 Burgundy dress (pt of ensemble) med 54.00 24064 Burgundy jacket (pt of ensemble) med 76.50 29103 matelasse shams (need 2)

king 22.50 ea

www.travelsmith.com or 1-800-950-1600 5082 travel pajamas periwinkle med 69.50 7313 Jumbo Aquis towel 39.50 5115 great escape shirt white med 59.00 5416 ultimate sweater aqua med 48.00 3902 packable Panama hat natural med 37.50

Christmas List Elena

item description color size price

www.crateandbarrel.com or 1-800-323-5461 28139 bongo drum 19.95

www.learnandplay.com or 1-800-247-6106 21616 wooden floral chest 29.95 21987 mini trampoline 89.95

www.ttgo.com or 1-800-542-8338 927 body art studio 24.95

ALSO: play make-up (glitter, lip stuff, hand lotion, etc.) (above , last item is an example) Stickers Musical instruments Clothes-about size 3T for now (39" tall, 30 lbs) shoes size 9=20

Tim's Christmas List

Rockler Woodworking Supply (800-279-4441 www.rockler.com) Hand Countersink #33757 5.99 Fuller Bit & Counterbore 83741 14.99 Clamp 'N Tool Guide - 50" 47308 39.99 Precosion Taper Jig 43471 18.99

Lands End (800-963-4816 www.landsend.com) Black socks, 6-pack 6028-5AF7 27.00

Subscription to Fine Homebuilding Magazine www.taunton.com/admin/giftfh.htm

Recordings: 11,000 Virgins - Hildegard von Bingen / Anonymous 4 Center of My Universe/Michelle Tumes Best of Kansas [ORIGINAL RECORDING REMASTERED][EXTRA TRACKS] Octopus/Gentle Giant

Have a few bucks to burn?=01(

ShopSmith Bandsaw New Pella windows for the house Toyota Prius (silver)

BYERS CHRISTMAS LISTS 2000

JANET

Land's End - 1-800-356-4444 Short Sleeve Super T, size M, color - white, 6404-5A12 \$12.

Pointelle Scoop Tank, size M, color - Ecru, 5475-5A10 20.

Williams Sonoma 1-800-541-2233

Striped kitchen towels , color- sage #07-659094 12.

Talbot's - 1-800-825-2687 Fleece vest - Medium, color - black #A04027 48. Buffalo check vest - Medium, no choice color #40027 68. Interlock turtleneck - Medium, color - white #A32027 22.

IVAN

Books: "Pleasure for God" - John Pope (could be Pipe, I can't read his writing!) "Audi TT" - Jergen Lewandowski, et al.

Necktie - food theme (really likes chili peppers)

"Polo" dress shirt by Ralph Lauren, black stripe, 15=20 -33

Braveheart (the movie story Mel Gebson)

EMILY

CD's: Outkast - "Stankonia" Amy Grant - her newest Christmas album Michael W. Smith - his newest Christmas album

Gift certificates from Best Buy or Victoria's Secret

Ralph Lauren "Polo Sport" perfume

NICK

Sonic Adventure (PC game?)

Age of Empires 2 - "The Conquerors" (P.C. Game)

Slippers - Lands's End - Cozy Fleece Clogs (on back of some of the catalogs) He can wear Janet's, so women's size best.- 8 , color green or as second choice something other than black as Janet's are black. #5530-21X \$19.50

Gundam "Gouf" action figure - (5" tall) \$19.95

Gundam "Zaku II" action figure 19.95

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Message 4 of 413

Travel Schedule

Sender	legal < taylor@enron.com >
Recipients	[' n..gray@enron.com ', ' mark.greenberg@enron.com ', ' mary.cook@enron.com ']
File	taylor-m/sent_items/47.

I hope all of your loved ones and friends are OK.

I'm obviously not able to get back to Houston today as originally planned. Continental has me booked on a flight on Sunday -- assuming they're back up to full schedule by then -- so I plan to be back in the office on Monday morning. I will continue to work from the London office and you can reach me at 011-44-207-783-6468 at the office (but I can't get voicemail here) or on the cell phone 011-44-7881-512-535 (where I am able to check messages). I will also be checking voicemail in Houston from time to time.

I know it's hard to think about work issues much less concentrate, but it seems to me we need to start thinking about market disruption issues right away. The NYMEX is the obvious issue and we need to find out which counterparties have affected transactions (such as using average of the entire month of NYMEX prices) and then review the relevant documentation. With any luck there won't be many. We also need to be alert to other price sources that might fail to publish.

I'll be in touch.

Mark Taylor Vice President and General Counsel Enron Wholesale Services (713)853-7459

Message 5 of 413

Re: Christmas Lists

Sender	mzeleanor@juno.com
Recipients	[' mark.taylor@enron.com ']
File	taylor-m/notes_inbox/1973.

I'm sorry. I thought I had sent you these lists when I sent them to Tim. However, I don't have anything in my "sent items" box, so obviously I didn't. Tim and Janet both have these lists too.

CHRISTMAS LISTS 2000

DAD

I would really prefer to have a donation sent to Wesley Foundation in Cincinnati 2717 Clifton Avenue Cincinnati OH 45220

Book - "Surviving the First 24 Hours of a Forced Landing" ? Survive-Air 413-357-8566 or www.survive-air.com

Book - "Ultralight Shopper's Guide" 19.95 Cybair 3.60 s/h Box 42 Richford VT 05476

Videos - ea 29. - Night Flying - VFR Cross-Country Flying - The Complete Airspace Review

King Schools, Inc. 1-800-854-1001 3840 Calle Fortunada fax 858-541-2201 San Diego CA 92123 Priority Code - XBWP

Pen w/ LED Light GM600 19.95 Sharper Image 1-800-344-4444 5.95 s/h PO Box 7031 San Francisco CA 94120

Locking Peg Hook Set 131904 9.99 Leichtung Workshops 1-800-321-6840 4.95 s/h 1108 North Glenn Road Casper WY 82601

Warm robe - medium

Ties

MOTHER

Norm Thompson 1-800-547-1160 Save Your Sanity Wallet - Microfiber 14057 - black \$29.

Lands End - 1-800-356-4444 Rib Top Large, Plum Pink 6793-2G16 34. Or Lt. Ocean Blue

Magellan - 1-800-962-4943 Presto locks (I like these because they are easier to manipulate than some others) SL632 12.85

Museum of Fine Arts, Boston 1-800-225-5592 Note cubes 2 for \$20. Water Lily Pond 562739 Larkspur 562738 Or - Postman Joseph Roulin 562736 Or - Fruit on a Stand 562735

Hammacher Schlemmer 1-800-543-3366 Thermal Carafe 71322 BE 29.95

Lancome - Magie Noire - Body Cream

Recipe Book - "Joy of Cooking"

Heated gloves - my hands are usually cold when I am at home reading at night. I don't even know if there is such a thing, but if there is, I would like some!

Book - "One Up on Wall Street" by Peter Lynch

On Tue, 12 Dec 2000 16:32:28 -0600 Mark.Taylor@enron.com writes:

Thanks for your notes. Just so you know, I have the Polo Sport perfume and a Victoria's Secret gift certificate for Emily. Were there lists for you and Dad? I can't seem to find them.

GET INTERNET ACCESS FROM JUNO! Juno offers FREE or PREMIUM Internet access for less! Join Juno today! For your FREE software, visit: <http://dl.www.juno.com/get/tagj>.

Message 6 of 413

Documentation Issues in the UK Gas and Power Markets - Conference

Sender	scarey@isda.org
Recipients	['jelich.emily@enron.com', 'powell@enron.com', 'scarey@isda.org', 'james.powell@gs.com', 'e..haedicke@enron.co...]
File	taylor-m/archive/2001_07/37.

Following-up on our July 18th discussion, we have scheduled a call for tomorrow (Noon - New York/5:00 p.m. (London) to discuss potential UK/Continental Europe documentation solutions and to formulate a list of individuals to be included in a working group going forward.

Due to a scheduling conflict we moved the meeting later in the day. Hopefully this will not be an inconvenience but please let me know if anyone has a conflict with this time.

I have attached a document outlining potential alternatives compiled by Emily for your review.

The call-in details are as follows:

JUL-25-2001 (Wednesday) 12:00 PM EASTERN TIME USA Toll Free Number: 888-904-9318 USA Toll Number: +1-630-395-0031 PASSCODE: ISDA 2001 LEADER: Ms Stacy Carey

Many thanks!

Stacy Carey Policy Director International Swaps and Derivatives Association 600 5th Avenue, 27th Floor Rockefeller Center New York, NY 10020 (212) 332-1202 ph (212) 332-1212 fax (917) 543-9622 cell scarey@isda.org

-----Original Message-----

From: Stacy Carey Sent: Wednesday, July 11, 2001 6:35 PM To: 'Powell, James'; Katia d'Hulster; Stacy Carey; 'rita.Pearson-Schwandt@rwe trading.com'; Willis, Bernadette; 'Christophe.Chassard@rwe trading.com'; Peter Werner; Stacy Carey; Ruth Ainslie; Mark Haedicke; Mark Taylor Cc: Robert Pickel; Emily Jelich Subject: Documentation Issues in the UK Gas and Power Markets

Hello all -

Following-up on our previous conversation on June 25, we would like to schedule a call on July 18th to further discuss how to solve documentation issues in the UK gas and power markets. As Katia is on holiday, would you let me know of your availability on the 18th for a 10:00 a.m.(NY)/3:00 p.m. (London) meeting. We will arrange the call from ISDA's NY offices.

Our last conversation ended on the possibility of developing a master master agreement for use with various energy agreements, however, there is some concern that this might not be the best approach to close the documentation gap in the UK.

We are very interested in trying to find a solution to the problem. At this juncture, the goal appears to be to develop documentation for the UK gas and power markets that: 1) can be used with various energy agreements (masters & stand-alone) 2) is amenable to non-ISDA members and supported by bigger players, 3) accommodates physical and financial trades. (Please let me know if there is anything to add.

To that end, it would be helpful to explore additional solutions on next week's call.

Many thanks!

Stacy Carey Policy Director International Swaps and Derivatives Association 600 5th Avenue, 27th Floor Rockefeller Center New York, NY 10020 (212) 332-1202 ph (212) 332-1212 fax (917) 543-9622 cell scarey@isda.org

-----Original Message-----

From: Powell, James [mailto:James.Powell@gs.com] Sent: Tuesday, July 10, 2001 6:09 PM To: 'Katia D'Hulster'; Stacy Carey Cc: 'rita.Pearson-Schwandt@rwe trading.com'; Willis, Bernadette Subject: RE: UK Gas

Katia, I was wondering when we were going to have the follow up meeting. Has a date been agreed?

-----Original Message-----

From: Katia D'Hulster [mailto:kdulster@ISDA-EUR.ORG] Sent: 02 July 2001 15:01 To: Powell, James; 'christophe.chassard@rwe trading.com'; 'rita.Pearson-Schwandt@rwe trading.com' Cc: Stacy Carey; Ruth Ainslie; John Berry; Peter Werner Subject: RE: UK Gas

Thank you, James.

Ruth, Stacey, John and myself had some further discussion regarding our meeting of last week.

As agreed, we will hold another call with yourself, Bernadette, Rita and Christophe in order to discuss how to take this further.

I understand that Bernadette is out of the office until the end of this week.

Could we arrange a call for the week of 9 July? Would that be OK for all of you?

Another question, I spoke with Bernadette last week and she said she had some written comments on the EMP regime. Could you please forward these to me, as I am currently drafting the response to the FSA consultative paper.

Thank you in advance,

Katia

-----Original Message-----

From: Powell, James [mailto:James.Powell@gs.com] Sent: 02 July 2001 14:47 To: 'kdhulster@isda-eur.org' Cc: 'Rita.Pearson-Schwandt@rwetradng.com' Subject: RE: UK Gas

Katja, following our meeting, as agreed, here is a list of five entities whose support may well assist any documentation initiative in the UK gas market sponsored by ISDA. I have not listed the power entities as the power documentation (i.e. the GTMA) seems to be well established. Please let me know if you need any further details. Perhaps you also let us know whether you want us to call any of these entities to foreshadow your call to them.

Many thanks.

Paul Simons Enron Tel: 020 7783 6566 psimons@enron.com

Simon Smith TXU Tel: 01473 553 619 simon.smith@txu-europe.com

Simon Woods TotalFinaElf Tel: 020 7318 6866 Fax: 020 7318 6726 Mobile: 07802 567431

Eldon Pethybridge Accord Energy Eldon.Pethybridge@accord.co.uk

Lynne Shaw BP Tel: 0207 496 4000 (switchboard) shawLL@BP.com

- UK Energy Documentation Alternatives.doc

Message 7 of 413

FW: Crane Rental Companies

Sender trevor.woods@enron.com

Recipients [e.taylor@enron.com]

File taylor-m/inbox/cranes/1.

-----Original Message-----

From: Hopkins, Tamara Sent: Monday, August 27, 2001 10:48 AM To: Woods, Trevor Subject: FW: Crane Rental Companies

Trevor, here is the information on heavy duty crane rentals. I hope this satisfies the request. If you need anything else, please let me know.

Tammy Hopkins (713) 345-6556

-----Original Message-----

From: Johnson, Shelley Sent: Monday, August 27, 2001 8:13 AM To: Hopkins, Tamara Subject: Crane Rental Companies

Tammy,

Here is a list of Crane Rental companies:

Maxim Crane Works Dick Ferchak - Sr. V.P 409.842.9331

Essex Crane Rental Mike Caralla - Sales Engineer 1.888.777.2944

Barnhart Crane & Rigging 901.775.3000

Fagioli Ben Beaty - B.D. Manager 713.355.7000

Lampson International W.L. (Bucky) Gros - V. P. 303.286.1000

Cain Servis Corp. Joe P. Cain - Pres. 713.455.6600

Phillips Crane & Rigging Larry Bonnin - 713.796.9000

Biggie Crane & Rigging Steve Kenney - 510.638.8100

Shaughnessy & Co 253.735.2220

Let me know if you need any other info.

Thanks, Shelley

Shelley Johnson Business Analyst Global Strategic Sourcing 713-345-6528 333 Clay Street 1116d Houston, TX 77251
shelley.johnson@enron.com <http://gss.enron.com/>

Message 8 of 413

(01-397) Proposed Amendment to Supplement No. 2, "Licensed Deposi

Sender	marketing@nymex.com
Recipients	[marketing@nymex.com]
File	taylor-m/deleted_items/497.

Notice Number: 01-397 November 26, 2001

TO: ALL COMEX DIVISION MEMBERS ALL COMEX DIVISON MEMBER FIRMS ALL COMEX DIVISION CLEARING MEMBERS

FROM: J. Robert Collins, Jr., President

SUBJECT: Proposed Amendment to Supplement No. 2, "Licensed Depositories and Weighmasters for Silver" of the Silver Futures Contract.

The Exchange proposes to amend Supplement No. 2, "Licensed Depositories and Weighmasters for Silver" of the Silver Futures Contract. The proposed amendment adds the HSBC Bank USA vault facility located at 425 Sawmill River Road, Ardsley, New York as a Licensed Depository for the storage of silver deliverable against the COMEX Division Silver Futures Contract.

The proposed amendment must be approved by the Commodity Futures Trading Commission ("CFTC"). The Exchange Membership will be notified upon receipt of CFTC approval and the effective date of the amendment.

A copy of the proposed amendment is attached.

If you have any questions, please contact Albert J. Getz at 212-299-2608.

Proposed Amendments. Underlining indicates additions. Bracketing [] indicates deletions. Silver Supplement No. 2

COMMODITY EXCHANGE, INC. LICENSED DEPOSITORIES AND WEIGHMASTERS FOR SILVER

Depository Facilities Computer Code

NEW YORK

SCOTIAMOCATTA DEPOSITORY, A DIVISION OF THE BANK OF NOVA SCOTIA 4 World Trade Center 3002 4 World Trade Center New York, NY New York, NY 10048 Orders: (212) 912-8530

HSBC Bank USA 1 West 39th Street, SC 2 Level 5001 1 West 39th Street, SC 2 Level New York, NY New York, NY 10018 Orders: (212) 525-6439 425 Sawmill River Road 5002 Ardsley, New York

BRINK'S Incorporated 652 Kent Avenue 4001 Suite 400 Brooklyn, New York 580 5th Avenue New York, New York 10036 Orders: (718) 260-2200

DELAWARE

Delaware Depository Service Company, LLC 3601 North Market Street 6001 3601 North Market Street Wilmington, Delaware Wilmington, Delaware 19802 Orders: (302) 765-3884 4200 Governor Printz Blvd. 6002 Wilmington, Delaware

ADDITIONAL LICENSED WEIGHMASTERS FOR SILVER

International Testing Laboratories, Inc. 578-582 Market Street Newark, NJ 07105 Orders: (973) 589-4772

Ledoux & Company 359 Alfred Avenue Teaneck, NJ 07666 Orders: NJ (201) 837-7160

Message 9 of 413

Access Agreement

Sender	travis.mccullough@enron.com
Recipients	['mark.taylor@enron.com', 'mark.greenberg@enron.com']
File	taylor-m/all_documents/7816.

Mark -- can you look at Section 4 of this Agreement? It applies to participants that want to enter into swaps -- while Mark or I could go to school on CFTC rules, I thought it would be faster if you could take a look at it and give us any comments -- thanks.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490 ----- Forwarded by Travis McCullough/HOU/ECT on 02/26/2001 12:54 PM -----

Travis McCullough 02/26/2001 12:13 PM

To: Mark Greenberg/NA/Enron@ENRON cc: Subject: Access Agreement

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490 ----- Forwarded by Travis McCullough/HOU/ECT on 02/26/2001 12:13 PM -----

Bob Shults 02/22/2001 10:02 AM

To: Travis.McCullough@enron.com cc: Subject: Access Agreement

Travis

I assume you have seen this. I am meeting with Truequote next week and they were asking questions relative to this agreement. Are we prepared to transact under the conditions of this agreement? Please give me a call to discuss. ext 30397 ----- Forwarded by Bob Shults/HOU/ECT on 02/22/2001 09:54 AM

"Joe F. Wright" <joe.wright@truequote.com> on 02/21/2001 04:10:35 PM To: <bob.shults@enron.com> cc: "Chris Edmonds"@mailman.enron.com Subject: Access Agreement

Bob,

Chris asked me to e-mail our standard Access Agreement to you. I will also later e-mail to you our terms and conditions which will be posted to the website once I have had the opportunity to clean those up a bit.

Sincerely,

Joe F. Wright General Counsel truequote.com 9931 Corporate Campus Drive Suite 2400 Louisville, Kentucky 40223 502-212-4909 502-212-4907 fax 502-593-3031 mobile joe.wright@truequote.com

- tradingagreementFINALFINALFINALenrondeleted.doc

Message 10 of 413

FW: NOx SIP call issues

Sender	rajneesh.salhotra@enron.com
Recipients	[e.taylor@enron.com]
File	taylor-m/inbox/nox_model/4.

-----Original Message-----

From: Salhotra, Rajneesh Sent: Tuesday, July 10, 2001 11:49 AM To: Jacobson, Lisa; Schoen, Mary Cc: Woods, Trevor
Subject: RE: NOx SIP call issues

Dear Lisa and Mary,

I enclose the file titled "Allocations Version 2" received from EEA that mentions the allocations for the various sources. The file titled "Powerdat to EEA Data" is the output from PowerDat. This file enlists plants (with capacity greater than 25 MW which are either operating or at standby) in only those states that are in the EEA file. The data from these two files has been merged and is in the file titled "EEA and PowerDat". And I am trying to reconcile the list of plants from PowerDat data with that from EEA.

The rows (bold and black) represent data common to both PowerDat and EEA. Other rows (bold but not black) represent data that may be common but one cannot be certain. And the data from row 3505 onwards represent EEA data that was not part of the PowerDat output.

I would appreciate if you can shed some light on the reasons for the apparent differences in the two databases.

Sincerely, Rajneesh Salhotra

Rajneesh Salhotra Coal and Emissions Trading Enron Global Markets 713.853.6764

-----Original Message-----

From: Jacobson, Lisa Sent: Monday, July 09, 2001 3:53 PM To: Salhotra, Rajneesh; Schoen, Mary; Keeler, Jeffrey Cc: Woods, Trevor Subject: RE: NOx SIP call issues

Dear Rajneesh,

Good talking with you too. Per our call, our group will work on sending you the following information:

email the state growth budgets/factors

email matrix of allocations/state SIPs

email information on list of allowances - compliance supplemental pool

Analysis on how many SCRs are needed to comply with SIP call (i.e. % of units that would be expected to install control tech. and use trading -- quantification preferred)

Do not hesitate to contact us with questions in the meantime.

-Lisa

-----Original Message-----

From: Salhotra, Rajneesh Sent: Monday, July 09, 2001 4:50 PM To: Schoen, Mary; Jacobson, Lisa; Keeler, Jeffrey Cc: Woods, Trevor Subject: RE: NOx SIP call issues

Thanks a lot for all the clarifications. It would surely help me finetune the NOx model. And I eagerly look forward to the data enlisted by Lisa during the call.

Also, I will send you a worksheet later in the day wherein I am trying to reconcile the data from Powerdat with that from EEA. As suggested, I will wait for your reply before speaking with Joel/ Sara at EEA.

Thanking you all once again for your time,

Sincerely, Rajneesh Salhotra

Rajneesh Salhotra Coal and Emissions Trading Enron Global Markets 713.853.6764

-----Original Message-----

From: Schoen, Mary Sent: Monday, July 09, 2001 11:44 AM To: Salhotra, Rajneesh; Jacobson, Lisa Cc: Woods, Trevor
Subject: RE: NOx SIP call issues

11:00 PST works for me. I'll look over your questions before the call. Thanks

Mary Schoen Environmental Strategies Enron Corp 415.782.7803 (phone) 415.782.7854 (fax)

-----Original Message-----

From: Salhotra, Rajneesh Sent: Saturday, July 07, 2001 5:18 PM To: Schoen, Mary; Jacobson, Lisa Cc: Woods, Trevor
Subject: RE: NOx SIP call issues

Dear Mary,

I enclose a file that gives a snapshot of my understanding of the NOx emissions market. I am looking for some clarifications/information regarding the questions enumerated in the attached file.

<< File: NOx Sip Call.doc >>

Let me know if 11:00 PST works for you. If it does not, let me know a time that suits you.

Sincerely, Rajneesh Salhotra

Rajneesh Salhotra Coal and Emissions Trading Enron Global Markets 713.853.6764

-----Original Message-----

From: Schoen, Mary Sent: Friday, July 06, 2001 5:22 PM To: Jacobson, Lisa; Salhotra, Rajneesh Cc: Woods, Trevor
Subject: RE: NOx SIP call issues

I may have a 12:30 PST appointment, but other than that I am free and happy to discuss the NOx SIP Call.

Mary Schoen Environmental Strategies Enron Corp 415.782.7803 (phone) 415.782.7854 (fax)

-----Original Message-----

From: Jacobson, Lisa Sent: Friday, July 06, 2001 5:19 PM To: Schoen, Mary; Salhotra, Rajneesh Cc: Woods, Trevor
Subject: NOx SIP call issues

Dear Mary,

Per my voice mail message, Rajneesh is a summer associate on the coal/emissions desk working on modeling for NOx trading. He would like some information/update on NOx SIP call issues.

Please let me know if you are free on Monday to talk via conference call with us. Also, Rajneesh will send some preliminary information on his questions to us in advance.

I am pretty wide open on Monday.

Thanks,

Lisa

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 11 of 413

RE: Folders

Sender	juli.salvagio@enron.com
Recipients	[e.taylor@enron.com]
File	taylor-m/inbox/marketing/21.

Nothing. It is a generic folder that has Enron Global Markets on the cover. It is the one that I sent you to match your insert to when you were designing. With the dots. I am on my way over for a meeting, I'll bring one.

Juli Salvagio Manager, Marketing Communications Public Relations Enron-3641 1400 Smith Street Houston, TX 77002
713-345-2908-Phone 713-542-0103-Mobile 713-646-5800-Fax

-----Original Message-----

From: Taylor, Michael E Sent: Friday, November 02, 2001 8:19 AM To: Salvagio, Juli Subject: RE: Folders

I would like to see a folder. What was used from the emissions group, exactly?

-----Original Message-----

From: Salvagio, Juli Sent: Thursday, November 01, 2001 5:33 PM To: Taylor, Michael E Subject: Folders

Sorry so late in getting back to you. The folders are in. Do you need some?

Juli Salvagio Manager, Marketing Communications Public Relations Enron-3641 1400 Smith Street Houston, TX 77002
713-345-2908-Phone 713-542-0103-Mobile 713-646-5800-Fax

Message 12 of 413

Reminder - North American Energy and Developing Products Committee

Sender	smarra@isda.org
Recipients	[scarey@isda.org, 'rainslie@isda.org', 'alan.aronowitz@enron.com', 'pickel.robert@enron.com']
File	taylor-m/deleted_items/418.

The International Swaps and Derivatives Association invites you to participate in the

North American Energy and Developing Products Committee Video Conference Meeting

Friday, November 2, 2001 11:00 a.m. - 12:30 p.m. (New York) 10:00 a.m. - 11:30 a.m. (Houston)

Goldman Sachs New York - 32 Old Slip (near South & Front Streets) - 23rd Floor, Room 23B1 Houston - 1000 Louisiana Street, Suite 550, Room 5G

Call Details U.S. - 1-877-718-6588 (Passcode: 20952) International - 212-902-0992 (Passcode: 20952)

* An agenda will be forwarded to you shortly. Please RSVP to Scott Marra at: smarra@isda.org. We would appreciate knowing if you will attend the Houston Location, New York Location or if you will be calling-in by phone.

* ISDA is in the process of updating the database for the Energy Committee. Our apologies if you have received this e-mail in error, received duplicate versions of this e-mail or if one of your colleagues had been inadvertently omitted. Please notify Scott Marra: smarra@isda.org regarding any modifications (additions or deletions) to this mailing list as soon as possible.

Please call me if you have any further questions. Many thanks!

Stacy Carey Policy Director International Swaps and Derivatives Association 600 5th Avenue, 27th Floor Rockefeller Center New York, NY 10020 (212) 332-1202 ph (212) 332-1212 fax (917) 543-9622 cell scarey@isda.org

Message 13 of 413

RE: Important Notice - Reply Requested

Sender	legal <taylor@enron.com>
Recipients	[database@isda.org]
File	taylor-m/sent_items/253.

-----Original Message-----

From: "database@isda.org"<database@isda.org>@ENRON
[mailto:IMCEANOTES--+22database+40isda+2Eorg+22+3Cdatabase+40isda+2Eorg+3E+40ENRON@ENRON.com]
Sent: Wednesday, July 11, 2001 3:45 PM To: Taylor, Mark E (Legal) Subject: Important Notice - Reply Requested

ISDA International Swaps and Derivatives Association, Inc. 600 Fifth Avenue, 27th Floor Rockefeller Center New York, NY 10020-2302 United States of America Telephone: (212) 332-1200 Facsimile: (212) 332-1212 email: isda@isda.org website: www.isda.org

July 8, 2001

IMPORTANT NOTICE - Reply Requested

MEMORANDUM TO ISDA MEMBERS

ISDA is in the process of updating its records to ensure that we have the most current information for members in our database. To continue with its electronic initiatives that began last year, ISDA will increasingly provide information notices, comment letters, committee meeting notices and other correspondence by email or through its web site. In addition, ISDA plans to enhance its web site to allow members to customize their view of the web site so they can select the information that is most relevant to them. More details on this enhanced web feature will follow later this year. Your correct details, particularly your email address, are required in order for you to remain informed of ISDA initiatives and developments in the derivatives industry.

ISDA committees are the principal means of informing members of developments in areas of their responsibility or interest. Careful consideration should be given to the list of committees attached before you make your selection. If you do not respond to this request or if you do not indicate that you wish to be on an ISDA committee, you will not receive notices on ISDA committee activities. You will continue to receive the ISDA newsletter and conference information only.

Enclosed are the details we have on file for you. Please confirm that your details are correct or make changes if necessary, and reply by email to database@isda.org by July 28, 2001.

Please contact Barbara Hanlon by email at bhanlon@isda.org or by telephone on 212 332 1200 should you have any question.

Robert Pickel Executive Director and Chief Executive Officer

[IMAGE]

new york * london * singapore * tokyo

Please review the following details and reply by email to database@isda.org or by fax on 212 332 1212.

Current Information Change To Salutation Mr. First Name Mark Last Name Taylor Firm Enron Corporation [Taylor, Mark]
Title Assistant General Counsel Vice President and General Counsel Address 1 1400 Smith Street Address 2 EB-3889
EB-3892 City, State Zip Houston, Texas 77002 Country U.S.A. Phone 713-853-7459 Fax 713-646-3490 E-Mail
mark.taylor@enron.com

Please indicate the committee(s) that you would like to join from the list below. A complete description of each committee is available from the ISDA web site <http://www.isda.org> << File: <http://www.isda.org/> >> .

☐ Accounting Committee ☐ Asia Pacific Committee ☐ Canada Committee ☐ Central & Eastern Europe Committee
☐ Collateral Committee ☐ Credit Derivatives Market Practice Cmt. ☒ X_Documentation Committee ☒ X_Energy and

Developing Products ___ Equity Derivatives Committee ___ Euro Committee ___ Japan Committee ___ Operations Committee ___ Latin America Committee ___ X_Regulatory Committee ___ Risk Management Committee ___ Tax Committee ___ Trading Practice Committee

Message 14 of 413

Re: Deal 8025

Sender	mark.taylor@enron.com
Recipients	['scott.sefton@enron.com', 'yao.apasu@enron.com', 'alan.aronowitz@enron.com', 'paul.simons@enron.com']
File	taylor-m/sent/32.

There is a master agreement in place between ECT and Koch Energy Trading, Inc. I have never heard of Koch Carbon. My immediate concern is as to the Enron entity. It is not clear to me why Peter thinks this trade is between ECT and a Koch entity since he does not have authority to bind ECT.

Alan B Aronowitz 12/01/98 07:34 PM To: Paul Simons/LON/ECT@ECT cc: Mark - ECT Legal Taylor/HOU/ECT@ECT, Scott Sefton/LON/ECT@ECT, Yao Apasu/HOU/ECT@ECT Subject: Deal 8025

Paul:

Please call me tomorrow morning Houston time to discuss our preparing a confirmation and other relevant documentation for this petroleum coke-based financial swap transaction with Koch Carbon, Inc. I understand you (and Yao) had worked on a similarly structured coal-based swap a few months ago.

Mark: Do we have a financial master with any Koch affiliates?

Alan ----- Forwarded by Alan B Aronowitz/HOU/ECT on 12/01/98 06:58 PM -----

Brian Spector 12/01/98 11:20 AM To: Alan B Aronowitz/HOU/ECT@ECT cc: Daniel Reck/HOU/ECT@ECT Subject: Deal 8025

----- Forwarded by Brian Spector/HOU/ECT on 12/01/98 11:19

AM -----

Enron Capital & Trade Resources Corp.

From: PETER SCEATS <SCEATS@tfs-ln.co.uk> 12/01/98 11:13 AM

To: Brian Spector/HOU/ECT, "Mark Luetters @ Koch Petcoke" <luetterm@kochind.com> cc: Subject: Deal 8025

Here follows the draft confirm for deal no. 8025. Subject to hearing from you otherwise we intend to send you both the hard copy first thing tomorrow.

PETCOKE SWAP CONFIRM

To : Enron Capital & Trade Resources Corp. 1400 Smith Street Houston TX 77002-7361 Attn : Brian Spector Phone : 713 853 4276 Fax : 713 646 2492

To : Koch Carbon Inc 4111 East 37th Street North Wichita Kansas 67220 Attn : Mark Luetters Phone : 316 828 4412 Fax : 316 828 7946

Date : 1st December 1998

The following deal has been transacted for the above parties' account and risk by TFS Energy (acting as brokers without the responsibility for defaults by other parties) and is subject to credit and counterparty approval.

TFS Deal No. : 8025

Trade Date : 1st December 1998

Fixed Price Leg

Seller : Enron Capital & Trade Resources Corp

Buyer : Koch Carbon Inc

Benchmark Commodity : High Sulphur Green Coke FOB Gulf Coast Above 50 HGI per Pace Petroleum Coke Quarterly.

Duration : 1st December 1998 thru 28th February 1999 inclusive

Quantity : 5,000 tons per month, 15,000 tons in total

Price : \$ 4.15 per ton fixed and flat

Floating Price Leg

Seller : Koch Carbon Inc

Buyer : Enron Capital & Trade Resources Corp

Pricing : The price of the floating leg of the agreement shall be the monthly average of High Sulphur Green Coke FOB Gulf Coast Above 50 HGI appearing in Pace Petroleum Coke Quarterly's Green and Calcined Petroleum Coke Price table.

Settlement : Monthly. Settlement is due no more than three working days after the price index for each relevant month becomes available.

Profit & Loss Limitation : A collar is placed on the deal at \$1.00 either side of the fixed price such that the total cash payment/receipt cannot exceed \$15,000.

Regulation : This contract is governed in accordance with US law.

Other and Additional Terms : To be agreed between the counterparties.

Commission : 0.03 cents per ton charged to both sides.

Broker : Peter Sceats, Manager Coal Dept. TFS Energy East India House 109/117 Middlesex Street London E1 7JF
Phone 44 171 375 3780 Fax 44 171 422 9439 Mobile 44 378 863 036

Message 15 of 413

Re: Update!

Sender	mark.taylor@enron.com
Recipients	['htheaker@velaw.com']
File	taylor-m/sent/1418.

"Theaker, Helen" <htheaker@velaw.com> 10/23/2000 06:59 PM

To: "Taylor, Mark (Enron)" <mtaylo1@enron.com> cc: Subject: Update!

Mr. Taylor,

I'm updating V&E's contact list for Joe Dilg and would like to confirm/correct the information we have in our system for you and/or fill in any blanks. In that we may have deliveries to make, I am including your home address in this request. Here's what we show:

Name: Mark E. Taylor Title: Vice President & Assistant General Counsel Company: Enron North America Corp. Physical Address: 1400 Smith, EB3892 Houston, TX 77002 Phone: 713-853-7459 Fax: 713-646-3490 Best E-Mail Address: mtaylo1@enron.com

Home Address: 1322 Rutland Houston 77008

Assistant Name: Taffy Milligan Assistant E-Mail: _____ Assistant Phone: 713-345-7373

Thank you so much for your time. I REALLY appreciate it!

Helen Theaker Assistant to Joseph C. Dilg Vinson & Elkins L.L.P. Phone: 713.758.2519 Fax: 713.615.5034 E-Mail: htheaker@velaw.com

Message 16 of 413

FW: CFTC Inquiry

Sender	limor.nissan@enron.com
Recipients	[alan.aronowitz@enron.com', 'legal <.taylor@enron.com']
File	taylor-m/deleted_items/49.

Fyi, thanks a lot.

Enron Global Markets 520 Madison Avenue New York, NY 10022 Tel: 212.715.5283 Fax: 212.715.5608 E-Mail: Limor.Nissan@Enron.com

-----Original Message-----

From: Pennisi, Alfred S. Sent: Friday, October 19, 2001 1:19 PM To: Nissan, Limor Subject: RE: CFTC Inquiry

Limor,

FYI, the CFTC (Ron) were very appreciative of the fact Mark and or Alan responded to him so quickly. A note was made to the file and he will let me know if there are any followup questions. From his end, there are no further questions. He still does not know wheather DC will come back with further questions.

Regards,

Al -----Original Message----- From: Nissan, Limor Sent: Thursday, October 18, 2001 12:55 PM To: Pennisi, Alfred S. Subject: FW: CFTC Inquiry

Enron Global Markets 520 Madison Avenue New York, NY 10022 Tel: 212.715.5283 Fax: 212.715.5608 E-Mail: Limor.Nissan@Enron.com

-----Original Message-----

From: Taylor, Mark E (Legal) Sent: Thursday, October 18, 2001 12:24 PM To: Nissan, Limor; Aronowitz, Alan Subject: CFTC Inquiry

I have spoken with Ron Carletta at the CFTC and explained our position - that is that as far as we know the LJM entities have only engaged in exempt transactions and are not required to register as CPO's. He has my name and number if he has any further questions.

Mark Taylor Vice President and General Counsel Enron Wholesale Services 1400 Smith Street - EB3892 Houston, Texas 77008 (713)853-7459 (713)646-3490 (fax)

Message 17 of 413

ISDA North American Energy and Developing Products Committee Meet

Sender	scarey@isda.org
Recipients	[smarra@isda.org', 'rainslie@isda.org', 'ejelich@isda.org', 'e..haedicke@enron.com', 'elizabeth.sager@enron.c...
File	taylor-m/archive/2001_07/69.

We would like to invite you to participate in a meeting of the International Swaps and Derivatives Association's North American Energy and Developing Products Committee on Friday, July 27, 2001 at 11:30 a.m. (New York)/10:30 a.m.

(Houston). ISDA's Energy and Developing Products Committee, Chaired by Mark Haedicke, General Counsel of Enron Capital and Trade Resources Corp., focuses on facilitating and addressing issues ranging from documentation to market practice related to the prudent development of the range of commodity derivatives transactions. To that end, we plan to discuss items on the following agenda:

<<Agenda - July 27.doc>>

This will be a video conference meeting held at the offices of Goldman Sachs in New York (1 NY Plaza, 37th Floor, Room 37G) and in Houston (1000 Louisiana Street, Suite 550, Room 5G). You may also participate by calling into the meeting on the following phone numbers: United States: 1-877-718-6588; International: 212-902-0992. The passcode is: 20952.

Please RSVP via e-mail to Scott Marra: smarra@isda.org. We would appreciate knowing if you will attend the Houston location, New York location or if you will be calling-in by phone.

Additionally, as ISDA is currently updating its database, we apologize if we have inadvertently omitted anyone from the list. Please let me know if there are other ISDA members or members of your institution who should also receive an invitation to this meeting.

Please do not hesitate to contact me if you have any further questions. Thank you.

Stacy Carey Policy Director International Swaps and Derivatives Association 600 5th Avenue, 27th Floor Rockefeller Center New York, NY 10020 (212) 332-1202 ph (212) 332-1212 fax (917) 543-9622 cell scarey@isda.org

- Agenda - July 27.doc

Message 18 of 413

Huntlaw Corporate Services Limited - COMPLIANCE PROCEDURES FOR	
Sender	deb.korkmas@enron.com
Recipients	['angela.davis@enron.com', 'alan.aronowitz@enron.com', 'ann.white@enron.com']
File	taylor-m/notes_inbox/1573.

FYI - Please see attached information from Kate Cole.

Deb Korkmas Enron North America Corp. ENA Legal Dept. 1400 Smith Street, Room 3819 Houston, TX 77002 Phone: 713-853-5448 Fax: 713-646-3393 ----- Forwarded by Deb Korkmas/HOU/ECT on 10/13/2000 09:27 AM -----

Kate Cole@ENRON 10/13/2000 09:05 AM

To: Melanie Curran/EWC/Enron@ENRON, Sue Kelly/LON/ECT@ECT, Robin Hill/Enron Communications@Enron Communications, Deb Korkmas/HOU/ECT@ECT, Mary Ogden/HOU/ECT@ECT, Lori Pinder/HOU/EES@EES, Annette Patrick/LON/ECT@ECT, Bonnie_Rushing@pgn.com, Ed B Hearn III/HOU/ECT@ECT, Julie Delahay/EWC/Enron@ENRON, Barbara Hankins/HOU/AZURIX@AZURIX, Lorna Jones/LON/ECT@ECT, Michael Slade/LON/ECT@ECT, David Bateman/Corp/Enron@ENRON cc: Hardie Davis/Corp/Enron@ENRON, Teresa Callahan/Corp/Enron@Enron Subject: Huntlaw Corporate Services Limited - COMPLIANCE PROCEDURES FOR CAYMAN ISLANDS COMPANIES

I'm attaching a memorandum from Hunter & Hunter, our Cayman Islands counsel, regarding recent changes in Cayman Islands laws and regulations. Please forward it to other interested parties in your departments.

One immediate consequence of these changes is the request by counsel that we provide them with more detail on the intended business activities of our new subsidiaries in the A&J memos that are sent to them. Without being impractical, something more than "Oil & Gas exploration in Mexico" (by way of example) is requested. If it is impossible to provide more meaningful detail without going on extensively, then the current practice will have to continue to be acceptable. However, a business purpose of "holding company" is probably not going to be acceptable.

If you have specific questions or concerns after reviewing the memorandum, I suggest that you contact Rory Todd or another representative of Hunter & Hunter (phone: 345-949-4900; fax: 345-949-5175; email rtodd@huntlaw.com.ky).

Thanks guys! Kate

Kate B. Cole Director, Corporate Services Enron Corp. Tel: (713) 853-1624 FAX: (713) 646-8007 Email: kate.cole@enron.com

Message 19 of 413

Re: Choice of Law clause

Sender	joan.stumpf@cwt.com
Recipients	['mark.taylor@enron.com', 'robert.bruce@enron.com', 'david.mitchell@cwt.com']
File	taylor-m/notes_inbox/2756.

Per my voice mail, attached is an alternative to the language originally proposed re: statutory reference in the ISDA choice of law clause. David Mitchell and I discussed the issue and believe that the statutory reference is fine. We note that the statutory threshold -- contracts "arising out of a transaction covering in the aggregate not less than \$250,000" -- will likely be met either with each confirm individually or with all confirms in the aggregate .

Please do not hesitate to contact David at (212) 504-6285 or me at (212) 504-6261 to discuss this further.

(See attached file: Governing Law 2.doc)

Joan A. Stumpf Cadwalader, Wickersham & Taft 100 Maiden Lane New York, New York 10038 Tel: (212) 504-6261 Fax: (212) 504-6666

David Mitchell To: Joan Stumpf/NY/CWT@CWT cc: 12/13/2000 Subject: 02:57 PM

per our t/c ----- Forwarded by David Mitchell/NY/CWT on 12/13/2000 02:59 PM -----

Robert.Bruce@enron.com@enron.com on 12/12/2000 06:50:11 PM

To: dmitchel@cwt.com cc: Mark.Taylor@enron.com Subject:

(See attached file: Governing Law.doc)As we discussed, enclosed is the standard choice of law provision of our ISDA schedule, red-lined to show how the statutory reference might be worded. Mark Taylor and I are interested in your thoughts on the matter. -- Bob

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com
(See attached file: Governing Law.doc)

NOTE: The information in this email is confidential and may be legally privileged. If you are not the intended recipient, you must not read, use or disseminate the information. Although this email and any attachments are believed to be free of any virus or other defect that might affect any computer system into which it is received and opened, it is the responsibility of the recipient to ensure that it is virus free and no responsibility is accepted by Cadwalader, Wickersham & Taft for any loss or damage arising in any way from its use.

- Governing Law 2.doc - Governing Law.doc

*Message 20 of 413***Re: EnronOnline.com-REVISED DOCUMENTS**

Sender	mark.taylor@enron.com
Recipients	['dave.samuels@enron.com', 'stanford.lin@reuters.com']
File	taylor-m/all_documents/1855.

Stanford:

My only remaining comment would be a request that the we have a week to provide the notice we are required to give if we are unable to obtain the exchange consents - that would mean changing the date to September 7, 2000 at the end of the sentence.

Otherwise it all looks good to me. I will forward everything on to Mark Holsworth for his final review - particularly with respect to the affiliates issue.

Thanks very much for your help in getting this done.

Mark

Stanford Lin <stanford.lin@reuters.com> on 04/21/2000 04:33:36 PM To: dave.samuels@enron.com, rahil.jafry@enron.com, julie.ferrara@enron.com, mark.taylor@enron.com cc: Lynne Carithers <lynne.carithers@reuters.com>, James Garland <James.Garland@reuters.com>, Phil Lynch <phil.lynch@reuters.com>
Subject: EnronOnline.com-REVISED DOCUMENTS

Enron/Reuters Working Group:

Attached are revised Order Forms and a revised Terms & Conditions. Please note the following changes:

References to "Enron Corporation" have been changed to "Enron Corp."

A termination right for the data portion of the transaction has been inserted in the Order Form for data.

References to "Distributor's Subsidiaries" have been added in the license grant in Section 4.1 of the T&C as well as in the indemnification section in Section 14 to extend the indemnification protection by Reuters to Distributor's Subsidiaries. Because of the wider scope of the license, a Section 16.10 has been added to make clear that if any of Distributor's Subdiarries breach the Agreement, Reuters will look to Enron Corp. rather than the individual subsidiary. The reason for this is that although Reuters acknowledges that Enron's subsidiaries may be involved in operating the URLs, Reuters does not want to be put in a situation in which it has to search for the relevant subsidiary to remedy the breach.

Mark: I hope the added language addresses your concern regarding the protection of Enron's Affiliates and the ability of Affiliates to participate in the operation of URLs. Please call to discuss if necessary (646-298-9571).

(See attached file: Enron-Investor-T&C 42100 (revised).doc)(See attached file: Enron-Investor-NewsOrderForm 42100 (revised).doc)(See attached file: Enron-Investor-DataOrderForm 42100 (revised).doc)

Regards,

Stanford Lin Senior Legal Counsel

Visit our Internet site at <http://www.reuters.com>

Any views expressed in this message are those of the individual sender, except where the sender specifically states them to be the views of Reuters Ltd. - Enron-Investor-T&C 42100 (revised).doc - Enron-Investor-NewsOrderForm 42100 (revised).doc - Enron-Investor-DataOrderForm 42100 (revised).doc

Message 21 of 413

Re: EnronOnline.com-REVISED DOCUMENTS

Sender	mark.taylor@enron.com
Recipients	['mark.taylor@enron.com', 'Lynne Carithers', 'mark.taylor@enron.com@ENRON', 'Rahil.jafry@enron.com@ENRON']
File	taylor-m/online_trading/content/21.

Yours?????

Mark ----- Forwarded by Mark A Taylor/EFS/EES on 04/24/2000 09:05 AM -----

Dave Samuels@ECT 04/21/2000 05:55 PM To: Stanford Lin <stanford.lin@reuters.com> @ ENRON cc: Rahil.jafry@enron.com@ENRON, mark.taylor@enron.com@ENRON, Lynne Carithers <lynne.carithers@reuters.com>@ENRON Subject: Re: EnronOnline.com-REVISED DOCUMENTS

I think the concept that has been added regarding the equity quotes is OK, but the result is still not sufficient. The agreement allows Enron to cancel that order if we cannot receive the consents, but there is no value returned to Enron for this loss of content. Since the specific fee is waived in the first year cancelling the service does not impact the \$1 million cost. Yet, our commercial negotiation always reflected the perspective that these quotes had value.

Stanford Lin <stanford.lin@reuters.com> on 04/21/2000 04:33:36 PM To: dave.samuels@enron.com, rahil.jafry@enron.com, julie.ferrara@enron.com, mark.taylor@enron.com cc: Lynne Carithers <lynne.carithers@reuters.com>, James Garland <James.Garland@reuters.com>, Phil Lynch <phil.lynch@reuters.com> Subject: EnronOnline.com-REVISED DOCUMENTS

Enron/Reuters Working Group:

Attached are revised Order Forms and a revised Terms & Conditions. Please note the following changes:

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A termination right for the data portion of the transaction has been inserted in the Order Form for data.

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Mark: I hope the added language addresses your concern regarding the protection of Enron's Affiliates and the ability of Affiliates to participate in the operation of URLs. Please call to discuss if necessary (646-298-9571).

(See attached file: Enron-Investor-T&C 42100 (revised).doc)(See attached file: Enron-Investor-NewsOrderForm 42100 (revised).doc)(See attached file: Enron-Investor-DataOrderForm 42100 (revised).doc)

Regards,

Stanford Lin Senior Legal Counsel

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Any views expressed in this message are those of the individual sender, except where the sender specifically states them to be the views of Reuters Ltd. - Enron-Investor-T&C 42100 (revised).doc - Enron-Investor-NewsOrderForm 42100 (revised).doc - Enron-Investor-DataOrderForm 42100 (revised).doc

Message 22 of 413

Revised ENA CLO Documents

Sender	anne.koehler@enron.com
Recipients	[tim.despain@enron.com', 'mark.taylor@enron.com', 'alyssa.irving@fitchratings.com', 'david.howard@fitchrating...
File	taylor-m/all_documents/3104.

Here are the revised term sheet, confirmation and schedule for the ENA CLO documents. Please call if you have any questions or comments. thanks

Anne C. Koehler Sr. Counsel, ENA EB 3832 713-853-3448 ----- Forwarded by Anne C Koehler/HOU/ECT on 08/30/2000 05:22 PM -----

"Curry, Alicia" <acurry@velaw.com> 08/29/2000 09:57 AM

To: "'anne.c.koehler@enron.com'" <anne.c.koehler@enron.com>, "'andrea.v.reed@enron.com'" <andrea.v.reed@enron.com>, "Keyes, David" <dkeyes@velaw.com> cc: "Halbert, Elaine" <ehalbert@velaw.com>
Subject: Revised Documents

Anne, Responding to your messages and emails of late yesterday and this morning, attached are the revised term sheet and confirmation. I have attached both marked and unmarked copies. I am not be in the office today. If you need further changes, my assistant, Elaine Halbert, will be glad to help you.

I am still working on the V&E legal opinion. Let me know if you have comments on the Enron opinion that I sent you (or you may dictate them to Elaine instead).

Alicia L. Curry Vinson & Elkins L.L.P. 2300 First City Tower 1001 Fannin Street Houston, Texas 77002-6760 Phone: 713-758-4428 Fax: 713-615-5688 (Licensed in New York only) ++++++ CONFIDENTIALITY NOTICE ++++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

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<<Term Sheet Compare.DOC>> <<Confirm Compare.DOC>> <<Put Option Confirmation v3.DOC>> <<Term Sheet for Merlin Put v9.DOC>>

- Term Sheet Compare.DOC - Confirm Compare.DOC - Put Option Confirmation v3.DOC - Term Sheet for Merlin Put v9.DOC ----- Forwarded by Anne C Koehler/HOU/ECT on 08/30/2000 05:22 PM -----

"Curry, Alicia" <acurry@velaw.com> 08/30/2000 04:52 PM

To: "'andrea.v.reed@enron.com'" <andrea.v.reed@enron.com>, "'anne.c.koehler@enron.com'" <anne.c.koehler@enron.com> cc: "Keyes, David" <dkeyes@velaw.com> Subject: Revised Schedule

Attached please find a revised Schedule to the ISDA Master Agreement to be entered into between Enron Corp. and ENA CLO I Holding Company I L.P. The changes reflect comments received concerning the jurisdiction and waiver of jury trial clauses. Please let me know if you have further comments.

Alicia L. Curry Vinson & Elkins L.L.P. 2300 First City Tower 1001 Fannin Street Houston, Texas 77002-6760 Phone: 713-758-4428 Fax: 713-615-5688 (Licensed in New York only) ++++++ CONFIDENTIALITY NOTICE ++++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

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<<Compare.DOC>>

- Compare.DOC

Message 23 of 413

Re: EnronOnline.com-REVISED DOCUMENTS

Sender	mark.taylor@enron.com
Recipients	['dave.samuels@enron.com', 'mark.holsworth@enron.com']
File	taylor-m/all_documents/1856.

Mark:

Here is the most recent draft of the Reuters document. You will see that while they didn't give us everything we asked for, they made significant progress on the indemnity. I'm not sure they have satisfied your concern regarding the Enron affiliates issues - they have added in subsidiaries in several places but refused to change the definition of "Distributor" to include affiliates.

If you need a complete set of all of the drafts we have been through (to see all of the marked changes) let me or Dave Samuels know and we can forward them to you (I think there were at least 4 versions since the draft we discussed with them the other day).

Since I will be in Brazil on Monday, it might make sense for you to coordinate your reactions with Dave. If you need me, please leave a voice-mail or ask my assistant (Taffy x57373) to track me down.

Mark ----- Forwarded by Mark Taylor/HOU/ECT on 04/21/2000 05:37 PM ----- To: Stanford Lin <stanford.lin@reuters.com> @ ENRON cc: Dave Samuels/HOU/ECT@ECT Subject: Re: EnronOnline.com-REVISED DOCUMENTS

Stanford:

My only remaining comment would be a request that the we have a week to provide the notice we are required to give if we are unable to obtain the exchange consents - that would mean changing the date to September 7, 2000 at the end of the sentence.

Otherwise it all looks good to me. I will forward everything on to Mark Holsworth for his final review - particularly with respect to the affiliates issue.

Thanks very much for your help in getting this done.

Mark

Stanford Lin <stanford.lin@reuters.com> on 04/21/2000 04:33:36 PM To: dave.samuels@enron.com, rahil.jafry@enron.com, julie.ferrara@enron.com, mark.taylor@enron.com cc: Lynne Carithers <lynne.carithers@reuters.com>, James Garland <James.Garland@reuters.com>, Phil Lynch <phil.lynch@reuters.com> Subject: EnronOnline.com-REVISED DOCUMENTS

Enron/Reuters Working Group:

Attached are revised Order Forms and a revised Terms & Conditions. Please note the following changes:

References to "Enron Corporation" have been changed to "Enron Corp."

A termination right for the data portion of the transaction has been inserted in the Order Form for data.

References to "Distributor's Subsidiaries" have been added in the license grant in Section 4.1 of the T&C as well as in the indemnification section in Section 14 to extend the indemnification protection by Reuters to Distributor's Subsidiaries. Because of the wider scope of the license, a Section 16.10 has been added to make clear that if any of Distributor's Subsidiaries breach the Agreement, Reuters will look to Enron Corp. rather than the individual subsidiary. The reason for this is that although Reuters acknowledges that Enron's subsidiaries may be involved in operating the URLs, Reuters does

not want to be put in a situation in which it has to search for the relevant subsidiary to remedy the breach.

Mark: I hope the added language addresses your concern regarding the protection of Enron's Affiliates and the ability of Affiliates to participate in the operation of URLs. Please call to discuss if necessary (646-298-9571).

(See attached file: Enron-Investor-T&C 42100 (revised).doc)(See attached file: Enron-Investor-NewsOrderForm 42100 (revised).doc)(See attached file: Enron-Investor-DataOrderForm 42100 (revised).doc)

Regards,

Stanford Lin Senior Legal Counsel

Visit our Internet site at <http://www.reuters.com>

Any views expressed in this message are those of the individual sender, except where the sender specifically states them to be the views of Reuters Ltd. - Enron-Investor-T&C 42100 (revised).doc - Enron-Investor-NewsOrderForm 42100 (revised).doc - Enron-Investor-DataOrderForm 42100 (revised).doc

Message 24 of 413

Margin Provisions - Revised Draft & Blackline

Sender	bhanlon@isda.org
Recipients	['ksumme@isda.org', 'rpickel@isda.org']
File	taylor-m/notes_inbox/2353.

Memorandum to ISDA's Documentation and Collateral Committees:

To receive a copy of the March 12th draft of the 2001 ISDA Margin Provisions and the blackline compared to the January 22 draft, please send an e-mail to documents@isda.org with a reference in the subject heading to "DRAFTMP2" and a copy will be sent to you by automatic reply e-mail. Please note that this process is entirely automatic and that ISDA staff will NOT review incoming e-mails.

Kimberly Summe Assistant General Counsel International Swaps and Derivatives Association, Inc. 600 Fifth Avenue, 27th Floor Rockefeller Center New York, New York 10020-2302 Phone: (212) 332-1200 Fax: (212) 332-1212

Ms. Barbara Hanlon Database Administrator International Swaps and Derivatives Association, Inc. 600 Fifth Avenue, 27th Floor Rockefeller Center New York, New York 10020-2302 Phone: (212) 332-1200 Fax: (212) 332-1212

Message 25 of 413

nan

Sender	efeo@milbank.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/all_documents/7570.

Mark--

I am in Houston for a couple of days this week.? Any chance we could get together at your office on Wednesday?

Regards,

Ed

Edwin F. Feo Milbank, Tweed, Hadley & McCloy LLP 601 South Figueroa Street, 30th Floor Los Angeles, CA? 90017
efeo@milbank.com <http://www.milbank.com> (213) 892-4417 - Direct Dial (213) 892-4717 - Direct Fax (213) 629-5063 -

General Fax (213) 446-3206 or (310) 968-0670 - Mobile

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Message 26 of 413

MTHM Contact List for Enron Online

Sender	efeo@milbank.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/1220.

Mark:

Good to talk to you yesterday.? As discussed, attached is a contact list for a number of our people.? Mummery, Sanford, Kramer and yours truly would be interested in a guest pass if possible.

regards,

Ed

Edwin F. Feo Milbank, Tweed, Hadley & McCloy LLP 601 South Figueroa Street, 30th Floor Los Angeles, CA? 90017
efeo@milbank.com <http://www.milbank.com> (213) 892-4417 - Direct Dial (213) 892-4717 - Direct Fax (213) 629-5063 -
General Fax (213) 446-3206 or (310) 968-0670 - Mobile

<<MTHM Contact List for Enron Online.DOC>>

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- MTHM Contact List for Enron Online.DOC

Message 27 of 413

Re:

Sender	mark.taylor@enron.com
Recipients	['efeo@milbank.com']
File	taylor-m/all_documents/3716.

Unfortunately I'm already booked for breakfast (which is unusual for me). I'm free for lunch though on both days if you are.

EFeo@milbank.com 11/10/2000 12:48 PM

To: mark.taylor@enron.com cc: Subject:

Mark--

Hudanish says he is at a closing in North Carolina next week. As I recall, you are in NY on Monday and Tuesday.? Any chance we could meet for breakfast on Tuesday?

Regards,

Ed Feo

Edwin F. Feo Milbank, Tweed, Hadley & McCloy LLP 601 South Figueroa Street, 30th Floor Los Angeles, CA 90017
efeo@milbank.com http://www.milbank.com (213) 892-4417 - Direct Dial (213) 892-4717 - Direct Fax (213) 629-5063 -
General Fax (213) 446-3206 or (310) 968-0670 - Mobile

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Message 28 of 413

OGC and/or Legal Committee Staff Meetings

Sender	janette.elbertson@enron.com
Recipients	['mark.evans@enron.com', 'jon.chapman@enron.com', 'tracy.foy@enron.com', 'sarah.edwards@enron.com', 'nicola.be...]
File	taylor-m/notes_inbox/2631.

A conference bridgeline has been set up for participating in the Monday morning OGC meeting and/or Legal Committee Staff Meeting.

International (London and Brazil): Dial In #: 801-983-4017; Passcode #: 56871

Domestic (Canada and Houston): Dial In #: 800-713-8600; Passcode #: 56871

The OGC meeting and the Legal Committee will meet on alternate Mondays in EB38C2 from 8:30 AM to 9:30 AM Central time. The Legal Committee will meet this Monday, January 22. The next OGC meeting will be Monday, January 29.

Office of General Counsel Legal Committee Alan Aronowitz OGC Mark Evans Justin Boyd Barbara Gray Michelle Cash Jeff Hodge Jon Chapman Bruce Lundstrom Stephen Douglas Travis McCullough Peter Keohane Julia Murray John Novak Elizabeth Sager Marcus Von Bock und Polach Richard Sanders Dan Rogers Lance Schuler Paul Simons Mark Taylor Stuart Zisman Sheila Tweed Randy Young

Also, Mark Haedicke understands there will be times when you may not be able to be on this call. When there is a Company holiday in Houston, the OGC meeting and/or Legal Committee meeting will be held on the next business day. Julia Murray will head the meeting in Mark Haedicke's absence.

Please let me know if you have any questions.

Janette Elbertson Enron North America Corp. Legal Department - EB3326 Telephone: (713) 853-7906 Fax: (713) 646-2600 janette.elbertson@enron.com

Message 29 of 413

Christmas lists

Sender	mzeleanor@juno.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/all_documents/923.

Here are Dad's and my lists. I have deleted from Dad's list what Byers got him, so the only one you need to check with on his is Tim. I gave both Tim and Janet this same list for me. We need some more ideas for you too. Thanks for sending the SS #.

DAD'S LIST

Flight Test Check List \$11.97+2.75 s/h Javifix, Inc. Publishing Trenton Centre, PO Box 22092 Trenton, Ont. K8V 6S3

<http://www.reach.net/~javifix> email:javifix@reach.net

The Back Seat Flyer, by Nina Anderson \$9.95 Safe Goods 860/824-5301

safe@snet.net

Razor Guard (unit for holding razor in Razor Guard Solution) - \$19.95 Herrington - #E131 1-800/622-521

Large thermometer for the deck

MOTHER'S LIST

Magellan Catalog: 1-800-962-4943

Toothbrush caps 2 for \$1.85 TA 452N Bottle carrier 14.85 LB 348 Car trash bag 12.85 AA 103 Adjust-a-strap for seat belts 6.85 AA 110 Bib bib 18.85 IF 388

Lizell - 1-800-718-8808

Steel CD case 16.95 47P125

Solutions - 1-800-342-9988

Tiger Woods Golf Game 49.50 #63725

Sharper Image - 1-800-344-4444

Digital answer machine 49.00 VC 001

Oven Mitts

Clinique - Moisture On Call

Grey driving gloves

File folders - for 8 x 11 sheets

Why pay more to get Web access? Try Juno for FREE -- then it's just \$9.95/month if you act NOW! Get your free software today: <http://dl.www.juno.com/dynoget/tagj>.

Message 30 of 413

RE: Possible meeting Monday or Tues.

Sender	legal <taylor@enron.com>
Recipients	['carin.nersesian@enron.com']
File	taylor-m/sent_items/335.

That's fine with me - I've booked it. Just let me know if you need to change the time.

-----Original Message-----

From: Nersesian, Carin Sent: Thursday, August 09, 2001 8:41 AM To: Taylor, Mark E (Legal) Subject: RE: Possible meeting Monday or Tues.

Mark,

How does 3-4pm on Monday work for you ? Jay Webb can meet at that time as well. However, Brad Richter might need to push the time back a bit since he is arriving from Europe that day.

Thanks, Carin

Carin Nersesian Legislative Coordinator Enron Corp. 1775 Eye St. NW, Suite 800 Washington, DC 20006 202-466-9144 (ph.) 202-828-3372 (fax)

Mark Taylor/ENRON@enronXgate 08/07/2001 06:48 PM To: Carin Nersesian/NA/Enron@Enron cc: Subject: RE: Possible meeting Monday or Tues.

Monday afternoon is much better for me.

-----Original Message-----

From: Nersesian, Carin Sent: Tuesday, August 07, 2001 2:31 PM To: Taylor, Mark E (Legal); Richter, Brad; Webb, Jay Cc: Long, Chris; Shelk, John Subject: Possible meeting Monday or Tues.

John Shelk and Chris Long from the Washington, DC office will be in Houston Monday, August 13th and Tues., Aug. 14th. They would like to arrange a time that is good for all of you to discuss Enron OnLine.

Here are the best available times for Chris and John:

Monday afternoon anytime between 3-5pm

or

Tues. 8-10am

Please let me know what time works best. for everyone.

Thanks!

Carin Nersesian Legislative Coordinator Enron Corp. 1775 Eye St. NW, Suite 800 Washington, DC 20006 202-466-9144 (ph.) 202-828-3372 (fax)

Message 31 of 413

EnronOnline Services Agreement

Sender	travis.mccullough@enron.com
Recipients	['shermanj@sullcrom.com', 'mark.taylor@enron.com', 'gilbergd@sullcrom.com']
File	taylor-m/notes_inbox/1991.

David and Jenny:

Attached is the form of services agreement that we are sending to NGPL for review. This draft resulted from several conversations with the commercial team -- I think we are all pretty comfortable with this draft and how we have handled the issues that we discussed on the phone before you sent your revised draft.

We expect NGPL to take their time in reviewing this and that they will have comments; we have reserved the right to make further comments, and I think we are all going to take a fresh look at this document in a couple of days and make sure we are happy with it. Please review the attached and give me a call with any comments or questions you might have so we can be prepared to turn it again when we receive NGPL's input.

Please note that the attached is not marked against the version you sent down; I have not run that comparison, but can try to do so if it would be helpful to you.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3882A Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3393/3490 ----- Forwarded by Travis McCullough/HOU/ECT on 06/07/2001 06:07 PM -----

Travis McCullough 06/06/2001 06:52 PM

To: David Forster/Enron@EnronXGate, Carl Carter/Enron@EnronXGate cc: Subject: Revised Agreement

this incorporates all of your changes; marked changes are my changes that you have not seen yet

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3882A Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3393/3490

Message 32 of 413

Re: Enron Affiliates Using MG as Broker

Sender	mary.cook@enron.com
Recipients	['mark.taylor@enron.com', 'alan.aronowitz@enron.com']
File	taylor-m/all_documents/3410.

See below re follow up with Joe Deffner and John Arnold at the request of Mark Haedicke.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 10/10/2000 09:56 AM -----

Mary Cook 09/29/2000 08:26 AM

To: Mark E Haedicke/HOU/ECT@ECT cc: Subject: Re: Enron Affiliates Using MG as Broker

I have since spoken with John Arnold and Joe Deffner regarding the matter.

Per John: He sees some value in utilizing MG in the nature of broker fees reduction; however, his general estimate is only 2MM a year savings. However, he sees the value in the margin credit lines we now have and are continuing to increase. I spoke with him briefly regarding the legal issues which I think he appreciated as significant.

Per Joe: He also sees a limited economic advantage in respect of the broker fees. However, he thinks the interest free margin lines provide us with greater value, in part due to increased liquidity and the insulation from funds flow volatility. Joe thinks margin lines should be utilized first and then outside brokers. He sees MG pretty much as any other outside broker.

If you have any questions, call.

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Mark E Haedicke 09/25/2000 01:26 PM

To: Mary Cook/HOU/ECT@ECT cc: Subject: Re: Enron Affiliates Using MG as Broker

Please call John Arnold and ask him where the traders are coming out on this. Let me know. Mark

Message 33 of 413

Re: Notification to NYMEX/CFTC

Sender	alan.aronowitz@enron.com
Recipients	['marcus.nettelton@enron.com', 'mark.taylor@enron.com', 'alfred.pennisi@enron.com']
File	taylor-m/notes_inbox/1585.

Al:

Per my voice mail, I have left a message for Mark to give his input.

I think you should revise the letter as follows, subject to Mark's edits:

"Please be advised that effective July 17, 2000, MGplc was aquired by the Enron group. MG London Inc was part of the MGplc group.

Effective October 9, 2000, MG London Inc. changed its name to "Enron Trading Services Inc".

Also, please be advised that the Financial Status of MG London Inc (now Enron Trading Services Inc.) has not changed.

If there are any questions please call me at 212 715 5845."

Alfred Pennisi@MGUSA 10/17/2000 09:01 AM

To: Mark Taylor/HOU/ECT@ECT cc: Alan Aronowitz/HOU/ECT@ECT Subject: Notification to NYMEX/CFTC

I NEED TO SEND OUT TODAY. PLEASE GIVE ME THE OK.

tk,

Alfred Pennisi Enron Trading Services Inc 520 Madison Avenue 28th Floor New York, NY 10022 Tel: 212.715.5845
E-mail: alfred.pennisi@enron.com

----- Forwarded by Alfred Pennisi/NYC/MGUSA on 10/17/2000 10:13 AM -----

Alfred Pennisi 10/10/2000 09:41 AM

To: Mark Taylor/HOU/ECT@ECT cc: Alan Aronowitz/HOU/ECT@ECT bcc: Subject: Notification to NYMEX/CFTC

Mark,

I would like to send a letter to the NYMEX copy the CFTC with the following language:

Please be advised that effective July 17, 2000 MGplc was aquired by Enron ??????. MG London Inc was part of the MGplc group.

Effective October 9, 2000 we have changed our name to "Enron Trading Services Inc".

Also, please be advised that the Financial Status of MG London Inc has not changed.

If there are any questions please call me at 212 715 5845.

If you would be so kind and review the above language and get back to me as soon as possible.

Tks,

regards,

Alfred Pennisi Enron Trading Services Inc 520 Madison Avenue 28th Floor New York, NY 10022 Tel: 212.715.5845
E-mail: alfred.pennisi@enron.com

Message 34 of 413

Enron Online

Sender	travis.mccullough@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/795.

Mark -- do you know anything about this?

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490 ----- Forwarded by Travis McCullough/HOU/ECT on 06/15/2000 12:31 AM -----

"Hodgson, Stephen" <shodgson@velaw.com> 06/13/2000 06:27 PM

To: "McCullough, Travis (Enron)" <travis.mccullough@enron.com> cc: "Borgman, Steve" <SBorgman@velaw.com>
Subject: Enron Online

Hi Travis,

I work with Steve Borgman, and we met at your offices in a meeting with Dave Forster concerning Enron Online. In studying the material we received from Dave, we noticed that a company called Agency.com delivered a project overview for Enron Online in about June, 1999. Please confirm: (1) Agency.com assigned any rights they may have to Enron Corp; (2) there were no non-confidential disclosures outside of Enron or any discussions with any potential customers or trading partners before the release of brochures in October, 1999; and (3) any confidential disclosures are covered by a written confidentiality agreement. The Agency.com paper states that after the test phase, the system would be released to a select set of internal and external users for three weeks to ensure the system worked properly. What is the earliest these external users may have been contacted? Would traders have known about Enron Online last summer, and could a trader have discussed its concepts with someone outside Enron?

As you know, we have one year in the U.S.A. to file a patent application after public use, public disclosure, or offer to sell. Is there any possibility that a disclosure of the concept for Enron Online could have been disclosed nearly one year ago?

Please telephone Steve Borgman or me. Thanks.

Steve

Stephen S. Hodgson
Vinson & Elkins L.L.P. 2300 First City Tower 1001 Fannin Street
Houston, Texas 77002-6760 (713) 758-2604 (tel) (713) 615-5730 (fax)
shodgson@velaw.com

Message 35 of 413

Re: Bankruptcy Legislation/Bond Market Association

Sender	mark.taylor@enron.com
Recipients	['carol.clair@enron.com']
File	taylor-m/sent/3205.

Do we have our other desired changes incorporated at this point?

Carol St Clair 02/08/2001 04:24 PM

To: Mark Taylor/HOU/ECT@ECT cc: Subject: Bankruptcy Legislation/Bond Market Association

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com ----- Forwarded by Carol St Clair/HOU/ECT on 02/08/2001 04:24 PM -----

"Rick Antonoff" <Rick.Antonoff@cwt.com> 02/08/2001 03:29 PM

To: mark.e.haedicke@enron.com, elizabeth.sager@enron.com, sstack@enron.com, Mary.Cook@enron.com, msmith1@enron.com, vsharp@enron.com, Carol.St.Clair@enron.com, lmellen@ect.enron.com cc: "David Mitchell" <David.Mitchell@cwt.com> Subject: Bankruptcy Legislation/Bond Market Association

I just returned from the Bond Market Association meeting this afternoon on the pending bankruptcy legislation. Chris Long (Enron) was there with Ellen Levinson of our Washington office. The "big" issue discussed was whether to push hard for amendments on cross-affiliate netting. The consensus was that while everyone in the room (and all of Wall Street was there, as well as ISDA and commodities groups) wants the amendments, they are considered controversial by the President's Working Group and could derail progress on the version of bankruptcy reform currently before Congress which everyone also agrees is very good legislation for financial markets participants. On the basis that getting the current bill enacted quickly is of paramount importance, the Association determined to "back pocket" the cross-affiliate netting issue, meaning that if the current legislation moves quickly, the Association will not raise the issue but if the legislation gets bogged down in committee and other nontechnical changes are being proposed, the Association will use that opportunity to add cross-affiliate netting provisions.

Feel free to call if you have any questions.

Rick B. Antonoff Cadwalader, Wickersham & Taft 100 Maiden Lane New York, NY 10038 Phone: 212 504-6759 Fax: 212 504-6666 Mobile: 917 287-6391 Email: rick.antonoff@cwt.com

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Message 36 of 413

RE: CMS NDA

Sender	mark.greenberg@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/all_documents/8158.

Mark -

Did you ever talk to Rahil or Stephen about this?? If not and you need more information, please let me know.

Mark Senior Counsel, ENA Phone: 713-345-8897 Facsimile: 713-646-3940 E-Mail: Mark.Greenberg@enron.com -----
Forwarded by Mark Greenberg/NA/Enron on 04/12/2001 08:42 AM -----

Stephen Abbanat/ENRON@enronXgate 04/04/2001 05:28 PM

To: Mark Greenberg/NA/Enron@ENRON cc: Subject: RE: CMS NDA

Mark,

Thanks again for your help. Rahil, my colleague, recently mentioned that there was some concern that we make sure a joint NDA did not violate any FERC related issues about ETS and Net Works working together on this. It was suggested that I give Mark Taylor a call to verify that we are doing everything we can to maintain the integrity of ETS as a separate legal entity, since Net Works is a division of Wholesale Services.

Anyway, Rahil followed up with a call to Mark Taylor and I wanted to give you a heads up.

Thanks, - Steve

-----Original Message-----

From: Greenberg, Mark Sent: Friday, March 30, 2001 7:05 AM To: Abbanat, Stephen Subject: Re: CMS NDA

Stephen -

Glad to be of assistance. In order to ensure we prepare an accurate document, I need to have the complete name and address of CMS (or the appropriate entities). Also, our intention is to put as the "transaction" the following:

"Enron and CMS are prepared to furnish each other with information in connection with the development and implementation of a pipeline portfolio management solution..."

Please let me know if this is acceptable or if we need to modify this generic description of the transaction.

Mark Senior Counsel, ENA Phone: 713-345-8897 Facsimile: 713-646-3940 E-Mail: Mark.Greenberg@enron.com

Stephen Abbanat/ENRON@enronXgate 03/29/2001 02:22 PM To: Mark Greenberg/NA/Enron@ENRON, Drew Fossum/ET&S/Enron@ENRON cc: Stephen Abbanat/ENRON@enronXgate Subject: CMS NDA

Mark,

Thanks for agreeing to help prepare this NDA. As we discussed on the phone, our team is now in a position to begin detailed negotiations with CMS for a systems solution project (CMS Energy - Panhandle Pipe Line Companies). As a part of the negotiations we will need to disclose some detailed information about ETS systems.

Steve Hotte (CIO of ETS) and our team agreed that we should to execute an NDA that covers both ENW and ETS and gave me Drew's name as their legal council.

The contact name at CMS should be:

Cynthia C. Albert Vice President, Regulatory Affairs and Information Systems 5444 Westheimer Road Houston, TX 77210-4967

713-989-7334 tsmehta@cmsenergy.com

On the Enron side, I would use

David Berberian for ENW Steve Hotte for ETS

for signatories.

I hope this is sufficient information to prepare one or two NDA's whichever is appropriate.

Sincerely, Steve Abbanat

Message 37 of 413

RE: Acknowledgments and Resolutions

Sender	h.douglas@enron.com
Recipients	['bristor'.katherine@enron.com', 'jeff.blumenthal@enron.com', 'morris.clark@enron.com']
File	taylor-m/archive/2001_11/6.

You should be receiving the other documents shortly (i.e., the assignment of the PPA from Enron Canada Power to ERMT Canada Corp. - I am not sure of the note drop down but that shouldn't affect anything I don't think). Otherwise, I appreciate your help with matters. SHD.

-----Original Message-----

From: Katherine Bristor [mailto:KBRISTOR@skadden.com] Sent: Wednesday, November 07, 2001 5:01 PM To: wally.shaw@blakes.com; sdougla@ect.enron.com; Taylor, Mark E (Legal); Clark, Morris Subject: Re: Acknowledgments and Resolutions

Wally's drafts of these documents seem fine to me from a United States perspective. As we discussed, I believe that a transaction where, in effect, a shareholder's right to redemption/liquidation proceeds and dividends is reduced would be analyzed as a redemption for United States federal income tax purposes.

Just want to make sure that I'm not missing anything--I have documents relating to the transaction between Enron and Enron Canada, and Enron Canada and Enron Canada Power, but nothing relating to the transfer between Enron Canada Power and ERMT Canada Corp. and nothing relating to the "drop down" of the note. Is that correct?

Steve, as I mentioned, I will not be in the office tomorrow or Friday. However, I will take my "picture" with me from our conversations today and if you need me, please let Lorna, my secretary know; she will put you in touch with me.

Best regards, Kathy

Katherine M. Bristor Skadden Arps Slate Meagher & Flom LLP 4 Times Square New York NY 10036 p: (212) 735-2338 f: (917) 777-2338 kbristor@skadden.com

"WALLY SHAW" <wally.shaw@blakes.com> 11/07/01 05:30PM >>>

As discussed.

Wallace Y. Shaw Barrister and Solicitor Blake, Cassels & Graydon LLP Calgary, AB T2P 4J8 Tel: 403.260.9766 Fax: 403.260.9700 E-Mail: betty.fleming@blakes.com

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Further information about the firm, a list of the Partners and their professional qualifications will be provided upon request.

Message 38 of 413

RE: LCs and ISDA

Sender	mary.cook@enron.com
Recipients	['carol.clair@enron.com', 'mark.taylor@enron.com']
File	taylor-m/notes_inbox/2165.

Please note the 2 day LC timing being negotiated with Chase by finance. Should we alter our Paragraph 13 to modify the ISDA CSA timing for provision of credit support when an LC is being provided?

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 04/25/2001 09:25 AM -----

Sarah Wesner/ENRON@enronXgate 04/25/2001 08:20 AM

To: Joel Ephross/ENRON@enronXgate, dkeyes@velaw.com@SMTP@enronXgate, tyates@velaw.com@SMTP@enronXgate, ealderden@velaw.com@SMTP@enronXgate, Mary Cook/HOU/ECT@ECT cc: Subject: RE: LCs and ISDA

I received a message from Chase this morning that they will move the 5 days to 2 days as long as their LC department is okay with it. According to our LC department, Chase is fine with it. I am just waiting for the internal parties to communicate this to one another within Chase but we can assume that it will be 2 days.

-----Original Message-----

From: Ephross, Joel Sent: Tuesday, April 24, 2001 6:14 PM To: 'dkeyes@velaw.com'; 'tyates@velaw.com'; 'ealderden@velaw.com'; Wesner-Soong, Sarah; Cook, Mary Subject: FW: LCs and ISDA

Hi Mary. Thanks for the info. The attachment to the ISDA appears to be weighted against Enron [for instance, the 30 day provision in the force majeure provision], and in fact contains some provisions that I was trying to invalidate in drafting the LC Reimbursement Agreement. I will need to review some of the other references tonight. Can we make the form of LC more Enron friendly?

Will need to discuss timing at more length. Here, the Issuer is Chase -- NY. We should discuss whether we can vary the standard -- I do not think we can count on obtaining next day issuance in the documentation [Chase may waive requirement in their discretion]. We are trying to obtain 2 day issuance now, but please realize that the initial bid from Chase is 5 days.

-----Original Message-----

From: Cook, Mary Sent: Tuesday, April 24, 2001 4:42 PM To: Ephross, Joel Subject: LCs and ISDA

<< File: isdacsa(02-14-01).doc >> See end of attachment Letter of Credit Provisions and Form.

Timing requirement for transfer of LC for margin under our standard time frame does not vary from the ISDA form which is:

if collateral demand is made by "Notification Time" (10:00 am NY time) then cash or LC must be delivered by close of business on the next Local Business Day, if after Notification Time then cash or LC must be delivered by close of second Local Business Day. Local Business Day for this purpose is a day on which commercial banks are open for business in the place of the "relevant account." Relevant account should be considered to mean the place of the issuer.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 39 of 413

RE: Master Agreement Structural Issues Working Group Meeting Noti

Sender	jberry@isda-eur.org
Recipients	['crichards@isda.org', 'apapesch@isda.org', 'ljohnson@isda.org', 'mhoque@isda.org', 'rpickel@isda.org']
File	taylor-m/all_documents/7979.

As promised, please find attached the materials for Wednesday afternoon's meeting.

The materials consist of:

1. Revised draft Cross-Agreement Bridge; 2. Accompanying memorandum; 3. Draft ISDA/GMRA Bridge taking the "transaction" approach (previously distributed); 4. Draft ISDA/GMRA Bridge taking the "insolvency" approach (previously distributed); 5. Draft ISDA/OSLA Bridge taking the "transaction" approach (previously distributed); 6. Draft ISDA/OSLA Bridge taking the "insolvency" approach (previously distributed); 7. Allen & Overy memorandum to the Working Group (dated 24th November, 1999); 8. Allen & Overy memorandum to the Strategic Documentation Review Task Force (dated 6th December, 1999)

During the meeting, we would like to focus attention on the revised Cross-Agreement Bridge. In previous meetings, the Working Group reached a broad consensus that we should pursue the "insolvency" approach, and, in particular, the approach taken in the draft Cross-Agreement Bridge. This approach is the approach that has been considered by our legal counsel in the course of providing advice in relation to the various amendments and provisions proposed as a result of our Strategic Documentation Review (you should have received most of the SDR opinions by e-mail from Barbara Hanlon on 16th February). The advice we received on this type of bridge is, for the most part, very positive.

However, we are also circulating copies of the other draft bridges that the group has already considered, including those that try to take a "transaction" approach. Although our focus at present is very much on trying to finalise a Cross-Agreement Bridge, we would welcome any further discussion on possible future efforts.

Kind regards, John.

<<Cross-Agreement bridge.doc>> <<Bridge memo.dot>> <<GMRA transaction bridge.doc>> <<GMRA insolvency bridge.doc>> <<OSLA transaction bridge.doc>> <<OSLA insolvency bridge.doc>> <<Working Group bridge memo.doc>> <<Task Force bridge memo.doc>>

John Berry International Swaps and Derivatives Association, Inc. One New Change, London, EC4M 9QQ Tel: +44 20 7330 3550 Fax: +44 20 7330 3555 e-mail: jberry@isda-eur.org http://www.isda.org

-----Original Message-----

From: Barbara Hanlon [mailto:BHANLON@isda.org] Sent: 14 March, 2001 21:18 To: Angela Papesch; Beat Gabathuler; Charles Ross-Stewart; David A. Lewis; David Benton; David Wysoki; Ernst Decker; Francesco Caputo Nasseti; Gabriel Benincasa; Jeff Golden; Joe Carrico; John Berry; Kimberly Summe; Mark Taylor; Peter Harvey; Richard Tredgett; Robert Pickel; Sherri Venokur; Sherri Venokurs Assistant Cc: Mehboob Hoque; Lakeisha Johnson; Cynthia Richards Subject:

Master Agreement Structural Issues Working Group Meeting Notice

Allen & Overy has been working on revisions to the Cross-Agreement Bridge. A revised draft will be available before the end of the week. We would like to schedule a meeting for Wednesday, March 21st at 9:00a.m. New York time/2:00p.m. London time to be held in ISDA's New York and London offices. We encourage people to attend in person, but will provide call-in information to those who cannot attend in person. Please RSVP to Cynthia Richards at crichards@isda.org.

Robert Pickel Executive Director and CEO International Swaps and Derivatives Association, Inc. 600 Fifth Avenue, 27th Floor Rockefeller Center New York, New York 10020-2302 Phone: (212) 332-1200 Fax: (212) 332-1212

Ms. Barbara Hanlon Database Administrator International Swaps and Derivatives Association, Inc. 600 Fifth Avenue, 27th Floor Rockefeller Center New York, New York 10020-2302 Phone: (212) 332-1200 Fax: (212) 332-1212

- Cross-Agreement bridge.doc - Bridge memo.dot - GMRA transaction bridge.doc - GMRA insolvency bridge.doc - OSLA transaction bridge.doc - OSLA insolvency bridge.doc - Working Group bridge memo.doc - Task Force bridge memo.doc

Message 40 of 413

RE: ConfirmLogic Target Customer List-Legal Entity Name

Sender	sara.shackleton@enron.com
Recipients	['kathryn.cordes@enron.com', 'mary.cook@enron.com', 'legal <.taylor@enron.com>', 'mark.greenberg@enron.com']
File	taylor-m/inbox/135.

Kathryn:

The customers appearing on Kim's list have been assigned to various lawyers in the swap group. There are 22 parties on the list and 16 of these parties have ISDA Master Agreements with ENA. We will focus on the ISDA customers first. We will use the template developed by Brent for Entergy-Koch as a basis for the 16 parties. The template will be customized for each of the 16 parties. Brent has a preliminary template underway and it should be further refined by October 19. Using that template, our goal is to produce six (6) new amendments each week. We should finish the ISDA customers in about three weeks (first drafts). The remaining customers have no master agreement in place or an ECT Master Agreement. Those six (6) customers include:

Sempra Energy Trading Corp. (old master) Morgan Stanley Capital Group Inc. (old master) Dynegy Marketing and Trade (old master) Ameren Energy (none) American Electric Service Power Corporation (none) PacificCorp Power Marketing Inc. (under negotiation with ECC)

The physical power group can coordinate the amendments with the members of the swap group listed above by forwarding drafts to us.

Please let me know if you have further questions. Thanks. Sara

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

-----Original Message-----

From: Cordes, Kathryn Sent: Wednesday, October 03, 2001 4:52 PM To: Theriot, Kim S.; Shackleton, Sara Cc: Taylor, Mark E (Legal); Greenberg, Mark; Hansen, Leslie; Smith, Jennifer Marie Subject: RE: ConfirmLogic Target Customer List-Legal Entity Name

Sara:

I have followed up with Brent and he is working on the Entergy-Koch amendment for CommodityLogic. He cannot commit to a completion date at this time since he has some other priorities. I've asked for Friday and he has indicated that may be aggressive. The sales team is presenting Entergy-Koch the CommodityLogic legal agreements today (ESA, Password application, Subscription Agreement). In light of this, can you provide a status of where the other 18 customer amendments are (excluding Sempra and Entergy-Koch) ? The Sales process is moving along and we will need to have

these amendments ready to present to the customer soon. Could you go through the list and provide an estimate date of when a draft of the amendment would be available by client. We need to provide a status to management on Monday 10/8.

Per our conversation today, if there is a way to focus on the creation of a template that addresses the confirmation exchange via electronic systems (e.g. ConfirmLogic) that can be shared earlier with the clients. The additional language that is deemed necessary can be added to this form as needed per counterparty. This will allow us to achieve getting something to the client so they can start the process from their side while we continue to shore up what language needs to be added. We still need to be thinking of how to keep this process simple to allow quick turnaround yet satisfy the legal requirements for confirmations. I ask that you and Leslie continue to help define a better process for us and I will continue to work with Kim and the sales team to implement this process.

Thanks for your help Kathryn -----Original Message----- From: Theriot, Kim S. Sent: Tuesday, September 18, 2001 12:30 PM To: Shackleton, Sara Cc: Cordes, Kathryn; Taylor, Mark E (Legal); Greenberg, Mark; Hansen, Leslie Subject: ConfirmLogic Target Customer List-Legal Entity Name Importance: High

Sara, See attached spreadsheet which shows the legal entity names by counterparty for each commodity. Name differences between the commodities are highlighted in Blue.

Kim Theriot

<< File: Top20 Legal Entity Names.xls >>

-----Original Message-----

From: Shackleton, Sara Sent: Monday, September 17, 2001 9:56 AM To: Theriot, Kim S. Cc: Greenberg, Mark; Cordes, Kathryn; Taylor, Mark E (Legal); Hansen, Leslie Subject: ConfirmLogic Target Customer List

Kim:

I am reviewing the list of 20 target customers dated 9/14/01 in an effort to set up a document drafting timetable.

For financial trading purposes, I need an accurate list of trading counterparties reflecting the complete name of each legal entity. Also, if a company is split into more than one legal entity (such as power and gas) for financial trading purposes, I need the names of both entities.

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 41 of 413

EWS Legal - Mid-year PRC Meeting

Sender	janette.elbertson@enron.com
Recipients	['keegan.farrell@enron.com', 'barbara.gray@enron.com', 'kaye.ellis@enron.com', 'nita.garcia@enron.com', 'jeffr...
File	taylor-m/all_documents/8443.

This is a reminder that the mid-year PRC meeting is scheduled for Monday, June 4, beginning at 11:00 a.m. Central time and lasting until all PRC matters are concluded. The meeting will be held in EB42C1. Lunch will be available during the meeting. Please plan to attend.

If you need to participate by conference call, a conference bridgeline has been set up and the dial in numbers are as follows:

Domestic Dial In Number: 1-800-713-8600 (Canada)

International Dial In Number: 1-801-983-4017

Passcode: 56871

Host: Mark E. Haedicke

Conference Room: EB42C1

Thank you.

Janette Elbertson Enron Wholesale Services Legal Department - EB3326 Telephone: (713) 853-7906 Fax: (713) 646-2600 janette.elbertson@enron.com

Message 42 of 413

Credit Default Swaps versus Financial Guaranties

Sender	david.yeres@cliffordchance.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/archive/2001_06/42.

Mark,

I thought you might be interested in the attached.

David Yeres Clifford Chance Rogers & Wells 200 Park Avenue New York, NY 10166 Tel: (212) 878-8075 Fax: (212) 878-8027 email: david.yeres@cliffordchance.com

<<67534.pdf>>

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- 67534.pdf

Message 43 of 413

OPEN A/C LIST

Sender	mark.taylor@enron.com
Recipients	['amita.gosalia@enron.com']
File	taylor-m/sent/1327.

----- Forwarded by Mark Taylor/HOU/ECT on 09/05/2000 05:02 PM -----

Alfred Pennisi@MGUSA 09/05/2000 01:12 PM

To: Justin Boyd/LON/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Lara Fields/LON/ECT@ECT cc: Subject: OPEN A/C LIST

see the attached file.

Pls note: The CTI Code customers with C-4 are the accounts you are looking for. The list you see includes all our house accounts as well.

regards,

Alfred Pennisi MG London Inc. 520 Madison Avenue 28th Floor New York, NY 10022 Tel: 212.715.5845 E-mail: alfred.pennisi@mgllondon.com

----- Forwarded by Alfred Pennisi/NYC/MGUSA on 09/05/2000 02:20 PM -----

Peter LoBue 09/05/2000 02:00 PM

To: Alfred Pennisi/NYC/MGUSA@MGUSA cc: Subject: OPEN A/C LIST

SEE ATTACHED

Peter Lobue 520 Madison Avenue 28th Floor New York, NY 10022 Tel: 212.715.5844 Fax: 212.826.5517 E-mail: peter.lobue@mgllondon.com

Message 44 of 413

Enron Online	
Sender	sdemeo@milbank.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/archive/7_00/116.

Please see attached.

<<92B71A00.PDF>> <<Global Technology & Energy Practice.doc>>

Regards, Ed

Edwin F. Feo Milbank, Tweed, Hadley & McCloy LLP 601 South Figueroa Street, 30th Floor Los Angeles, CA? 90017
efeo@milbank.com <http://www.milbank.com> (213) 892-4417 - Direct Dial (213) 892-4717 - Direct Fax (213) 629-5063 -
General Fax (310) 968-0670 - Mobile

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- 92B71A00.PDF - Global Technology & Energy Practice.doc

Message 45 of 413

Re: Paralegal Lunches	
Sender	marie.heard@enron.com
Recipients	['mark.taylor@enron.com', 'mary.cook@enron.com']
File	taylor-m/notes_inbox/2186.

Thanks for the invite. I should definitely be able to attend on the 26th, and will try to make the May 10th one (I'll be training my replacement then, so I'll have to play it by ear).

Thanks!

Marie

Marie Heard Senior Legal Specialist Enron Broadband Services Phone: (713) 853-3907 Fax: (713) 646-8537
Marie_Heard@Enron.net

Mary Cook@ECT 04/18/01 11:03 AM

To: Marie Heard/Enron Communications@Enron Communications cc: Mark Taylor/HOU/ECT@ECT Subject: Paralegal Lunches

The paralegals and myself meet regularly for lunch to train and discuss issues. If you can make the following, we would love to have you attend:

April 26 EB 37C1 (Global Counterparty is coming to train and discuss issues with us.) 11:30 to 1:00 May 10 EB 38C1 Regular Meeting 11:45 to 1:00

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 46 of 413

Re: Korean Entity

Sender	sara.shackleton@enron.com
Recipients	['marie.heard@enron.com', 'mark.taylor@enron.com']
File	taylor-m/notes_inbox/2390.

Marie:

We have a physical and financial jurisdictional survey conducted by ENA in 1996. I don't see an ISDA opinion but you can easily verify on the IDSA website. Please let me know which surveys you need and we'll have them sent over.

Let me know if you have any other questions.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com

Marie Heard@ENRON COMMUNICATIONS 03/06/2001 04:18 PM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: Korean Entity

Hi, Sara!

Cynthia asked me to check with you guy about a Korean entity. Michael Moulton has done a swap with a Korean entity that will be confirmed under a confirmation with Annex A attached. Are there any special provisions we need to add for a Korean entity?

Thanks!

Marie

Marie Heard Senior Legal Specialist Enron Broadband Services Phone: (713) 853-3907 Fax: (713) 646-8537
Marie_Heard@Enron.net

Message 47 of 413

Re: Outside Legal Bills

Sender	carol.clair@enron.com
Recipients	['mark.taylor@enron.com', 'deb.korkmas@enron.com']
File	taylor-m/notes_inbox/2177.

Deb There is a FEb 2001 bill from Cadwalader in the amount of \$20,415.76

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Deb Korkmas 04/18/2001 05:24 PM

To: Harry M Collins/HOU/ECT@ECT, Peter del Vecchio/HOU/ECT@ECT, Dan Lyons/HOU/ECT@ECT, Lou Stoler/HOU/ECT@ECT, Julia Murray/HOU/ECT@ECT, Justin Boyd/LON/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Ian Brungs/EU/Enron@Enron, Janet Wood/EU/Enron@Enron cc: Subject: Outside Legal Bills

For Houston attorneys only: In an effort to forecast our legal expenses, accounting has asked for an estimate of our outside legal expenses. Please send me the total dollar amount of the legal invoices that you have received but haven't yet processed to be paid. Also, if you have knowledge of charges but have not yet received an invoice, please try and give me an estimate of what those charges might be as well. I need to have your estimates by NOON tomorrow, Thursday, April 19. Call me if you have any questions.

Deb Korkmas EWS Legal Dept. 1400 Smith Street, Room 3834A Houston, TX 77002 Phone: 713-853-5448 Fax: 713-646-3393

Message 48 of 413

Re: Contact GM Corp - Alternate Fuel Vehicles

Sender	info@gm.com
Recipients	[e.taylor@enron.com]
File	taylor-m/inbox/ev/4.

Dear Mr. Taylor,

Thank you for contacting the Internet Response Center and we apologize for the delay in our response. We appreciate your interest in General Motors and alternative fuel technology. We would suggest that you direct your inquiry to the following address:

GM Advanced Technology Vehicles MC 483-619-409 1996 Technology Drive Troy, MI 48007-7083

You may also contact Juanita Kukla, our Public Relations Manager for Hybrid/Electric Vehicles, at the following e-mail address with your request:

juanita.kukla@gm.com

Thank you again for contacting the Internet Response Center and for your interest in General Motors. We hope you are able to obtain the information you are seeking regarding ZEV credits.

Sincerely,

Donald Stailey Customer Relationship Manager GM Internet Response Center

Original message follows:

Name: michael taylor

Address1: 1400 smith street Address2: suite EB 3007B City: houston State/Province: TX Country: USA ZIP/Postal Code: 77002

Phone Day: 713-853-1885 Phone Evening: 713-853-1885

E-mail Address: michael.e.taylor@enron.com

Message:

I work for Enron, and we will be receiving some ZEV credits for CA. I would like to talk to somebody concerning electric vehicle credits for the state of CA.

Browser: Mozilla/4.0 (compatible; MSIE 5.01; Windows NT 5.0)

Message 49 of 413

EnronOnline Servicing Agreement

Sender	travis.mccullough@enron.com
Recipients	['mark.taylor@enron.com', 'david.forster@enron.com', 'carl.carter@enron.com']
File	taylor-m/all_documents/8435.

Attached is S&C's revised version of the Servicing Agreement, incorporating the comments that I provided to them last week. I have not had an opportunity to review this yet, but wanted you to get it as quickly as possible. Please give me a call with any comments or questions that you may have regarding the attached.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3882A Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3393/3490 ----- Forwarded by Travis McCullough/HOU/ECT on 05/30/2001 10:49 AM -----

Shermanj@sullcrom.com 05/30/2001 10:18 AM

To: travis.McCullough@enron.com cc: GilbergD@sullcrom.com Subject: EnronOnline Servicing Agreement

Attached please find a revised version of the EnronOnline Servicing Agreement between Enron and NGPL. We have included a clean copy of the document as well as a blacklined copy showing the changes from the draft dated May 16, 2001.

Please do not hesitate to call David Gilberg at 212-558-4680 or me at 212-558-4252 if we can be of further assistance.

Regards,

Jenny J. Sherman

<<NY12533-#136596-4.DOC>> <<2X#CRED.DOC>>

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

- NY12533-#136596-4.DOC - 2X#CRED.DOC

Message 50 of 413

FW: emissions desk requests....

Sender	mary.schoen@enron.com
Recipients	['e.taylor@enron.com']
File	taylor-m/inbox/mary_schoen/6.

Michael - as I said in my voice mail message - Lisa has mentioned two separate issues identified in the bullet below - in CA there is a Zero Emissions Vehicle Program designed to increase the use of ZEVs and there is also a Mobile Emission Reduction Credit (MERC) Program geared towards allowing mobile emissions reductions to be used as offsets for stationary source emissions. Do you need info on both or one or the other? Thanks

Mary Schoen Environmental Strategies Enron Corp 415.782.7803 (phone) 415.782.7854 (fax)

-----Original Message-----

From: Jacobson, Lisa Sent: Wednesday, October 10, 2001 11:34 AM To: Keeler, Jeff; Schoen, Mary; Bolton, Stacey
Subject: emissions desk requests....

In addition to assistance with their business plan, Trevor and Michael are interested in the following information:

EMA participant list - LJ to fax Assessment of GHG and CO2e market value - LJ to send Information of the "Zev" program -- California program for mobiles emissions (with trading piece) - Mary could you please give Michael a ring to discuss this request? Update on MERCs in Texas - Stacey may have already done this Update on the new Enron Building and any opportunity for offsets - Stacey and Mary, please let me know if you can provide an update on this to Trevor and Michael (or just cc me on whatever you send)

Thanks and please let me know if you have any questions.

-LJ

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 51 of 413

Emissions One-pager

Sender	juli.salvagio@enron.com
Recipients	['carter.miles@enron.com', 'e.taylor@enron.com', 'jeff.stark@enron.com']
File	taylor-m/inbox/marketing/6.

Thanks, Mike. Jeff and Carter-please work through me when designing this piece. I would like it to be consistent with some of the other things we are developing. Attached is a Global Markets Folder and one Fact Sheet (Done for Fertilizers) that we are printing for the PR group to use with Media and Customers. It is just a general brochure which will include Fact Sheets for the following:

Weather Emissions Coal Plastics, Petchems, NGLs Crude Products Fertilizers

I think your design should be consistent with the look so it can be used for multi-purposes. Let me know your thoughts.

Juli Salvagio Manager, Marketing Communications Enron Wholesale Services 1400 Smith Street, 3641 Houston, TX 77002 713-345-2908-Office 713-294-7907-Cell 713-646-5800-Fax juli.salvagio@enron.com

-----Original Message-----

From: Taylor, Michael E Sent: Monday, September 24, 2001 5:01 PM To: Miles, Carter; Stark, Jeff Cc: Salvagio, Juli Subject: Emissions One-pager

Jeff and Carter,

I am sending you the text that our group wanted to make a one-pager out of. I spoke with both of you guys last week. I was hoping you guys would develop a few different looks and show us. Some pictures and borders would be fine. I am not sure if the text we have would work better on one-page front or one-page front and back.

Carter our cost center is 120420 and our company number is 1105. Please contact me if more information is needed.

<< File: Emissions Mktg Fact Sheet9-21.doc >>

Michael Taylor Coal and Emissions Trading Enron Global Markets (713) 853-1885

Message 52 of 413

J&R Order Receipt # 1914346.

Sender	custserv@mail.jandr.com
Recipients	['legal <.taylor@enron.com>']
File	taylor-m/stored_messages/8.

Dear Mark Taylor,

Thank you for the order you placed with J&R Music and Computer World, your one-stop site for all your consumer electronics needs. We value your business, and will process and ship your order as quickly as possible. All orders subject to our approval. We reserve the right to cancel any order. Not responsible for typographical errors. Prices and availability are subject to change prior to shipment. Should this occur, you will be notified by email or phone, and given the option to accept these changes or cancel the order. Thank you for your cooperation.

Your complete J&R Web Order #1914346.

Here is a summary of your purchase:

Description Item # Price Qty. Ext.

ADVENTURES OF PRISCILLA / O.S.T. - AD 03977057 \$11.99 1 \$11.99

Subtotal: \$11.99 Shipping & Handling: \$2.95 Sales Tax: \$0.00

Total Amount: \$14.94

J&R Music/Computer World TEL: 1-800-426-6027 Customer Service Department FAX: 1-212-238-6396 15 Park Row
Email: custserv@mail.jandr.com New York, NY 10038 USA To place an order call: 1-800-221-8180 Receive free email updates and specials on your favorite products! For more information, visit
http://v4.clickactionerm.com/webj/subscriber?c=1&p=10040&func=S_survey&i=3 Visit our website at <http://www.jandr.com>

Message 53 of 413

North American Energy and Developing Products Committee Conference

Sender	smarra@isda.org
Recipients	['mowbray.laura@enron.com', 'alan.aronowitz@enron.com', 'pickel.robert@enron.com']
File	taylor-m/inbox/284.

ISDA International Swaps and Derivatives Association, Inc. 600 Fifth Avenue Rockefeller Center - 27th floor New York, NY 10020 Phone: (212) 332-1200 Fax: (212) 332-1212 EMail: isda@isda.org Website: www.isda.org

During the North American Energy and Developing Products Committee meeting on November 2, the group discussed NYMEX's intention to close on Friday, November 23. This date appears to be an unscheduled holiday. The issue we pose to the Committee is the following:

1. Should ISDA issue a market practice statement on the November 23 closing of NYMEX?
2. If ISDA should issue such a statement, what treatment should result for November 23?
3. If ISDA should issue such a statement, how should options that expire on November 23 be treated? (This may be less of an issue for European style options).
4. What types of Market Disruption Events are typically included in your contracts?

I would direct your attention to Section 1.4 of the 1993 ISDA Commodity Derivatives Definitions (definition of Commodity Business Day) and ISDA's Market Practice Statement on Equity Derivatives (available on our website), where September

11, 12, 13 and 14 were not considered trading days for equity derivatives purposes.

I would be grateful if you could respond to Kimberly Summe (ksumme@isda.org) on each of the four questions above. Also, I propose to have a conference call on Friday, November 9 at 10:30 a.m. New York Time. The call-in details are set forth below:

Non-US Callers: 865 523 8154 US Callers: 800 281 4634

Participant Code: 503 399

Please respond to the four questions and your availability for the call on Friday. If the group decides to go forward with a market practice statement, I would propose finalizing a market practice statement next week.

Thank you in advance.

Kimberly Summe General Counsel

Message 54 of 413

Re: Next Steps - Space Planning for New Building

Sender	janette.elbertson@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/all_documents/8144.

Mark:

I am forwarding this e-mail to bring you up to date on space planning for the new building. As you can see from Mark Haedicke's e-mail below he wants the three of us to meet with Marilyn Archer so we can give feedback to Wes Colwell's assistant. I will call Holly so I can schedule a mutually agreeable time for you, me and MEH to meet with Marilyn Archer.

Thanks.

Janette Elbertson Enron North America Corp. Legal Department - EB3326 Telephone: (713) 853-7906 Fax: (713) 646-2600 janette.elbertson@enron.com ----- Forwarded by Janette Elbertson/HOU/ECT on 04/10/2001 09:39 AM -----

Mark E Haedicke 04/10/2001 09:23 AM

To: Janette Elbertson/HOU/ECT@ECT cc: Subject: Re: Next Steps - Space Planning for New Building

Let's schedule a meeting for Mark Taylor, you and me with the consultant who we already had conversations with. We can formulate our response. Mark

Janette Elbertson 04/06/2001 09:50 AM

To: Mark E Haedicke/HOU/ECT@ECT cc: Subject: Next Steps - Space Planning for New Building

Pursuant to your request, I called Deborah Bubenko regarding what information she needs from you regarding space planning for the new building. Deborah had Kim Kaase (extension 35349) return my call.

Listed below are the next steps:

Review the space plans and give your comments You mentioned one of your major concerns is size of offices Provide information regarding any speciality areas such as the number of file rooms, the number of conference rooms the department needs, etc.

In summary, the next steps are to determine the requirements for the department and then schedule a meeting through Tammy Shepperd (Wes Colwell's assistant) to provide them your feedback.

Janette Elbertson Enron North America Corp. Legal Department - EB3326 Telephone: (713) 853-7906 Fax: (713) 646-2600 janette.elbertson@enron.com

Message 55 of 413

Williams EOL Amendment -Their Comments

Sender	s..theriot@enron.com
Recipients	['h..moore@enron.com', 'sara.shackleton@enron.com', 'ann.murphy@enron.com', 'brent.hendry@enron.com', 'legal <...>']
File	taylor-m/inbox/104.

Below is Williams redlined version of our EOL Amendment. They were questioning why we backdated the amendment. This one was back dated because it did not have the language in it which addressed prior EOL Confirmations that were unsigned. Can we add the following language that was used in other EOL Amendment versions for other companies which addressed that issue?

d. this Amendment shall apply to any EOL Transaction that has not been documented in a confirmation executed and delivered by both parties.

They mainly deleted the Financial language on the Annex. Brent...can you call them today to discuss. This would be a great amendment to get in place. Their attorney's name and phone number is Tracy Poole (918) 573-4818.

Let me know if there are any questions. Thanks!

Kim Theriot

-----Original Message-----

From: "Jones, Gayla" <Gayla.Jones@Williams.com>@ENRON [mailto:IMCEANOTES-+22Jones+2C+20Gayla+22+20+3CGayla+2EJones+40Williams+2Ecom+3E+40ENRON@ENRON.com] Sent: Wednesday, October 03, 2001 8:59 AM To: Theriot, Kim S. Cc: Nixon, Cyndi Subject: Consent and Amendment Agreement

Kim I am the contract administrator working with Cyndi in getting this completed. I have attached the Agreement with our redline changes. We did not see the reason for having this retroactive back to January 1. Also Kim, we would like to have the same agreement with Enron Gas Liquids and Enron Canada Corp. Can you handle that or can we add them as signatories to this Agreement? Please let me know if this version is acceptable or if we need to discuss. Thanks for your help. <<WilliamsEOLConsent08-24-01.doc>> Gayla Jones (Gayla.Jones@Williams.com) Contract Administrator Williams Energy Marketing & Trading Company One Williams Center MD18-5 Tulsa OK 74172 918-573-5716 918-573-1935 (fax) 918-632-4923 (pager)

- WilliamsEOLConsent08-24-01.doc

Message 56 of 413

Quikbook Hotel Confirmation for Res# 000572-2306-001

Sender	res@quikbook.com
Recipients	['legal <taylor@enron.com>']
File	taylor-m/travel/12.

Thank you for using Quikbook for your hotel accommodations. Quikbook offers you your choice of a wide selection of great hotels in major U.S. cities. Please review the information below for accuracy, and make a note of the hotel's cancellation policy.

QUIKBOOK Hotel Confirmation

Mark Taylor 1400 Smith Street Houston , TX 77002 Mark.Taylor@enron.com

Your Reservation is confirmed at:

Royalton 44 West 44 Street (Between 5th and 6th Avenue) New York , NY 10036 Phone: 2128694400

Guest: Mark Taylor Arrival: Jul 14 2001 Departure: Jul 17 2001 Room Type: Single Room Class: Standard Room
Guarantee: American Express

Hotel Confirmation # : 111258 Quikbook Confirmation # : 000572-2306-001 Quikbook Agent: WWW

Quikbook 's special discounted rate for the nights of : 07/14/01 - 07/17/01 = \$199.00 (rate does not include taxes).

CANCELLATION POLICY: You must make any changes or cancellations with Quikbook up to two business days prior to arrival. Within two days of arrival, you must cancel with the hotel directly or be subject to a 'no-show' charge equal to the first night room rate plus tax. This hotel requires cancellation by 3pm, 24 hours prior to the day of arrival. Early departures are subject to a \$50 fee.

A reservation will only be considered cancelled if you have a cancellation number from our office or the hotel. Please remember Quikbook agents are available Monday - Friday, 9:00 am to 7:00 pm Eastern Time.

Please visit our website at <http://www.quikbook.com> anytime to request or cancel a reservation, check out hotel values and get a city by city list of our Quikbook hotels.

Quikbook - 381 Park Avenue South - New York, NY 10016 1-800-789-9887 - 212-779-ROOM - Fax 212-779-6120
Website: <http://www.quikbook.com> - Email: res@quikbook.com

Thank You for making your hotel reservations with QUIKBOOK, For a great hotel at a great price.

Message 57 of 413

Re: SMARTPages verification. Refcode=_V1.0_1qxbLr_2I.FV0

Sender	mark.taylor@enron.com
Recipients	['kevdb@infospace.com']
File	taylor-m/sent_items/206.

kevdb@infospace.com 06/12/2001 09:36 AM To: undisclosed-recipients;; cc: Subject: SMARTPages verification.
Refcode=_V1.0_1qxbLr_2I.FV0

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STEP 1 Verify that the information appearing below is correct.

STEP 2 If the information is CORRECT, press the Reply button in your email program to reply to this message. Your reply will authorize the modification of your profile. Be sure your reference code (shown below) is copied into the Subject line and/or the body of your reply. In most email programs, this will happen automatically.

If the information is INCORRECT, do not reply to this message. Please return to the SMARTPages White Pages and resubmit your request. Do not attempt to make corrections in the body of this message, because your corrections will be ignored and your listing may be updated with incorrect information.

Changing listing:

TAYLOR, MARK 1322 Rutland St Houston, TX 77008 US 713-863-7190

to:

TAYLOR, MARK 1322 Rutland St Houston, TX 77008 US 713-863-7190 Cellular phone: [713-206-8080]

High School: [Walter Johnson] University: [Monmouth College]

This reference code MUST appear in your reply: Refcode=_V1.0_1qxbLr_2I.FV0

In most cases, your listing will be updated within 24 hours of receipt of your reply to this message. Updates normally take effect between 1 a.m. and 4 a.m. Pacific time.

To confirm the changes detailed above, click the Reply button in your email program to send a message to kevdb@infospace.com, and be sure your reference code appears in your reply. If you have questions or suggestions, please email custserv@infospace.com (but please do NOT use this address to confirm changes).

Thank you for using the SMARTPages White Pages service powered by InfoSpace.com.

Sincerely, The InfoSpace.com Team

Message 58 of 413

Re: PA Review Bank of Nova Scotia

Sender	peter.keohane@enron.com
Recipients	[rob.milnthorp@enron.com', 'william.bradford@enron.com', 'lara.fields@enron.com', 'justin.boyd@enron.com']
File	taylor-m/all_documents/3321.

Justin, Enron Canada is currently in an unresolved dispute with Bank of Nova Scotia where from our perspective Bank of Nova Scotia has essentially been telling us to shove off. The dispute involves BNS's purported requirement to consent to collateral security given to Enron Canada for physical and financial trading positions with a counterparty known as Beau Canada. Neither Bank of Nova Scotia nor any affiliate of Bank of Nova Scotia should be traded OnLine and all trading ought to be monitored until such time as this matter is resolved, and this should be expressly communicated to Bank of Nova Scotia. They can speak to me directly at 403.974.6923 or to our President and CEO, Rob Milnthorp at 403.974.6714.

I am copying this memo to Bill Bradford and Mark Taylor for their information.

Justin Boyd 09/25/2000 08:36 AM To: Lara Fields/LON/ECT@ECT cc: Peter Keohane/CAL/ECT@ECT Subject: Re: PA Review Bank of Nova Scotia

Lara

Subject to approval from Peter (the C/P is a Canadian corporate), I approve for all products except for US power, weather and credit

Peter - thanks!

Justin

To: Edmund Cooper/LON/ECT@ECT, Justin Boyd/LON/ECT@ECT, Debbie Nicholls/LON/ECT@ECT, Gail Hill/LON/ECT@ECT, Enron London - EOL Product Control Group/LON/ECT@ECT, Enron Europe Global CounterParty, Annette Schneider/LON/ECT@ECT, ECT London Credit, Enron Europe Global Contracts and Facilities, EOL Marketing Europe@ECT cc:

Subject: PA Review Bank of Nova Scotia

Hello all,

The Bank of Nova Scotia would like to trade with us online. They are in GCP as #54087 and are existing customers of Enron Metals (Jimmy Gordon is the one who got them to send in the PA if that helps!).

Could you please let us know your comments in the S: access Database?

thank you, Lara ----- Forwarded by Lara Fields/LON/ECT on 25/09/2000 14:52

London Fax System 25/09/2000 14:28 To: Enron London - EOL Product Control Group/LON/ECT@ECT cc:

Subject: New fax received (Likely sender: 0207 588 1542).

You have received a new fax from 0207 588 1542

The image contains 3 page(s).

Message 59 of 413

Notification to NYMEX/CFTC	
Sender	marcus.nettelton@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/1566.

Mark

Sounds like they are getting desperate....must be if they are sending me emails. I have told Marcelo that you are dealing with this and will revert to Al.

Marcus ----- Forwarded by Marcus Nettelton/NA/Enron on 10/12/2000 02:39 PM -----

Marcelo Parra@MGUSA 10/12/2000 08:01 AM To: Marcus Nettelton/NA/Enron@ENRON cc:

Subject: Notification to NYMEX/CFTC

Dear Marcus,

I have been asked by Al Pennisi for help on obtaining approval on sending out formal notification to the regulatory bodies on the ownership and name change of Enron Trading Service Inc. Please also note that he needs to state that the financial condition of the company has not been altered.

Al tells me that he is under pressure to get this out ASAP. If at all possible could you assist us with this request.

Thank you for your help.

Best regards, Marcelo Enron Metals & Commodity Corp. E-Mail: Marcelo.Parra@enron.com

----- Forwarded by Marcelo Parra/NYC/MGUSA on 10/12/00 09:06 AM -----

Alfred Pennisi 10/11/00 07:15 AM

To: Marcelo Parra/NYC/MGUSA@MGUSA cc: Subject: Notification to NYMEX/CFTC

Marcelo,

Could you work with me to obtain this information

tk,

regards

Alfred Pennisi Enron Trading Services Inc 520 Madison Avenue 28th Floor New York, NY 10022 Tel: 212.715.5845
E-mail: alfred.pennisi@enron.com

----- Forwarded by Alfred Pennisi/NYC/MGUSA on 10/11/2000 07:26 AM -----

Alfred Pennisi 10/10/2000 09:41 AM

To: Mark Taylor/HOU/ECT@ECT cc: Alan Aronowitz/HOU/ECT@ECT Subject: Notification to NYMEX/CFTC

Mark,

I would like to send a letter to the NYMEX copy the CFTC with the following language:

Please be advised that effective ?????? date MGplc was aquired by Enron ??????. MG London Inc was part of the MGplc group.

Effective October 9, 2000 we have changed our name to "Enron Trading Services Inc".

Also, please be advised that the Financial Status of MG London Inc has not changed.

If there are any questions please call me at 212 715 5845.

If you would be so kind and review the above language and get back to me as soon as possible.

Tks,

regards,

Alfred Pennisi Enron Trading Services Inc 520 Madison Avenue 28th Floor New York, NY 10022 Tel: 212.715.5845

E-mail: alfred.pennisi@enron.com

Message 60 of 413

Various Issues

Sender	scarey@isda.org
Recipients	[usregcomm@isda.org, 'smarra@isda.org']
File	taylor-m/all_documents/8349.

1. No Conference Call this Friday due to ISDA's strategic planning session in Tokyo. 2. Next Conference Call will be held on Thursday, May 24 - Call details to follow 3. Last Week's Conference Call - (for those who were unable to participate) focused solely on Sections 23A and 23B - discussed regulatory impacts (application of quantitative limits to affiliates given fluctuating value of derivatives, sufficiency of policies and procedures under 23B, cross-affiliate netting, etc.) - proposed regulations were published in the Federal Register on Friday, May 11 - comments due by August 15, 2001 - ISDA to retain Sullivan & Cromwell to draft ISDA response - list of questions to assist in formulating our approach will be forwarded to the Committee for review - Background Memo from Sullivan & Cromwell will be forwarded in a separate e-mail. 4. The CFTC issued proposed clearing regulations on May 14 implementing the Commodity Futures Modernization Act (CFMA). Comments are due by June 13. I recommend that ISDA plan to comment on the proposal (however brief the comments may be) as this is an entirely new regulatory structure. Would appreciate the thoughts of others. 5. Fundraiser for Congresswoman Carolyn Maloney -- For those who are not already aware of the Maloney event, the Congresswoman will be hosting a small Financial Services dinner (max 15 people) at Barolo Restaurant (223 Pennsylvania Avenue, SE Washington, D.C.) on Monday, May 21, 2001 at 7:00 p.m. Suggested contribution is \$1,000. Please contact Carl Silverberg (202) 863-1500 ext. 815 if you are interested in attending. Are many folks already planning to attend?? Comment: Congresswoman Maloney is a senior Member of the House Financial Services Committee and was heavily involved in the CFMA on energy issues. I think it is safe to say that she was not sympathetic to the benefits of affording regulatory relief to the energy markets at the beginning of the debate but after a lot of work (by many of you!) she came around to understanding the benefits of innovation and establishing a positive regulatory environment. Industry education was very effective. The restaurant is marginal but continued work with Congresswoman Maloney is worthwhile. Stacy Carey Policy Director International Swaps and Derivatives Association 600 5th Avenue, 27th Floor Rockefeller Center New York, NY 10020 (212) 332-1202 ph (212) 332-1212 fax (917) 543-9622 cell scarey@isda.org

Message 61 of 413

Fwd: Re: Acknowledgments and Resolutions

Sender	wally.shaw@blakes.com
Recipients	['legal <.taylor@enron.com>']
File	taylor-m/archive/2001_11/49.

per attached pls fwd cc of docs moving the Note from Enron Corp to ENA and to the LLC to k. bristor. morris was arranging for them. Date: Wed, 07 Nov 2001 18:04:32 -0500 From: "WALLY SHAW" <wally.shaw@blakes.com> To: "Katherine Bristor" <KBRISTOR@skadden.com> Subject: Re: Acknowledgments and Resolutions Mime-Version: 1.0 Content-Type: multipart/alternative; boundary="=_BFE560BB.9CFDBB4F"

that is all you have so far. the ECPC to ERMT document is on its way. the documents dropping the Note from Enron Corp to ENA and then to the LLC are coming from Morris Clark. i will get him to forward them to you.

"Katherine Bristor" <KBRISTOR@skadden.com> 11/07/01 04:00PM >>>

Wally's drafts of these documents seem fine to me from a United States perspective. As we discussed, I believe that a transaction where, in effect, a shareholder's right to redemption/liquidation proceeds and dividends is reduced would be analyzed as a redemption for United States federal income tax purposes. Just want to make sure that I'm not missing anything--I have documents relating to the transaction between Enron and Enron Canada, and Enron Canada and Enron Canada Power, but nothing relating to the transfer between Enron Canada Power and ERMT Canada Corp. and nothing relating to the "drop down" of the note. Is that correct? Steve, as I mentioned, I will not be in the office tomorrow or Friday. However, I will take my "picture" with me from our conversations today and if you need me, please let Lorna, my secretary know; she will put you in touch with me. Best regards, Kathy Katherine M. Bristor Skadden Arps Slate Meagher & Flom LLP 4 Times Square New York NY 10036 p: (212) 735-2338 f: (917) 777-2338 kbristor@skadden.com

"WALLY SHAW" <wally.shaw@blakes.com> 11/07/01 05:30PM >>>

As discussed. Wallace Y. Shaw Barrister and Solicitor Blake, Cassels & Graydon LLP Calgary, AB T2P 4J8 Tel: 403.260.9766 Fax: 403.260.9700 E-Mail: betty.fleming@blakes.com This e-mail communication is confidential and legally privileged. If you are not the intended recipient, please notify me at the telephone number shown above or by return e-mail and delete this communication and any copy immediately. Thank you. ***** This e-mail and any attachments thereto, is intended only for use by the addressee(s) named herein and may contain legally privileged and/or confidential information. If you are not the intended recipient of this e-mail, you are hereby notified any dissemination, distribution or copying of this email, and any attachments thereto, is strictly prohibited. If you receive this email in error please immediately notify me at (212) 735-3000 and permanently delete the original copy and any copy of any e-mail, and any printout thereof. Further information about the firm, a list of the Partners and their professional qualifications will be provided upon request. *****

Message 62 of 413

Re: wouldn't you like to see us

Sender	mark.taylor@enron.com
Recipients	['lhayman@skadden.com']
File	taylor-m/sent/3134.

I'll definitely take the room. How (and when) do you plan to get there? Do you rent a car in DC and drive or fly into Charlottesville?

"Linda Hayman" <LHAYMAN@skadden.com> 01/05/2001 10:15 AM

To: Mark.Taylor@enron.com cc: Subject: Re: wouldn't you like to see us

Well Charlottesville actually has its own airport (looks a bit like St Thomas). But DC is the only other place close by - and then a rental car (or bus or train). I have an extra room reserved at Keswick Hall - very expensive - and at some point I have to release it or pay for it. Check it out at www.Keswick.com. Rooms are tight over graduation weekend.

Linda Hayman Skadden, Arps, Slate, Meagher & Flom, LLP 4 Times Square, 42nd Floor New York, NY 10036 T: 212-735-2637 F: 917-777-2637

<Mark.Taylor@enron.com> 01/05/01 10:37AM >>>

That's a great idea - I'll see if I can line up a boat - anywhere in particular you'd like to sail? (BVI makes sense if there's a newcomer along.)

Where do you fly into to get to Charlottesville?

"Linda Hayman" To: Mark.Taylor@enron.com, AMH5H@SERVER2.MAIL.VIRGINIA.EDU <LHAYMAN@skadden.com> Subject: Re: wouldn't you like to see us

01/04/2001 07:20 PM

I can sail anytime - Amanda is a tougher nut to crack. She graduates on May 20. Wanna come to Virginia for graduation and then we could all leave from there?

Any interest in Barcelona for a long weekend?

<Mark.Taylor@enron.com> 01/04/01 08:03PM >>>

I can't believe you have to change planes in Chicago AND Dallas! I don't remember you being that willing to suffer for a cheaper ticket.

Bummer - looks like I'll just have to be the wimp this time. There's really no way I can get away next week. I have heard of las ventanas - but I didn't know about the evian spritzing.

Maybe next time. Any more thoughts on a week that works for sailing? I could spring for a bottle of evian and a plant mister.....

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Further information about the firm, a list of the Partners and their professional qualifications will be provided upon request.

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Further information about the firm, a list of the Partners and their professional qualifications will be provided upon request.

- Linda Hayman.vcf

Message 63 of 413

Scheduling & Conflicts

Sender	sara.shackleton@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/all_documents/8007.

Mark: This is a chronic problem which I have addressed with Cheryl on more than one occasion (hence the email of this morning). Her priorities are not currently with the swap group. Also, Carol will not be a reliable backup for structured deals since Julia's group will demand more of her time. I don't know what Angela's load will be like as an ongoing substitute. Last night we received notice of Yosemite IV and I'm hoping that Angela can cover. Alternatively, we may need to consider Frank, Francisco or Cheryl.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 03/21/2001 09:04 AM -----

Cheryl Nelson@ENRON Sent by: Cheryl Nelson@ENRON 03/21/2001 08:48 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT Subject: Scheduling & Conflicts

Sara,

Keegan has notified me this morning (!) that my calendar contains a sheduling conflict (again) between the swaps group meeting which is 10-11 and a meeting with representatives coming from GE. I think Keegan got confused or something. Since this has happened before, I am going to sit down with Keegan this afternoon to discuss how to schedule and to troubleshoot scheduling issues.

For today, I am going to try to do this - I am going to try to end the GE meeting early but I cannot promise. As I explained to Keegan, since the GE meeting is with someone traveling to Enron to attend and is critical to Enron Corp., I will not be able to cancel it at the last minute.

If I do not attend, please apologize to the Group to me. I am a bit frustrated because I certainly wanted to atnd to find out what everyone else is working on and to report on what I am doing. I will try to email an update in advance and if you do not mind, maybe you could share it with the Group.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693 ----- Forwarded by Cheryl Nelson/NA/Enron on 03/21/2001 08:42 AM -----

Cheryl Nelson Sent by: Cheryl Nelson 03/21/2001 08:35 AM

To: Keegan Farrell/NA/Enron@Enron cc: Subject: Scheduling & Conflicts

Hi Keegan,

Thank you for calling this morning to provide me with my schedule for today.

I want to share some constructive advice on how to fine tune our strategy with respect to scheduling because Keegan this is critical to my providing the best legal counsel I can to the various clients we serve. You indicated that there is a conflict on the schedule in that there is a 9:30-10:30 meeting that conflicts with the Swaps Group meeting. We do not want to schedule conflicting meetings and then realize it at the last minute and then just notify one group that we can't attend.

What you want to do is this: You want to try at the time of the invitation to attend or as soon as practicable to notify me that there would be a potential conflict. Then I will try to rescheduel. This is especially important because the meetings with GSS are usually with folks from outside Enron, so once we agree to attend, it is nearly impossible the morning before to try to reschedule. But the swaps meetings and credit meetings are very important and there are a lot of issues I need to discuss and anticipated attending. Also and I have missed some in the past due to scheduling conflicts.

Again, I also hope and need for you to take this advice constructively and not personally. I appreciate all of your efforts, Keegan.

Let's meet this afternoon to talk strategy. Please note on my calendar that Ischeduled two meetings this morning, one at 2:30 and one immediately following at 3:30 until 5. So we should meet before then.

Cheryl Nelson Senior Counsel EB3816 (713) 345-4693

Message 64 of 413

Re: PA Review Bank of Nova Scotia

Sender	mark.taylor@enron.com
Recipients	['Rob Milnthorp/CAL/ECT@ECT', 'William S', 'Justin Boyd/LON/ECT@ECT', 'tana.jones@enron.com']
File	taylor-m/all_documents/7318.

Did you get this? ----- Forwarded by Mark Taylor/HOU/ECT on 12/15/2000 09:39 AM -----

Peter Keohane Sent by: Sharon Crawford 12/14/2000 11:09 AM

To: Lara Fields/LON/ECT@ECT cc: Justin Boyd/LON/ECT@ECT, Rob Milnthorp/CAL/ECT@ECT, William S Bradford/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Enron London - EOL Product Control Group/LON/ECT@ECT

Subject: Re: PA Review Bank of Nova Scotia

Sorry for the delay in responding. I have now reviewed this matter with Rob Milnthorp. The status of Bank of Nova Scotia's financing arrangements to our counterparty Beau Canada Exploration Ltd., which was recently purchased by Murphy Oil Canada Ltd., remains unclear. However, until such time as that has been clarified, including the Bank of Nova Scotia's consent to our security for our mark-to-market positions with Beau Canada (now Murphy Oil Canada), Bank of Nova Scotia should not, at the request of Enron Canada, be added to EOL.

Peter

To: Peter Keohane/CAL/ECT@ECT cc: Justin Boyd/LON/ECT@ECT, Rob Milnthorp/CAL/ECT@ECT, William S Bradford/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Enron London - EOL Product Control Group/LON/ECT@ECT
Subject: Re: PA Review Bank of Nova Scotia

Peter-

Can you please tell me if we must continue to refuse access to EnronOnline for The Bank of Nova Scotia? They have sent in another Password Application to apply today.

If we must continue to refuse them, can you please tell me what message I should convey to them?

Thank you, Lara

Enron Capital & Trade Resources Canada Corp.

From: Peter Keohane 26/09/2000 00:17

To: Justin Boyd/LON/ECT@ECT cc: Lara Fields/LON/ECT@ECT, Rob Milnthorp/CAL/ECT@ECT, William S Bradford/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT Subject: Re: PA Review Bank of Nova Scotia

Justin, Enron Canada is currently in an unresolved dispute with Bank of Nova Scotia where from our perspective Bank of Nova Scotia has essentially been telling us to shove off. The dispute involves BNS's purported requirement to consent to collateral security given to Enron Canada for physical and financial trading positions with a counterparty known as Beau Canada. Neither Bank of Nova Scotia nor any affiliate of Bank of Nova Scotia should be traded OnLine and all trading ought to be monitored until such time as this matter is resolved, and this should be expressly communicated to Bank of Nova Scotia. They can speak to me directly at 403.974.6923 or to our President and CEO, Rob Milnthorp at 403.974.6714.

I am copying this memo to Bill Bradford and Mark Taylor for their information.

Justin Boyd 09/25/2000 08:36 AM To: Lara Fields/LON/ECT@ECT cc: Peter Keohane/CAL/ECT@ECT Subject: Re: PA Review Bank of Nova Scotia

Lara

Subject to approval from Peter (the C/P is a Canadian corporate), I approve for all products except for US power, weather and credit

Peter - thanks!

Justin

To: Edmund Cooper/LON/ECT@ECT, Justin Boyd/LON/ECT@ECT, Debbie Nicholls/LON/ECT@ECT, Gail Hill/LON/ECT@ECT, Enron London - EOL Product Control Group/LON/ECT@ECT, Enron Europe Global CounterParty, Annette Schneider/LON/ECT@ECT, ECT London Credit, Enron Europe Global Contracts and Facilities, EOL Marketing Europe@ECT cc:

Subject: PA Review Bank of Nova Scotia

Hello all,

The Bank of Nova Scotia would like to trade with us online. They are in GCP as #54087 and are existing customers of Enron Metals (Jimmy Gordon is the one who got them to send in the PA if that helps!).

Could you please let us know your comments in the S: access Database?

thank you, Lara ----- Forwarded by Lara Fields/LON/ECT on 25/09/2000 14:52

London Fax System 25/09/2000 14:28 To: Enron London - EOL Product Control Group/LON/ECT@ECT cc:

Subject: New fax received (Likely sender: 0207 588 1542).

You have received a new fax from 0207 588 1542

The image contains 3 page(s).

Message 65 of 413

RE: Document in ole_2

Sender	legal <taylor@enron.com>
Recipients	[jean.bell@enron.com]
File	taylor-m/sent_items/17.

This is a swap confirm. Do you have an option? -----Original Message----- From: Bell, Jean Sent: Thursday, August 30, 2001 5:24 PM To: Taylor, Mark E (Legal) Subject: Document in ole_2

Enron North America Corp. P.O. Box 4428 Houston TX 77210-4428 (713) 853-3300 Fax (713) 646-4816

CONFIRMATION (SWAP)

Date: August 29, 2001 To: Reliant Energy Services, Inc. ("Counterparty") Attention: Document Department Fax No.: (713) 207-9562 From: Enron North America Corp. ("ENA") Re: Commodity Swap Y00041.1

Reference is made to the Master Agreement dated as of October 15, 1993 (the "Agreement") between Reliant Energy Services, Inc. ("Counterparty") and Enron North America Corp. ("ENA"), pursuant to which this Confirmation is delivered and to which the Transaction contemplated herein is subject.

This is a confirmation of the following Transaction entered between us on August 29, 2001:

General Terms:

Type of Transaction: Swap

Notional Quantity per Determination Period:

5,000 MMBtu multiplied by the number of days in the relevant Determination Period

Commodity Natural Gas

Effective Date: September 01, 2001

Termination Date: September 30, 2001

Determination Period(s): The Period beginning with and including September 01, 2001 through and including September 30, 2001.

Payment Date(s): The fifth (5th) Business Day following the date on which the Floating Price is determinable

Fixed Amount Details:

Fixed Price Payor: ENA

Fixed Price: The El Paso Natural Gas Co. - Permian Basin Index price for delivery during the applicable Determination Period in the "Prices of Spot Gas Delivered to Pipelines" section located in the first issue of Inside F.E.R.C.'s Gas Market Report published during the applicable Determination Period less US Dollars \$0.08500 per MMBtu

Floating Amount Details:

Floating Price Payor: Counterparty

Floating Price: The arithmetic average of the daily prices for all calendar days during the Determination Period, the price for each such calendar day being the "Flow date: Midpoint: Permian Basin Area: El Paso" as published under the heading "Daily Price Survey" in Gas Daily

For the purposes of the calculations of the Floating Price(s), all numbers shall be rounded as follows: Floating Price(s) relating to commodities quoted in (i) gallons shall be rounded to five places, (ii) MMBtu's shall be rounded to four places, (iii) barrels shall be rounded to three places and (iv) gigajoules shall be rounded to four places. If the number after the final number is five (5) or greater then the final number shall be increased by one (1), and if the number after the final number is less than five (5) then the final number shall remain unchanged.

Terms used and not otherwise defined in this Confirmation shall have the meanings given them in the Agreement.

If this Confirmation correctly sets forth the terms of the above-referenced Transaction, please so indicate by signing below and sending this Confirmation (or a copy hereof) to us.

If this Confirmation contains any error, please notify ENA immediately. Failure to notify ENA of a bona fide error in this Confirmation or failure to accept this Confirmation as provided in the Agreement after receipt by Counterparty shall result in this Confirmation being deemed binding as sent.

We look forward to receiving your prompt reply.

Yours sincerely,

Enron North America Corp.

By: Name: Robert Bowen Title: Agent and Attorney-in-Fact Deal No. Y00041.1 Confirmed as of the date first above written:

Reliant Energy Services, Inc.

By: Name: Title:

Message 66 of 413

RE: ISDA TDCC(Dow)/Enron	
Sender	mark.taylor@enron.com
Recipients	['tana.jones@enron.com']
File	taylor-m/sent/3237.

----- Forwarded by Mark Taylor/HOU/ECT on 02/23/2001 11:52 AM -----

Mark Taylor 02/20/2001 06:59 PM

To: John Viverito/Corp/Enron@ENRON cc: Adam Gross/HOU/ECT@ECT, Alan Engberg/HOU/ECT@ECT, Michael A Robison/HOU/ECT@ECT Subject: RE: ISDA TDCC(Dow)/Enron

Gentlemen:

Several points regarding the below:

We worked for the first half of 1999 to try and negotiate a master agreement with TDCC but failed due to an inability to agree on credit terms (i.e. TDCC wouldn't sign a master with ANY credit terms in it at all). Rod Nelson was the Credit Dept. person responsible for this counterparty at that time. If we want to start down this road again, the first step is to contact someone in Credit and have them generate the necessary credit terms for a master agreement. Unless the commercial folks have already, I'll ask someone in my group to get that process started. The e-mail from Dow indicates: "TDCC has never accepted and cannot accept the Terms and Conditions included in the confirmations sent by Enron." All credit concerns aside, if Dow is not signing and returning our confirmations, then based on this statement our derivatives trading

with them should stop immediately on legal grounds. The e-mail as forwarded to me did not contain the attachment. Does someone here have it?

Let's hope it works out better this time.

Mark

John Viverito@ENRON 02/20/2001 01:55 PM

To: Mark Taylor/HOU/ECT@ECT cc: Michael A Robison/HOU/ECT@ECT, Adam Gross/HOU/ECT@ECT, Alan Engberg/HOU/ECT@ECT Subject: RE: ISDA TDCC(Dow)/Enron

Mark-

Please see the correspondence below regarding Dow Chemical's desire to enter into an ISDA with us.

Let us know who will be leading the charge from legal.

Thanks,

John

John Viverito Phone (713) 345-7814 Fax (713) 646-3490 e-mail John.Viverito@enron.com ----- Forwarded by John Viverito/Corp/Enron on 02/20/2001 01:50 PM -----

Alan Engberg@ECT 02/20/2001 12:41 PM

To: John Viverito/Corp/Enron@Enron cc: Michael A Robison/HOU/ECT@ECT, Adam Gross/HOU/ECT@ECT Subject: RE: ISDA TDCC(Dow)/Enron

John/Mike, can someone contact Luis Antuna (name and number below) to discuss putting together an ISDA between Dow Chemical Co. and EGM.

Thanks, Alan ----- Forwarded by Alan Engberg/HOU/ECT on 02/20/2001 12:36 PM -----

From: Adam Gross 02/14/2001 03:21 PM

To: Alan Engberg/HOU/ECT@ECT cc: Subject: RE: ISDA TDCC/Enron

----- Forwarded by Adam Gross/HOU/ECT on 02/14/2001 03:20 PM

"Billings, Mike (ME)" <mbillings@dow.com> on 02/09/2001 11:28:11 AM To: "Antuna, Luis (L)" <LAntuna@dow.com>, "agross@enron.com" <agross@enron.com> cc: "Corbett, Cheryl (CE)" <CECORBETT@dow.com> Subject: RE: ISDA TDCC/Enron

Thanks Luis,

I really appreciate your initiative to document that we have never accepted and cannot accept their Terms and Conditions. We are reversing the flow and will leverage an ISDA Agreement that works for us and for them.

Thanks, Mike

-----Original Message----- From: Antuna, Luis (L) Sent: Friday, February 09, 2001 11:59 AM To: 'agross@enron.com' Cc: Billings, Mike (ME); Corbett, Cheryl (CE) Subject: ISDA TDCC/Enron Mike Billings has given us your name as the first contact person in Enron to negotiate an ISDA agreement with The Dow Chemical Company (TDCC). Our files show an ISDA between Enron Capital & Trade Resources and two Dow entities (Dow Hydrocarbons & Resources, and Dow Chemical Canada). In addition to this, my understanding is that TDCC (my predecessor in this position) and Enron (presumably a lawyer) had some discussions about an ISDA, but for some reason they were not successful. Despite this, the level of trading between the two companies have increased and TDCC has never accepted and cannot accept the Terms and Conditions included in the confirmations sent by Enron. For these reasons, we think we should agree on an ISDA where conditions acceptable to both parties can apply to the intense trading between the two companies. In order to speed up the process, I have enclosed to this message Dow's template for the ISDA Schedule. We would appreciate if Enron could review the attached draft and come back with any comments or issues for discussion. Please forward this message to the responsible person asking him to contact me for any discussion. Thanks. Regards << File: Enron North America Corp.(draft) 2-9-01.doc >> Luis Antuna Attorney - Financial

Law The Dow Chemical Company 2030 Dow Center Midland, MI 48674 Tel: (517) 638-6789 Fax: (517) 636-0861
lantuna@dow.com

Message 67 of 413

FW: CAN Gas Phy Basis West Products - PLEASE APPROVE

Sender	greg.johnston@enron.com
Recipients	['melba.lozano@enron.com', 'legal <.taylor@enron.com']
File	taylor-m/online_trading/product_descriptions/1.

Mark, as long as Melba has made the change requested below, can you please approve the products in the system?

Thanks Greg

-----Original Message-----

From: Lozano, Melba Sent: Tuesday, August 28, 2001 12:58 PM To: Johnston, Greg Cc: Taylor, Mark E (Legal) Subject: RE: CAN Gas Phy Basis West Products - PLEASE APPROVE Importance: High

Greg,

I will make that change. Could you ask Mark Taylor to go ahead and approve it in the system? He will do it once you give him the go ahead.

Thanks,

Melba

-----Original Message-----

From: Johnston, Greg Sent: Monday, August 27, 2001 9:34 AM To: Lozano, Melba Cc: Seib, Dianne Subject: RE: CAN Gas Phy Basis West Products - PLEASE APPROVE

Melba, I do not have "Test Applications" in my Start/Programs menu. My only comment is that I would clarify the delivery point as Empress, Alberta rather than simply Empress. Otherwise, the product descriptions look fine.

Greg

-----Original Message-----

From: Lozano, Melba Sent: Tuesday, August 21, 2001 1:56 PM To: Blumenthal, Jeff; Musch, Susan; Hayden, Frank; Moran, Tom; Taylor, Mark E (Legal); Seib, Dianne; Johnston, Greg Cc: Lees, Lisa; Sever, Stephanie; Jones, Tana; Lambert, Karen; Lombardi, Kelly; Elledge, Susan; Sweitzer, Tara; Kenne, Dawn C.; Moorer, Torrey; Alatorre, Carlos; Renaud, Lindsay; Meredith, Kevin; Walker, Chris; Mandola, Teresa Subject: CAN Gas Phy Basis West Products - PLEASE APPROVE

Your review and approval of the following product types in the EOL Datamanager is needed (for directions on approval, please see steps for approval at the bottom of this e-mail). If you have any questions please call me at ext. 39555 or Chris Walker at ext. 37533 ***** DO NOT APPROVE PRODUCT TYPES BETWEEN THE HOURS OF 6AM - 11AM*****

Product Type(s): CAN Gas Phy Basis Firm West <or=1Mo (2128) CAN Gas Phy Basis Firm West >1Mo<1Yr (2129)

Trader(s): Jon McKay Chris Lambie

Description(s):

CAN Gas PhyBasis EMPR Nov01 USD/MM

A Canadian Gas Transaction with Enron Canada Corp., under which Seller shall sell and Buyer shall purchase a quantity of natural gas equal to the Daily Contract Quantity at the Contract Price on a firm basis. The Contract Price shall be derived from the index, as adjusted by the price submitted by the Counterparty via the Website. The Period of Delivery shall be from the Effective Date (first day of the term of the Transaction) through the Termination Date (last day of the term

of the Transaction). The transaction is from the Effective Date to the Termination Date. The Effective Date is 01 Nov 2001. The Termination Date is 30 Nov 2001. The transaction is for delivery at Empress. The Index shall be the settlement price for the last scheduled Trading Day of the NYMEX Henry Hub Natural Gas Futures Contract. The price is quoted in US Dollars per unit of volume, which will be the Contractual Currency. The unit of measure against which the price is quoted shall be millions of British thermal units and the quantity shown shall be in millions of BTUs per day.

CAN Gas PhyBasis EMPR Nov01-Mar02 USD/MM A Canadian Gas Transaction with Enron Canada Corp., under which Seller shall sell and Buyer shall purchase a quantity of natural gas equal to the Daily Contract Quantity at the Contract Price on a firm basis. The Contract Price shall be derived from the index, as adjusted by the price submitted by the Counterparty via the Website. The Period of Delivery shall be from the Effective Date (first day of the term of the Transaction) through the Termination Date (last day of the term of the Transaction). The transaction is from the Effective Date to the Termination Date. The Effective Date is 01 Nov 2001. The Termination Date is 31 Mar 2002. The transaction is for delivery at Empress. The Index shall be the settlement price for the last scheduled Trading Day of the NYMEX Henry Hub Natural Gas Futures Contract. The price is quoted in US Dollars per unit of volume, which will be the Contractual Currency. The unit of measure against which the price is quoted shall be millions of British thermal units and the quantity shown shall be in millions of BTUs per day.

STEPS FOR APPROVAL:

click the START button select PROGRAMS select TEST APPLICATIONS select ENRONONLINE CLUSTER(PROD) PROCEED WITH USUAL LOGIN/PASSWORD click the Enron Online Production Cluster "START" button select EnronOnline (this is the EOL Datamanager) PROCEED WITH EOL LOGIN/PASSWORD click on the "+" for EnronOnline click on the "+" for Product Types click on the "+" for "Partially Approved" select the product requiring review as stated in e-mail above Right "mouse" click on "properties" to view product set-up TO APPROVE: Right mouse click on "Approved"

Thanks, Melba Lozano 713-345-8986 713-646-8511 Fax 713-698-4847 Pager

Message 68 of 413

New Work at Socrates Sculpture Park

Sender	dagodfrey@amherst.edu
Recipients	[gcshaw@amherst.edu', 'jmstephens@amherst.edu', 'rtsweeney@amherst.edu']
File	taylor-m/archive/6_00/6.

I am pleased to announce a new large scale steel piece completed for the show "Once Removed" at Socrates Sculpture Park in Long Island City, New York. Almost 8 tons of steel, over 500 pieces of Cor-ten steel attached by nearly 4500 stainless steel bolts and measuring 23 feet in length and 28 feet in width, this flexible structure slumps and slides across the landscape. A continuation of an exploration of structures that have a role in their own making, it is a simple system whose final form is only semi-determined.

The exhibition opens June 4th from 2 - 5pm and remains onview through the summer. See the attached website for directions and hours

-- DeWitt Godfrey, Assistant Professor Department of Fine Arts Amherst College 19 Fayerweather Hall Amherst, MA 01002-5000 Tel 413 542 2162 Fax 413 542 7917 Email dagodfrey@amherst.edu

Socrates Sculpture Park is a 4.5 acre, waterfront sculpture park located on the East River in Long Island City, Queens. Socrates Sculpture Park is one of the few places In New York City where large-scale, outdoor sculpture can be enjoyed by the public. Since its opening In the fall of 1986 the Park has presented a constantly changing selection of work by the most exciting artists working today. Sculptors from all regions of the United States, Europe and Central America have been joined by musicians, dancers, painters and filmmakers to create a multi-media modern art showcase.

Socrates Sculpture Park is situated In Long Island City, Queens, where private homes, factories and warehouses co-exist in an unpretentious neighborhood with breathtaking views of the Manhattan skyline. Appropriately, the park is located on

the border of the largest population of Greeks outside Athens.

Located at Vernon Boulevard and Broadway in Long Island City (718) 956-1819 Fax: (718) 545-8548

Directions From the Midtown Tunnel: After tolls, take immediate right, a second right and, after 1 block, a third right onto Vernon Blvd, Head North to Braodway (5 min.)

From the Queensboro (59th St) Bridge: Upper Roadway: Exit 21st Street North onto Broadway. Continue to Vernon Blvd. Lower Roadway: First right, continue for 2 blocks, then right. Continue 9 blocks to Vernon Blvd.

History and Goals of Socrates Sculpture Park

Socrates Sculpture Park Is a former illegal dumpsite leased from New York City's Department of Ports and Trade for \$1 per year. The site required almost a year of work to clear and landscape before the first installation of sculpture was possible. Socrates Sculpture Park is the masterwork of the Athena Foundation, which was created In 1977 by the sculptor Mark di Suvero to encourage the arts, to expand the culture and to create a space for the harmonious interaction of people and art.

After a year of clearing what was once an illegal garbage dump, the Park opened its first exhibition of contemporary, outdoor sculpture in 1986. Since that time, Socrates continues to revitalize the economic, social, educational, and cultural life of this community via activities that encourage creative interaction between artists, their art, and the community through visual arts and outreach programs. The Park's existence is based on the belief that reclamation, revitalization and creative expression are essential to the survival, humanity and improvement of our urban environment.

At a ceremony on May 23,1993, Socrates officially became part of the NYC Dept. of Parks & Recreation. As the newest addition to Park land in over a decade SSP is the only NYC park dedicated solely to the creation & exhibition of contemporary sculpture. In 1995, Socrates was designated as one of sixty three "Great American Public Places," testimony to the fact that the Park is an exemplary model of the built environment. Although our new relationship with the City of NY guarantees our existence for years to come it does not provide support for our outreach programs for youth or community residents.

Community Collaborations Initiative

Since Its inception the Park has operated outreach programs for youth and neighborhood residents. In 1990 SSP founded the Education Department, offering a variety of innovative & alternative programs to some of NYC neediest youth from the local community, as well as off-site in NYC public schools. Many of our program target youth from high risk backgrounds. These workshops further the Park's goal to redefine the role of the art institution as a purveyor of alternative education in the schools, community and eventually society.

Through our Community Collaborations Initiative, Socrates is able to design on a one-on-one basis special hands on art workshops. While many schools have lost funds for fine arts programs, Arts Education is now recognized as an essential part of healthy development and a rounded education.

Copyright 1997, 1998 City of New York, Queens Borough President's Office - dagodfrey.vcf

Message 69 of 413

Retail Swaps Study Interview

Sender	scarey@isda.org
Recipients	[usregcomm@isda.org]
File	taylor-m/archive/2001_08/5.

Our interview this afternoon at the NY Fed regarding the retail swap study lasted less than an hour. For your information, I have attached the talking points used at today's meeting. Most of these points were covered in our meeting. We will provide further update on tomorrow's conference call. Please do not hesitate to call if you have any questions. -- Stacy

<<Retail Swap Study Talking Points.doc>>

Stacy Carey Policy Director International Swaps and Derivatives Association 600 5th Avenue, 27th Floor Rockefeller Center New York, NY 10020 (212) 332-1202 ph (212) 332-1212 fax (917) 543-9622 cell scarey@isda.org

- Retail Swap Study Talking Points.doc

Message 70 of 413

Fact sheet

Sender	juli.salvagio@enron.com
Recipients	['e.taylor@enron.com']
File	taylor-m/inbox/marketing/3.

Unfortunately, I do not have the emissions fact sheet. I just called Habiba. She is making final edits, but is not in. I requested the draft asap. Sorry, I thought she had sent it to me. Here's a draft for Coal so you can see the basic format. Additionally, attached is the layout for the folder that PR is printing for multi-purpose use. Hope to hear from her soon and will send you the fact sheet asap. Look forward to meeting with you next week to get things rolling with website and insert or brochure.

Juli Salvagio Manager, Marketing Communications Enron Wholesale Services 1400 Smith Street, 3641 Houston, TX 77002 713-345-2908-Office 713-294-7907-Cell 713-646-5800-Fax juli.salvagio@enron.com

Message 71 of 413

Materials for review prior to 6 September meeting

Sender	bhanlon@isda.org
Recipients	['beat.gabathuler@zkb.ch', 'apapesch@isda-eur.org', 'charles.ross-stewart@wdr.com']
File	taylor-m/notes_inbox/1330.

Attached please find a draft of the ISDA/OSLA BRIDGE and the ISDA CROSS-AGREEMENT BRIDGE for review in preparation for the Master Agreement Working Group meeting on September 6th at 11:00 a.m. New York time/4:00 p.m. London.

If you have not already done so, please contact Barbara Hanlon at bhanlon@isda.org or 212-332-1200 to let her know if you are participating in the meeting.

<<Bridge081400.pdf>> <<Cross081400.pdf>>

Ms. Barbara Hanlon Assistant to General Counsel International Swaps and Derivatives Association, Inc. 600 Fifth Avenue, 27th Floor Rockefeller Center New York, New York 10020-2302 Phone: (212) 332-1200 Fax: (212) 332-1212 <http://www.isda.org>

- Bridge081400.pdf - Cross081400.pdf

Message 72 of 413

RE: CFTC Inquiry

Sender	limor.nissan@enron.com
Recipients	['legal <.taylor@enron.com>']
File	taylor-m/deleted_items/69.

thanks

Enron Global Markets 520 Madison Avenue New York, NY 10022 Tel: 212.715.5283 Fax: 212.715.5608 E-Mail: Limor.Nissan@Enron.com

-----Original Message-----

From: Taylor, Mark E (Legal) Sent: Thursday, October 18, 2001 12:24 PM To: Nissan, Limor; Aronowitz, Alan Subject: CFTC Inquiry

I have spoken with Ron Carletta at the CFTC and explained our position - that is that as far as we know the LJM entities have only engaged in exempt transactions and are not required to register as CPO's. He has my name and number if he has any further questions.

Mark Taylor Vice President and General Counsel Enron Wholesale Services 1400 Smith Street - EB3892 Houston, Texas 77008 (713)853-7459 (713)646-3490 (fax)

Message 73 of 413

NYMEX Closing

Sender	smarra@isda.org
Recipients	['mowbray.laura@enron.com', 'alan.aronowitz@enron.com', 'pickel.robert@enron.com']
File	taylor-m/inbox/317.

ISDA International Swaps and Derivatives Association, Inc. 600 Fifth Avenue Rockefeller Center - 27th floor New York, NY 10020 U.S.A. Phone: (212) 332-1200 Facsimile: (212) 332-1212 Website: www.isda.org

On November 9, we sent out a draft statement of market practice addressing the closing of NYMEX on November 23, 2001. We asked for feedback to that draft statement, and to date, the firms responding back to ISDA have indicated a preference for not proceeding with publication of the statement. The reason cited is that the NYMEX announcement was made before most swaps began to price out. Accordingly, there was no perceived need to move forward with the statement.

If you have any questions, please do not hesitate to contact Kimberly Summe at 212-332-1203.

Message 74 of 413

Re: dinner Weds. night in San Antonio

Sender	mark.taylor@enron.com
Recipients	['eddy.daniels@enron.com']
File	taylor-m/sent/3358.

Unfortunately I already have plans. But thanks for the invite!

Eddy Daniels@ENRON 05/01/2001 02:00 PM

To: Mark Taylor/HOU/ECT@ECT cc: Subject: dinner Weds. night in San Antonio

A few of us North America types from Lance Schuler's group have plans with John Novak, Sami Arap, and other colleagues from the Enron South America team for dinner on Weds. night. We would be honored if you would join us. We are dining at :

La Fogata 2427 Vance Jackson Rd. San Antonio, Texas (210) 340-1337

La Fogata is approx. ten minutes from the hotel by cab. Please just let me know if you can attend by 10 am tomorrow so that I can expand our reservation appropriately. I hope to see you tomorrow.

Edmund D. Daniels Senior Counsel Enron North America Corp. 1400 Smith, EB 3813 Houston, Texas 77002
713.345.4753 (direct) 713.646.3490 (telecopy)

Message 75 of 413

Submission on Ontario's Emissions Trading Regulation....

Sender	lisa.jacobson@enron.com
Recipients	['e.taylor@enron.com', 'trevor.woods@enron.com', 'stacey.bolton@enron.com', 'robert.hemstock@enron.com', 'jeff...]
File	taylor-m/inbox/lisa_j/20.

TIME SENSITIVE

Please see the attached draft comments developed by Environmental Strategies Group on behalf of Enron Canada (commercial and regulatory groups) and the EGM emissions desk to the Ministry of Environment of Ontario, in response to Ontario's draft emissions trading regulation.

The deadline to submit comments is Friday, October 5.

Please send any comments to me via email by 12:00 noon tomorrow, Thursday, October 4. Alternatively, I can be reached at (202) 494-5133.

Garrett, Jan and Brian, we need to coordinate on the actual submission on Friday. I do not believe they can be submitted via email. I will be in touch to discuss this.

Thanks for your contributions and comments.

Talk to you soon,

Lisa

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 76 of 413

travel plans

Sender	lhayman@skadden.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/archive/9_00/89.

I just reserved some unbelievably expensive rooms for amanda's graduation in May. If you were ever going to see Jefferson country, graduation is in May. Amanda says the place I reserved is fabulous.

Linda Hayman Skadden, Arps, Slate, Meagher & Flom, LLP 4 Times Square, 42nd Floor New York, NY 10036 T: 212-735-2637 F: 917-777-2637

This e-mail, and any attachments thereto, is intended only for use by the addressee(s) named herein and may contain legally privileged and/or confidential information. If you are not the intended recipient of this e-mail, you are hereby notified that any dissemination, distribution or copying of this e-mail, and any attachments thereto, is strictly prohibited. If you have received this e-mail in error, please immediately notify me at (212) 735-3000 and permanently delete the original and any copy of any e-mail and any printout thereof.

Further information about the firm, a list of the Partners and their professional qualifications will be provided upon request.

- Linda Hayman.vcf

Message 77 of 413

RE: Draft Agenda - November 2 Energy Meeting

Sender	janette.elbertson@enron.com
Recipients	['scarey@isda.org', 'legal <taylor@enron.com>']
File	taylor-m/deleted_items/305.

Stacy:

Unfortunately Mark Haedicke will not be able to participate in this video conference. He said he thought you would understand due to the current circumstances. Please go ahead and have the video conference even though Mark Haedicke cannot participate.

Please accept our apologies. Thank you.

Janette Elbertson

-----Original Message-----

From: Stacy Carey <SCAREY@ISDA.ORG>@ENRON Sent: Friday, October 26, 2001 1:16 PM To: Haedicke, Mark E.
Cc: Taylor, Mark E (Legal); Ruth Ainslie; Elbertson, Janette Subject: Draft Agenda - November 2 Energy Meeting

Mark -- I have attached a draft agenda for Nov. 2. Would like to try to catch you prior to the meeting to discuss how you want to proceed on Friday. Would you let me know if you have 15-20 minutes sometime next week? Many thanks! -- Stacy

<<Agenda - Nov 2.doc>>

Stacy Carey Policy Director International Swaps and Derivatives Association 600 5th Avenue, 27th Floor Rockefeller Center New York, NY 10020 (212) 332-1202 ph (212) 332-1212 fax (917) 543-9622 cell scarey@isda.org

- Agenda - Nov 2.doc << File: Agenda - Nov 2.doc >>

Message 78 of 413

RE: June Newsletter - NA Energy Committee

Sender	mark.taylor@enron.com
Recipients	['mark.taylor@enron.com', 'e..haedicke@enron.com', ". 'stacy@enron.com'"]
File	taylor-m/sent_items/211.

This looks good to me.

-----Original Message-----

From: Stacy Carey [mailto:SCAREY@ISDA.ORG] Sent: Tuesday, June 12, 2001 8:04 PM To: Mark Haedicke ; Mark Taylor Subject: FW: June Newsletter - NA Energy Committee

I am currently putting together ISDA's June newsletter and thought we needed to say a bit about the NA Energy Committee. The following is my submission - Hoping this is generic yet informative enough for our purposes. -- Stacy

North American Energy and Developing Products Committee The Committee plans to meet within the month to discuss various issues impacting the OTC energy and developing products markets. Given the increased and varied growth of ISDA's energy membership, a primary focus will include discussion on updating and reconciling provisions of master agreements for various energy products. Market and regulatory issues will also be considered. Stacy Carey Policy Director International Swaps and

Derivatives Association 600 5th Avenue, 27th Floor Rockefeller Center New York, NY 10020 (212) 332-1202 ph (212) 332-1212 fax (917) 543-9622 cell scarey@isda.org

Message 79 of 413

FW: Fourth Amendment to Master Agreement

Sender	tanya.rohauer@enron.com
Recipients	['Sara; Rohauer', 'Shackleton', 'Tanya; William.Bradford@ENRON.com;', 'legal <.taylor@enron.com']
File	taylor-m/inbox/191.

-----Original Message-----

From: Beth Ng [mailto:Beth.Ng@morganstanley.com] Sent: Tuesday, October 23, 2001 9:28 AM To: Bailey, Susan Cc: Shackleton, Sara; Rohauer, Tanya; William.Bradford@ENRON.com; Anthony T Lupiano JR Subject: Fourth Amendment to Master Agreement

Re: Proposed Fourth Amendment to the Master Energy Price Swap Agreement between Enron North America Corp. ("Enron") and Morgan Stanley Capital Group Inc. ("MSCGI")

Dear Susan:

Pursuant to the discussions between Anthony Lupiano of our Credit Department and Bill Bradford of your Credit Department yesterday, attached you will find a proposed Fourth Amendment to the Master Energy Price Swap Agreement. The purpose of this Fourth Amendment is to amend the Exposure Threshold definition. It is my understanding that Mr. Bradford has agreed to these terms. Our Credit Department is expecting that we bring this document to a closure quickly.

Please contact me with any questions or comments you may have.

Kind regards,

Beth Ng Commodities Division - Documentation Tel: 212 761 8720 Fax: 212-507-4898 / 212 761 0293 Email: Beth.Ng@morganstanley.com

1585 Broadway, 4th Floor New York, NY 10036

Message 80 of 413

RE: Tradesbark

Sender	william.frederking@enron.com
Recipients	['legal <.taylor@enron.com', 't..hodge@enron.com', 'mark.greenberg@enron.com', 'joanne.rozycki@enron.com']
File	taylor-m/deleted_items/356.

EES also has an agreement with TradeSpark. Let me know if you need more information.

Will

From: Mark Greenberg/ENRON@enronXgate on 11/19/2001 11:28 AM To: Joanne Rozycki/ENRON@enronXgate cc: Jeffrey T Hodge/Enron@EnronXGate, Mark Taylor/ENRON@enronXgate, William Frederking/HOU/EES@EES Subject: RE: Tradesbark

Joanne -

I believe Pat was inquiring as to TradeSpark. We have agreements with ENA and EPMI that were signed earlier this year. I believe we also have one with EES, but this was negotiated by Will F. We would have to check with him about the status.

Let me know what needs to be done on this matter.

Mark

-----Original Message-----

From: Rozycki, Joanne Sent: Monday, November 19, 2001 10:34 AM To: Greenberg, Mark Cc: Griffin, Vanessa Subject: Tradesbark

Pat Kokes, a Contract Administrator with Dynegy at (713) 507-3726, called this morning, requesting info on Electronic Trading Agreements with Tradesbark for Enron Capital, Enron Energy Services, Enron Global Mktg & Enron Power Mktg. Jeff Hodge said you would probably be the one to refer this to. If possible, please give Mr. Kokes a call back today. Thanks.

Joanne Rozycki Senior Administrative Assistant Enron North America Corp. 1400 Smith Street, EB3880D Houston, TX 77002 Phone: (713) 853-5968 Fax: (713) 646-3490 Email: joanne.rozycki@enron.com

Message 81 of 413

Hotel Itinerary Confirmation for : Fifth Avenue Suites

Sender	accthelp@cooltravelassistant.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/139.

Reservation confirmed

Thank you for booking your hotel with eService Online. Following is a copy of your hotel confirmation.

Here are the details of your reservation, including any rules and restrictions. If you have any questions, fill out the Itinerary Assistance Form at <https://cooltravelassistant.com/pub/feedback.dll?Subj=3&itid=1647816> to send us e-mail, or call 1 (888) 815-2665. Refer to Booking ID 77DLWH.

1. Here is your travel information

Fifth Avenue Suites

506 SW Washington at 5th Ave Portland, Oregon 97204

Tel: +1 (503) 222-0001 Fax: +1 (503) 222-0004

Check in: 3/5/2000 Check out: 3/7/2000

Room description: Executive Level Suite

Requested guests: 1 adult

Room rate: USD 170.00 per night Plus taxes of USD 15.30

Itinerary name [number]: Seattle, WA [1164781627] Booking ID: 77DLWH

Hotel confirmation number: 81784253

2. Additional information about your reservation - You have chosen not to make a hotel room deposit. If you wish to make a deposit, call the hotel directly. - Your Reservation has been guaranteed to your Credit Card. To avoid a no-show charge, please cancel your reservation per hotel cancellation policy.

To view this itinerary online, follow this link: <https://cooltravelassistant.com/pub/eta.dll?qscr=open&itid=1647816&updt=1>.

Thank you for choosing eService Online for your travel reservations. We look forward to serving you again!

Message 82 of 413

Chance Meeting

Sender	mmckay@velaw.com
Recipients	[mark.taylor@enron.com]
File	taylor-m/all_documents/3652.

Mark:

It was funny running into you yesterday in Enron's lobby. I had just received the Skadden Alumni book and had tagged your name to give you a call. You were the second Taylor that I ran into in Houston in my brief trip: I also saw Lyndon Taylor of Skadden's Houston office on the street.

I now work at V&E's New York office. I left the London office of Skadden in March of this year and went to V&E's London office for 5 months. I returned to New York in August after four years in London.

I do project finance and bank work as before. I was at Enron working on a power deal yesterday.

I hope all is well with you. Please let me now what you're up to.

Michael McKay Vinson & Elkins L.L.P 1325 Avenue of the Americas New York, N.Y. 10019 Tel: 917-206-8115 Fax: 917-849-5311 Mobile: 203-243-5681 Email: mmckay@velaw.com

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Message 83 of 413

FW: Riskrack Blurb...

Sender	mark.greenberg@enron.com
Recipients	[sbrown@velaw.com', 'legal <taylor@enron.com']
File	taylor-m/archive/2001_07/60.

Scott -

We have a new development effort under way for Enron Credit Inc. This entity is an offshoot of our Enron Credit Ltd. group based in London. Basically, Enron Credit has developed credit risk based products that basically hedge against bankruptcies and bad credit of customers. The product described below - Risk Track - is a new product that is being developed for purposes of enabling Risk Metrics Group (credit risk company based in New York) to stream Enron Credit's credit information through a web based site to Risk Metrics Group subscribers.

The actual product has been developed, but in discussions with our business personnel it was determined that they would like to confirm that the RiskTrack does not violate any existing trademarks. Accordingly, please have a basic trademark search performed for this name based upon the information provided below. If additional information is needed, please let me know.

Thanks. Have a good weekend.

Mark

-----Original Message-----

From: Cruver, Brian Sent: Friday, July 13, 2001 11:52 AM To: Greenberg, Mark Cc: Chaney, Craig Subject: Riskrack Blurb...

Here's the blurb you requested:

"RiskTrack"

A web-based data distribution application that delivers credit risk information on both single-name corporate entities and indices.

Thanks again, Brian

Brian R. Cruver Enron Credit 1400 Smith Street Houston, TX 77002-7361 Office: 713.853.3025 Mobile: 713.303.7271
Fax: 713.345.4993 brian.cruver@enron.com <http://www.enroncredit.com>

Message 84 of 413

FW: Retail Swaps Invitation Letter and Questions

Sender	legal <taylor@enron.com>
Recipients	['raislerk@sullcrom.com']
File	taylor-m/sent_items/266.

FYI

-----Original Message-----

From: "Patrikis, Ernest" <Ernest.Patrikis@AIG.com>@ENRON [mailto:IMCEANOTES-+22Patrikis+2C+20Ernest+22+20+3CErnest+2EPatrikis+40AIG+2Ecom+3E+40ENRON@ENRON.com] Sent: Wednesday, July 18, 2001 9:36 PM To: 'Stacy Carey'; US REGULATORY COMMITTEE Subject: RE: Retail Swaps Invitation Letter and Questions

Two weeks ago, a member of the FRBNY legal staff asked to meet with AIG staff to discuss AIG's present and proposed retail swap activities. I responded that AIG does not now and has no plans to engage in that activity. For that reason, I stated that it was premature to consider the need to regulate an activity that does not now exist and that ought to be the agencies response to Congress.

-----Original Message-----

From: Stacy Carey [SMTP:SCAREY@ISDA.ORG] Sent: Wednesday, July 18, 2001 4:46 PM To: US REGULATORY COMMITTEE Subject: Retail Swaps Invitation Letter and Questions

For your information, I have attached correspondence from the Federal Reserve requesting ISDA's participation in the Commodity Futures Modernization Act retail swaps study. The correspondence also lists interview topics/questions. Please do not hesitate to call if you have any questions. Many thanks! -- Stacy

Stacy Carey Policy Director International Swaps and Derivatives Association 600 5th Avenue, 27th Floor Rockefeller Center New York, NY 10020 (212) 332-1202 ph (212) 332-1212 fax (917) 543-9622 cell scarey@isda.org

<<FRBNYLtr.pdf>> << File: FRBNYLtr.pdf >>

Message 85 of 413

Emissions Trading Inquiry

Sender	jenny.parmar@accenture.com
Recipients	['emissions@enron.com']
File	taylor-m/inbox/368.

Hello -

I was searching your website for capabilities on emissions trading. I understand you conduct and enhance market information as well as establish custom solutions that enable environmental compliance. I was wondering if you can provide some information on your services, and what the current trends are for SOx and NOx emissions trading. How does Enron participate? Most importantly, I was wondering if you have available data on cost savings for Enron itself as well as others in the industry.

Thank you for your help - I look forward to your response.

Sincerely, Jenny Parmar

Jenny Parmar Work: +1.704.370.5274 Accenture Mobile: +1.704.965.2377 Resources Fax: +1.704.370.5700 100 N. Tryon St. Suite 3900 Octel: 370/5274 Charlotte, North Carolina 28202 Jenny.Parmar@accenture.com

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Message 86 of 413

RE: phone numbers

Sender	mark.taylor@enron.com
Recipients	['lhayman@skadden.com']
File	taylor-m/sent_items/235.

If you really think you'll need to get in touch while I'm overseas you can try my international cell phone # 44-7881-512-535 which is a London phone number but works throughout Europe and North America. And of course when all else fails you can always try to page me at (877)855-2081 or send an e-mail to my pager at 8778552081@pagenetmessage.net. But the bottom line is that there is a large percentage of the time that I'm just plain unreachable since I turn them all off and let the machines do the answering -- which may not impress Joe but in my book is even more impressive than having lots of numbers.

-----Original Message-----

From: "Linda Hayman" <LHAYMAN@skadden.com>@ENRON
[mailto:IMCEANOTES+22Linda+20Hayman+22+20+3CLHAYMAN+40skadden+2Ecom+3E+40ENRON@ENRON.com]
Sent: Tuesday, June 19, 2001 6:51 PM To: Taylor, Mark Subject: RE: phone numbers

you only have ONE cellphone - Joe would not be impressed.

Linda Hayman Skadden, Arps, Slate, Meagher & Flom, LLP 4 Times Square, 42nd Floor New York, NY 10036 T: 212-735-2637 F: 917-777-2637

<Mark.Taylor@enron.com> 06/19/01 07:43PM >>>
1322 Rutland Houston, TX 77008 (713)863-7190 home (713)206-8080 cell (713)853-7459 work

-----Original Message-----

From: "Linda Hayman" <LHAYMAN@skadden.com>@ENRON
[mailto:IMCEANOTES+22Linda+20Hayman+22+20+3CLHAYMAN+40skadden+2Ecom+3E+40ENRON@ENRON.com]

Sent: Tuesday, June 19, 2001 6:30 PM To: Taylor, Mark Subject: phone numbers

It would be only polite to send us your numbers - do you live on Rutland?

- Linda Hayman.vcf << File: Linda Hayman.vcf >>

Message 87 of 413

ISDA North American Energy and Developing Products Committee - Ju

Sender	scarey@isda.org
Recipients	['smarra@isda.org', 'rainslie@isda.org', 'ejelich@isda.org', 'e..haedicke@enron.com', 'elizabeth.sager@enron.c...]
File	taylor-m/isda/5.

Attached is a memorandum summarizing the July 27, 2001 meeting of ISDA's North American Energy and Developing Products Committee. ISDA's Energy and Developing Products Committee, Chaired by Mark Haedicke, General Counsel of Enron Capital and Trade Resources Corp., focuses on facilitating and addressing issues ranging from documentation to market practice related to the prudent development of the range of commodity derivatives transactions. For those of you who were unable to attend this meeting, the agenda and handouts are available on ISDA's web site under the Energy Committee section.

Also attached is a table outlining various documentation projects reflecting our July discussion. We would appreciate your reviewing the attached table and forwarding your suggestions and comments so that the Committee is able to plan the agenda moving forward. Thank you in advance for your thoughts and views.

Additionally, ISDA is in the process of updating the database for the Energy Committee. Our apologies if you have received this e-mail in error, received duplicate versions of this e-mail or if one of your colleagues had been inadvertently omitted. Please notify Scott Marra: smarra@isda.org regarding any modifications (additions or deletions) to this mailing list as soon as possible.

Many thanks.

<<NA Energy Committee Memo 8-10.doc>> <<Documentation Projects.doc>>

Stacy Carey Policy Director International Swaps and Derivatives Association 600 5th Avenue, 27th Floor Rockefeller Center New York, NY 10020 (212) 332-1202 ph (212) 332-1212 fax (917) 543-9622 cell scarey@isda.org

- NA Energy Committee Memo 8-10.doc - Documentation Projects.doc

Message 88 of 413

FW: Financial Transactions ENA & DEMLP

Sender	tanya.rohauer@enron.com
Recipients	['s..theriot@enron.com', 'legal <.taylor@enron.com>']
File	taylor-m/inbox/204.

Kim and Mark,

The attached is a list that Janna Blanter at Duke sent which details the transactions that they believe are between Duke Energy Marketing Limited Partnership and ENA which need to be moved to the ECC ISDA. From our records, I do not think this matches, but we need to reconcile. Kim, if you could try to match these up and pull the confirms to determine which legal entity we used. Anything that is ENA we will need to assign to ECC. Please advise.

Thanks, Tanya

-----Original Message-----

From: Bradford, William S. Sent: Saturday, October 27, 2001 10:21 PM To: Rohauer, Tanya Cc: McGinnis, Stephanie Subject: FW: Financial Transactions ENA & DEMLP

-----Original Message-----

From: "Janna Blanter" <jxblanter@duke-energy.com>@ENRON Sent: Friday, October 26, 2001 7:42 AM To: wbradfo@ect.enron.com Cc: Robin Masciangelo; Kevin Davis; Joseph Forbes Subject: Financial Transactions ENA &

DEMLP

This is a follow up to my conversation with Tanya in reference to transactions between DEM LP and Enron North America to be assigned to Enron Canada Corp. I failed to get Tanya's e-mail address (or correct spelling of her name so if it is misspelled please forgive me) and I ask you to forward this to her. Attached is the spreadsheet list of the transactions to be assigned. Furthermore, she asked for our legal counsel's name to discuss the collateral agreement issues and that would be Joe Forbes at (713) 627-6124. Your help is greatly appreciated.

Janna Blanter Director, Credit Operations Duke Energy 5400 Westheimer Court Houston, Texas 77056 (713) 627-6137 (713) 627-6187 fax

(See attached file: ENA & DEMLP.xls)

- ENA & DEMLP.xls

Message 89 of 413

Access to Clickpaper Staging environment

Sender	travis.mccullough@enron.com
Recipients	['Greg', 'Brandon Wax/HOU/ECT@ECT', 'mark.taylor@enron.com', 'Jeff Harbert/HOU/ECT@ECT']
File	taylor-m/all_documents/2443.

FYI -- if you want to look at this.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490 ----- Forwarded by Travis McCullough/HOU/ECT on 06/26/2000 08:32 PM -----

John Cummings 06/21/2000 06:17 PM

To: Travis McCullough/HOU/ECT@ECT, Harry M Collins/HOU/ECT@ECT cc: Subject: Access to Clickpaper Staging environment

----- Forwarded by John Cummings/HOU/ECT on 06/21/2000 06:15

PM ----- From: Keith Couch@ENRON on 06/20/2000 04:38 PM To: John Cummings/HOU/ECT@ECT cc: Jeff Harbert/HOU/ECT@ECT, Brandon Wax/HOU/ECT@ECT, Greg Piper/Corp/Enron@Enron, Bob Crane/HOU/ECT@ECT, Hal Elrod/Corp/Enron Subject: Access to Clickpaper Staging environment

John, as you requested, here is information on how to get in to the Clickpaper staging environment. Anytime you want to go in and check out the site content or try out the auction, please go ahead.

The version running out there is the version we are currently testing (in a different environment.) This version has known bugs that we are working to fix. If you come across anything that you think we should know about (like a bug, a usability problem, or something that needs improving), please email, call, or trip me when I walk by. I can quickly determine if we are already working on the problem or if it should be added to our list.

URL is <http://testpulpweb1.ecomtest.enron.com>

Available ID's: trader1 through trader20. You will want to use more than one id to simulate posting a sell or buy, and then responding to that posting. password for all id's is test.

Any questions, let me know.

KNC 713-853-4828

Message 90 of 413

RE: Question re Sithe swap document

Sender	mark.taylor@enron.com
Recipients	['lisa.mellencamp@enron.com']
File	taylor-m/sent_items/222.

(i) It constitutes an "eligible contract participant" as such term is defined in the Commodity Exchange Act, as amended 7 U.S.C. ?1a(12) and (ii) it constitutes an "eligible commercial entity" as such term is defined in the Commodity Exchange Act, as amended 7 U.S.C. ?1a(11).

-----Original Message-----

From: Mellencamp, Lisa Sent: Friday, June 15, 2001 9:11 AM To: Taylor, Mark Subject: FW: Question re Sithe swap document

can you send to me and i will forward?? -----Original Message----- From: "Lilyestrom, John R."

<JRLilyestrom@HHLAW.com>@ENRON [mailto:IMCEANOTES-+22Lilyestrom+2C+20John+20R+2E+22+20+3CJRLilyestrom+40HHLAW+2Ecom+3E+40ENRON@ENRON.com] Sent: Friday, June 15, 2001 8:14 AM To: Mellencamp, Lisa Subject: Question re Sithe swap document

Marty Rosenberg mentioned to me a comment you had regarding changing the representation about "eligible swap participant" status to "eligible contract participant" and he mentioned that there was a specific CFR cite for the term. Do you have that cite? Thanks.

John R. Lilyestrom Hogan & Hartson LLP 555 13th Street, N.W. Washington, DC 20004-1109 (202) 637-5633 (202) 637-5910 (fax) jrlilyestrom@hhlaw.com

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Message 91 of 413

RE: Plastics Invite to SPI Conference

Sender	legal <taylor@enron.com>
Recipients	['alan.aronowitz@enron.com', 'john.viverito@enron.com']
File	taylor-m/sent_items/3.

I marked my comments on the document and left it in your office.

-----Original Message-----

From: Viverito, John Sent: Tuesday, August 28, 2001 1:36 PM To: Taylor, Mark E (Legal) Cc: Aronowitz, Alan Subject: FW: Plastics Invite to SPI Conference

Mark-

Could you please take a look at the attachment below and inform me if you see any problems with utilizing it, from your perspective.

Thanks,

John

-----Original Message-----

From: Aronowitz, Alan Sent: Tuesday, August 28, 2001 11:36 AM To: Viverito, John Subject: RE: Plastics Invite to SPI Conference

John:

I recommend that you visit with Mark Taylor on this. I think it's ok as is, but he may recommend a disclaimer be added.

Alan

-----Original Message-----

From: Viverito, John Sent: Tuesday, August 28, 2001 11:15 AM To: Aronowitz, Alan Subject: FW: Plastics Invite to SPI Conference

Alan-

Please look at the attachment and inform me if you believe we may be perceived in an advisory style role.

Thanks,

John

-----Original Message-----

From: Salvagio, Juli Sent: Monday, August 27, 2001 6:01 PM To: Viverito, John Cc: Allen, Margaret Subject: Plastics Invite to SPI Conference

John-Please review asap. This is an invitation for a seminar we are co-hosting with SPI and Plastics USA. Unfortunately, we had to "marry" our brand identity with two other organizations. Please make sure content is "legal". Please call me if you have any questions. If there is any way we could make this a priority, I'd appreciate it as it was supposed to be mailed last week. Thanks,

Juli Salvagio Manager, Marketing Communications Enron Wholesale Services 1400 Smith Street, 3641 Houston, TX 77002 713-345-2908-Office 713-294-7907-Cell 713-646-5800-Fax juli.salvagio@enron.com

Message 92 of 413

FW: E-GRID2000 Ver 2.0 now available

Sender	trevor.woods@enron.com
Recipients	['e.taylor@enron.com']
File	taylor-m/inbox/trevor/20.

check it out.

-----Original Message-----

From: Schoen, Mary Sent: Tuesday, September 25, 2001 8:54 AM To: Woods, Trevor Subject: FW: E-GRID2000 Ver 2.0 now available

-----Original Message-----

From: Morgan.Rick@epamail.epa.gov@ENRON

[mailto:IMCEANOTES-Morgan+2ERick+40epamail+2Eepa+2Egov+40ENRON@ENRON.com] Sent: Monday, September 17, 2001 2:51 PM To: Morgan.Rick@epamail.epa.gov Subject: E-GRID2000 Ver 2.0 now available

Version 2.0 of E-GRID2000 is now complete and available by download from our website: www.epa.gov/airmarkets/egrid/
Version 2.0 of E-GRID2000 will also be available on a free CD-ROM. Existing orders for the CD-ROM will be filled beginning in early October. If you would like to place a new request for the CD-ROM, please send your mailing address to: comments.egrid@epa.gov

Version 2.0 of E-GRID2000 includes several new features, such as: * interchange data between grid regions for 1994 through 1998 * estimated imports/exports by state for 1994 through 1999 * total US imports/exports for 1994 through 1999 * improved Data Browser and Spreadsheets E-GRID2000 Version 2.0 includes 1998 data for emissions and resource mix, reflecting minor revisions from Version 1.0, released March 2001. For a more detailed description of E-GRID, see the following: www.epa.gov/airmarkets/egrid/factsheet.html

Forthcoming E-GRID2001, with 1999 data, should be completed by this winter.

Rick Morgan Senior Energy Analyst, Energy Supply & Industry Branch Climate Protection Partnerships Division (6202J)
EPA Office of Atmospheric Programs 1200 Pennsylvania Ave., NW [for US Mail only] Washington, DC 20460 501 Third St., NW, DC 20001 [for deliveries] phone: (202) 564-9143 fax: (202) 565-2156

Message 93 of 413

FW: IntercontinentalExchange

Sender legal <taylor@enron.com>

Recipients ['James Zang', 'mark.greenberg@enron.com']

File taylor-m/sent_items/476.

I think he's asking the wrong question. Can you help him out?

-----Original Message-----

From: Saxena, Rahul Sent: Wednesday, November 07, 2001 12:31 PM To: Taylor, Mark E (Legal) Subject: FW: IntercontinentalExchange

Mark, do you know if we are a member of this exchange (in Atlanta I think)? The UK gas guys have asked me to sign up to this. Thanks, Rahul +44 20 7783 5470

-----Original Message-----

From: Fairley, Andrew Sent: 07 November 2001 15:38 To: Saxena, Rahul Subject: FW: IntercontinentalExchange

THis is the agreement for ICE.

-----Original Message-----

From: NYADMIN [mailto:NYADMIN@intcx.com] Sent: 07 November 2001 14:29 To: Fairley, Andrew Cc: James Zang Subject: IntercontinentalExchange

Dear Andy,

Per James Zang of Intercontinental, attached are the standard contract documents necessary for becoming an ICE Participant.

First, is an electronically executed copy of our Participant Agreement signed by all customers. Referenced in this Agreement are the Service and Pricing Schedules (Annex A), which are also attached, and the Trading, Product, and User Help Guides. These Guides are posted on our website, www.intcx.com, and may be accessed and reviewed with the following credentials:

User ID = guest Password = viewnow

If you have any questions concerning these contract documents, please call James at [44] 207- 484-5232. Otherwise, please fax a copy of the signed Agreement prior to forwarding the originals to my attention at the address below.

Thank you for your interest and we look forward to serving you.

Regards,

Pete van Winkle IntercontinentalExchange 2100 RiverEdge Parkway, Suite 500 Atlanta, GA 30328 Phone: 1.770.738.2101 Fax: 1.770.951.5481

<<Participant Agreement - Dec 1 20011.doc>>

Message 94 of 413

ECOutlook initial technology and IP due diligence request

Sender	jcalkins@brobeck.com
Recipients	['mark.taylor@enron.com', 'tommy.j.yanowski@enron.com', 'jim.gearhart@enron.com']
File	taylor-m/notes_inbox/2675.

Dear Mark,

I'm an intellectual property attorney in Brobeck's Business and Technology group in Austin. As I think you're aware, Brobeck is providing legal representation to ECOOutlook in the deal currently being negotiated between Enron and ECOOutlook regarding ECOOutlook's potential purchase of a particular Enron technology application. You've been identified as Enron's inside counsel contact for this potential deal.

Attached please find ECOOutlook's initial technology and intellectual property due diligence request for the potential transaction. Based on the initial due diligence response we may have some corporate-related due diligence and some additional tech/IP due diligence requests.

Our understanding is that ECOOutlook and Enron have mutually set a goal of closing this transaction by January 31. In order to meet this deadline, we need to have substantially completed the due diligence review by the end of next week (i.e., Jan. 19), which means we need to receive your response to this request very soon.

I look forward to working with you as this deal progresses.

Best regards,

Jim Calkins Brobeck, Phleger & Harrison LLP 4801 Plaza on the Lake Austin, Texas 78746 512.330.4203 (direct)
512.330.4000 (main) 512.330.4001 (fax) jcalkins@brobeck.com

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To reply to our email administrator directly, send an email to postmaster@brobeck.com BROBECK PHLEGER & HARRISON LLP <http://www.brobeck.com>

- IP due diligence memo.doc

Message 95 of 413

RE: Next Steps

Sender	trevor.woods@enron.com
Recipients	['e.taylor@enron.com', 'john.massey@enron.com']
File	taylor-m/inbox/marketing/4.

sounds like a job for someone we know. got it jr?

-----Original Message-----

From: Massey II, John Sent: Tuesday, September 18, 2001 2:18 PM To: Woods, Trevor Subject: RE: Next Steps

I juts don't think it is the most prudent source of funds - lets do more research on advertisement mediums

-----Original Message-----

From: Woods, Trevor Sent: Tuesday, September 18, 2001 2:16 PM To: Massey II, John Subject: RE: Next Steps
kill it? do one for 5 g's? go by word of mouth. lemme know.

-----Original Message-----

From: Massey II, John Sent: Tuesday, September 18, 2001 2:09 PM To: Woods, Trevor Subject: RE: Next Steps
Not a chance -

-----Original Message-----

From: Woods, Trevor Sent: Tuesday, September 18, 2001 11:04 AM To: Massey II, John Subject: FW: Next Steps
what do you want to do on this?

-----Original Message-----

From: Salvagio, Juli Sent: Monday, September 10, 2001 4:54 PM To: Woods, Trevor Subject: RE: Next Steps
I'd like to hire a writer to interview you. I'd like to develop a small brochure, but need to have approval on budget. We're looking at approximately \$10,000-\$15,000 for a short brochure. The higher end brochures 12-16 pages run from \$20,000-\$35,000 depending how sophisticated the design and printing is. I'd also like to explore more opportunities for advertising. I spoke to the rep from Risk Magazine and she indicated that there was a huge show that would be the perfect venue to distribute the magazine or a supplement. She said Lisa Jacobson would know about this. Do you know her? Let's discuss. Please reply. I'd like to get started asap.

Juli Salvagio Manager, Marketing Communications Enron Wholesale Services 1400 Smith Street, 3641 Houston, TX 77002 713-345-2908-Office 713-294-7907-Cell 713-646-5800-Fax juli.salvagio@enron.com

-----Original Message-----

From: Woods, Trevor Sent: Monday, September 10, 2001 3:14 PM To: Salvagio, Juli Subject:
Julie, What are the next steps we need to take? Please let me know. Thanks, Trevor
<< File: Trevor Woods (Business Fax).vcf >>

Message 96 of 413

RE: Hey Greg

Sender	gbrown@gcd.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/archive/9_00/68.

Hey Mark, great to hear from you. I actually went to Argentina and Chile about 5 years ago for 2 weeks and had a blast. I'd love to go back for a longer period. I was recommending it to Linda for a new place to go.

It sounds like things are going well for you in Houston. I wish I knew you were down there. I was down for a weekend in July. My college roommate and his wife and their kids live there. He's a 6th? 7th? year in Skadden's Houston office. Charles Still. Ever work with him? I'll let you know when I'm back down there.

Have you been back to the Caribbean lately? I was back in April for a week in the BVI. I really missed the place. Do you ever get to Chicago? Let me know if you're going to be around. Take care.

Gregory L. Brown Gardner, Carton & Douglas 321 North Clark Street, Suite 3400 Chicago, Illinois 60610-4795 Direct dial: 312.245.8703 Facsimile: 312.644.3381 E-mail: gbrown@gcd.com

-----Original Message-----

From: Mark.Taylor@enron.com [mailto:Mark.Taylor@enron.com] Sent: Wednesday, September 13, 2000 8:20 PM To:
Brown, Greg - Health Atty Subject: Hey Greg

I've been to Argentina - what can I tell you about it? We need to get sailing soon! Ever get to Houston? I have a boat here but don't sail too much - just working too hard. Hope you're well!

09/14/00 22:10:57-----

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Message 97 of 413

Fwd: Enron Counter Party

Sender	jefflowney@aol.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/1551.

Content-Transfer-Encoding: 7bit Return-Path: <danryan@netwalk.com> Received: from rly-yd02.mx.aol.com (rly-yd02.mail.aol.com [172.18.150.2]) by air-yd01.mail.aol.com (v76_r1.8) with ESMTP; Mon, 09 Oct 2000 12:44:08 -0400 Received: from mail.siscom.net (mail.siscom.net [209.251.2.99]) by rly-yd02.mx.aol.com (v75_b3.9) with ESMTP; Mon, 09 Oct 2000 12:43:41 -0400 Received: (qmail 19298 invoked from network); 9 Oct 2000 16:43:37 -0000 Received: from ppp17.pm1.col-oh.siscom.net (HELO SALES1) (209.251.1.37) by mail.siscom.net with SMTP; 9 Oct 2000 16:43:37 -0000 Reply-To: <danryan@netwalk.com> From: "Dan Ryan" <danryan@netwalk.com> To: "Jeffery Lowney" <jefflowney@aol.com> Subject: Enron Counter Party Date: Mon, 9 Oct 2000 12:43:00 -0400 Message-ID: <MJELLCMBMCLEEJPCGMBGEHMCBAA.danryan@netwalk.com> MIME-Version: 1.0 Content-Type: text/plain; charset="iso-8859-1" X-Priority: 3 (Normal) X-MSMail-Priority: Normal X-Mailer: Microsoft Outlook IMO, Build 9.0.2416 (9.0.2910.0) X-Mimeole: Produced By Microsoft MimeOLE V5.00.2919.6700 Importance: Normal

Jeff: When Jason Peters and I concluded negotiations of the Enron Provider Agreement and the General Terms and Conditions (GTC), we had sent him the Release of the new "Counter Party Management" System we coded and went live on the site with to meet Enron's requirements. He took several days in having his people check it out operationally and he approved it. We were prepared with the following language to include at the end of Section 5 of the GTC but was not asked for it so he never saw it. You can use the following at the end of Section 5 if Enron wants, but the System is operational and in place as they requested.

"EnergyGateway will implement and maintain systems which allow User to determine whether other users of the System are approved counter parties for User to trade with. User may modify its list of approved counter parties at anytime".

Good luck in finalizing the GTC with Enron. Please call me if I can help in any way. Thanks, Dan...

Dan Ryan, President EnergyGateway.com 614-899-2900 x102 Office 614-899-2922 Fax 614-679-4402 Cell

Message 98 of 413

Re: Keswick

Sender	mark.taylor@enron.com
Recipients	['lhayman@skadden.com']
File	taylor-m/all_documents/8265.

The pro understands there are only three of us 'golfing.' Since we needed something for Fri. afternoon and you and Amanda seemed interested in the golf I went ahead and made the reservation that way.

The manicure was Amanda's idea. Never having had one, I just assumed they dried them for you. Would you rather have a facial? I didn't ask about the morning.

"Linda Hayman" <LHAYMAN@skadden.com> 04/30/2001 08:54 AM

To: <Mark.Taylor@enron.com> cc: Subject: Re: Keswick

Do you still want to do golf without Bill? I think I'd like to do it - the pro will probably be happy to lose a body.

I think I will call and cancel the manicure/pedicure. I think it is too tight for me to hurry back to get ready with wet nalis. You don't happen to remember if they had any morning appointments? I'll call.

Linda Hayman Skadden, Arps, Slate, Meagher & Flom, LLP 4 Times Square, 42nd Floor New York, NY 10036 T: 212-735-2637 F: 917-777-2637

<Mark.Taylor@enron.com> 04/27/01 06:12PM >>>

Bill doesn't get there until Friday eve. so no golf and I had assumed he would be with Amanda on Saturday.

We may miss out on tea. Any idea what the hours are? We won't be done with golf on Friday until 4:30 or 5:00. You won't be finished with your nails until 4:00 or 4:30 on Saturday (and then there's the law school bbq and Amanda's do). I don't know the agenda for Sunday's afternoon.

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Further information about the firm, a list of the Partners and their professional qualifications will be provided upon request.
- Linda Hayman.vcf

Message 99 of 413

Re: Keswick

Sender	amh5h@cms.mail.virginia.edu
Recipients	['mark.taylor@enron.com', 'lhayman@skadden.com', 'amh5h@server2.mail.virginia.edu']
File	taylor-m/all_documents/8262.

Schedule Recap:

THURS.: sleep in DC - MOM to get reservations!!!

FRIDAY:

early start from DC to Four and Twenty Blackbirds. <http://www.washingtonian.com/dining/Profiles/FourTwe.html>

Golf at 3pm <http://www.golflink.com/columns/alannichols/keswickhall.shtml>

Dinner 8pm at Oxo http://food4.epicurious.com/HyperNews/get/archive_foodie1401-1500/1478.html
<http://www.cavalierdaily.com/.Archives/1999/April/30/lfreview.asp>

SATURDAY:

11:45 Lunch Boar's Head <http://www.boarsheadinn.com/>

2:00 massages

3:00 manicure/pedicure - mom

4-6pm tacky law school buffet catered by Big Jim's

5-7 completely elegant cocktail party with original first year section and all known professors at Ing and Amanda's house.

8pm dinner reservations at Keswick Hall <http://www.keswick.com/>

SUNDAY:

9:30 whole school lawn graduation ceremony 1:30 Law school graduation ceremony 6:00 LLM cocktail party at Farmington country club (if we want to go) 6:30 dinner reservations at Keswick Hall <http://www.keswick.com/>

MONDAY: Drive back to DC with Bill in the am.

On Fri, 27 Apr 2001 17:34:49 -0400 Linda Hayman <LHAYMAN@skadden.com> wrote:

does not include breakfast, but it does include afternoon tea. Dont forget Bill with all of these appointments. Also, lets do something

cool Friday after dinner.

Linda Hayman Skadden, Arps, Slate, Meagher & Flom, LLP 4 Times Square, 42nd Floor New York, NY 10036 T: 212-735-2637 F: 917-777-2637 ----- This e-mail, and any attachments thereto, is intended only for use by the

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Further information about the firm, a list of the Partners and their professional qualifications will be provided upon request.

Message 100 of 413

RE: Williams New Comments-EOL Amendment

Sender	mark.greenberg@enron.com
Recipients	['legal <.taylor@enron.com>', 'brent.hendry@enron.com']
File	taylor-m/inbox/178.

Brent -

My inclination is to not stray from the ETA language and warranties. If there are technical problems, we should probably investigate this with the EOL team and determine why the integrity of the data is suspect. I would think this problem is not isolated to Williams.

I'll talk to Mark.

Mark

-----Original Message-----

From: Hendry, Brent Sent: Monday, October 22, 2001 11:30 AM To: Taylor, Mark E (Legal); Greenberg, Mark Subject: FW: Williams New Comments-EOL Amendment Importance: High

Mark and Mark, I sent out a blacklined document with the additional changes on Friday and we received this today. Kim is following up to find out what they mean by significant problems with the integrity of the data. How do we respond to the warranty issues they raise? Brent -----Original Message----- From: Theriot, Kim S. Sent: Monday, October 22, 2001 9:15 AM To: Hendry, Brent; Moore, Janet H. Subject: Williams New Comments-EOL Amendment Importance: High

Well....we thought we were close but look at Williams latest comments....How do we proceed from here??

Kim

-----Original Message-----

From: "Jones, Gayla" <Gayla.Jones@Williams.com>@ENRON Sent: Monday, October 22, 2001 8:28 AM To: Theriot, Kim S. Cc: Poole, Tracy; Crew, Jerry Subject: Problem

We just thought we were going to get this signed. The Confirmations supervisor has some problems as outlined below. Can we fix this in the amendment? Do you want us to send language? I would like to hold off executing this amendment until we can include a warranty provision (including remedies) regarding the accuracy of the "electronic records of the EOL transactions". This is a result of: ? the current EOL service agreement disclaims all warranties as to the accuracy of the website information (Sec 4.b of the service agreement)

? the amendment in its current form does not warrant the accuracy of the electronic information, yet it will replace the confirmation, and

? we are currently experiencing significant problems with the integrity of the data obtained from the website, which I would have to assume would be the same data that would replace the confirmations.

Gayla Jones (Gayla.Jones@Williams.com) Contract Administrator Williams Energy Marketing & Trading Company One Williams Center MD18-5 Tulsa OK 74172 918-573-5716 918-573-1935 (fax) 918-632-4923 (pager)

Message 101 of 413

Customer Lists	
Sender	bob.shults@enron.com
Recipients	['n..gray@enron.com', 'david.forster@enron.com', 'jay.webb@enron.com', 'brad.richter@enron.com', 'legal <.tayl...
File	taylor-m/archive/2001_08/14.

Brad/Jay,

Based upon discussions with legal, operations and IT we have come up with a recommended solution for the customer list issue. Below is an outline of our recommended procedure for dealing with price hosting arrangements on EnronOnline. We will continue to hammer down the details but wanted your approval prior to implementing this process. We would like to implement immediately after finalizing details.

1. Mark Taylor and Barbra Gray will draft a new Password Application which acknowledges third party price postings on EnronOnline. Beginning immediately new customers will receive the amended Password Application.
2. Mark Taylor and Barbra Gray will draft language for a customer pop up box which does the following: (1) Acknowledges the addition of third party price postings (2) requests permission to supply third party price posters with their company name (3) warrants that the acknowledging party has the authority to accept the new terms.
3. Mark Taylor and Barbra Gray will draft language for the third party GTC that amends the Password Application and ETA to cover the company who is posting that product type on EnronOnline. Before a company is able to transact on the third party product type, they will need to read and sign the GTC with third party language. If the third party has already signed an GTC type agreement with the third party price poster, they will still see an amendment to the signed agreement which amends their Password Application and ETA to include the third party when they first try to transact. Before the customer is able to transact they will need to read and sign the GTC amendment.
3. Jay will put language from 2 above in a pop up window that only goes to Master Users.
4. We will put the pop up on for at least one day and then gauge the number of response to determine how long to show pop up. Marketing will contact as many master users as possible prior to pop up display.
5. We will distribute company names to third party price posters for profiling.

6. When third party postings go live we will contact Master Users to inform them that they need to approve transaction status for third party product types (normal process for new product type launches).

Please let me know if this is ok.

Bob Shults EnronOnline LLC Houston, Texas 77002-7361 713 853-0397 713 825-6372 cell 713 646-2126
bob.shults@enron.com

Message 102 of 413

FW: ISDA TDCC/Enron

Sender	douglas.friedman@enron.com
Recipients	['adam.gross@enron.com', 'mark.taylor@enron.com', 'alan.engberg@enron.com', 'john.viverito@enron.com']
File	taylor-m/notes_inbox/2463.

Mark:

Please review the attached Credit Schedule from Dow. Given that our trade flow with them has increased to date and is expected to further accelerate, I agree with you totally that we need to finalise the ISDA.

Doug ----- Forwarded by Douglas S Friedman/HOU/ECT on 02/23/2001 04:14 AM -----

"Corbett, Cheryl (CE)" <CECORBETT@dow.com> on 02/22/2001 07:11:13 AM To: "Douglas.S.Friedman@enron.com" <Douglas.S.Friedman@enron.com> cc: "Antuna, Luis (L)" <LAntuna@dow.com> Subject: FW: ISDA TDCC/Enron

Doug, attached for your review and comment is the draft ISDA Schedule we recently forwarded to Adam Gross. Please forward any comments directly to Luis Antuna at lantuna@dow.com or by telephone at 517-638-6789.

Regards,

Cheryl Corbett

-----Original Message----- From: Antuna, Luis (L) Sent: Friday, February 09, 2001 11:59 AM To: 'agross@enron.com' Cc: Billings, Mike (ME); Corbett, Cheryl (CE) Subject: ISDA TDCC/Enron Mike Billings has given us your name as the first contact person in Enron to negotiate an ISDA agreement with The Dow Chemical Company (TDCC). Our files show an ISDA between Enron Capital & Trade Resources and two Dow entities (Dow Hydrocarbons & Resources, and Dow Chemical Canada). In addition to this, my understanding is that TDCC (my predecessor in this position) and Enron (presumably a lawyer) had some discussions about an ISDA, but for some reason they were not successful. Despite this, the level of trading between the two companies have increased and TDCC has never accepted and cannot accept the Terms and Conditions included in the confirmations sent by Enron. For these reasons, we think we should agree on an ISDA where conditions acceptable to both parties can apply to the intense trading between the two companies. In order to speed up the process, I have enclosed to this message Dow's template for the ISDA Schedule. We would appreciate if Enron could review the attached draft and come back with any comments or issues for discussion. Please forward this message to the responsible person asking him to contact me for any discussion. Thanks. Regards <<Enron North America Corp.(draft) 2-9-01.doc>> Luis Antuna Attorney - Financial Law The Dow Chemical Company 2030 Dow Center Midland, MI 48674 Tel: (517) 638-6789 Fax: (517) 636-0861 lantuna@dow.com

- Enron North America Corp.(draft) 2-9-01.doc

Message 103 of 413

Proposed Meeting on 14 May

Sender	david.yeres@cliffordchance.com
Recipients	['mark.taylor@enron.com', 'mark.e.haedicke@enron.com']
File	taylor-m/notes_inbox/2194.

Mark,

Mark Taylor and I have discussed the proposed talk and I am hoping to come by on Monday, 14 May after your staff meeting, perhaps 10:30 am. I hope to speak further with Mark Taylor in the next week.

David Yeres

-----Original Message-----

From: Mark.E.Haedicke@enron.com [mailto:Mark.E.Haedicke@enron.com] Sent: Thursday, April 12, 2001 2:43 PM To: David.Yeres@CliffordChance.com Subject: Re:

David:

It was good to see you also. I am only available on the 14th. I would like you to come to Enron and talk about the audit and certain key provisions in the trading agreements with the top trading lawyers. Give Mark Taylor a call at 713-853-7459; he is GC of the financial trading.

Regards,

Mark

David.Yeres@Clifford

Chance.com To: mark.e.haedicke@enron.com cc: Mark.Harding@CliffordChance.com, Claude.Brown@CliffordChance.com, 04/09/2001 04:40 PM Kersten.Schenck@CliffordChance.com Subject:

Mark, it was good to see you Thursday. My next visit to Houston is scheduled for May 14 and 15. I will be making a presentation concerning the legal consequences of market abuse in electricity trading to a Risk Magazine Conference on the 14th. As we discussed last week, I would, if you wish, be pleased to speak to your colleagues on the same subject during my visit. I would also be pleased to discuss the contract audit issues, focusing on the key provisions that have been, or we expect to be, critical from a financial or reputational perspective. In that regard, it would be helpful to discuss Enron's experience with agreements/provisions before finalizing my remarks. Perhaps you could identify someone on your staff with whom I may speak.

Best regards.

David Yeres Clifford Chance Rogers & Wells LLP 200 Park Avenue New York, NY 10166 Tel: (212) 878-8075 Fax: (212) 878-8027 Email: david.yeres@cliffordchance.com

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Message 104 of 413

Re: New Enrononline Counterparties: Servicios Industriales

Sender	brent.hendry@enron.com
Recipients	['mark.taylor@enron.com', 'phillippa.daniel@enron.com', 'justin.boyd@enron.com', 'enron.group@enron.com']
File	taylor-m/notes_inbox/1680.

A legal memorandum on Internet commodities trading was prepared by outside counsel on November 8, 1999. Metals trading was not specifically covered in the questionnaire we sent. I am attaching a copy of the memo. If you want, I will be glad to contact local counsel with follow up questions relating to metals. Please let me know what the relevant circumstances are for Mexico so I can ask the appropriate questions. Justin, would you like to be involved in any conference calls we set up? Regards, Brent

- 67!01!1.DOC

Phillippa Daniel 10/31/2000 10:32 AM

To: Mark Taylor/HOU/ECT@ECT, Brent Hendry/NA/Enron@Enron cc: Justin Boyd/LON/ECT@ECT, Enron London - EOL Product Control Group/LON/ECT@ECT Subject: New Enrononline Counterparties: Servicios Industriales Penoles/Terrapin Recycling LLC

Justin has never dealt with a Mexican company for Enrononline therefore could you please give us some advice on due diligence done in Mexico. Justin needs to review this client for metals. Thank you.

Regards

Philippa Daniel

----- Forwarded by Philippa Daniel/EU/Enron on 31/10/2000

16:23 -----

Phillippa Daniel 30/10/2000 18:46 To: Justin Boyd/LON/ECT@ECT, Paul Maley/LON/ECT@ECT, ECT London Credit cc: Enron London - EOL Product Control Group/LON/ECT@ECT, Hamish M Scutt/EU/Enron@Enron, Alan Jamieson/EU/Enron@Enron, Diana Higgins/LON/ECT@ECT, Lindsay F Edmonds/EU/Enron@Enron, Enron Europe Global CounterParty, Enron Europe Global Contracts and Facilities

Subject: New Enrononline Counterparties: Servicios Industriales Penoles/Terrapin Recycling LLC

Please can you review SERVICIOS INDUSTRIALES PENOLES/TERRAPIN RECYCLING LLC Enrononline in the S.drive access data base. Please let me know by returning me an E-mail once this has been done.

Please note that the address in Global Counterparty for Servicios Industriales Penoles is incorrect CP ID 85744. The address should read as follows:

Servicios Industriales Penoles, S.A. De C.V Moliere No. 222, 2nd Piso Col. Polanco Deleg Miguel Hidalgo 11540 Mexico DF Mexico

Please note that the company name needs to be changed from Industriales to Industriales.

Regards

Philippa

----- Forwarded by Philippa Daniel/EU/Enron on 30/10/2000

18:33 -----

London Fax System 30/10/2000 16:57 To: Enron London - EOL Product Control Group/LON/ECT@ECT cc:

Subject: New fax received (Likely sender: 212 715 2360).

You have received a new fax from 212 715 2360

The image contains 5 page(s).

Message 105 of 413

FW: Retail Swaps Invitation Letter and Questions

Sender	legal <taylor@enron.com>
Recipients	[raislerk@sullcrom.com]
File	taylor-m/sent_items/284.

FYI -----Original Message----- From: "Diane M. Genova" <genova_diane@jpmorgan.com>@ENRON [mailto:IMCEANOTE S-+22Diane+20M+2E+20Genova+22+20+3Cgenova+5Fdiane+40jpmorgan+2Ecom+3E+40ENRON@ENRON.com] Sent: Sunday, July 22, 2001 5:08 PM To: Ernest.Patrikis@aig.com Cc: SCAREY@isda.org; USREGCOMM@isda.org Subject: RE: Retail Swaps Invitation Letter and Questions

I think your response is exactly right. JPMorgan is in complete agreement with this view and will communicate that to the Fed which has also requested a meeting with us. Since our request for a meeting comes from our examiners (and in view of the past views expressed by some former members of our firm) we will actually have a meeting--but our message will be the same as yours.

Ernest.Patrikis@aig.com on 07/18/2001 10:36:29 PM

To: SCAREY@isda.org, USREGCOMM@isda.org

cc: (bcc: Diane M. Genova)

Subject: RE: Retail Swaps Invitation Letter and Questions

Two weeks ago, a member of the FRBNY legal staff asked to meet with AIG staff to discuss AIG's present and proposed retail swap activities. I responded that AIG does not now and has no plans to engage in that activity. For that reason, I stated that it was premature to consider the need to regulate an activity that does not now exist and that ought to be the agencies response to Congress.

-----Original Message-----

From: Stacy Carey [SMTP:SCAREY@ISDA.ORG] Sent: Wednesday, July 18, 2001 4:46 PM To: US REGULATORY COMMITTEE Subject: Retail Swaps Invitation Letter and Questions

For your information, I have attached correspondence from the Federal Reserve requesting ISDA's participation in the Commodity Futures Modernization Act retail swaps study. The correspondence also lists interview topics/questions. Please do not hesitate to call if you have any questions. Many thanks! -- Stacy

Stacy Carey Policy Director International Swaps and Derivatives Association 600 5th Avenue, 27th Floor Rockefeller Center New York, NY 10020 (212) 332-1202 ph (212) 332-1212 fax (917) 543-9622 cell scarey@isda.org

<<FRBNYLtr.pdf>> << File: FRBNYLtr.pdf >>

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Message 106 of 413

spoiled? did I say spoiled?**Sender** mark.taylor@enron.com**Recipients** ['Linda Hayman' <LHAYMAN@skadden.com>, 'lhayman@skadden.com']**File** taylor-m/sent/3363.

You always make me laugh.

Why don't you just pay for you. You've been footing the bill for Amanda & her friends all these years; it's your turn to take a break!

By the way, I don't remember pointing out that she is spoiled - thinking it often enough, but not pointing it out. Of course we both know how my tongue loosens and my memory locks up in direct proportion to the volume of alcohol consumed.....

"Linda Hayman" <LHAYMAN@skadden.com> 05/03/2001 05:51 PM

To: <Mark.Taylor@enron.com> cc: Subject: Re: Fwd: St. Regis cost

speaking of this bucket. I think it is lovely that you are giving Amanda a graduation gift but - trust me - should would rather have another pair of earrings than have a free seat for me on the boat. I didn't even know you when I graduated so it is much too late to give me a graduation present. Won't you let me pay half (the half of the boat that Bill and I are occupying)? As you have pointed out amanda is too too spoiled.

Did anyone get you a yacht when you graduated?

Linda Hayman Skadden, Arps,Slate, Meagher & Flom, LLP 4 Times Square, 42nd Floor New York, NY 10036 T: 212-735-2637 F: 917-777-2637

<Mark.Taylor@enron.com> 05/03/01 06:45PM >>>

An extra \$200 is just a drop in this bucket. St. Regis sounds good to me.

"Linda Hayman" To: <mark.taylor@enron.com> <LHAYMAN@skad cc: den.com> Subject: Fwd: St. Regis cost

05/02/2001 03:04 PM

I am happy to stay at the St Regis at this price but I am also happy to get a cheap room near the airport. The price has gone up quite a bit since the last time I stayed there.

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Further information about the firm, a list of the Partners and their professional qualifications will be provided upon request. Content-Transfer-Encoding: quoted-printable Date: Wed, 02 May 2001 12:31:13 -0400 From: "Andrea Williams" <AWILLIAM@skadden.com> To: <mark.taylor@enron.com> Cc: "Linda Hayman" <LHAYMAN@skadden.com> Subject: St. Regis cost Mime-Version: 1.0 Content-Type: text/plain; charset=ISO-8859-7 Content-Disposition: inline

Mark the cost of the room at St. Regis (Thursday, 5/17/01) for one night is \$286.14 (14.5% tax). I have booked two separate rooms under Linda's name. Let me know if there is anything else I can do.

--Andrea

- Linda Hayman.vcf

Message 107 of 413

Re: Houston Visit

Sender	mark.taylor@enron.com
Recipients	[craig.young@enron.com]
File	taylor-m/all_documents/3196.

We can use my office if you like - EB3889.

Craig Young 09/08/2000 02:43 PM

To: Mark Taylor/HOU/ECT@ECT cc: John Penn/LON/ECT@ECT, Craig Young/LON/ECT@ECT Subject: Re: Houston Visit

Great 3:00pm Wed

Craig

From: Mark Taylor on 09/08/2000 01:55 PM CDT To: Craig Young/LON/ECT@ECT cc:

Subject: Re: Houston Visit

How about 3:00 Wednesday?

Craig Young 09/08/2000 01:53 PM

To: Mark Taylor/HOU/ECT@ECT cc: Craig Young/LON/ECT@ECT Subject: Re: Houston Visit

We arrive late just before lunch on Wed and my only firm response is Louise Kitchen at 2:30 Thur 9/14

Craig

From: Mark Taylor on 09/08/2000 01:33 PM CDT To: Craig Young/LON/ECT@ECT cc: Taffy Milligan/HOU/ECT@ECT

Subject: Re: Houston Visit

Thursday and Friday are filling up fast for me but the early part of the week looks pretty good. Let me know what works for your schedule.

Craig Young 09/08/2000 01:06 PM

To: Jeffrey McMahon/HOU/ECT@ECT, Louise Kitchen/HOU/ECT@ECT, Jefferson D Sorenson/HOU/ECT@ECT, Mike McConnell/HOU/ECT@ECT, Jeffrey A Shankman/HOU/ECT@ECT, Gary Hickerson/HOU/ECT@ECT, Brent A Price/HOU/ECT@ECT, Alan Aronowitz/HOU/ECT@ECT, Marco Provenzano/Chemetall S.p.A./Chemetall@CHEMETALL, Sally Beck/HOU/ECT@ECT, Mary Perkins/HOU/ECT@ECT, Ben F Glisan/HOU/ECT@ECT, Fred Lagrasta/HOU/ECT@ECT, David P Dupre/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Jeffrey T Hodge/HOU/ECT@ECT, Stephen H Douglas/HOU/ECT@ECT, Sue Kelly/LON/ECT@ECT, Lara Fields/LON/ECT@ECT, Lorna Jones/LON/ECT@ECT, Marcus Pullicino/HOU/ECT@ECT, Paul Garcia/HOU/ECT@ECT, Sheila Glover/HOU/ECT@ECT, Leslie Speck/EPSC/HOU/ECT@ECT, John Sherriff/LON/ECT@ECT, Paul Chivers/LON/ECT@ECT, Michael Kopper/HOU/ECT@ECT, Anne Edgley/LON/ECT@ECT, Jay Fitzgerald/NY/ECT@ECT, Michael R Brown/LON/ECT@ECT, Eric Gadd/LON/ECT@ECT, Richard Lewis/LON/ECT@ECT, Stuart Staley/LON/ECT@ECT, Joe Gold/LON/ECT@ECT, Alfred Pennisi/NYC/MGUSA@MGUSA, TJ Pimpinelli/NYC/MGUSA@MGUSA cc: Craig Young/LON/ECT@ECT Subject: Houston Visit

Alfred Pennisi and myself will arrive Houston Wed 9/13 and leave Friday. Al Pennisi is in charge of operations for NY futures/swaps and I head up the group. Our objective is to meet with each of you or anyone else that can help us provide/expand internal and external client services for regulated and nonregulated futures and forwards. We are a U.S. regulated commission house purchased by Enron Europe through MG London/Enron Trading Services Inc.

Clearing futures exchanges Combined margin and cash management efficiencies Broker service across all commodities/financial Our current client base--- commercial and funds Meeting desk heads who trade futures Integrating Enron Net Works/Enron On Line into services and clients Enron documentation/access for web based non metal Enron documentation for swaps/OTC non metal Credit issues --- outside of Metals Regulation and Govt relations Fund or Alternative Investment opportunities --- CTA/CPO Cross origination opportunities with our clients

Regards Craig Young 800-932-2343 212-715-2342 917-860-1786 520 Madison Ave 28th Floor New York, NY 10022

Message 108 of 413

RE: Trade Sactions

Sender	limor.nissan@enron.com
Recipients	['john.champion@enron.com', 'legal <.taylor@enron.com', 'paul.simons@enron.com', 'alan.aronowitz@enron.com', '...]
File	taylor-m/deleted_items/127.

Paul,

Attached is a link to the OFAC website, which indicates that Serbia and Montenegro are still sanctioned.

<<http://ofacompliance.com/BlockedCountries.htm>>

Relatedly, if you are specific about the list of countries in your GTCs, you may want to consider being less specific, as you correctly point out that the list will change from time to time.

When I last spoke with our external counsel on this matter, she advised me that in large part it is the knowing act of dealing with product destined to or originating from sanctioned countries. We talked about a soft-peddled rep that does not specifically mention trade sanctions or the countries, but does rep generally about non-violation of US law. This is the direction in which I have gone. Of course, the traders are aware of the list of sanctioned countries, and will be updated from time to time.

Limor

Enron Global Markets 520 Madison Avenue New York, NY 10022 Tel: 212.715.5283 Fax: 212.715.5608 E-Mail:

Limor.Nissan@Enron.com

-----Original Message-----

From: T Paul Johnson (Legal) Sent: Thursday, September 06, 2001 12:37 PM To: Nissan, Limor; Aronowitz, Alan; Taylor, Mark E (Legal) Cc: Simons, Paul; Champion, John Subject: FW: Trade Sactions

Guys - do you know/has there been any internal briefing in Houston on whether these sanctions are or are about to be lifted? This effects the "compliance with US laws" clause in the physical metals GTCs.

Another related question from the same trader concerns Canadian origin Nickel, but known to be made from Cuban material. I set this out below, and would be grateful fr your views.

Many thanks

Paul J.

QUOTE Paul,

Thanks for your quick response, and I am awaiting your final evaluation of the Canadian production.

Obviously I have no interest to enter into any talks with the supplier without a clear go ahead from your end - I have been made aware of the company policy towards 'grey areas' already.

Another issue I noticed is that the Federal Republic of Yugoslavia and the Republic of Serbia are still on the list of prohibited countries - are we sure this is the latest, as most international sanctions against those two countries have been

lifted over the past 12 months.

Rgds Ruediger

-----Original Message-----

From: T Paul Johnson (Legal) Sent: Wednesday, September 05, 2001 4:28 PM To: Mueller, Ruediger Cc: Simons, Paul
Subject: Compliance with US laws - cl. 16 of the GTC. Cuba origin nickel

Ruediger

Herewith cl 16 from the metals GTCs. Will speak internally re Enron policy on Canadian produced (and certified origin) nickel, known to be made from Cuban raw material. In the meantime assume NO.

Paul J.

<< File: 10831-Final Version-SaleandPurchase Physical Non-Ferrous Metals.doc >> UNQUOTE

-----Original Message-----

From: Mueller, Ruediger Sent: 06 September 2001 16:42 To: T Paul Johnson (Legal) Cc: Simons, Paul Subject: Trade
Sactions

Paul,

Further my query re the situation on Yugoslavia/Serbia, below message seems to indicate that international sanctions against the both countries have been lifted or are about to be lifted, and that the lifting of Un sanctions is being supported by the US government.

Please revert with your clarification.

Thanks Ruediger

<< OLE Object: Picture (Device Independent Bitmap) >>

Message 109 of 413

John Cornyn Respect for Law Day.doc

Sender	jeff@thcpa.org
Recipients	
File	taylor-m/all_documents/1821.

John Cornyn Respect for Law Day DOWNTOWN OPTIMIST CLUB OF HOUSTON Charitable Foundation Dear Friend of Youth: Find out what Texas Attorney General John Cornyn is thinking about "Texas Exile" and other issues important to you along with other successful Texans such as yourself at the Downtown Optimist Club of Houston's 30th annual "Respect for Law Day" luncheon Thursday, May 4, 2000 at the Sheraton Brookhollow Hotel, 3000 North Loop West @ Hwy 290. The luncheon will be held from 11:30 AM to 1:15 PM. Show the General you support law enforcement officers from city, county, state and federal agencies by your attendance. Honorees will be recognized for outstanding law enforcement service to our community. Our keynote speaker will be Texas Attorney General John Cornyn. The Master of Ceremonies will be Dan Patrick with KPRC-950 radio Please join us in making this year's "Respect for Law Day" a huge success. Support these outstanding officers by sponsoring a table of eight (8) for a tax-deductible contribution of \$250.00. Individual seats are available for a tax-deductible contribution of \$ 35.00. Attached is a reservation form for your table sponsorship or individual seat. Please indicate the number of tables you would like to sponsor and return the form along with your check. Thank you for your continued support in helping us to honor our law enforcement officers. Sincerely, Detective Ron Horowitz - Houston Police Department Respect for Law Day Chairman 1 The Downtown Optimists Club was founded in 1924 by a number of prominent Houstonians such as Emanuel Olshan of Olshan Lumber Company, Judge Roy Hofheinz, humorist Morris Frank whom the Morris Frank Library is named after and Phil Rich of the Phil Rich Fan Company whose Windmaker Fans cooled Houston Public School students until the introduction of air conditioning. This

makes the Downtown Optimist Club of Houston the oldest Optimist Club in Texas. In 1947 the Downtown Optimists founded the Boy's and Girl's Harbor in LaPorte, Texas at the old Ross Sterling Mansion. The Harbor currently houses over 65 children without any government funding..

DOWNTOWN OPTIMIST CLUB OF HOUSTON Charitable Foundation 550 Westcott, Suite 440 Houston, Texas 77007 (713) 880-1292 30th Annual RESPECT FOR LAW DAY LUNCHEON May 4, 2000 ____ Yes, I would like to purchase ____ tables for this year's luncheon. ____ Yes, I would like to purchase ____ ticket(s) for this year's luncheon. ____ I am not able to attend. Please accept my donation of \$ _____. Please reserve my table in the name of _____. Company Name Please list the names of those guests attending:

_____. Table of eight (8) cost - \$ 250.00 Individual ticket cost - \$ 35.00 Please make your check payable to: Downtown Optimist Club-Charitable Foundation Please call Robert Desmond at (713) 880-1292 or fax to (713) 880-2370 with the names of those people attending with you at your reserved full or partial table. This is necessary also for those individuals purchasing single tickets. The Downtown Optimist Club of Houston Charitable Foundation is a 501-(c) (3) non-profit organization dedicated to the children of this area. Your support will continue the long-term tradition of this club on helping today's youth. Please RSVP by April 25, 2000. Thank you.

- att1.htm - image001.png - image002.jpg - image003.jpg

Message 110 of 413

Glowing Report on iVita on AMR Research's Homepage

Sender	ted.bockius@ivita.com
Recipients	['Kathryn McCarthy', 'mark.taylor@enron.com']
File	taylor-m/notes_inbox/1843.

Here is another one.

<http://www.amrresearch.com/BreakingNews/default.asp?i=689>

Do You Know Where Your Assets Are? iVita Does Thursday, November 30, 2000

iVita arrives on the e-business scene with a unique value proposition. It provides enterprises with a mechanism to track, value, and allocate assets with the goal of optimizing asset utilization, increasing cash flow, and improving financial controls. The iVita Web-hosted system provides a repository for information on the status of physical assets, the market value of the assets, and the financial implications, including tax treatment, of the different uses of the assets. In essence, it provides business intelligence for asset management. iVita is currently working with several enterprise customers as well as the Pantellos and NetworkOil exchanges, but it will be sometime next year before we see the results of the first pilots.

The iVita approach to asset management is different from the typical Enterprise Asset Management (EAM) approach. Most EAM implementations deal with the procurement and maintenance of plant assets. As long as the asset is performing the task it was procured for, the EAM application will track it and manage its maintenance. However, if the asset becomes idle, it quickly disappears off the EAM screen. Yet, from a financial perspective the asset is still on the books. Maybe it can be deployed in another plant or facility. Maybe it can be sold as surplus through an online exchange. Maybe it should be scrapped for tax purposes. In most organizations, these questions go unanswered for long periods of time because the asset is no longer visible. iVita provides that visibility over the Internet so that financial departments can make timely decisions for asset deployment or disposal.

Some, if not all, of the functionality iVita provides can be created as part of an EAM implementation using applications from vendors such as Indus International and Mincom. However, a complete EAM implementation, with financial integration, will consume considerable time and company resources. It may also take years to implement. And at the end of the project enterprise-wide asset visibility may not be available because the data is locked up in plant-specific implementations. By focusing on a specific problem--asset visibility from a financial perspective--and providing the visibility

as a Web-hosted service, iVita has reduced implementation time to weeks and reduced the time it takes to get a Return on Investment (ROI). The approach will appeal to users tired of long implementation cycles with difficult-to-measure ROIs.--Leif Eriksen

-----Original Message-----

From: Ted Bockius Sent: Thursday, November 30, 2000 5:08 PM To: 'teresat@mwa-sf.com'; shallahanglen@mwa-sf.com; dsherk@mwa-sf.com; ckatis@mwa-sf.com; anoe@mwa-sf.com; adyer@mwa-sf.com; hsteele@mwa-sf.com Subject: FW: Forrester Research's "iVita Adds Traction To Pantellos" brief

This is an absolutely glowing analyst report. I'm going to arrange to have it put on our Web site and to have hard copies made. Like financial analyst research, we're not supposed to distribute this. Please call me if there is someone you would like to send this to.

Ted Bockius Manager of External Relations iVita Corporation ted.bockius@ivita.com <mailto:ted.bockius@ivita.com> (832) 590-7421 phone (832) 746-4561 cell

-----Original Message-----

From: David Kobierowski [mailto:dkobierowski@forrester.com] Sent: Thursday, November 30, 2000 4:49 PM To: ted.bockius@ivita.com Cc: Kathryn McCarthy Subject: Forrester Research's "iVita Adds Traction To Pantellos" brief

Ted,

Here is Forrester Research's "iVita Adds Traction To Pantellos" brief, in pdf.

(See attached file: iVita Adds Traction To Pantellos-nov.pdf)

David Kobierowski Sr. Account Manager Forrester Research, Inc. 100 Congress Ave., Suite 2100 Austin, TX 78701 DKobierowski@Forrester.com Phone: 877-574-2822 Fax: 617/613-5200

Message 111 of 413

Amicus Brief -- Commodity Futures Modernization Act 2000

Sender	scarey@isda.org
Recipients	['usregcomm@isda.org']
File	taylor-m/archive/5.

Hello All -- I intended to mention this issue on this morning's regulatory call.

The following is background information on the Cary Oil Co., Inc. v. MG Refining and Marketing case which has called into question the retroactivity of the CFMA's non -repudiation provisions (Section 25(a)(4)). The brief must be filed by February 8, 2002 and is currently being prepared by Dan Cunningham at Allen and Overy.

Request: ISDA has asked the following organizations to join the brief: Bond Market Association; Securities Industry Association, Futures Industry Association, Financial Services Roundtable, American Bankers Association; ABA Securities Association as we believe this is an important and necessary exercise to preserve the intent of the nonrepudiation provisions of the CFMA. We would appreciate any efforts you might be able to make to encourage the other trade associations to join this effort.

Background: CFMA - The provisions in question amended Section 22(a) of the CEA to provide a safe harbor so that excluded transactions would not be voidable based solely on the failure of the transaction to comply with the terms or conditions of an exclusion or exemption from the Act or CFTC regulations. The House Agriculture Committee included report language addressing these provisions; "The Committee acknowledges that categories of over-the-counter transactions, such as certain commodity swaps that may be traded under the current swaps exemption, have not been excluded or exempted under the terms of this Act. The Committee intends that any failure to provide a statutory exclusion or exemption for these categories of swap transactions does not reflect, and should not be construed to reflect, a determination by Congress that these categories of swaps transactions are subject to the Commodity Exchange Act. Also relevant is pre-existing language in Section 25 that states "the provisions of this section shall become effective with respect to causes of action accruing on or after the date of

enactment of the Futures Trading Act of 1982." Cary Oil Co., Inc. v. MG Refining and Marketing Historically, the case arises out of petroleum contracts between the parties that included a pricing mechanism that allowed a counterparty to blow out of the contract when the NYMEX price exceeded the contract price. In hedging the transaction, MG became too exposed and word got out that they were seeking to renew their long-term contracts. The market started to turn against them and ultimately, the transactions were unwound all at once. MG now alleges that those contracts were off-exchange futures contracts and thus void. At the time, NYMEX conducted an investigation and a consent order was issued. Now, a second suit has been initiated in which MG filed for summary judgment claiming that CFMA amendments to the CEA were not retroactive. Federal Magistrate Judge Eaton issued a decision in a civil action the week of January 7, 2002 recommending that Judge Marerro find that Section 25(a)(4) (enforceability of derivatives contracts) is prospective only. Specifically, Magistrate Judge Eaton held that since it was "unclear why Congress chose Section 25 as the place to insert (in the CFMA) the new sub-section about contract enforcement..." it should thus apply prospectively only. Thus, the consideration of Section 25(a)(4) as an issue and the necessity to submit a brief supporting the retroactivity the CFMA's non-repudiation provisions. Submitting a brief to Judge Marerro would assist in emphasizing that market participants believed that this issue was put to rest with the passage of the CFMA in December 2000. Stacy Carey Policy Director International Swaps and Derivatives Association 600 5th Avenue, 27th Floor Rockefeller Center New York, NY 10020 (212) 332-1202 ph (212) 332-1212 fax (917) 543-9622 cell scarey@isda.org

Message 112 of 413

FYI	
Sender	raislerk@sullcrom.com
Recipients	['ian_stevenson@bp.com', 'mcadammmj@bp.com', 'kneenjm@bp.com', 'goetscrj@bp.com']
File	taylor-m/all_documents/3934.

- [B] Single stock futures bill cautiously back in play -- By Mary Haffenberg, BridgeNews Chicago--Dec. 5--With Congress back in session this week, discussions on

the Commodity Futures Modernization Act of 2000 are on again. But after months of negotiations that resulted in House legislation but no Senate bill, those

interested in the bill's passage are taking a cautious approach at its chances of passage while Congress remains in session, even as key players held discussions Monday. * * * At a meeting with Senate Banking Committee Chairman Phil Gramm, R-Texas,

House Agriculture Subcommittee Chairman Thomas Ewing, R-Ill., and representatives of the Chicago Mercantile Exchange and the Chicago Board of Trade on Monday in Washington, the group agreed on several points regarding legal certainty for banking products. Though at least one source said that the final draft that came out on Tuesday of these agreements was the farthest the parties have ever gotten in

terms of conceptual agreements on these issues, others warned they'd been down a suspiciously similar path before. Conceptual agreements on these issues have been reached only to be foiled when pen was put to legislative paper and the details were revealed and the proposed legislation was deemed unpassable. It would be to no one's surprise if the same thing happened again. However, even the most ardent skeptics on Tuesday couldn't explain why Gramm has continued to discuss the bill if he had no intention of it ever passing. A spokeswoman for Gramm on Tuesday said that there is no time frame of when the legislative language would appear. No further formal meetings on the bill were scheduled on Tuesday afternoon In addition, as of midday Tuesday, Gramm had not contacted the U.S. Treasury Department, sources said, which must give its blessing to the bill if it is going to pass. In the past, Treasury and Gramm have not been able to reach agreement on several issues regarding the regulation of banking products. Retail protections and agency trades have been sticking points. The bill, which passed the Housed in October in a 377-4 vote, proposes to provide legal certainty for a variety of over-the-counter markets, legalize single stock futures, revamp and codify the regulatory plan that oversees the trading of derivatives products and reauthorize the Commodity Futures Trading Commission. The sticking point has been Gramm, who said that the bill will go nowhere unless it contains provisions he thinks are necessary to exclude banking products from the act and to keep certain types of swaps out of the hands of

certain regulators. After the House bill passed, Gramm put forth 34 revisions to it. When discussions last left off before the federal elections, Gramm and Treasury had resolved about 15 of those issues. "One man, Senator Gramm, is holding up this bill," Ewing said at a press

conference last month. Ewing, who retires from Congress at the end of this year, has taken the lead in shepherding the bill through the House and is now actively trying to

get it passed through the Senate. If agreement on legislative language is reached, the idea is that the Senate bill could be attached to a legislative package. But early this week there was talk of Congress passing a continuing resolution that would in effect fund the government until next year, meaning no bills would pass until Congress returned. End

[Begin BridgeLinks] Mary Haffenberg, BridgeNews, Tel: 312-454-3477 Send comments to futures@Bridge.com [End BridgeLinks] Copyright 2000 Bridge Information Systems Inc. All rights reserved.

Mary Haffenberg Bridge News 30 S. Wacker Drive, Suite 1810 Chicago, IL 60606-7404 312-454-3477 312-454-3465 (fax)

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

Message 113 of 413

1999 Supplement to the 1993 Commodity Derivatives Definitions

Sender	mark.taylor@enron.com
Recipients	['bob.bowen@enron.com']
File	taylor-m/all_documents/1016.

Any thoughts on this Platt's issue? ----- Forwarded by Mark Taylor/HOU/ECT on 01/07/2000 01:53 PM

Robert Pickel <RPICKEL@isda.org> on 01/05/2000 02:41:37 PM To: "bobna@crt.com" <bobna@crt.com>, "simon.smith@eastern.co.uk" <simon.smith@eastern.co.uk>, Mark Taylor/HOU/ECT@ECT, Mark E Haedicke/HOU/ECT@ECT, "patricia.hogan@gs.com" <patricia.hogan@gs.com>, "prince.keir@gs.com" <prince.keir@gs.com>, "ccerria@hess.com" <ccerria@hess.com>, "MacraeE@mbcl.co.uk" <MacraeE@mbcl.co.uk>, "roffeym@mbcl.co.uk" <roffeym@mbcl.co.uk>, "bmccoy@ms.com" <bmccoy@ms.com>, "rita.pearson-schwandt@energie.rwe.de" <rita.pearson-schwandt@energie.rwe.de>, "dbf@vitol.com" <dbf@vitol.com>, "edmund.ha@ontariopowergeneration.com" <edmund.ha@ontariopowergeneration.com>, "joseph.campos@ontariopowergeneration.com" <joseph.campos@ontariopowergeneration.com>, "lmcurray@exchange.ml.com" <lmcurray@exchange.ml.com>, "adele.raspe2@pseg.com" <adele.raspe2@pseg.com>, "schindlg@phibro.com" <schindlg@phibro.com> cc: Subject: 1999 Supplement to the 1993 Commodity Derivatives Definitions

Responses to our request for a final review of the 1999 Supplement have been very good. We are still waiting on a couple of responses. I won't name names. You know who you are.

Please also review the attached e-mail from Patricia Hogan at Goldman Sachs regarding the appropriate Platt's references. She suggests that the Platt's reference in each definition should be to the version of Platt's that is published in the relevant region. Please let me know as soon as possible whether you agree with her suggestion. If you agree with her suggestion, which I believe is largely mechanical, I would ask that those who took responsibility for a particular commodity let us know the proper Platt's reference for the commodity and delivery point. Otherwise, we will assume that Tricia's suggestions should be followed.

I look forward to wrapping up this project in the next ten days, so please respond promptly.

Bob Pickel

-----Original Message-----

From: Hogan, Patricia [mailto:patricia.hogan@gs.com] Sent: Monday, December 27, 1999 12:07 PM To: 'rpickel@isda.org'; kellis@cravath.com Cc: 'Corrinne Greasley'; Marcus, Aaron; Prince, Keir Subject: 1999 Supplement to the 1993 Commodity Derivatives Definitions

We have reviewed the Reference Price Sources for the commodities that have been assigned to us. I will forward our changes, amendments and updates under separate cover.

In the course of reviewing the Price Sources, we came across one issue that was not discussed on the recent conference call, but is one about which we have strong feelings. We believe that the Price Source used for a particular commodity should reflect the geographic source of the commodity, e.g., Platt's Asia-Pacific for Asian commodities, Platt's European, Marketscan or Platt's Crude Marketwire for European commodities and Platt's Oilgram for North American commodities. While reviewing the Reference Price Sources for Fuel Oil, we found that in many cases only Platt's Oilgram is listed, even though the product is European or Asian. We would prefer to delete the references to Platt's Oilgram for products outside of North America. However, we understand that such a step cannot be taken without a discussion with the wider group (which may not be feasible at this point). If such a discussion is not feasible, we would like (if possible) to include the European or Asian-Pacific price source in the Supplement along with the U.S. price source for all products (including those commodities we have not reviewed and commented on).

I apologize for bringing this issue up so late in the process. Please call me, Keir Prince (011 44 171 774 5004) or Aaron Marcus (357-9514) if you would like to discuss.

Goldman, Sachs & Co. One New York Plaza, 37th Floor | New York, NY 10004 Tel: 212-357-2751 | Fax: 212-428-3597 email: patricia.hogan@gs.com Patricia L. Hogan Vice President and Counsel

Message 114 of 413

Re: Sailing

Sender	lhayman@skadden.com
Recipients	['mark.taylor@enron.com', '']
File	taylor-m/all_documents/3161.

Amanda has a break from Nov 3-8th (and I don't think she has classes on Friday anyway). Is that something the three of us can work with? Alternatively, do you think the two of us could manage over Thanksgiving - with amanda joining for the long weekend (fly down Thurs eve and back Mon). I can't remember what day of the week charters begin and end. - is it set in stone? Plan B - we could met at the Greenbriar or DC for Thanksgiving. I understand from Amanda that Bill is not going anywhere until 2001. Of course that does make New Year's eve a possibility. If all else fails, I did hear from Greg this week and he wants to know if we are still sailing. And I am still looking for something to do over Christmas.

Linda Hayman Skadden, Arps, Slate, Meagher & Flom, LLP 4 Times Square, 42nd Floor New York, NY 10036 T: 212-735-2637 F: 917-777-2637

"Mark Taylor" <Mark.Taylor@enron.com> 09/05/00 06:36PM >>>

I sent Amanda & Bill an e-mail a couple of weeks ago and here is Bill's reply. I sent him a fairly detailed note on how we usually schedule things and which were the best times of year, etc. I haven't heard anything from Amanda and was beginning to assume they were not really interested in a November trip. Have you heard anything firm from Virginia? Bill's next-to-last paragraph tells me that he's getting to know Amanda - but I don't think she'll leave him alone for the holiday. The real question is whether her uncanny ability will extend to his schedule, too. If they still want to go we'd better make travel plans soon - that Thanksgiving Sunday is notoriously difficult to get seats. If you'd rather wait until Jan. or Feb. that's fine with me too. Just let me know. ----- Forwarded by Mark Taylor/HOU/ECT on 09/05/2000 05:04 PM -----

|-----+-----> || WMcgov1047@aoj || l.com || || || 08/21/2000 || 08:14 PM || || |-----+----->

-----|
|| To: Mark.Taylor@enron.com, amh5h@virginia.edu || cc: || Subject: Re: Welcome home! |
-----|

Hey Mark, nice to hear from you. I am glad you enjoyed the wedding. It went by so fast for me but it seems that people had a good time. Apart from a few travel related glitches the honeymoon was also spectacular. Tahiti is a true paradise.

I am committed to the concept of sailing in the Carribean but my problem is that my honeymoon has put me firmly in "vacation deficit" at the SEC. Barring any emergency congressional action I will not have enough days available by Tgiving to truly enjoy sailing in the Carribean. Amanda has told me how much fun it is and I want to do it but I may need to find another time. I'll check into it and let you guys know definitively very soon. How long to you go for?

Keep in mind though that I do not speak for Amanda. She has an uncanny ability to arrange her schedule so that she can participate in virtually every vacation idea that people bring up.

I'll be in touch, Bill.

This e-mail, and any attachments thereto, is intended only for use by the addressee(s) named herein and may contain legally privileged and/or confidential information. If you are not the intended recipient of this e-mail, you are hereby notified that any dissemination, distribution or copying of this e-mail, and any attachments thereto, is strictly prohibited. If you have received this e-mail in error, please immediately notify me at (212) 735-3000 and permanently delete the original and any copy of any e-mail and any printout thereof.

Further information about the firm, a list of the Partners and their professional qualifications will be provided upon request.

- Linda Hayman.vcf

Message 115 of 413

Bridge News Article on CEA Legislation

Sender	chris.long@enron.com
Recipients	['mark.taylor@enron.com', 'tom.briggs@enron.com', 'linda.robertson@enron.com']
File	taylor-m/notes_inbox/1892.

I have been in regular contact with folks on the Hill and at Treasury and this article seems accurate. Updates to follow.

----- Forwarded by Chris Long/Corp/Enron on 12/06/2000 10:02 AM -----

Stacy Carey <SCAREY@ISDA.ORG> 12/06/2000 08:54 AM

To: US REGULATORY COMMITTEE <USREGCOMM@isda.org> cc: Subject: Bridge News Article on CEA Legislation

-----Original Message-----

From: Haffenberg, Mary [mailto:Mary.Haffenberg@bridge.com] Sent: Tuesday, December 05, 2000 6:23 PM Subject: fyi

-- [B] Single stock futures bill cautiously back in play -- By Mary Haffenberg, BridgeNews Chicago--Dec. 5--With Congress back in session this week, discussions on

the Commodity Futures Modernization Act of 2000 are on again. But after months of negotiations that resulted in House legislation but no Senate bill, those

interested in the bill's passage are taking a cautious approach at its chances of passage while Congress remains in session, even as key players held discussions Monday. * * * At a meeting with Senate Banking Committee Chairman Phil Gramm, R-Texas,

House Agriculture Subcommittee Chairman Thomas Ewing, R-Ill., and representatives of the Chicago Mercantile Exchange and the Chicago Board of Trade on Monday in Washington, the group agreed on several points regarding legal

certainty for banking products. Though at least one source said that the final draft that came out on Tuesday of these agreements was the farthest the parties have ever gotten in

terms of conceptual agreements on these issues, others warned they'd been down a suspiciously similar path before. Conceptual agreements on these issues have been reached only to be foiled when pen was put to legislative paper and the details were revealed and the proposed legislation was deemed unpassable. It would be to no one's surprise if the same thing happened again. However, even the most ardent skeptics on Tuesday couldn't explain why Gramm has continued to discuss the bill if he had no intention of it ever passing. A spokeswoman for Gramm on Tuesday said that there is no time frame of when the legislative language would appear. No further formal meetings on the bill were scheduled on Tuesday afternoon. In addition, as of midday Tuesday, Gramm had not contacted the U.S. Treasury Department, sources said, which must give its blessing to the bill if it is going to pass. In the past, Treasury and Gramm have not been able to reach agreement on several issues regarding the regulation of banking products. Retail protections and agency trades have been sticking points. The bill, which passed the House in October in a 377-4 vote, proposes to provide legal certainty for a variety of over-the-counter markets, legalize single stock futures, revamp and codify the regulatory plan that oversees the trading of derivatives products and reauthorize the Commodity Futures Trading Commission. The sticking point has been Gramm, who said that the bill will go nowhere unless it contains provisions he thinks are necessary to exclude banking products from the act and to keep certain types of swaps out of the hands of

certain regulators. After the House bill passed, Gramm put forth 34 revisions to it. When discussions last left off before the federal elections, Gramm and Treasury had resolved about 15 of those issues. "One man, Senator Gramm, is holding up this bill," Ewing said at a press

conference last month. Ewing, who retires from Congress at the end of this year, has taken the lead in shepherding the bill through the House and is now actively trying to

get it passed through the Senate. If agreement on legislative language is reached, the idea is that the Senate bill could be attached to a legislative package. But early this week there was talk of Congress passing a continuing resolution that would in effect fund the government until next year, meaning no bills would pass until Congress returned. End

[Begin BridgeLinks] Mary Haffenberg, BridgeNews, Tel: 312-454-3477 Send comments to futures@Bridge.com [End BridgeLinks] Copyright 2000 Bridge Information Systems Inc. All rights reserved.

Mary Haffenberg Bridge News 30 S. Wacker Drive, Suite 1810 Chicago, IL 60606-7404 312-454-3477 312-454-3465 (fax)

Message 116 of 413

nan	
Sender	travis.mccullough@enron.com
Recipients	['louise.kitchen@enron.com', 'andy.zipper@enron.com', 'fgetman@houstonstreet.com', 'japplegate@houstonstreet.c...]
File	taylor-m/notes_inbox/721.

Attached is a marked version of the term sheet incorporating the changes that we most recently discussed, as well as a clean version of each of the term sheet and the LOU. If the attached are acceptable, please execute two of the letters of understanding on behalf of HoustonStreet and send them to me at the address below. We will return a fully executed copy of the LOU to you. Please do not hesitate to contact me at your convenience with any comments or questions regarding the attached.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 117 of 413

Revised Posting Agreement

Sender	travis.mccullough@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/all_documents/2307.

Mark -- attached is the revised Posting Agreement. Andy and Louise are catching an early flight tomorrow, so it won't do any good to e-mail this to them. Andy said he would be happy if you would just forward it on to S&C in preparation for the meeting.

This is still pretty rough, but I guess it isn't bad for a working draft. I hope that the drafting session is helpful, and again, I'm happy to sit in on it (although I don't think any of us would get that much out of it if I were to do that).

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 118 of 413

Enron's Submission on Ontario's Emissions Trading Regulation....

Sender	lisa.jacobson@enron.com
Recipients	['e.taylor@enron.com', 'trevor.woods@enron.com', 'stacey.bolton@enron.com', 'robert.hemstock@enron.com', 'jeff...]
File	taylor-m/inbox/lisa_j/21.

Please see the attached comments developed by the Environmental Strategies Group on behalf of Enron Canada in response to Ontario's draft emissions trading regulation for NOx and SO2.

Comments were submitted this week and were coordinated with ENA Canada, EGM Emissions and Government Affairs, as the proposal could impact power trading, emissions trading, and power development/investment.

Please let me know if you have any questions on the proposed regulation or Enron's submission.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 119 of 413

nan

Sender	susan.bailey@enron.com
Recipients	['samantha.boyd@enron.com', 'n..gray@enron.com', 'mary.cook@enron.com']
File	taylor-m/inbox/302.

Mary Cook requested certain updates be made to ENA's Guaranty documents. Attached are REDLINED versions of the Guaranty documents.

1. Enron Corp. Guaranty & Counterparty Guaranty
2. Enron Corp. Guaranty (multiproduct)
3. Counterparty Guaranty (multiproduct)

Clean versions of these Guaranty documents are available for use and can be accessed as follows:

O:\Legal\ATTY.FMS\SWAP FORMS\Current

Regards, Susan S. Bailey Senior Legal Specialist Enron Wholesale Services Legal Department 1400 Smith Street, Suite 3803A Houston, Texas 77002 phone: (713) 853-4737 fax: (713) 646-3490 email: susan.bailey@ enron.com

Message 120 of 413

Hardware Request	
Sender	mark.taylor@enron.com
Recipients	['janette.elbertson@enron.com']
File	taylor-m/all_documents/7692.

----- Forwarded by Mark Taylor/HOU/ECT on 02/06/2001 02:27 PM -----

Sheri L Cromwell 02/06/2001 02:08 PM

To: Mark Taylor/HOU/ECT@ECT cc: Subject: Hardware Request

Mark,

My mouse is not responding properly (left click), and I need to have it replaced. I would like to order the Intellimouse at a cost of \$23.

If this meets with your approval, please forward this message to Janette Elbertson. Thanks!

Company #0413 CC#105657

Sheri L. Cromwell Sr. Administrative Assistant Enron North America Corp. 1400 Smith Street, EB 3815 Houston, Texas 77002-7361 Phone: 713-853-3543 Fax: 713-646-3491 E-Mail: Sheri.L.Cromwell@enron.com

Message 121 of 413

Re: EOL Linking	
Sender	mark.taylor@enron.com
Recipients	['travis.mccullough@enron.com']
File	taylor-m/sent/1508.

If they've done it, it was without consulting me. Other than the content stuff (e.g. which provide links to Reuters) I don't think there is anything out there yet.

Travis McCullough 11/20/2000 09:03 PM

To: Mark Taylor/HOU/ECT@ECT cc: Subject: EOL Linking

Has EOL done any sort of linking arrangement with a third party? We are trying to make sure that we know if there is any precedent for the Kiodex deal. I understood that there have not been any other similar deals, but wanted to make sure.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 122 of 413

Draft Exclusivity Agreement

Sender	travis.mccullough@enron.com
Recipients	['mark.taylor@enron.com', 'julie.gomez@enron.com', 'david.forster@enron.com']
File	taylor-m/all_documents/3785.

Attached is a draft of an "Exclusivity Agreement" in connection with your development of the capacity product trading website. It is a little bit longer than I anticipated, but I think it includes everything we need (the bulk of the provisions deal with confidentiality obligations). Please contact me with any comments or questions regarding the attached. Please note that for those pipelines affiliated with Enron, we would simply add EnronOnline as an additional exception to the definition of "Competing System."

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490

Message 123 of 413

Re: Copyright notice language

Sender	mark.taylor@enron.com
Recipients	['travis.mccullough@enron.com', 'dave.samuels@enron.com']
File	taylor-m/sent/1225.

Travis -

In Phase I we had the copyright notice on every page. Can we get away with having it only on the home page?

Travis McCullough 08/03/2000 05:28 PM

To: Dave Samuels/HOU/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT Subject: Copyright notice language

The copyright notice on the homepage should read as follows:

Copyright (c) 1999 Enron Net Works LLC. All rights reserved.

(the "C" is actually the little c in the circle). We had also suggested that we indicate "Patent Pending" close to the copyright notice.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490

Message 124 of 413

Post Card approval

Sender	mark.greenberg@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/2429.

Mark -

Kal forwarded the below for my review. I am comfortable with the language, but wanted you to see this as I am not familiar with the product.

Thanks for your input.

Mark Senior Counsel, ENA Phone: 713-345-8897 Facsimile: 713-646-3940 E-Mail: Mark.Greenberg@enron.com -----
Forwarded by Mark Greenberg/NA/Enron on 02/28/2001 05:42 PM -----

Kal Shah@ECT 02/27/2001 12:10 PM

To: Mark Greenberg/NA/Enron@ENRON cc: Subject: Post Card approval

Mark -- Pls. review and approve this short postcard as soon as possible. It is for the launch of spreads products on EnronOnline. Thanks.

Kal Shah EnronOnline x 39354

- POST CARD_US.pdf

Message 125 of 413

Enron Metall Recycling GmbH & Co. KG

Sender	susan.bailey@enron.com
Recipients	['kimberly.allen@enron.com', 'laurel.adams@enron.com', 'diane.anderson@enron.com']
File	taylor-m/deleted_items/76.

We have received an executed financial Master Agreement:

Type of Contract: ISDA Master Agreement (Multicurrency-Cross Border)

Effective Date: February 19, 2001

Enron Entity: Risk Management & Trading Corp.

Counterparty: Enron Metall Recycling GmbH & Co. KG

Transactions Covered: Approved for all products.

Confirming Entity: Risk Management & Trading Corp.

Governing Law: Texas

Special Handling Requirements: No special handling requirements

Copies will be distributed.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3803A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 Email: Susan.Bailey@enron.com

Message 126 of 413

nan

Sender	nora.dobin@enron.com
Recipients	['mark.taylor@enron.com', 'jeff.bartlett@enron.com', 'suresh.raghavan@enron.com', 'brenda.funk@enron.com', 'ha...]
File	taylor-m/notes_inbox/2736.

Since sending my earlier e-mail on pending DealBench matters, I received the final Envera term sheet mentioned therein. It is attached.

Regards, NJD

Nora J. Dobin Senior Counsel Enron Global Finance Enron Corp. 1400 Smith Street Houston, Texas 77002

713/345-7723 (phone) 713/853-9252 (fax) E-mail: nora.dobin@enron.com

----- Forwarded by Nora Dobin/Corp/Enron on 12/21/2000 12:25 PM -----

Michael A Robison@ECT 12/21/2000 11:13 AM

To: tstockbridge@velaw.com, Nora Dobin/Corp/Enron@ENRON cc: John Viverito/Corp/Enron@ENRON Subject:

Attached are the final versions of the LOI and Term Sheet. Best regards,

Mike EB3847 (713) 853-6667 DID (713) 646-4842 FAX

Message 127 of 413

Revised Posting Agreement

Sender	travis.mccullough@enron.com
Recipients	['andy.zipper@enron.com', 'mark.taylor@enron.com', 'james.grace@enron.com', 'rlawrence@milbank.com', 'fgetman@...]
File	taylor-m/notes_inbox/1093.

Attached is a revised version of the Posting Agreement for your review. I have also attached our position with respect to that portion of HoustonStreet equity that may be retained by Enron upon termination of the Posting Agreement under various circumstances.

I did not have a complete distribution list of all HoustonStreet parties that should receive a copy of this message, so please pass it on to anyone that may have been left off.

Please do not hesitate to contact Andy Zipper or me with any comments or questions regarding the attached.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 128 of 413

UCC Linda Hayman

Sender	mary.cook@enron.com
Recipients	['legal <.taylor@enron.com']
File	taylor-m/inbox/170.

I had a good visit with her on the issues. She advised that she is on a task force to add amendments to the revised 9 in Delaware and thought the group might entertain favorably an exception for master netting agreements from the anti-restriction/assignment receivable issue. She will work on this for us if we want her to. I think we should--at least it would be a start and an example. Do you think there would be great risk in applying Delaware law to the master netting agreements rather than New York? Let's talk. Call me Monday.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (713) 646-3393 (fax) mary.cook@enron.com

Message 129 of 413

JD Energy	
Sender	jwdean@aol.com
Recipients	[e.taylor@enron.com]
File	taylor-m/inbox/passwords/10.

Michael,

I wanted to check with you to see if you had had any more time to consider our Environmental Forecasting service. I believe I had given you some names and numbers of some of our clients, as well as sent you some samples.

I am in New York City in meetings today and Friday, but will be back in the office Monday morning. There is also a chance I will be in Houston on business mid-October. If so, it might be a good chance for me to meet both your boss and you (and anyone else) and discuss what our service could do for you. Does that sound worthwhile?

Best Regards,

John Dean JD Energy, Inc. 922 Watersville Road Mt. Airy, MD 21771 410-489-5141 Fax: 410-489-5257 jwdean@aol.com

Message 130 of 413

Canadian Industrial	
Sender	mary.cook@enron.com
Recipients	[carol.clair@enron.com', 'mark.taylor@enron.com']
File	taylor-m/all_documents/7885.

Carol, attached is the Canadian industrial on which I have worked, both clean and redlined from the US industrial (the redlined annexes are somewhat laborious). Please note in the area of transaction formation that Canada desired confirmation with and without phone (wherein confirmation is prepared and signed with counterparty "at the table" so to speak). Please review and provide me your comments. Thanks for your help.

Mark, in terms of processes, should I distribute this to anyone else for review and comment?

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 131 of 413

Houston Street	
Sender	travis.mccullough@enron.com
Recipients	[louise.kitchen@enron.com', 'andy.zipper@enron.com', 'mark.taylor@enron.com']
File	taylor-m/all_documents/2069.

Attached is a draft term sheet for the equity investment in Houston Street. As we discussed, this deal varies from the True Quote deal in that Houston Street has already closed several deals with investors which may dictate to some extent the deal that we are able to get. Many of the terms and conditions of our equity investment will depend upon the results of our due diligence investigation, and some may depend upon the terms and conditions of the Posting Agreement.

Please let me know if you have any comments or questions regarding the attached.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 132 of 413

Proposed Form Change

Sender	pinto.leite@enron.com
Recipients	['legal <.taylor@enron.com>']
File	taylor-m/archive/2001_08/2.

From day one I had a problem with the counterintuitive language we have in Part 4 (f) of the Schedule about Netting. In addition to being counterintuitive, I have a really hard time explaining it to my Mexican counterparties.

I would like to propose the language below. I believe it leaves no room for interpretation and everybody will understand it immediately.

"The limitation set forth in subparagraph (ii) of Section 2(c) of this Agreement will not apply and any netting pursuant to Section 2(c) will apply across all Transactions under this Agreement"

Francisco Pinto-Leite Enron Americas 1400 Smith Street, EB 3888 Houston, TX 77002-7361

Tel: 713-345-7942 Fax:713-646-3490 fleite@enron.com

Message 133 of 413

nan

Sender	travis.mccullough@enron.com
Recipients	['andy.zipper@enron.com', 'mark.taylor@enron.com', 'chris.edmonds@truequote.com', 'louise.kitchen@enron.com']
File	taylor-m/notes_inbox/669.

Mr. Edmonds:

Per Andy Zipper's request, attached please find a final version of the letter of understanding and term sheet. To assist in your review, attached below is a version of the termsheet marked to show changes from the prior version:

If the attached are acceptable, please print and execute two copies and forward them to me by overnight courier. Enron Net Works will return to you a fully-executed copy on Enron Net Works' letterhead.

Please do not hesitate to contact me at your convenience with any comments or questions regarding the attached.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 134 of 413

Enron North America Legal Conference Agenda

Sender	travis.mccullough@enron.com
Recipients	['mark.haedicke@enron.com', 'alan.aronowitz@enron.com', 'barbara.gray@enron.com']
File	taylor-m/all_documents/2999.

Attached is the proposed agenda for the ENA Legal Conference schedule for October 5-6. I wanted to give the Legal Committee a preview before it was finalized.

The DealBench demonstration was only recently added to the agenda, and is subject to further development. Also, an attorney with Milbank, Tweed's e-commerce and technology group will be making a presentation, but we have not yet developed the topic, so any suggestions would be helpful.

Finally, the exact schedule is subject to change, depending on individual speakers' preferences and schedules.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490

Message 135 of 413

Re: Paralegals

Sender	mark.taylor@enron.com
Recipients	['holly.keiser@enron.com', 'mary.cook@enron.com']
File	taylor-m/sent/3317.

I think it's a nice idea.

Mary Cook 04/10/2001 10:25 AM

To: Mark Taylor/HOU/ECT@ECT cc: Holly Keiser/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Paralegals

Can we send Stephanie, Susan and Tana each some flowers on Friday (Panus will be back) as a thank you for the extra work they are doing (and will do) in Samantha's absence? I think it would be a moral booster and a good way to say thanks. If yes, can Holly coordinate?

Thanks.

Holly, please touch base with me if Mark approves before you arrange the flowers.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 136 of 413

NDA agreement

Sender	sara.shackleton@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/2651.

Mark: Here's the other email. I have not yet received the NDA.

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone) 713-646-3490 (fax) sara.shackleton@enron.com ----- Forwarded by Sara Shackleton/HOU/ECT on 01/12/2001 05:49 PM -----

Chris Constantine 01/12/2001 11:07 AM

To: Sara Shackleton/HOU/ECT@ECT cc: Subject: NDA agreement

Sara,

We are going to receive an NDA form from W-Technologies to sign and return to them. I will forward it to you when it arrives.

They are asking me what company name to put on the form. I work for Enron Net Works and my user is Gary Hickerson so can you please let me know what to tell them.

Regards,

Chris

Message 137 of 413

Re: Clickpaper legal review

Sender	mark.taylor@enron.com
Recipients	['travis.mccullough@enron.com']
File	taylor-m/all_documents/2453.

Outside counsel reviewed EnronOnline content such as the FAQ, Legal and Privacy Statement and anything else we were concerned might create the basis for an agreement regarding how the site was used. We reviewed everything else internally.

Travis McCullough 06/27/2000 08:02 PM

To: Mark Taylor/HOU/ECT@ECT cc: Subject: Clickpaper legal review

Mark -- to what extent was outside counsel involved in the review of the information on the EOL website? The ClickPaper.com website is coming together and we want to get outside counsel to review it if that is consistent with how you handled EOL.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 138 of 413

RE: Apparent Authority Letter

Sender	pinto.leite@enron.com
Recipients	['mary.cook@enron.com', 'legal <.taylor@enron.com>', 'brent.hendry@enron.com']
File	taylor-m/inbox/115.

At the risk of getting a reputation of over-doing it, here are my proposed changes

Francisco Pinto-Leite Enron Americas 1400 Smith Street, EB 3888 Houston, TX 77002-7361

Tel: 713-345-7942 Fax:713-646-3490 fleite@enron.com

-----Original Message-----

From: Hendry, Brent Sent: Thursday, October 04, 2001 11:25 AM To: Taylor, Mark E (Legal); Cook, Mary; Leite, Francisco Pinto; Sayre, Frank; Shackleton, Sara; Nelson, Cheryl; Koehler, Anne C.; Greenberg, Mark Subject: Apparent Authority Letter

I have modified the letter slightly to try and shift the burden of being notified as to internal policy matters back to the counterparty. Let me know if you think this approach works or if you have suggested improvements in the language. Thanks Brent

<< File: ltr-appauth(amended 10-04-01).doc >>

Message 139 of 413

Canadian Isda Files: PLEASE READ

Sender	mary.cook@enron.com
Recipients	['peter.keohane@enron.com', 'susan.bailey@enron.com', 'greg.johnston@enron.com', 'samantha.boyd@enron.com']
File	taylor-m/all_documents/8164.

It has come to my attention that a copy of each ECC Isda we finalize should be forwarded to you for your records. I am not sure that this has been consistently accomplished since I was unaware. In order to verify that you have all copies, could you send me a listing of all of your Isda ECC files on hand. I will have it compared to our database and we will copy for you those that you may not have. Proceeding forward, we will copy you as and when completed. Thank you.

Paralegals: This memo should serve as notice to all paralegals that upon finalizing any ECC Isda file a copy of the blue file should be forwarded to Greg in Calgary.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 140 of 413

Samantha's Desk/Work

Sender	mary.cook@enron.com
Recipients	['angela.davis@enron.com', 'anne.koehler@enron.com', 'becky.spencer@enron.com']
File	taylor-m/all_documents/8034.

I anticipate that Samantha will be out of the office for a time. In order that Samantha's work in progress be covered in her absence, please take the following steps. The attorneys should retrieve from her desk and files those current file matters for which they are responsible. To the extent you and your administrative assistant can cover the file matters, please do so in order to maintain a reasonable workload for the other paralegals. If some of your file matters need further paralegal assistance, please advise me so that reassignments to other paralegals can be coordinated based upon the workloads of Susan, Stephanie, and Tana. Thank you.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 141 of 413

Posting Agreement

Sender	travis.mccullough@enron.com
Recipients	['louise.kitchen@enron.com', 'andy.zipper@enron.com', 'mark.taylor@enron.com']
File	taylor-m/notes_inbox/859.

Attached is a revised version of the Posting Agreement. Unfortunately, the redline against the version sent to us by S&C shows practically the entire agreement as brand new text (instead of showing changes to the old text), so it will not be particularly helpful to review a redline.

The changes to S&C's draft are extensive, but most changes are added definitions, termination rights, representations and warranties, and the like -- the provisions regarding how the platforms work together and how contracts are entered into are essentially the same.

Let me know how you want to proceed with your review of this draft -- I'm happy to discuss it with you before your review if you want..

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490

Message 142 of 413

JD Energy	
Sender	jwdean@aol.com
Recipients	['e.taylor@enron.com']
File	taylor-m/inbox/passwords/5.

Michael,

Enclosed is the unedited version of our latest monthly forecast. As I mentioned to you, our long-term forecast for NOx (which includes the SIP Call) will be issued within a week and thereafter, the SIP Call forecast will be included in our Monthly publication as well. Likewise, our long-term SO2 forecast will be published within 2 weeks.

Perhaps some of the best recommendations for our service come from our own clients. Here are a few to start with: Gary Hart (Director of Emissions for Southern Company and President of the Emissions Marketing Assoc. [205] 257-7438); Mark Newlin (Cinergy [317] 838-1355); and Ed Blunk (Kansas City Power & Light [816] 556-2324).

I look forward to talking with you soon,

John Dean JD Energy, Inc. 922 Watersville Road Mt. Airy, MD 21771 410-489-5141 Fax: 410-489-5257 jwdean@aol.com

Message 143 of 413

Re: Regulatory Notifications	
Sender	alfred.pennisi@enron.com
Recipients	['justin.boyd@enron.com', 'sue.kelly@enron.com']
File	taylor-m/notes_inbox/1384.

Hi Sue,

I have no problem dealing with the CFTC/NYMEX/NFA. I need to have information from Enron on the following issues pursuant to CFTC Reg 1.14 and 1.15:

Organizational Chart, which includes the MAP's Risk Management Policies and procedures Financial Statements for certain of the MAP's and a description of the MAP's duties and functions to the FCM

This needs to be done by November of this year.

This information is due within 60 days from the last quarter in which the change took place. Change took place in the middle of July, end of the quarter is September '00. Therefore the information is due by the middle of November'00.

If anyone has any questions please call me at 212 715 5845.

Alfred Pennisi MG London Inc. 520 Madison Avenue 28th Floor New York, NY 10022 Tel: 212.715.5845 E-mail: alfred.pennisi@mgllondon.com

Message 144 of 413

New Setoff Language in Isda Forms

Sender	mary.cook@enron.com
Recipients	[peter.keohane@enron.com', 'susan.bailey@enron.com', 'greg.johnston@enron.com', 'elizabeth.sager@enron.com']
File	taylor-m/deleted_items/139.

Susan, please substitute the setoff language set forth in the attached to each of the referenced items in the swap form bank. If there are any other items in the swap form bank that you think also need the new language, please advise. There may be additional language for a Canadian alternative; Peter is reviewing this further with Canadian counsel. Susan, also please note that as I update the US Industrial I will include this new language, but for now, put it in the current US Industrial form. After you have substituted the language, please provide me with one copy of each form for a final check. Thank you.

Mark Taylor: This language has not been implemented in EOL.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (713) 646-3393 (fax) mary.cook@enron.com

Message 145 of 413

ENA Legal Monthly Report

Sender	linda.noske@enron.com
Recipients	['barbara.gray@enron.com', 'lance.schuler@enron.com', 'dina.snow@enron.com', 'jeffrey.hodge@enron.com']
File	taylor-m/all_documents/3494.

The Monthly Report is undergoing changes, both in formatting and preparation. Mark Haedicke's office will compile reports sent to him from ENA (see attached), Enron Global Markets, Enron Industrial Markets, Enron NetWorks, LNG and Caribbean/Middle East, legal groups into one report for Jim Derrick.

Please print the attached report and make changes for ENA keeping in mind that the above-named groups will prepare individual reports for Mark. Make your remarks on transaction status as of October 15, 2000.

Please give your changes to Dina Snow by Monday afternoon, October 23, 2000. If you have questions or comments please call Travis McCullough x31575, Lance Schuler x35419 or Kay Young x36794.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 146 of 413

The Chase Manhattan Bank and Morgan Guaranty Trust Company of NY

Sender	sara.shackleton@enron.com
Recipients	['legal <.taylor@enron.com']
File	taylor-m/inbox/25.

Mark:

I'll call shortly.

(1) We settle daily with Chase (primarily Chase London and secondarily with Chase NY) on the FX side and often on the IR side. We also have NYMEX settlements. We ran a report for Sept. 11 which I'll email to you and this report reflects

payments owed by ENA to Chase. We are currently updating the report for Sept. 12 and nearby settlements.

(2) The Chase master (Interest Rate and Currency Exchange Agreement) is old but the amendment (4/5/94) with commodity market disruption language is our standard.

(3) The NYMEX web page of 9/12/01 indicated that the exchange would clear trades from the 9/11/01 NUMEX Access session against 9/10/01 settlement prices. I haven't checked today.

(4) The Chase master

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 147 of 413

Clickpaper documents

Sender	travis.mccullough@enron.com
Recipients	['greg.piper@enron.com', 'john.cummings@enron.com', 'brandon.wax@enron.com']
File	taylor-m/all_documents/2560.

Attached are the most current drafts of the Password Application, Terms and Conditions of Use, and Electronic Transactions Agreement. Each of these documents is taken from the EOL model, revised as necessary to work for Clickpaper. In particular (i) the Password Application does not address the "Master Use"; and (ii) the ETA has an additional section not found in the EOL ETA (Section 4, which deals with trading on Match).

Please note that while I have discussed these documents with Mark Taylor and Harry Collins, they are reviewing them at the same time as everyone else, and may have comments.

The Privacy Policy, which is a short document (1/2 page) will be coming shortly. Please call me with comments or questions.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 148 of 413

NOx Background Paper

Sender	jwdean@aol.com
Recipients	['e.taylor@enron.com']
File	taylor-m/inbox/passwords/4.

Michael,

Enclosed is a Background Paper we did on NOx in late 1998. It was a 52-page document, only about half of which is enclosed here because it was only sent out as a hard copy. As a result, many of the tables, graphs, and diagrams are not shown in this version.

We are about to issue a large number of Background Papers within the next 30-45 days. We will most certainly have completed our new NOx and SO2 papers in that time frame, and are hoping to have our Mercury paper done as well.

In addition, we are issuing our Quarterly long-term forecasts on both NOx and SO2 in the latter half of this month. Obviously, the next ones will be issued in December.

Once again, thanks for your interest. I look forward to hearing from you.

Best Regards,

John Dean JD Energy, Inc. 922 Watersville Road Mt. Airy, MD 21771 410-489-5141 Fax: 410-489-5257 jwdean@aol.com

Message 149 of 413

nan	
Sender	brent.hendry@enron.com
Recipients	['legal <.taylor@enron.com>']
File	taylor-m/archive/2001_07/25.

Here is a quick list of some of the projects and masters I am working on.

Finalizing Zurich Reinsurance contract on Precipitation Swap Updating weather templates for international stations
Updating weather templates on EOL weather site Revising 6 Enron Nordic weather trades Drafting Semptra weather
confirm template Finalizing negotiations on Smith Barney AAA fund master Working with Weather group on ad campaign
for Heritage Propane Finalizing Element Re master Finalizing BNP weather confirm template Banque CPR master
negotiations BAREP master negotiations AEGIS master comparison Reviewing Article written by Weather group Finalizing
negotiations with SAC hedge fund Working with Alan's group on new double trigger products for Industrial Markets group

Brent Hendry Senior Counsel Enron North America 1400 Smith Street Houston TX 77002 Phone 713 853 7124 Fax 713
646 3490

Message 150 of 413

Free PCs from Clickpaper	
Sender	travis.mccullough@enron.com
Recipients	['mark.taylor@enron.com', 'jeff.harbert@enron.com']
File	taylor-m/notes_inbox/1812.

Jeff:

Sorry this took me so long. Attached is a form of acknowledgement that I would like your customer to sign in connection
with Clickpaper's provision of a PC for their use in trading with Clickpaper.

It is a bit long, but I think we need to cover the several points that it addresses. While it sounds generous (it's free, no
strings attached, you can do whatever you want with it), I think this is the way to go since (1) this industry is so sensitive to
antitrust issues, and (2) tying provision of the PC to Clickpaper usage implies a closer relationship with the customer than
we really want, and we couldn't monitor or enforce it in any event.

I tried to make it very non-threatening for the customer. Let me know your thoughts.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490

Message 151 of 413

Re: Happy New Year

Sender	dagodfrey@amherst.edu
Recipients	[mark.taylor@enron.com]
File	taylor-m/all_documents/1422.

Yes we are here permanently, if the tenure gods cooperate; I am teaching at Amherst College, in the Department of Fine Arts. Gemma is 3 1/2 and we are expecting her sister at the end of June, things are good given the upheaval moving entails. We are going to be in Houston in March for the opening of the new building at the MFA, it's a tight trip but maybe we can have coffee or something, email me a phone number where we can get in touch.

Nice to hear from you

Mark Taylor wrote:

Thanks for your card and hello to the whole family. I didn't know you guys were

in Mass. Is this a long term move? Things are still pretty much the same in

Houston. We'd certainly look forward to seeing more of you down this way!

-- DeWitt Godfrey, Assistant Professor Department of Fine Arts Amherst College 19 Fayerweather Hall Amherst, MA 01002-5000 Tel 413 542 2162 Fax 413 542 7917 Email dagodfrey@amherst.edu

- dagodfrey.vcf

Message 152 of 413

EMA article.....

Sender	lisa.jacobson@enron.com
Recipients	['jeff.keeler@enron.com', 'michael.terraso@enron.com', 'linda.robertson@enron.com']
File	taylor-m/inbox/lisa_j/25.

Jeff Keeler and I wanted to send you an advanced copy of an article that we co-wrote that will be published in the November 2001 quarterly Emissions Marketing Association newsletter. The newsletter is distributed to several hundred leaders in the emissions market industry -- domestically and internationally. The publication will also be distributed at the November 2001 climate change Ministerial meeting, which is attended by over a thousand delegates and observers, including government officials, businesses and media representatives. The article supported multi-pollutant approaches as a means of addressing climate change and providing certainty to firms developing risk management strategies to reduce greenhouse gas emissions.

Please let us know if you have any questions or comments.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 153 of 413

RE: CASCO

Sender	cheryl.nelson@enron.com
Recipients	['legal <taylor@enron.com>', 'mary.cook@enron.com']
File	taylor-m/archive/2001_07/27.

Mary, the file will be ready for your review, as Keegan and I are completed the second final revisions. Please let me know if you would like to review it today.

Otherwise, Mark, let me know when you would like to schedule a time to review it together. Today is a good day for me.

-----Original Message-----

From: Cook, Mary Sent: Wednesday, July 18, 2001 9:40 AM To: Nelson, Cheryl Cc: Taylor, Mark E (Legal) Subject: CASCO

Since you were unable to get this file to me timely prior to my vacation as requested, I have asked that Mark Taylor sit with you and review the file to get it out this week. Please coordinate with Mark for a time when you can review it with him. I spoke with Brian Loubert regarding the acceptance countersignatures of the Enron guaranty and he will look into it and contact Panus. Thanks.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (713) 646-3393 (fax) mary.cook@enron.com

Message 154 of 413

NC pollution deal - Duke, Carolina P&L

Sender	lisa.jacobson@enron.com
Recipients	['e.taylor@enron.com', 'trevor.woods@enron.com', 'salil.pradhan@enron.com', 'jeff.keeler@enron.com', 'mary.sch...]
File	taylor-m/inbox/lisa_j/3.

FYI

We are looking into whether this is a federal or state settlement. More analysis shortly.

- Lisa

---- North Carolina: A compromise is expected to be unveiled today that would cut in half the \$2 billion cost of combating pollution from the state's 14 coal-fired power plants.

Under the compromise, Duke Power and Carolina Power and Light would be committed to decreasing their sulfur dioxide and nitrogen oxide emissions by approximately two-thirds by 2007.

An additional requirement to decrease sulfur dioxide by about another 50 percent by 2013 could be canceled by the state Department of Environment and Natural Resources, and negotiators found the \$1 billion in savings by not counting this phase of pollution cuts.

-- The Charlotte Observer (N.C.) <<http://www.charlotte.com/observer/local/pub/source0831.htm>>, Aug. 31

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 155 of 413

RE: ERMT Templates Power and Gas

Sender	c..koehler@enron.com
Recipients	['steve.van@enron.com', 'carol.st.@enron.com', 'travis.mccullough@enron.com', 'julia.murray@enron.com']
File	taylor-m/archive/2001_11/16.

Here are my comments on the new paragraph 4. I have also attached a revised form of the Financial Master Adoption Agreement template with Paragraph 4 included. I did not include paragraph 3 since I included the chages to the credit terms in Schedule B.

-----Original Message-----

From: McCullough, Travis Sent: Thursday, November 1, 2001 3:55 PM To: St. Clair, Carol; Murray, Julia; Taylor, Mark E (Legal); Koehler, Anne C.; Van Hooser, Steve; Sager, Elizabeth; Hodge, Jeffrey T.; Cook, Mary; Nettelton, Marcus Subject: ERMT Templates Power and Gas

Here are revised templates for the adoption by ERMT of the Power and Gas Masters. Note that adopted gas masters should provide for two-way payments.

Please provide any comments to these templates to Steve as soon as possible, particularly with respect to the new paragraphs 3 and 4.

Travis C. McCullough Enron North America Corp. 1400 Smith Street EB 824 Houston, Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-8860

Message 156 of 413

North Peak Resort Weather Deal: Another Heads Up!~!

Sender	mark.taylor@enron.com
Recipients	['marie.heard@enron.com', 'susan.flynn@enron.com', 'susan.bailey@enron.com']
File	taylor-m/sent/675.

----- Forwarded by Mark Taylor/HOU/ECT on 12/14/99 08:54 AM

Lucy Ortiz 12/13/99 05:22 PM To: Mark Taylor/HOU/ECT@ECT, Tanya Rohauer/HOU/ECT@ECT cc: Subject: North Peak Resort Weather Deal: Another Heads Up!~!

Tanya and Mark,

We're starting to talk to some resorts about doing weather deals and I wanted to give you guys a heads up. We don't have a structure in place and don't have financials yet; we should be getting them sometime this week. But, we would like to start sending the ISDA documents so that they can get comfortable with them.

Mark: Please send the docs to Dick Deutch, his number is 314.432.4000.

Details: North Peak Resort 10920 Schuetz Road St. Louis, MO 63146

We're thinking about doing a 1,3 or 5 year deal. We've already mentioned the letter of credit to them. The deal might be done on the event of temperature hitting below 28-30 degrees. Please call me if you have any questions.

Best Regards,

Lucy

Message 157 of 413

NDA with e-Acumen

Sender	rahil.jafry@enron.com
Recipients	['dave.samuels@enron.com', 'mark.taylor@enron.com', 'jason.peters@enron.com', 'tana.jones@enron.com']
File	taylor-m/notes_inbox/602.

We're fine with signing a bilateral NDA. Lets send them our standard bilateral NDA, unless their suggestions to the one below are exceptionally favorable to us (and we can turn it around immediately).

Thanks in advance, - R 3-3206

----- Forwarded by Rahil Jafry/HOU/ECT on 05/16/2000 03:30

PM -----

Phil Inje Chang <pic@e-acumen.com> on 05/16/2000 03:28:40 PM Please respond to pic@e-acumen.com To: Rahil Jafry <Rahil.Jafry@enron.com> cc: Dave Samuels <Dave.Samuels@enron.com> Subject: NDA proposal

Rahil,

Would it be ok if we executed this NDA as mutual? Our lawyer has provided a redlined copy with the changes that would make it mutual. Otherwise, we don't have an issue with it.

Let me know if there's a problem.

-- Phil Inje Chang President, e-Acumen pic@e-acumen.com 415-255-2250, 415-672-3674 cell. 1940 Bryant Street, San Francisco, CA 94110

You were born an original. Don't die a copy. - John Mason

- EnronOnline NDA2redline.doc

Message 158 of 413

Corporate Global Climate Change Statement....

Sender	lisa.jacobson@enron.com
Recipients	['jeff.keeler@enron.com', 'michael.terraso@enron.com', 'linda.robertson@enron.com']
File	taylor-m/inbox/lisa_j/16.

I am pleased to inform you that the Enron's Global Climate Change statement has been revised and is now available on Enron's internal and external websites. Links to PDF versions are located on both sites.

Thanks to everyone who contributed and please let me know if you have suggestions or comments as well as commercial activity that could be highlighted in the "solutions" sections.

For external viewing, please access the statement via Enron.com, press room:

<http://www.enron.com/corp/pressroom/responsibility/climate/>

For internal viewing, please use the link via the Environment, Health and Safety website:

<http://ehs.corp.enron.com/climate2.asp?Topic=Climate>

We are doing a limited run of hard copies, and offering groups the opportunity to order copies at a fee. If you are interested, please contact me by September 28 and see the draft attached.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 159 of 413

Seminar on Letters of Credit

Sender	mark.taylor@enron.com
Recipients	['carol.clair@enron.com']
File	taylor-m/all_documents/8332.

I was just cleaning out my e-mails (well, a few of them anyway) and ran across this. I hope you already knew about it but if not maybe it's not too late to have input. ----- Forwarded by Mark Taylor/HOU/ECT on 05/10/2001 06:25 PM -----

Julia Murray 04/24/2001 04:04 PM

To: Alan Aronowitz/HOU/ECT@ECT, Elizabeth Sager/HOU/ECT@ECT, Barbara N Gray/HOU/ECT@ECT, Jeffrey T Hodge/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT, Lance Schuler-Legal/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT cc: Subject: Seminar on Letters of Credit

We are planning to have Foley & Lardner do a presentation for EWS Legal regarding stand-by and documentary letters of credit sometime within the next month. If there any specific issues that you would like addressed, please let me know.

Thanks. Regards, Julia

Julia Heintz Murray Enron Wholesale Services Enron Industrial Markets LLC 1400 Smith Street, EB3838 Houston, TX 77002 (713) 853-4794 Fax: (713) 646-3393 julia.murray@enron.com

Message 160 of 413

FW: EWS Networks Entities

Sender	lori.pinder@enron.com
Recipients	['legal <.taylor@enron.com']
File	taylor-m/inbox/324.

Mark:

I am forwarding this to you because Tana's return e-mail message stated that she would not be back to work until 29 Nov.

Any help you can give me will be greatly appreciated. Thanks.

-----Original Message-----

From: Pinder, Lori Sent: Friday, November 16, 2001 5:22 PM To: Jones, Tana Subject: EWS Networks Entities

Tana:

Your entities are classified as being potentially subject to FERC reporting requirements. Jim Derrick and Greg Whalley were to come off the slates 1 Nov. I need to paper the Glisan/Bowen swap, as well as the replacements for Messrs. Derrick and Whalley.

Please let me know who will replace Messrs. Derrick and Whalley, so I can paper all of the above for the entities listed below.

Clickpaper.com, L.L.C. CommodityLogic LLC DealBench L.L.C. Enron Net Works LLC EnronOnline, LLC Directors: JDerrick, MHaedicke, GWhalley

Thanks.

Lori Pinder Supervisor, Corporate Services and Assistant Secretary 1400 Smith St., Room 4802 Houston, Texas 77002 713.853-7291 713.646.8007 (Fax)

Message 161 of 413

RE: cancellation letter

Sender	legal <taylor@enron.com>
Recipients	['kal.shah@enron.com']
File	taylor-m/sent_items/241.

looks fine to me

-----Original Message-----

From: Shah, Kal Sent: Monday, July 02, 2001 4:04 PM To: Taylor, Mark E (Legal) Cc: Bridges, Michael Subject: cancelation letter Importance: High

Mark -- Does this letter text work for you. If so, I'll get it printed on Enron Net Works letterhead and send it off.

Kal

July 2, 2001

Contract Administrator Reuters America Inc. 445 S. Figueroa, Suite 2100 Los Angeles, CA 90071

RE: Acct# US02162-002

Dear Sir or Madam,

Pursuant to the terms of the agreement between Enron Corp. and Reuters America, Inc., please accept this letter as our official notice that Enron Corp. elects to terminate the agreement referenced above at the end of our current 12 month term ending on September 30, 2001. Please direct any questions regarding this notice to Michael Bridges at (713) 345-4079 or Kal Shah at (713) 853-9354. Thank you.

Sincerely,

Andy Zipper Vice President

cc: General Counsel, Reuters America Inc. Lynne Carithers, Reuters America Inc.

Message 162 of 413

Call From John Damgard

Sender	cynthia.sandherr@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/1705.

Mark: fyi.....you recall we met with John Damgard, FIA, before regarding possible membership..... ----- Forwarded by Cynthia Sandherr/Corp/Enron on 11/07/2000 11:14 AM -----

Joe Hillings 11/06/2000 10:37 AM

To: Linda Robertson/NA/Enron@ENRON cc: Lora Sullivan/Corp/Enron@ENRON, Cynthia Sandherr/Corp/Enron@ENRON, Tom Briggs/NA/Enron@Enron, Chris Long/Corp/Enron@ENRON Subject: Call From John Damgard

Joe Hillings Enron 1775 Eye Street, NW Suite 800 Washington, DC 20006 202-466-9145 202-828-3372 (fax) email: jhillin@enron.com

Linda: John called me several days ago and asked if I would set up a meeting with you, John and me when convenient to discuss his interest in setting up a new trade group to promote derivatives issues. He said that "Enron has shown some interest" but I did not ask him to identify who from Enron had shown interest. He also expressed a view that the CFTC was acting too much like a legislator and he preferred to have Treasury handle these matters. Let me know how you want to proceed and the meeting can be scheduled. Joe

Message 163 of 413

FW: American Airlines

Sender	a..robison@enron.com
Recipients	['legal <.taylor@enron.com>', 'richard.friedman@enron.com']
File	taylor-m/archive/2001_08/28.

Mark: Who in your shop should respond to Rich? Thanks, Mike

-----Original Message-----

From: Friedman, Richard Sent: Thursday, August 16, 2001 10:11 AM To: Robison, Michael A. Cc: Berkeland, Bill; Leach, Doug Subject: American Airlines

Mike-

We visited AA yesterday in Dallas and they are going to allow Enron to compete for derivative business with them. Where do we stand with an ISDA with them? They mentioned that all the others they have in place are very generic - I don't know what our unique changes are, but if there is nothing in the works, the proper person to forward it to would be either:

Leslie Benner Geraldine Lim Managing Director Principal Corporate Finance & Banking Corporate Finance 4333 Amon Carter Blvd 4333 Amon Carter Blvd Mail Drop 5662 Mail Drop 5662 Ft. Worth, TX 76155 Ft. Worth, TX 76155

Leslie is the boss, Geraldine is the one who will be responsible for trading derivatives, but is in the job only in the last month.

Let me know, thanks...

Rich Friedman Enron Global Markets LLC richard.friedman@enron.com 713-853-5137

Message 164 of 413

Re: ISDA for Irving Oil

Sender	mark.taylor@enron.com
Recipients	['chad.south@enron.com', 'john.viverito@enron.com']
File	taylor-m/sent/3298.

The next step is for Chad to contact the Credit Group in RAC. They will do the credit analysis and send a credit worksheet to the Swap Group paralegals who will prepare the first draft, run it by a lawyer and get it ready for the customer.

John Viverito@ENRON 03/15/2001 11:21 AM

To: Mark Taylor/HOU/ECT@ECT cc: Chad South/NA/Enron@Enron Subject: ISDA for Irving Oil

Mark-

As you can see from Chad's e-mail below, Irving Oil is interested in entering into an ISDA with us. Please let us know, who will be assigned to prepare the documentation.

Thanks,

John

John Viverito Phone (713) 345-7814 Fax (713) 646-3490 e-mail John.Viverito@enron.com ----- Forwarded by John Viverito/Corp/Enron on 03/15/2001 11:16 AM -----

Chad South 03/15/2001 10:42 AM

To: John Viverito/Corp/Enron@Enron cc: Subject: ISDA for Irving Oil

Per our conversation we have agreed to enter into an ISDA with Irving Oil. We suggested that Enron originate the documents to expedite the process. What should be my next step for this? Thanks.

Chad South 31730

Message 165 of 413

nan

Sender	acurry@velaw.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/1331.

Mark, Carol St. Clair sent me an email saying that you would appoint someone from your group to oversee Raptor III in her absence. Would you let me know whether I should include Sara, Mary or you on future distributions? Thanks.

*Alicia L. Curry Vinson & Elkins L.L.P. 2300 First City Tower 1001 Fannin Street Houston, Texas 77002-6760 Phone: 713-758-4428 Fax: 713-615-5688 (Licensed in New York only) ***** CONFIDENTIALITY NOTICE ***** The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You*

Message 166 of 413

Files

Sender	mary.cook@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/2361.

It has come to my attention that with respect to ISDA masters we file as follows:

1. Original documents for ISDA and any ongoing legal activity, such as assignments etc., are directed to Global Contracts.
2. A Blue file with copies of item 1 is retained in our files.
3. A hardback green file is then made (a copy of Blue file) and sent to Kay Young to be maintained in legal files.

Items 2 and 3 are duplicative copies and require duplicative ongoing upkeep with respect to assignments, mergers, name changes etc. Panus, Jones and I are to discuss this soon. I think we should cease doing item 3 as it is duplicative and "making work." I might also suggest that all prior green files on ISDAs in the file room be destroyed. It may have served a purpose at one time, but I cannot see it now. I will discuss this with Tana before making a decision. What are your thoughts/approval? Thanks. Mary

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 167 of 413

Put Option Confirmation.DOC

Sender	acurry@velaw.com
Recipients	['mark.taylor@enron.com', 'andrea.v.reed@enron.com', 'anne.c.koehler@enron.com', 'ehalbert@velaw.com']
File	taylor-m/notes_inbox/1238.

Attached please find an initial draft of the Put Option Confirmation.

<<Put Option Confirmation.DOC>>

Alicia L. Curry Vinson & Elkins L.L.P. 2300 First City Tower 1001 Fannin Street Houston, Texas 77002-6760 Phone: 713-758-4428 Fax: 713-615-5688 (Licensed in New York only) ++++++ CONFIDENTIALITY NOTICE ++++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

PRIVILEGED AND CONFIDENTIAL: Contains attorney-client communications and/or attorney work product.

- Put Option Confirmation.DOC

Message 168 of 413

Electronic Pay Stubs

Sender	enron.payroll@enron.com
Recipients	['legal <.taylor@enron.com']
File	taylor-m/inbox/96.

Get ready. Beginning in November, electronic pay stubs will be available to all employees who have their paychecks direct deposited into their bank account. Electronic pay stubs are an easy, fast, and efficient way for you to get your payroll information. They will also help Enron to realize a considerable savings in time and dollars spent over traditional printed pay stubs.

If you prefer to receive a hardcopy of your pay stub, click on the link below to complete a request form. This form must be submitted to Payroll by October 15, 2001. Unless you submit a form your pay stub information will default to electronic viewing.

Please click on the link below.

Name: MARK TAYLOR Personnel number: P00501122 Phone: 7138537459

If you have questions about electronic pay stubs, please contact Janice Priddy (Payroll) 713-853-7839 or Marie Newhouse (ClickAtHome) at 713-345-4185 or send an email to Enron.Payroll@enron.com (Enron Payroll in Outlook).

Stay tuned for more details in the coming weeks.

<http://etcsurvey.corp.enron.com/wi/p0810709/i.asp?r=17658&s=ZIVNIDIW&l=9>

Message 169 of 413

Posting Agreement

Sender	travis.mccullough@enron.com
Recipients	['louise.kitchen@enron.com', 'andy.zipper@enron.com', 'mark.taylor@enron.com']
File	taylor-m/notes_inbox/756.

Attached is a revised version of the Posting Agreement that S&C provided to us. I have tried to incorporate some additional provisions and inserted a few "place-savers" to mark some areas where we need to discuss the agreement further; for instance, under what circumstances has a party "defaulted" -- and should at least be liable for the other party's out-of-pocket expenses incurred in establishing the interfaces as well as give the other party the right to terminate the agreement -- and under what circumstances should either party be able to walk away (such as, it just doesn't work)?

Many of these provisions will be "fleshed out" more when the technical considerations are added, and when we sit down with the counterparty to negotiate this Agreement. Hopefully the attached gives you something to meet with S&C on Wednesday. Again, I can participate by phone if any of you think it would be helpful. The best way to reach me is to leave me a voicemail.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 170 of 413

quick update

Sender	sara.shackleton@enron.com
Recipients	['legal <.taylor@enron.com']
File	taylor-m/inbox/30.

(1) Met with Alan A. and Barbara G about disruption (physical and financial) at Alan's request. Explained financial position and updated him on what we've discovered. (2) NYMEX did not operate today at all on new system. Say they will try for tomorrow. (3) Am told that Platts published some indices today including crude. Will publish MTBE (and other products) tomorrow irrespective of whether NYMEX publishes. Will also publish methodology. (4) Emailed ISDA Gen. Counsel Kinberly Summe about including us in industry correspondence/conference calls about "Best Practices" statements. (5) Thus far, disrupted indices seem to include only the following dailies: NYMEX daily OPIS Platts spreads (common pricing issue) (6) Looks like MDE will occur if NYMEX fails to publish tomorrow. We should identify affected counterparties. Traders may want to negotiate anyway. Seems like they are hoping for unified industry stance just for ease and solidarity. I'll talk to Kim Theriot in the morning.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 171 of 413

Provisions relating to enrononline link in Posting Agreement

Sender	travis.mccullough@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/1710.

Mark -- we need to discuss when you have a moment.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490 ----- Forwarded by Travis McCullough/HOU/ECT on 11/07/2000 01:56 PM -----

"Joe Wright" <joe.wright@truequote.com> 11/07/2000 01:32 PM

To: <travis.mccullough@enron.com> cc: "Chris Edmonds"@carvey.adgrafix.com Subject: Provisions relating to enrononline link in Posting Agreement

Travis,

Attached is a revised section of our Access Agreement relating to the enrononline link. The language is that provided by Enron that you wanted us to contain in our agreement. However, the CFTC wants revisions to this part as shown by the redlined changes before the No-Action Letter will issue. Please review and get back to me.

Also, during our conversation with the CFTC today we were again asked the status of the representations we must make re insider trading and any potential disqualifications re 10% investors. Please let me know as soon as possible whether Enron has any problem with this.

Joe Wright

- enronsectionrevised.doc

Message 172 of 413

Enron Opinion for Merlin Put Option.DOC

Sender	acurry@velaw.com
Recipients	['mark.taylor@enron.com', 'andrea.v.reed@enron.com', 'anne.c.koehler@enron.com', 'ehalbert@velaw.com']
File	taylor-m/all_documents/3022.

Attached is a draft of the Enron in-house legal opinion in connection with the put option with Project Merlin.

Alicia L. Curry Vinson & Elkins L.L.P. 2300 First City Tower 1001 Fannin Street Houston, Texas 77002-6760 Phone: 713-758-4428 Fax: 713-615-5688 (Licensed in New York only) ++++++ CONFIDENTIALITY NOTICE ++++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

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<<Enron Opinion for Merlin Put Option.DOC>>

- Enron Opinion for Merlin Put Option.DOC

Message 173 of 413

Updated Merlin Term Sheet

Sender	acurry@velaw.com
Recipients	['dkeyes@velaw.com', 'mark.taylor@enron.com', 'andrea.v.reed@enron.com', 'anne.c.koehler@enron.com', 'ehalbert...]
File	taylor-m/archive/8_00/127.

Attached is an updated Term Sheet. For your convenience, I have attached marked and unmarked copies.

Alicia L. Curry Vinson & Elkins L.L.P. 2300 First City Tower 1001 Fannin Street Houston, Texas 77002-6760 Phone: 713-758-4428 Fax: 713-615-5688 (Licensed in New York only) ++++++ CONFIDENTIALITY NOTICE

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<<Compare.DOC>> <<Term Sheet for Merlin Put v8.DOC>>

- Compare.DOC - Term Sheet for Merlin Put v8.DOC

Message 174 of 413

Re: Limor Nissan

Sender	tana.jones@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/2215.

----- Forwarded by Tana Jones/HOU/ECT on 04/11/2001 01:39 PM -----

Laurie Mayer 04/11/2001 10:27 AM

To: Tana Jones/HOU/ECT@ECT cc: Limor Nissan/NYC/MGUSA@MGUSA Subject: another quick question

Tana, would you please let us know the location of the ISDA folders referenced in Limor's attached e-mail? Thanks, Laurie

----- Forwarded by Laurie Mayer/HOU/ECT on 04/11/2001 10:25 AM -----

Limor Nissan@MGUSA 04/11/2001 09:40 AM

To: Laurie Mayer/HOU/ECT@ECT, Nony Flores/HOU/ECT@ECT cc: Subject: another quick question

Hey guys,

I'm in the process of getting authorized to access files in the O drive, and need to confirm which folders are ones that I would need. The one labeled Legal seems appropriate. Also, I understood from Alan that there is a folder with scanned in ISDA Masters that I need. The thing of it is that I don't know what's in any of the folders, so it's hard to figure which ones I should get authorized for.

If you guys could help me identify which ones they are, that would be great.

Thanks,

Limor

520 Madison Avenue New York, NY 10022 Tel: 212-715-5283 Fax: 212-715-5608 Email: Limor.Nissan@Enron.com

Message 175 of 413

Lumber Futures

Sender	limor.nissan@enron.com
Recipients	['mark.taylor@enron.com', 'andrew.cornfield@enron.com', 'robert.bruce@enron.com', 'alan.aronowitz@enron.com']
File	taylor-m/notes_inbox/2471.

Gentlemen,

We wanted to make you aware of some discussions that are going on concerning the possibility of ETS clearing trades in lumber futures on behalf of Enron Industrial Markets. Presently, ETS is not a member of the Chicago Mercantile

Exchange, and has an omnibus account with ABN Amro through which our orders are placed.

Presently, EIM places its orders through one or more brokers who give up the trades at the end of the day to one or two institutions who will clear those trades for EIM. The chief benefit which is sought out in EIM clearing lumber futures through ETS is the consolidation of their trade clearance business through ETS, and the elimination of the use of third parties that presently clear those trades.

As an operational matter, ETS is equipped to handle the business, as it already has the infrastructure to do so.

The discussions are in a fairly preliminary stage, and have been principally among the business people. We would welcome your input on this matter.

Regards,

Limor Nissan & Al Pennisi

Enron Trading Services Inc. 520 Madison Avenue New York, NY 10022 Tel: 212-715-5283 Fax: 212-715-5608 Email: Limor.Nissan@Enron.com

Message 176 of 413

Re: MAP Consideration

Sender	ppantano@mwe.com
Recipients	['mark.taylor@enron.com', 'marcus.nettelton@enron.com', 'alfred.pennisi@enron.com']
File	taylor-m/notes_inbox/1728.

Dear Marcus:

Thank you for the Enron/MG group structure charts. They appear to be pre-acquisition. What we need to include in ETS' risk assessment filing is an org. chart which shows where ETS fits in the Enron org. chart.

Regards, Paul

Paul J. Pantano, Jr. McDermott, Will & Emery 600 13th Street, N.W. Washington, DC 20005 Ph: (202) 756-8026 Fax: (202) 756-8087 Email: ppantano@mwe.com

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Marcus.Nettelton@enron.com on 11/09/2000 10:32:39 AM

To: ppantano@mwe.com cc: Alfred.Pennisi@enron.com, Mark.Taylor@enron.com Subject: MAP Consideration

Paul

Further to our conversation on the telephone earlier this week, attached is the information you require. If there is any further information please you need please do not hesitate to contact me.

Regards

Marcus

(See attached file: Press article - FT.doc)(See attached file: structure detail2.ppt) (See attached file: Press article - FT.doc)
(See attached file: structure detail2.ppt)

- Press article - FT.doc - structure detail2.ppt

Message 177 of 413

POSTPONED -- Greenhouse Gas Strategy Discussion, Nov. 20.....

Sender	lisa.jacobson@enron.com
Recipients	['dan.badger@enron.com', 'j..kean@enron.com', 'michael.terraso@enron.com']
File	taylor-m/deleted_items/557.

Given recent events, we have decided to postpone the Greenhouse Gas Strategy Discussion scheduled for Tuesday, November 20.

However, based on your interest, I will set up a conference call to discuss the outcomes of the climate change negotiations last week. Broad rules for international greenhouse gas emissions trading and project-based programs under the Kyoto Protocol were adopted (Clean Development Mechanism and Joint Implementation).

If you would like to participate in the conference call on November 20, please RSVP to me via email. For those in Houston, we can meet in EB 8C1.

A confirmation will be sent to participants by the end of the week. Thanks for your interest.

DATE - TIME

Tuesday, November 20 8:30 a.m. Central Time EB 8C1

COP-7 Outcomes Conference Call November 20, 2001 8:30 a.m. EB 8C1

Yes, I would like to participate in the COP-7 Conference Call _____

No, I will not be able to participate _____

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 178 of 413

Re: Hardware Request

Sender	mark.taylor@enron.com
Recipients	['sheri.cromwell@enron.com', 'janette.elbertson@enron.com']
File	taylor-m/all_documents/7700.

Janette - Can you give us the straight scoop? ----- Forwarded by Mark Taylor/HOU/ECT on 02/06/2001 06:01 PM -----

Sheri L Cromwell 02/06/2001 05:54 PM

To: Mark Taylor/HOU/ECT@ECT cc: Subject: Re: Hardware Request

Mark,

I was moved to your CC number in January, but I'm not sure why since none of my assignments are in your group. Unless something has changed recently, I think I'm still under your number. Should I check with Janette?

sc

Mark Taylor 02/06/2001 05:44 PM

To: Sheri L Cromwell/HOU/ECT@ECT cc: Subject: Re: Hardware Request

Sheri -

I'm not sure this is an issue for me. Aren't you in Lance's group now?

Mark

Sheri L Cromwell 02/06/2001 02:08 PM

To: Mark Taylor/HOU/ECT@ECT cc: Subject: Hardware Request

Mark,

My mouse is not responding properly (left click), and I need to have it replaced. I would like to order the Intellimouse at a cost of \$23.

If this meets with your approval, please forward this message to Janette Elbertson. Thanks!

Company #0413 CC#105657

Sheri L. Cromwell Sr. Administrative Assistant Enron North America Corp. 1400 Smith Street, EB 3815 Houston, Texas 77002-7361 Phone: 713-853-3543 Fax: 713-646-3491 E-Mail: Sheri.L.Cromwell@enron.com

Message 179 of 413

FW: ESVL Schedules.DOC

Sender	marcus.nettelton@enron.com
Recipients	['julia.murray@enron.com', 'legal <.taylor@enron.com>', 'Catherine McCarthy; Samuel Behrends']
File	taylor-m/deleted_items/421.

FYI.

-----Original Message-----

From: Yvonne Coviello [mailto:YMCOVIEL@LLGM.COM] Sent: Wednesday, October 31, 2001 2:26 PM To: Nicolay, Christi L.; Sager, Elizabeth; Steffes, James D.; Nettelton, Marcus; Novosel, Sarah Cc: Catherine McCarthy; Samuel Behrends Subject: ESVL Schedules.DOC

Attached is an updated draft of EVSL's proposed rate schedule. Also attached is a draft of the application.

Yvonne M. Coviello LeBoeuf, Lamb, Greene & MacRae, L.L.P. 1875 Connecticut Avenue, N.W. Washington, D.C. 20009-5728 Direct Dial: (202) 986-8044 Fax: (202) 986-8102 Email: ymcoviel@llgm.com

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Message 180 of 413

FW: Proposed Audit Presentation

Sender	david.yeres@cliffordchance.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/archive/2001_06/15.

Mark,

Further to mine of June 8th, do you think there is any continuing interest in your shop for the contract audit matter we discussed? By the way, was Enron's building spared in the recent floods that we read about?

Regards,

David

-----Original Message----- From: Yeres, David (Financial Products-NY) Sent: Friday, June 08, 2001 12:19 PM To: 'mark.taylor@enron.com' Subject: Proposed Audit Presentation Mark, I haven't heard back on scheduling the contract audit presentation. Is this on the back burner or have you decided not to proceed at this time? David Yeres Clifford Chance Rogers & Wells 200 Park Avenue New York, NY 10166 Tel: (212) 878-8075 Fax: (212) 878-8027 email: david.yeres@cliffordchance.com

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Message 181 of 413

FW: Con Ed Subs

Sender	mary.cook@enron.com
Recipients	['legal <taylor@enron.com>', 'susan.bailey@enron.com']
File	taylor-m/archive/2001_07/24.

Mark, please advise Susan who should undertake the work on these files.

-----Original Message-----

From: Bailey, Susan Sent: Wednesday, July 18, 2001 8:53 AM To: Cook, Mary Cc: Sacks, Edward Subject: FW: Con Ed Subs

Mary,

Please let me know who in the SWAP Group should get these ISDAs now that Bob Bruce will not be handling. -----Original Message----- From: Bruce, Robert Sent: Wednesday, July 18, 2001 8:36 AM To: Bailey, Susan Subject: RE: Con Ed Subs

Yes, I'd prefer that someone in the swaps group move forward on these files. All I did on either of them was review the original draft. -- thanks, Bob

-----Original Message-----

From: Bailey, Susan Sent: Wednesday, July 18, 2001 8:22 AM To: Bruce, Robert Cc: Sacks, Edward; Cook, Mary Subject: Con Ed Subs

Bob,

Ed Sacks asked that the following Con Ed Subs be added to the SWAP Group Legal/Credit list:

Consolidated Edison Energy, Inc. Consolidated Edison Solutions, Inc.

Please advise if you will still handle the ISDA negotiations or if you would prefer that a lawyer in the SWAP Group pick-up these counterparties.

Just let me know.

Cordially, Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3803A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 Email: Susan.Bailey@enron.com

Message 182 of 413

nan	
Sender	leslie.hansen@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/1408.

Mark:

Here is the memo we received from Milbank as per my voice mail.

Leslie ----- Forwarded by Leslie Hansen/HOU/ECT on 09/11/2000 02:19 PM -----

APelton@milbank.com 09/07/2000 05:41 PM

To: leslie.hansen@enron.com cc: EFeo@milbank.com, DHudanish@milbank.com, SMiller@milbank.com Subject:

Dear Ms. Hansen:

Please find attached for your review a memo regarding the regulation of online gaming in all fifty United States.? This memo subsumes the information in the previous memo.? If you have any questions or comments regarding this matter, please do not hesitate to contact me.

Sincerely,

August W. Pelton Milbank, Tweed, Hadley & McCloy 601 South Figueroa Street, 30th Floor Los Angeles, California?
90017 (213) 892-4345 (213) 892-4745 (fax)

<<Enron Online Memo.doc>>

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- Enron Online Memo.doc

Message 183 of 413

ISDA Energy Conference	
Sender	mark.haedicke@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/all_documents/8395.

----- Forwarded by Mark E Haedicke/HOU/ECT on 05/24/2001 05:19 PM -----

"Liz O'Sullivan" <LOSULLIVAN@isda.org> 12/13/2000 03:56 PM

To: Mark Haedicke <Mark.E.Haedicke@enron.com> cc: Subject: ISDA Energy Conference

Mark:

I am writing in regards to ISDA's Energy and Developing Products conference in Houston on March 6, 2001. I have attached a copy of the agenda for your information. <<Houston speaker agenda.2001.doc>>

We are now in the process of trying to find suitable speakers for the conference. I know Mary Cunningham had mentioned to you about inviting a senior person from Enron to open the conference on the Overview of Energy and Developing

Markets from 9:00 AM to 9:30 AM. We are concerned that if Jeffrey Skilling spoke at the conference his participation would take away our draw at the AGM in April. We would be delighted to have you open the conference unless you think we should invite a business speaker to give an Overview of Energy and Developing Markets.

Should you have any questions, please call me at 212-332-2559.

I look forward to hearing from you.

Best regards,

Liz

Ms. Liz O'Sullivan International Swaps and Derivatives Association, Inc. 600 Fifth Avenue - 27th Floor Rockefeller Center
New York, NY 10020 (212) 332-2559

- Houston speaker agenda.2001.doc

Message 184 of 413

Clickpaper Password App.

Sender	mark.greenberg@enron.com
Recipients	['travis.mccullough@enron.com', 'mark.taylor@enron.com', 'marla.thompson@enron.com', 'tana.jones@enron.com']
File	taylor-m/all_documents/7770.

Marla -

I appreciate the patience on the Password issue. I realize it has been a while since we first spoke about this point.

I have reviewed the concern about hackers and Enron use of Passwords and the best we can do is insert language into the Password App. similar to that appearing in the attached document (which is the same type of language used in the ETA's). It is intended only to cover the situation where Clickpaper personnel use the password or otherwise access the website, in an unauthorized manner, on behalf of a counterparty. The language does not address the hacker situation as we place the burden in that situation upon the counterparty.

Finally, since the Password App. is a legal, electronic agreement, any amendments or modifications for a counterparty must come through my office or through Tana Jones ((x. 33399). Accordingly, those counterparties who have raised the issue should call either one of us if further action is necessary. We do not actually revise the form agreements, but do provide side letters indicating modifications to the form agreement.

Once again, please accept my apologizes for the delay. Let me know if you should need anything further.

Mark Senior Counsel, ENA Phone: 713-345-8897 Facsimile: 713-646-3940 E-Mail: Mark.Greenberg@enron.com

Message 185 of 413

Revised Schedule to ISDA Master

Sender	acurry@velaw.com
Recipients	['dkeyes@velaw.com', 'anne.c.koehler@enron.com', 'mark.taylor@enron.com', 'andrea.v.reed@enron.com']
File	taylor-m/all_documents/2935.

Attached is a revised draft of the Schedule to the ISDA Master Agreement to be entered into between Enron Corp. and ENA CLO I Holding Company I L.P. For your convenience, I have attached a marked and an unmarked copy.

Alicia L. Curry Vinson & Elkins L.L.P. 2300 First City Tower 1001 Fannin Street Houston, Texas 77002-6760 Phone: 713-758-4428 Fax: 713-615-5688 (Licensed in New York only) ++++++ CONFIDENTIALITY NOTICE

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<<Compare.DOC>> <<Schedule to ISDA Master: Enron Corp. and Holding I - Put Option.DOC>>

- Compare.DOC - Enron Corp. and Holding I - Put Option.DOC

Message 186 of 413

Re: VPP Vehicle

Sender	mark.taylor@enron.com
Recipients	['mary.cook@enron.com']
File	taylor-m/sent/3102.

Generally speaking we have only documented that kind of concern when there were separate legal entities involved (like getting a comfort letter or guaranty from EI when ECT had to do the swap for one of their deals). I think we can get away with pointing out the issue to both commercial sides.

Mary Cook 12/14/2000 03:30 PM

To: Mark Taylor/HOU/ECT@ECT cc: Subject: VPP Vehicle

The VPP swap vehicle is being structured such that if a major adverse reservoir event occurs (no gas!) and as a result the Partnership (owned by Trust/banks) cannot fund the swap payments, then as swap default occurs and if termination payment is owed to ENA, the termination payment will in essence be subordinated to the bank loan repayment. This is clearly a free walk on ENA on the swap (ENA in essence wears reservoir risk on the swap). If this is the commercial deal, so be it. However, I am concerned that the "\$ fallout" in such event be charged internally to the finance originators and not the trading arm, but I do not know who to talk to about this. Any ideas? Or should I assume it resolves itself internally as and when it may occur? Mary

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 187 of 413

Re: Agreements

Sender	mark.taylor@enron.com
Recipients	['louise.kitchen@enron.com', 'andy.zipper@enron.com', 'lydia.cannon@enron.com', 'travis.mccullough@enron.com']
File	taylor-m/sent/1098.

I can make it next week. Travis will be on vacation but we can patch him in by phone. Ken is available from 9 to 11 and then again from 3 or 4 onwards. Which would you prefer?

Louise Kitchen 06/06/2000 11:44 AM

To: Travis McCullough/HOU/ECT@ECT cc: Andy Zipper/Corp/Enron@Enron, Lydia Cannon/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT Subject: Re: Agreements

Cool and Yup to the lawyer - probably both of you if you can make it as we will revisit the regulatory issues in depth for the paperwork - can we set up Wed in NY?

From: Travis McCullough on 06/06/2000 11:39 To: Louise Kitchen/HOU/ECT@ECT cc: Andy Zipper/Corp/Enron@Enron, Lydia Cannon/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT

Subject: Re: Agreements

Louise:

The S & C first draft of the Posting Agreement was fine as far as it went, but it was only a first draft and needs a rework before the meeting to make the best use of your time. Mark and I plan to redraft it and recirculate it in the next couple of days -- I wouldnb't recommend you look at the current draft, because it doesn't really say anything other than what is already in the True Quote term sheet.

Do you need a lawyer with you in New York when you meet with S & C?

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490

Message 188 of 413

GTC for External FX products

Sender justin.rostant@enron.com

Recipients ['Sara Shackleton/HOU/ECT@ECT', 'mark.taylor@enron.com']

File taylor-m/notes_inbox/2276.

I should let you know that the GTCs are identical for both products with the exception of the Name of the product. I will follow up with you next week about the GTC Thanks jr ----- Forwarded by Justin Rostant/HOU/ECT on 03/30/2001 05:40 PM -----

From: Justin Rostant 03/30/2001 11:19 AM

To: Mark Taylor/HOU/ECT@ECT cc: Sara Shackleton/HOU/ECT@ECT Subject: GTC for External FX products

Mark, we are trying to have everything completed so we could launch this product to go live on April 9th. Sara has already given us the approval on the GTCs for these FX products for external counterparties. The products do not have names as yet, but the FX team is working on it. Can you go ahead and review the GTC's for these products in the mean time and I will contact you with the names of the products as soon as we get them. Thanks jr

----- Forwarded by Justin Rostant/HOU/ECT on 03/29/2001

04:49 PM ----- From: Sara Shackleton on 03/29/2001 10:09 AM To: William Stuart/HOU/ECT@ECT, Justin Rostant/HOU/ECT@ECT, Susan Musch/Enron@EnronXGate cc: Subject: attachments

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 189 of 413

ETS

Sender limor.nissan@enron.com

Recipients ['mark.taylor@enron.com', 'alan.aronowitz@enron.com']

File taylor-m/all_documents/7482.

Hi Mark,

I was hoping that you might have some time to have a discussion on the feasibility of layering an order routing system onto Enron Online.

More specifically, Enron Trading Services Inc. (the FCM) would like to do an assessment re: whether there are any material regulatory or other consequences resulting from linking a possible ETS trading website to Enron Online. The idea would be that many of Enron's existing customers that are not also customers of ETS but who require brokerage services in futures and options on futures may be interested in obtaining ETS services. Conceptually, this business would be run and administered through ETS and what would be involved is a link from the EOL website directing customers who choose to use ETS to the ETS website.

To that end, we have done some very preliminary work, and believe that the main issue is structuring such a relationship between ETS and EOL such that EOL will not be considered an Introducing Broker. Of course, however, we cannot form any meaningful opinion without a broader internal discussion with you and any other person that is familiar with our regulatory position on matters relating to this.

Please let me know when you would be available to have a preliminary discussion.

Thanks a lot,

Limor

Enron Metals & Commodity Corp. 520 Madison Avenue New York, NY 10022 Tel: 212-715-5283 Fax: 212-715-5608
Email: Limor.Nissan@Enron.com

Message 190 of 413

Energy and Developing Products Conference in London 2001

Sender	losullivan@isda.org
Recipients	['ainslie.ruth@enron.com', 'mark.taylor@enron.com', 'd'hulster.katia@enron.com', 'carey.stacy@enron.com', 'e.....
File	taylor-m/archive/2001_06/9.

I am writing in regards to ISDA's Energy and Developing Products conference in London on December 4, 2001. I have attached a draft agenda for your review. In order to finalize the agenda, please advise on the following issues:

- New and Developing Products in Europe - Local public policy issues in Europe - Product types that are of interest to Europe

<<draft2.doc>> At the last Energy and Developing Products conference held in Houston in March 2001, we had problems finding suitable speakers willing to participate in conference. Keep in mind we had twenty two speakers for a one day conference!! As a result, we would prefer to have fewer workshops this time in London. Workshop 1 in each session we will provide global and regional perspectives on different product types with a focus on business and trading issues. Workshop 2 is for attendees who are interested in a more in-depth understanding of the ISDA Master Agreement and how it can be used to document energy and power derivatives. This workshop will be repeated in session two. Please note, Houston's conference had one more workshop in session one and session two. Please suggest workshop topics that would be of interest to delegates attending the conference.

I look forward to hearing from you.

Regards, Liz

Liz O'Sullivan ISDA 600 Fifth Avenue Rockefeller Center - 27th floor New York, NY 10020 Phone: (212) 332-2559 Fax: (212) 332-2561

- draft2.doc

Message 191 of 413

Re: Letters of Credit; Preference; Swap Transactions

Sender	mark.taylor@enron.com
Recipients	['carol.clair@enron.com', 'julia.murray@enron.com']
File	taylor-m/sent/3398.

Thanks for this memo -- definitely comforting for the vast majority of our swap business. I think the additional interesting question is whether or not we lose the benefit of the special treatment under the bankruptcy code when we enter into cross-product (i.e. physical and financial products) netting and joint credit support arrangements. If we net all of our trading exposures under multiple agreements (swap agreements and gas, power, steel, coal, etc. trading agreements) to determine how much credit support should be posted and then only ask for a single LC that supports the whole shebang, do we lose this protection since arguably we are no longer just "under a swap agreement?" Would you like me to ask Emory to expand?

Julia Murray 05/24/2001 06:28 PM

To: Mark Taylor/HOU/ECT@ECT cc: Subject: Letters of Credit; Preference; Swap Transactions

fyi

Julia Heintz Murray Managing Director and General Counsel Enron Wholesale Services Enron Industrial Markets LLC
1400 Smith Street, EB3838 Houston, TX 77002 (713) 853-4794 Fax: (713) 646-3393 julia.murray@enron.com

----- Forwarded by Julia Murray/HOU/ECT on 05/24/2001 06:28 PM -----

"Ireland, Emory" <eireland@foleylaw.com> Sent by: "Steiner, Judith A." <JSteiner@foleylaw.com> 05/24/2001 11:36 AM

To: "'julia.murray@enron.com'" <julia.murray@enron.com> cc: Subject: Letters of Credit; Preference; Swap Transactions
- 1014549_1.DOC

Message 192 of 413

Electronic Transactions Agreement - revised

Sender	greg.piper@enron.com
Recipients	['travis.mccullough@enron.com', 'mark.taylor@enron.com', 'brandon.wax@enron.com']
File	taylor-m/notes_inbox/991.

As you know, the ETA has to address Trade one-to-many with Enron and Match one-to-many with Enron. We also need a separate Trade GTC one-to-many with Enron and Separate Match GTC one-to-many with Enron. We also need a single Password application that addresses Match and Trade, both one-to-many.

As soon as these drafts are complete, I would like to read them!

Thanks.

GP ----- Forwarded by Greg Piper/Corp/Enron on 07/12/2000 11:33 AM ----- From: Travis McCullough@ECT on 07/11/2000 08:33 PM To: Greg Piper/Corp/Enron@Enron, Brandon Wax/HOU/ECT@ECT, John Cummings/HOU/ECT@ECT, Jeff Harbert/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Harry M Collins/HOU/ECT@ECT, Leslie Hansen/HOU/ECT@ECT cc: Subject: Electronic Transactions Agreement - revised

Attached is a revised version of the ETA omitting the distinction between transactions on Match and transactions on Trade. If Enron is the only party permitted to post product on Match, there is no need for the special rules that we drafted for what was previously a "many-to-many" matching site. However, we will need to develop a different set of GTCs for transactions that Enron closes on Match, since the products transacted on Match are not likely to be the type that lend

themselves to Enron's standard GTCs.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490

Message 193 of 413

attorney workload

Sender	sara.shackleton@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/all_documents/8486.

Mark:

Attached is my current workload report. I'm beginning to get nervous about meeting traders' expectations as I am taking vacation from June 14 - 22 (seven business days) and I don't know who will be able to pick up my emergencies and routine issues.

I have some idea about Mary's and Frank's workload and I have the impression that Brent is constantly busy with weather. I'd like to briefly discuss Cheryl's workload I think it would be a good idea to have everyone submit a status report of sorts to you so that you can assess how much is "project" oriented vs. routine, specific commodity areas, and volume.

FYI, I am trying to limit Cheryl's activity with Gary's group to brokerage agreements only. The huge volume of activity on the brokerage end was apparently the result of a recent audit by AA and effort to "cleanup" the agreement status. It should be winding down. I have encouraged Cheryl (as have Frank and Mary) to provide you with a workload report since we really want her to be trained in the swap basics.

Also, I will try to schedule a conference call with David Mitchell, you and me before I leave (topic is online trading of credit derivatives). Currently, only ECL is offering the bankruptcy default swap online (and no one is hitting the product).

Sara Shackleton Enron North America Corp. 1400 Smith Street, EB 3801a Houston, Texas 77002 713-853-5620 (phone)
713-646-3490 (fax) sara.shackleton@enron.com

Message 194 of 413

Production Payments

Sender	mary.cook@enron.com
Recipients	['rhett.jackson@enron.com', 'teresa.bushman@enron.com', 'robert.bruce@enron.com', 'eric.wardle@enron.com']
File	taylor-m/all_documents/3895.

ENA is proceeding with a number of volumetric production payment transactions. Generally, the producer will want to establish the pricing through a swap mechanism prior to the actual closing of the VPP and prior to the syndication of the VPP. For example, Preston Exploration entered into a swap last Friday with ENA to establish the VPP pricing on a transaction to be closed this week. At the VPP closing the Preston position in the swap will be transferred to ECT Merchant Investments Corp. (a wholly owned sub of ENA and VPP buyer); therefore, the swap counterparties will then be ECTMI and ENA. As the VPP is syndicated (planned prior to year end), the original Preston swap position will be further assigned/restated to the syndicate VPP buyer (generally a Texas LP 99.9999% owed by an unrelated Trust). Upon the last transfer, the swap will not be between two Enron subs.

Based upon viewing other VPP structures, it is my understanding that these swaps do not need the RMT tax treatment since the swap is carried as an affiliate swap only as an interim step. Please advise. I will be preparing the swaps on the basis of the foregoing absent your direction otherwise.

As noted in my voice mail, I also need to visit with you about RMT in general. Thanks. Mary.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 195 of 413

FW: Enron North America Corp./PG&E Energy Trading -- Power, L.P.

Sender	tanya.rohauer@enron.com
Recipients	['mark.taylor@enron.com', 'Tanya; Mellencamp', 'Conwell', 'Wendy; Rohauer', 'William S.', 'Lisa; Bradford']
File	taylor-m/notes_inbox/2047.

Just wanted to let you know I appreciated Mary's effort in turning this around so quickly even though her workload was quite heavy due to the KCS VPP. The situation was not handled very well prior to it landing on her desk (which we can discuss if you are interested), but true to form, Mary saved the day.

Thanks, Tanya

-----Original Message-----

From: Cook, Mary Sent: Friday, June 01, 2001 11:49 AM To: peter.meier@neg.pge.com; jennifer.hein@neg.pge.com; daniel.sarti@neg.pge.com; gloria.sandoval@neg.pge.com Cc: Conwell, Wendy; Rohauer, Tanya; Mellencamp, Lisa; Bradford, William S.; Nelson, Cheryl; Sager, Elizabeth Subject: Enron North America Corp./PG&E Energy Trading -- Power, L.P. ISDA Draft

Please see the attached draft for your review and comment. Please note that in the interest of time this draft is being distributed prior to complete internal review and comment. It is therefore subject to further comment by Enron North America representatives. Further, please note that ancillary documentation, including, without limitation, ratifications of guaranties and an amendment to and extension of the master netting agreement, will also be required. I intend to circulate drafts of ancillary documentation next week as we review and discuss the ISDA draft.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 196 of 413

Updated Memo

Sender	brent.hendry@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/all_documents/7572.

Here is the final memo. FYI ----- Forwarded by Brent Hendry/NA/Enron on 01/22/2001 07:56 AM -----

"JOHN MCGREEVY" <JMCGREEV@LLGM.COM> 01/21/2001 03:33 PM

To: <BRAD.blesie@enron.com>, <BRENT.hendry@enron.com>, <DAVID.hoog@enron.com>, <Joana.Ryan.Bekerman@enron.com>, <LOU.Stoler@enron.com> cc: "PAUL BRUCE WRIGHT" <PWRIGHT@LLGM.COM> Subject: Updated Memo

Attached are clean and blacklined versions of the updated "Is the Option Insurance Memo". I think we get you where you need to be. Also, we have, for the most part, done away with the "what index shall we use when there is no hourly published index" issue.

John

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John J. McGreevy LeBoeuf, Lamb, Greene & MacRae, L.L.P. 125 West 55th Street New York, NY 10019 (212) 424-8361
jmcgreev@llgm.com

- #389651 vRTF - Knock In Call Option Memo.rtf - #389651 v3 - Knock In Call Option Memo.doc - JOHN MCGREEVY.vcf

Message 197 of 413

Re: Provisions relating to enrononline link in Posting Agreement

Sender	travis.mccullough@enron.com
Recipients	['andy.zipper@enron.com', 'mark.taylor@enron.com', 'joe.wright@truequote.com']
File	taylor-m/notes_inbox/1714.

Joe:

After speaking with Andy, I think it is fair to say that there is a substantial (85% probability) that the clawback triggered by our closing a deal with a competing platform will be triggered. We will advise you if and when it is definitely triggered.

As to the representation to the CFTC, we can certainly make the representation regarding no basis for statutory disqualification pursuant to Sections 8a(2) and 8a(3) of the Act. However, we are a little bit concerned about the application of the policies to prevent trading on "material nonpublic information." Most of our concern revolves around what may be included within that term; certainly, it should not include information that we receive from a customer submits to us through the Posting Agreement, but in any event, a better idea of what the CFTC might be concerned about here would be helpful.

Finally, would it be possible for us to get an advance copy of your request for no action letter? You may have sent it to us before, but if you did, I can't locate it now. I think it would be a good idea to get that in front of our regulatory counsel as soon as possible and ask that they confirm that the no-action letter that you get (assuming that they give you all the relief that you have requested) will have everything that they think we need.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575
Fax: (713) 646-3490

Message 198 of 413

Re: "US WTI Crude Phy Exchange"

Sender	nony.flores@enron.com
Recipients	['mark.taylor@enron.com', 'jefferson.sorenson@enron.com', 'john.viverito@enron.com', 'alan.aronowitz@enron.com...']
File	taylor-m/notes_inbox/2396.

Rob,

As per your request, attached is a clean version of ERAC's GTCs rev1 dated March 1, 2001 for uploading to EOL.

Jeff,

As indicated in John's email below, ERAC's GTC's have been modified to cover exchange transactions. We have also drafted the following online exchange confirmation template for this type of transactions.

Thanks. Nony Flores Ext. 37541

Robert B Cass 03/06/2001 09:22 AM

To: John Viverito/Corp/Enron@ENRON, Nony Flores/HOU/ECT@ECT cc: Subject: Re: "US WTI Crude Phy Exchange"

Thanks John -

Nony, could you forward your final version of the GTC's - a non-red-lined version, please.

Thanks for all of your efforts in this product build-out.

Rob

From: John Viverito@ENRON on 03/05/2001 11:07 AM To: Robert B Cass/HOU/ECT@ECT cc: Nony Flores/HOU/ECT@ECT, Alan Aronowitz/HOU/ECT@ECT Subject: "US WTI Crude Phy Exchange"

Rob-

Attached hereto are both the ERAC on-line GTCs modified to cover exchanges and the related confirmation to be utilized for such on-line exchange transactions. The modified ERAC on-line GTCs are redlined against the existing ERAC on-line GTCs, for your ease of reference. These documents relate to the product description as modified and sent to you on 2-27-01.

Following your review of the documents, please contact me to discuss any questions or comments that you may have.

Thanks,

John

John Viverito Phone (713) 345-7814 Fax (713) 646-3490 e-mail John.Viverito@enron.com

Message 199 of 413

FW: PBOG Corp.

Sender	deb.korkmas@enron.com
Recipients	['legal <.taylor@enron.com>']
File	taylor-m/archive/2001_11/35.

Mark, FYI. Deb

-----Original Message-----

From: trish.lindloff@weil.com@ENRON Sent: Monday, November 12, 2001 4:11 PM To: Korkmas, Deb Cc: stuart.ogg@weil.com Subject: RE: PBOG Corp.

Deb,

That was an entity that Lavorato asked us to set up as an alternative to Swapco in a non-bankruptcy, non-Dynegy scenario, so Mark Taylor would know about it. It was supposed to be SOG Corp., but that name was not available so we started adding letters on until we got one that worked (the state of Delaware was holding on the phone). I would imagine that we will dissolve this entity. I will check with Stuart and Mark.

As for Swapco, I am going through the documents and will send you an email listing all the signatures/action items we still have outstanding in order to wrap this up.

Thanks for you help.

Regards, Trish

Weil, Gotshal & Manges LLP 100 Crescent Court, Suite 1300 Dallas, Texas 75201 (214) 746-8116 (direct)
trish.lindloff@weil.com

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*Message 200 of 413***Clickpaper.com internal URL and documents**

Sender	travis.mccullough@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/992.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490 ----- Forwarded by Travis McCullough/HOU/ECT on 07/12/2000 02:48 PM -----

John Cummings 07/12/2000 02:14 PM

To: Deborah Long/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT cc: Subject: Clickpaper.com internal URL and documents

Deborah

<http://testpulpweb0.ecomtest.enron.com:8001/site/index.htm> ---This is the URL to the most current build. (Note: Travis- this is slightly different URL from the one you have been looking at

Attached are 2 word documents. The first is a final re-write of several sections of the website. Once you get this we can talk on the telephone so that I can explain what sections replace where. Hopefully it will be self-explanatory. We are not looking for major changes (except from legal), but rather spelling, grammar, tense, etc. Second is a letter we are sending out to a short list of valued customers on Monday to begin our pre-registration process. Travis I sent this along for you review as well. Deborah, the only changes left are possibly yours and from the legal department. As I said on the telephone, we are on a very aggressive timeframe and it would have been great have several weeks to tighten everything up perfectly, but we are not afforded that luxury. Give me a call at x36413 if you have any questions or comments. Also the Frequently Asked Question rewrites will follow shortly.

JC

*Message 201 of 413***Revised Confirmation**

Sender	acurry@velaw.com
Recipients	['dkeyes@velaw.com', 'anne.c.koehler@enron.com', 'mark.taylor@enron.com', 'andrea.v.reed@enron.com']
File	taylor-m/all_documents/2967.

Attached is a revised draft of the Put Option Confirmation, reflecting comments received from Anne this morning. I have attached both a marked and an unmarked copy. As discussed with Anne, I will make conforming changes to the Term Sheet and updates to reflect a couple of additions to the Put Option Confirmation that were in the last draft but that are not in the term sheet to the extent such additions are not beyond the scope of the Term Sheet.

Alicia L. Curry Vinson & Elkins L.L.P. 2300 First City Tower 1001 Fannin Street Houston, Texas 77002-6760 Phone: 713-758-4428 Fax: 713-615-5688 (Licensed in New York only) ++++++ CONFIDENTIALITY NOTICE ++++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized

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<<Compare.DOC>> <<Put Option Confirmation v2.DOC>>

- Compare.DOC - Put Option Confirmation v2.DOC

Message 202 of 413

RE: Man Financial: margin calculation

Sender	legal <taylor@enron.com>
Recipients	['sara.shackleton@enron.com']
File	taylor-m/sent_items/448.

If Man is not holding margin in violation of the Customer Agreement, it doesn't seem to me like we should send the letter.

-----Original Message-----

From: Shackleton, Sara Sent: Friday, November 02, 2001 12:01 PM To: Taylor, Mark E (Legal) Subject: Man Financial: margin calculation

ENA received a letter 10/30/01 stating that Man would begin margining on a risk-weighted basis rather than using the NYMEX SPAN calculation. This is prohibited under our futures agreement. Man has not formally called for additional margin (which they have the right to do) but rather is withholding about \$25M based upon a misunderstanding between traders about moving option positions (I'm not entirely clear about the circumstances). Man has never claimed that the \$25M was "additional margin". ENA faxed a letter this morning to Man demanding the return of margin in excess of the SPAN calculation, basically a response to the letter.

ENA accounting does not have the software to execute SPAN calculations. A recommendation to purchase the software was made by Sarah Wesner (who then reported to Joe Deffner) to accounting last year.

I understand that John Arnold intends to move most positions (including options) from Man to Paribas. However, this information changes frequently.

Joe Deffner signed the letter and a copy was delivered to Louise Kitchen. Let me know if you need further information.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 203 of 413

Easter

Sender	mark.taylor@enron.com
Recipients	['yao.apasu@enron.com', 'amh5h@server2.mail.virginia.edu']
File	taylor-m/sent/205.

----- Forwarded by Mark - ECT Legal Taylor/HOU/ECT on
03/31/99 10:28 AM -----

Enron Capital & Trade Resources Corp.

From: "Linda Hayman" <lhayman@skadden.com> 03/31/99 10:14 AM

To: Mark - ECT Legal Taylor/HOU/ECT, yapasu@ect.enron.com cc: amh5h@server2.mail.virginia.edu Subject: Easter

This is your last chance to spend Easter with us in this millennium. Amanda and I will be in DC on Saturday and then we are going to the Inn at Little Washington outside of DC for Sunday dinner. Why don't you two Texans charter a jet and come on in? It will make a splash with the locals. Amanda can introduce you around the law school and upgrade her own standing in the community.

Linda Hayman Skadden, Arps, Slate, Meagher & Flom, LLP 919 Third Avenue, 44th Floor New York, NY 10022 Direct: 212-735-2637 Fax: 212-451-7364 E-Mail: lhayman@Skadden.com

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Message 204 of 413

Re: Letter of Interest to Amerex

Sender	bob.shults@enron.com
Recipients	['lorraine.becker@enron.com', 'mark.taylor@enron.com', 'travis.mccullough@enron.com']
File	taylor-m/notes_inbox/1757.

Please schedule a meeting with Travis, Mark and Mike Bridges early next week.

thanks ----- Forwarded by Bob Shults/HOU/ECT on 11/15/2000 08:10 AM

From: Travis McCullough on 11/14/2000 08:51 PM To: Lorraine Becker/HOU/ECT@ECT cc: Bob Shults/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT Subject: Re: Letter of Interest to Amerex

The Amerex letter looks fine.

FYI, Mark Taylor has been working on the broker access project. I think that the structure of these deals may ultimately differ from the structure described in the LOI and term sheet, but I'm not sure what the current thinking is on the structure right now. I do know that some more thought has been put into the broker access concept since we developed the Natsource LOI (upon which the other two were based), and that we have never gone back to the Natsource LOI to make sure that it represented "the deal."

The LOIs/Term sheets on these deals are non-binding, so I don't think there is any material legal exposure for sending them out and starting discussions with these counterparties. However, I think that when Mark Taylor returns, we need to put our heads together and make sure that these proposals match up with how we our current thinking on these structures. If there is a big difference, we can talk about approaching our counterparties on these LOIs and explaining our new approach.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 205 of 413

Ontario Securities

Sender	mary.cook@enron.com
Recipients	['mark.taylor@enron.com', 'peter.keohane@enron.com', 'tana.jones@enron.com']
File	taylor-m/notes_inbox/1928.

See below: The new rule was bounced back to the OSC by the Minister of Finance. Keep me advised if you receive any further information as and when it may be reconsidered. Thanks. Mary

On September 8, 2000, the Commission delivered Rule 91-504 Over-the-Counter Derivatives (the "Rule") and Companion Policy 91-504CP (the "Policy") to the Minister of Finance for approval under section 143.3 of the Securities Act.

On November 2, 2000, the Minister returned the Rule and the Policy to the Commission for further consideration by the Commission of the need for the Rule, especially in regard to the balance between the costs and other restrictions on market participants and the objectives of the Rule, and whether the Commission's objectives in connection with the regulation of over-the-counter derivatives can be achieved by a rule that identifies specific classes of transactions and related parties that will be regulated as opposed to having provisions of the Securities Act apply to all over-the-counter derivatives transactions and then providing exemptions from that application. The Minister indicated that a more detailed review of the nature and extent of any disclosure issues in retail over-the-counter derivatives transactions would be helpful in determining the appropriate approach.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 206 of 413

Re: Language verification- NN0294.1

Sender	mark.taylor@enron.com
Recipients	['mary.cook@enron.com']
File	taylor-m/sent/1166.

Do you want to take a stab at this? I'm happy to go over it with you if you are unsure. ----- Forwarded by Mark Taylor/HOU/ECT on 07/13/2000 09:23 AM -----

Susan Bailey 07/13/2000 08:38 AM

To: Mark Taylor/HOU/ECT@ECT cc: Subject: Re: Language verification- NN0294.1

Mark,

This request was previously made to Susan Flynn. Confirm has had no response from Legal and is awaiting our word.

Since you are the most Veteran member of the team would you mind advising as to whether Souad's language is OK.

If I can be of further help, just let me know.

Thanks.

Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com ----- Forwarded by Susan Bailey/HOU/ECT on 07/13/2000 08:32 AM -----

Souad Mahmassani 07/12/2000 06:04 PM

To: Susan Bailey/HOU/ECT@ECT cc: Subject: Re: Language verification- NN0294.1

Susan,

Please advise on the below issue- this trade is from June 14th, and I haven't heard anything back on it from your team. Please let me know as soon as you can in order for me to send out the confirm.

Thanks,

Souad Mahmassani 06/21/2000 10:18 AM To: Susan Flynn/HOU/ECT@ECT cc:

Subject: Language verification- NN0294.1

Susan,

This deal with Anadarko is a little tricky. It is a Gas Daily Call Option with a cap. I have added the cap language in the cash settlement paragraph. Joe is ok with the change, but wanted to get your approval before sending out to CP. Let me know if language is ok. Thanks,

Message 207 of 413

NETCO Holdings	
Sender	trish.lindloff@weil.com
Recipients	['stuart.ogg@weil.com', 'legal <.taylor@enron.com>']
File	taylor-m/archive/2001_11/30.

Andy is asking for invoice information and address to complete the Services and Indemnity Agreement.

FYI, we need the Independent director's signature from here on out for any corporate actions so we need to try to get this Agreement finalized and signed up today.

Thanks, Trish. ----- Forwarded by Trish Lindloff/DA/WGM/US on 11/08/2001 02:47 PM -----

"Andrew L. Stidd" <astidd@gssnyc.com> on 11/08/2001 02:04:23 PM cc: Subject: NETCO Holdings

Dear Trish:

Attached is a draft of our agreement for NETCO. We just need invoicing information and company addresses to complete both agreement.

Please feel free to call me with any questions or comments that you may have.

Best regards.

Andy Stidd Global Securitization Services, LLC 400 West Main Street, Suite 338 Babylon, New York 11702 (Tel.) 631 587 4700 ext. 11 (Fax) 212 302 8767 www.gssnyc.com

(See attached file: GSS Services & Indemnity Agr NETCO Hldgs.doc)

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- GSS Services & Indemnity Agr NETCO Hldgs.doc

Message 208 of 413

BlackBerry Sale! Your \$199 Wireless Handheld!	
Sender	blackberrysale-33033@connectione.com
Recipients	['legal <.taylor@enron.com>']
File	taylor-m/deleted_items/423.

Take advantage of this special offer to get a BlackBerry™ for only \$199! = We are pleased to announce a special offer that gives you all the benefits BlackBerry mobile email and contact management for only \$199 when purchased with service activation from Connectione and Cingular Wireless*. Now you can stay connected by with your clients by

receiving= and sending emails wherever you are using your own BlackBerry. RIM = 950 Sale! To take advantage of this offer, good through December 31, 2001= only, simply click [HERE](#) to order. I look forward to hearing from you s= oon, Charlie Jackson P.S. Please forward this email to your friends and = colleagues who might be interested in going wireless! Connectione, a= n Austin, Texas company, helps you make the most of your business communic= ations by providing complete wireless and mobile handheld solutions. We al= so offer Compaq iPAQ TM and Palm TM bundles. For additional information ca= ll Charlie Jackson at 888.237.3072 ext. 82(Toll free), visit us at <http://www.connectione.com> or email us at sales@connectione.com . * This speci= al promotion is 50% off the regular purchase price of \$399 (a \$200 savings=) and includes a RIM 950 wireless handheld with synchronization kit. A 1 y= ear contract for Interactive Messaging PLUS by Cingular Wireless is requir= ed at time of purchase and includes an unlimited airtime usage level at \$4= 4.95 per month. To be permanently removed from our email list, just send a= message to list-remove-33033@connectione.com . =09

- 950Sale.gif

*Message 209 of 413***Sample JD Energy**

Sender	jwdean@aol.com
Recipients	['e.taylor@enron.com']
File	taylor-m/inbox/passwords/3.

Michael,

Attached is a sample JD Energy monthly Emissions Allowance Price Forecast edited from our August publication. A couple of quick comments.

1-You actually would be able to subscribe for \$1,500/yr instead of the full \$1,800 price because Enron already subscribes to some of our coal work.

2-The Monthly publication, as you will notice, often focuses heavily on interpreting short-term "events" and placing them into a context for the next few years. The Quarterly publication which forecasts for the longer-term obviously spends more time on market and cost fundamentals.

3-I will send you a Background Paper we did on NOx some time ago to give you a flavor of how we address the more technical issues in-depth. We had originally only sent this one out hard copy because we often use a large number of diagrams and other tables that don't always reproduce well, but you will be able to get an idea of these papers from what I send you. This year we are sending out all of our Background Papers in PDF.

4-Finally, as I mentioned on the phone, we encourage our clients to call us with questions and comments, ranging from looking for specific information to simply brainstorming different scenarios. Finally, I make a point to get to see all of our clients in person each year and do not charge anything extra for an on-site presentation at a mutually agreeable time.

I look forward to hearing your reaction to our forecasting service. Thanks again for your interest.

Best Regards,

John Dean JD Energy, Inc. 922 Watersville Road Mt. Airy, MD 21771 410-489-5141 Fax: 410-489-5257 jwdean@aol.com

*Message 210 of 413***GSS Agreement**

Sender	trish.lindloff@weil.com
Recipients	['legal < taylor@enron.com >']
File	taylor-m/archive/2001_11/31.

I am forwarding to you for your review the Form of Services Agreement that Global Securitization Services uses with respect to service as an Independent director. ----- Forwarded by Trish Lindloff/DA/WGM/US on 11/07/2001 07:31 PM -----

"Andrew L. Stidd" <astidd@gssnyc.com> on 11/07/2001 01:03:03 PM cc: Subject: GSS Agreement

Dear Trish:

Attached is a draft of our Services Agreement for CGNN Holding Company, Inc. If this form is acceptable I will draft a similar agreement for ERMT LLC (modified to include the non-economic member).

The independent director for ERMT LLC will be Bernard J. Angelo and the golden shareholder will be GSS Contract Services I, Inc., a Delaware corporation.

Please feel free to call me with any questions or comments that you may have.

Best regards.

Andy Stidd Global Securitization Services, LLC 400 West Main Street, Suite 338 Babylon, New York 11702 (Tel.) 631 587 4700 ext. 11 (Fax) 212 302 8767 www.gssnyc.com

(See attached file: GSS Services & Indemnity Agr.doc)

*****NOTE***** The information contained in this email message is intended only for use of the individual or entity named above. If the reader of this message is not the intended recipient, or the employee or agent responsible to deliver it to the intended recipient, you are hereby notified that any dissemination, distribution or copying of this communication is strictly prohibited. If you have received this communication in error, please immediately notify us by telephone (214-746-7700), and destroy the original message. Thank you.

- GSS Services & Indemnity Agr.doc

Message 211 of 413

Re: Easter

Sender mark.taylor@enron.com

Recipients ['lhayman@skadden.com', 'yapasu@ect.enron.com', 'amh5h@server2.mail.virginia.edu']

File taylor-m/sent/203.

The Inn at Little Washington sounds great but I'm afraid I won't be able to make it this time. However, as the geekiest among I consider it my duty to point out that since the millennium doesn't actually end until December 31, 2000, we do have next year!

Enron Capital & Trade Resources Corp.

From: "Linda Hayman" <lhayman@skadden.com> 03/31/99 10:14 AM

To: Mark - ECT Legal Taylor/HOU/ECT, yapasu@ect.enron.com cc: amh5h@server2.mail.virginia.edu Subject: Easter

This is your last chance to spend Easter with us in this millennium. Amanda and I will be in DC on Saturday and then we are going to the Inn at Little Washington outside of DC for Sunday dinner. Why don't you two Texans charter a jet and come on in? It will make a splash with the locals. Amanda can introduce you around the law school and upgrade her own standing in the community.

Linda Hayman Skadden, Arps, Slate, Meagher & Flom, LLP 919 Third Avenue, 44th Floor New York, NY 10022 Direct: 212-735-2637 Fax: 212-451-7364 E-Mail: lhayman@Skadden.com

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received this e-mail in error, please immediately notify me by telephone and permanently delete the original and any copy of any e-mail and any printout thereof.

Message 212 of 413

Re: TNPC; Lockup Waiver Letter

Sender mary.cook@enron.com

Recipients ['dbarbour@andrews-kurth.com', 'joel.ephross@enron.com', 'mspradling@velaw.com']

File taylor-m/all_documents/3755.

I have no copy of the waiver letter, nor do I have any idea how it fits into any of these transactions. I might add, I never have received a copy of any of the Raptor 3 swaps evidencing execution in final form etc. Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Joel Ephross@ENRON 11/14/2000 08:45 PM

To: Robert Eickenroht/Corp/Enron@ENRON cc: mspradling@velaw.com, dbarbour@andrews-kurth.com, Mary Cook/HOU/ECT@ECT Subject: Re: TNPC; Lockup Waiver Letter

Hi Robert. I have reviewed the waiver briefly, and have also faxed it to Gareth Bahlmen, Mark Spradling and David Barbour since they were invloved in the Raptor 3 and Hawaii structures, which involved the EES warrants. I may be reading the waiver incorrectly, but I think that it goes to far in (ii) by providing that "Such Transactions can only be settled in cash and not by delivery of the undlerlying Securities...."

Why should the underwriter care how I settle, as long as it is not in shares of the underlying security.

since the underlying derivative involves a swap, I am copying Mary Cook with the letter as well.

Robert Eickenroht 11/14/2000 02:27 PM

To: Joel Ephross/Corp/Enron@ENRON cc: Jimmie Williams/HOU/EES@EES Subject: TNPC; Lockup Waiver Letter

Joel:

I wanted to get your comments to the Lockup Waiver Letter with Credit Suisse First Boston that I drafted and previously circulated to you and to Jimmie Williams. Jimmie did not have any comments. I would like to get any comments you have and forward the draft to CSFB.

Thanks, Robert

Message 213 of 413

38th floor issues

Sender mark.taylor@enron.com

Recipients ['taffy.milligan@enron.com']

File taylor-m/sent/3124.

Just so you can see what is happening..... ----- Forwarded by Mark Taylor/HOU/ECT on 01/03/2001 06:04 PM -----

Joya Williams 01/03/2001 04:04 PM

To: Dolores Sustaita/EPSC/HOU/ECT@ECT, Frank Ortiz/EPSC/HOU/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT Subject: 38th floor issues

Hi Dolores/Frank:

(1) Did you check on removing the TV from EB3866? If there's a huge cost for relocating the TV, please let me know. Also, what is the cost for removing the TV? Charge CO/RC = 0413/105658

(2) We need to have the secretarial cube at EB3875 lowered to 42". I guess this is a request for construction???? Charge CO/RC = 0413/105659

(3) The copier has been delivered by my desk at EB3855A from 3AC. Can we get a status on the engineers getting the plug ready? (you know what I mean).

(4) We also need to get a drawing for reconstructing the area between my desk at EB3855A and EB3858/EB3858A/EB3858C/EB3858B. We need to maximize this space and add to secretarial workstations and maybe some type of closure to block the sound of the copier.

(5) We need to relocate the library currently at EB3858C to the team room at EB3872.

(6) Can I please get a current copy of the floor plan.

(7) The Cost Memo has been signed for the final phase of construction by Mark Haedicke. Can I get the estimated date for construction to begin? I need to put in a churn request as soon as possible.

Today, Raul w/ McCoy came by and we did a walk through for the offices that were just completed.

Thanks.

Joya' F. Williams, Sr. Admin. Assistant EGM Legal Department 1400 Smith St., EB3855A Houston, Texas 77002
joya.williams@enron.com (713) 853-9559 (direct dial) (713) 646-4842 (fax)

Message 214 of 413

Meeting next week...

Sender	lisa.jacobson@enron.com
Recipients	['trevor.woods@enron.com', 'marc.phillips@enron.com', 'jeff.keeler@enron.com', 'mary.schoen@enron.com']
File	taylor-m/inbox/lisa_j/6.

Trevor,

I got your message re: Duke, Carolina P&L. We are looking into it. Also, please let me know if you have any questions regarding the information that Jeff and Mary gave you last week on Sec. 126. They are free to talk.

Next Tuesday (9/11) is our next conference call. It turns out that I will be in Houston, so let's do it in person. 9:30 am is the time and I will come to your floor. In addition, Marc Phillips would like to attend to talk with you about an opportunity to work the pipelines in Argentina on CO2e emissions credits from methane leak repairs.

Finally, you had expressed interest in learning more about the Chicago Climate Exchange. One of the principals will be in Houston on 9/11 and is available at 2:30 pm to brief Enron on the progress of their design phase and the value of participation in the exchange. I have met with them a few times -- key issues regarding Enron's participation are 1) Enron's lack of a voluntary CO2 reduction target and 2) the CCX's initial mid-west focus.

While participation in the initial design phase does not require a emissions reduction target, most companies participating have adopted one and the program is being promoted around companies taking on targets. Despite this, I think talking with them would be of value. I would especially like your reactions to their pitch and whether you feel that the emissions desk would find it of valuable (assuming that we could resolve the target issue).

Please confirm that the time and location still works and let me know if you have other issues you would like to cover.

Thanks,

Lisa

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 215 of 413

MG--Craig Young FYI	
Sender	mary.cook@enron.com
Recipients	['sarah.wesner@enron.com', 'mark.taylor@enron.com', 'Craig Young/NY/ECT@ECT']
File	taylor-m/notes_inbox/2710.

See below.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 01/03/2001 05:11 PM -----

Alan Aronowitz 01/03/2001 05:08 PM

To: Craig Young/NY/ECT@ECT cc: Marcus Nettelton/NA/Enron@ENRON, Craig Young/NY/ECT@ECT, Marcelo Parra/NYC/MGUSA@MGUSA, Limor Nissan/NYC/MGUSA@MGUSA, Marcus Nettelton/NA/Enron@ENRON, Mary Cook/HOU/ECT@ECT Subject: Re:

Craig:

Hope you had a Happy New Year.

Marcus is out this week.

I have not been in the loop recently regarding the clearing issues. I know that Mary Cook of our Legal Department here in Houston had looked into the issues with some of the Operations people working under John Lavaroto. I do not know what the conclusions, if any, were as a result of that work.

I think Limor Nissan, our new Senior Counsel in NY, should now be involved in this, and should coordinate with Mary once Limor gets a read from you on where you are going with this. Also, I got a voice mail from Paul Pantano of McDermott, Will & Emery today, and he indicated that you would like him to do some work. Craig, in order for us to effectively manage legal issues, Limor needs to be involved in all requests made for outside legal work. Please coordinate with her.

Let me know if you need any further assistance. Thanks.

Regards, Alan

Craig Young 01/03/2001 03:10 PM To: Alan Aronowitz/HOU/ECT@ECT, Marcus Nettelton/NA/Enron@ENRON cc: Craig Young/NY/ECT@ECT Subject:

<http://www.onexchange.com/press010201.htm>

Alan & Markus

What are your current thoughts on the roll of Enron Trading Services order routing and credit/clearing with EOL ??

Craig

*Message 216 of 413***Re: ISDA MASTER AGREEMENT**

Sender	tana.jones@enron.com
Recipients	[mark.taylor@enron.com]
File	taylor-m/all_documents/3770.

Can you please direct one of the paralegals to assist Angeline with getting this documentation in place. I thought Susan would be appropriate because she handles internal masters, but I understand she is only responsible for RMT Masters.

----- Forwarded by Tana Jones/HOU/ECT on 11/16/2000 02:12 PM -----

Susan Bailey 11/16/2000 02:01 PM

To: Tana Jones/HOU/ECT@ECT cc: Subject: Re: ISDA MASTER AGREEMENT

Tana,

I am not sure why you have forwarded this e-mail request on to me.

Please explain.

Susan S. Bailey Enron North America Corp. 1400 Smith Street, Suite 3806A Houston, Texas 77002 Phone: (713) 853-4737 Fax: (713) 646-3490 E:mail: Susan.Bailey@enron.com

Tana Jones 11/15/2000 08:19 AM

To: Susan Bailey/HOU/ECT@ECT cc: Subject: ISDA MASTER AGREEMENT

----- Forwarded by Tana Jones/HOU/ECT on 11/15/2000 08:19 AM -----

Angeline Poon 11/15/2000 03:25 AM

To: Tana Jones/HOU/ECT@ECT cc: Subject: ISDA MASTER AGREEMENT

Hi Tana -

We are trying to put in place an ISDA Master Agreement between Enron Australia Finance Pty Ltd and Enron Capital & Trade Resources International Corp (Singapore Branch). Enron Australia has already signed on the document. Can we send it to you to help us get the necessary signatures for ECTRIC (Singapore Branch)?

I have prepared the following documents but not sure if they are most up to date:

1. Certificate of Assistant Secretary
2. Certificate of Secretary
3. Unanimous Consent of Directors (this is incomplete cos I am not sure of the part starting from RESOLVED ..)

Is there any other documents that I have missed out? Would appreciate your help and guidance whether I have done the above correctly. If there is anything incorrect, please guide me accordingly.

Many thanks Angie

*Message 217 of 413***telephone conversation**

Sender	michael.brown@enron.com
Recipients	[mark.taylor@enron.com', 'jeffrey.hodge@enron.com', 'Richard Sage/LON/ECT@ECT']
File	taylor-m/all_documents/2585.

FYI Michael ----- Forwarded by Michael R Brown/LON/ECT on 13/07/2000 08:32 -----

Eric Gadd 12/07/2000 22:38 To: Michael R Brown/LON/ECT@ECT, Paul Simons/LON/ECT@ECT, Esther Gerratt/LON/ECT@ECT cc: Richard Sage/LON/ECT@ECT

Subject: telephone conversation

Michael + Paul-

Thought you might be interested in Alfred as a possible contact for insights on regulatory activities. I'll ask Richard Sage to record him as a contact on our sheet.

Esther-

Please action somebody to follow thru on the cost saving opportunity (clear all NYMEX energy trades). Jeff Shankman is the logical port of call in Houston to run this through. Please advise me of the findings and conclusions.

----- Forwarded by Eric Gadd/LON/ECT on 12/07/2000 22:34 -----

Enron Capital & Trade Resources Corp.

From: Alfred.Pennisi@mglondon.com 11/07/2000 21:23

To: egadd@enron.com cc:

Subject: telephone conversation

Eric,

I want to thank you again for returning my call.

To summarize, I received a memo from Tom McKeever concerning individuals in the organization who have been identified as key or secondary role in certain function areas. I noticed that there is no US contact on the list. I would have no problem in you adding my name to the list since I run the Regulatory Firm of MG London Inc. USA a registered FCM and CTA.

Note: We can clear all Enron's NYMEX energy trades. It is my understanding that you presently clear through ten different brokers. Maybe we can save some \$\$\$\$\$. Call me if you have any interest. 212 715 5845.

regards,

Alfred Pennisi MG London Inc. 520 Madison Avenue 28th Floor New York, NY 10022 Tel: 212.715.5845 E-mail: alfred.pennisi@mglondon.com

Message 218 of 413

Dobriansky briefing on Bush climate change policy...

Sender	lisa.jacobson@enron.com
Recipients	['linda.robertson@enron.com', 'pat.shortridge@enron.com', 'michael.terraso@enron.com', 'jeff.keeler@enron.com']...
File	taylor-m/inbox/lisa_j/14.

As part of a Business Council for Sustainable Energy delegation, I met with Paula Dobriansky, Undersecretary for Global Affairs at the Department of State on Friday. Dobriansky serves as the head delegate for the U.S. at the climate change negotiations.

The BCSE is an industry trade group for the efficiency, natural gas and renewables industries in the U.S. The Council supports the adoption of a binding international treaty to address climate change.

Not surprisingly, her tone was moderated in contrast to her remarks at the NAM meeting in early September. She expressed her "commitment," along with others in the Administration like Jim Connaughton at the Council on

Environmental Quality, to put forward a plan to address climate change. Though she could not say what form the plan would take or provide an indication of the timing of its release -- especially in light of the September 11 attacks.

Dobriansky confirmed that she intends to attend the next set of climate change negotiations scheduled for late October in Morocco (COP-7). The U.N. has not postponed or cancelled the meetings.

She also confirmed that the U.S. would not block other nations from adopting rules to implement the Kyoto Protocol at COP-7. The U.S. will engage in climate change convention issues and inject itself to protect U.S. interests, including non-tariff trade barriers and competitiveness issues.

There was a general discussion of the merits of cross-border and regional greenhouse gas trading through NAFTA or other mechanisms, but the Administration's thinking on this is still in the conceptual phase.

Please let me know if you have any questions.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 219 of 413

Clickpaper.com	
Sender	travis.mccullough@enron.com
Recipients	['mark.taylor@enron.com', 'mark.haedicke@enron.com', 'harry.collins@enron.com', 'edmund.cooper@enron.com', 'ju...]
File	taylor-m/all_documents/2615.

Justin and Edmund:

I understand that the two of you are the key legal contacts in London on EnronOnline, and I thought that I should contact you regarding Clickpaper.com, Enron Net Works' new e-commerce initiative.

Enron is planning to launch next week (with a formal launch in connection with Enron Corp.'s analyst meeting on July 25) of a website for Enron's trading of pulp and paper products. The business model is similar to that of EnronOnline, but since this website will have a more targeted audience, we can expect a broader product offering and greater volumes than is currently traded on EnronOnline. It is anticipated that the site will ultimately have global counterparties and will trade physical products at several "hubs" around the world, although operations will initially be more or less limited to the U.S. and Canada.

I understand that the London office has done substantially all of the legal work associated with enabling global counterparties to trade on EnronOnline (such as adopting appropriate password applications and electronic trading agreements and addressing legal issues associated with electronic trading of financial and physical products). While much of that work will be transferable to Clickpaper, there may be some unique issues.

I'm not sure if anyone has discussed how to handle the legal work for Clickpaper as it expands into European markets, but I thought that I should raise the issue. I don't expect a huge volume of work immediately -- it will probably trickle in as the traders expand their operations -- but at some point it could become a substantial effort.

I would appreciate any thoughts that you have.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 220 of 413

RE: Credit Matters

Sender	tanya.rohauer@enron.com
Recipients	['mark.taylor@enron.com', 'mary.cook@enron.com']
File	taylor-m/all_documents/8340.

Mary,

1. I will reinforce the importance of using the database to all of our analysts. Do you a means of monitoring usage? If so, I can determine who is using it and who is not.
2. Goes without saying. I will reinforce the necessity of accuracy to the group.
3. If an outstanding gty exists, I will ask that my group note it on the credit worksheet. If it is a financial gty, I would expect you all would already have a copy in your files so I do not think you need another copy. The absence of any notation on the worksheet should suffice as no prior gty exists covering financial trades.

Thanks, Tanya

-----Original Message-----

From: Cook, Mary Sent: Thursday, May 10, 2001 1:36 PM To: Rohauer, Tanya Cc: Taylor, Mark Subject: Credit Matters

At our regular paralegal lunch, the paralegals and I discussed a few ongoing matters related to our coordination with credit. Your assistance in relaying these requests to your group is appreciated. Thanks in advance. Call if you want to discuss.

1. Credit needs to use Lotus Notes Financial Database for reference (as well as any critical input). I might suggest that your floor computer helper set up the computers to automatically open the database each morning via shortcut.
2. Credit needs to doublecheck worksheet information, especially when a worksheet is being done on the basis of an overwrite of a different worksheet.
3. As part of credit worksheet preparation, can credit check the credit system to determine whether there are any applicable outstanding outgoing or incoming guaranties? If so, provide us copies. If not, state on worksheet "no prior gty."

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 221 of 413

FW: NOx Budget Workshop

Sender	trevor.woods@enron.com
Recipients	['e.taylor@enron.com']
File	taylor-m/inbox/trevor/23.

-----Original Message-----

From: CKeeper@envirosys.com@ENRON

[mailto:IMCEANOTES-CKeeper+40envirosys+2Ecom+40ENRON@ENRON.com] Sent: Wednesday, October 03, 2001 10:33 AM To: Woods, Trevor Subject: NOx Budget Workshop

Trevor Woods

It was nice to see you at the NOx Budget Workshop last week in Alexandria, Virginia. I hope you were able to attend our reception Wednesday evening following the last Q&A session.

As promised, I am forwarding to you more information about Environmental Systems Corporation (ESC). Attached to this e-mail is our Statement of Qualifications for your review. Due to the deadlines set by the EPA for emissions monitoring plans and subsequently, deadlines for systems to be in place, affected sources are actively seeking DAS and reporting systems to be in compliance with the EPA's emission guidelines. ESC is very capable of assisting you and your company with your CEM system needs, from top of the stack sampling to data acquisition management and quarterly electronic reporting. ESC is an A -to- Z company when it comes to emissions monitoring and reporting. Our management takes great pride in providing timely installations and excellent customer service at a fair price. ESC also offers detailed in-house or on-site training for all your software/hardware requirements. Please consider ESC for your emissions monitoring system.

If you would like more detailed information about ESC or if you have any questions about EPA guidelines for emissions monitoring, please feel free to call on us without obligation.

Christopher Keever Marketing Associate II Environmental Systems Corporation (ESC) 200 Tech Center Drive Knoxville, TN 37912 Telephone- (865) 688-7900 FAX- (865) 687-8977 ckeever@envirosys.com

(See attached file: Statement of Qualifications.doc) - Statement of Qualifications.doc

Message 222 of 413

Re: Mahonia Prepay Restructuring

Sender	mark.taylor@enron.com
Recipients	['teresa.bushman@enron.com']
File	taylor-m/sent/1198.

Yes, I think you are right.

Teresa G Bushman 07/20/2000 05:09 PM

To: Mark Taylor/HOU/ECT@ECT cc: Subject: Mahonia Prepay Restructuring

Mark:

I believe the reference to the credit annex is to the credit annex to the Interest Rate ISDA Master, so I assume you or someone in your group should review the amendment. Am I correct? I think Chase is drafting the amendment.

Teresa

Teresa G. Bushman Enron North America Corp. 1400 Smith Street, EB 3812 Houston, TX 77002 (713) 853-7895 fax (713) 646-3393 teresa.g.bushman@enron.com

----- Forwarded by Teresa G Bushman/HOU/ECT on 07/20/2000 05:07 PM -----

Davis Thames@ENRON COMMUNICATIONS 07/19/2000 10:37 AM

To: Teresa G Bushman/HOU/ECT@ECT, Morris Richard Clark/HOU/ECT@ECT, Cris Sherman/HOU/ECT@ECT, Molly Harris/HOU/ECT@ECT, Paige B Grumulaitis/HOU/ECT@ECT, Brian Kerrigan/HOU/ECT@ECT, Joseph Deffner/HOU/ECT@ECT, Sandra F Brawner/HOU/ECT@ECT, Mary Lynne Ruffer/HOU/ECT@ECT, Faith Killen/HOU/ECT@ECT, Earline Kendall/HOU/ECT@ECT, Stanley Farmer/Corp/Enron@ENRON, John Griffith/Corp/Enron@ENRON, Clement Abrams/Corp/Enron@ENRON, Donna Lowry/HOU/ECT@ECT cc: Subject: Mahonia Prepay Restructuring

Prepay team;

Here's the latest on the restructurings that we thought we might be doing earlier in the week:

Molly and Chase have worked out an arrangement whereby we can post collateral under the existing deals without adversely affecting our cash position. Therefore a fast-track restructuring will not be needed at this time. Chase and Teresa will negotiate an addendum to the credit annex allowing us to re-hypothecate collateral, and Molly is currently

working out the operational issues associated with doing so.

We still intend to restructure the existing deals over the next few months or so; I'll advise as we get closer.

Best- Davis

Message 223 of 413

FW: Bobby Riggins was in an accident

Sender	ted.bockius@ivita.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/all_documents/2625.

-----Original Message-----

From: Sharon Brass Sent: Monday, July 17, 2000 10:00 AM To: Terry Myers; Maureen McCann; Ted Bockius Subject: FW: Bobby Riggins was in an accident

FYI

Thanks, Sharon

-----Original Message-----

From: ? Cumings, Cindy [mailto:Cindy.Cumings@COMPAQ.com] Sent:?? Monday, July 17, 2000 9:35 AM To:???? 'Sharon Brass'; 'Sharon Fothergill' Subject:??????? Bobby Riggins was in an accident

Please send to Terry, Maureen and others that know Bobby... Thanks, Cindy Cumings eMarketing Manager GVC Compaq Computer Corporation (281) 518-7762 cindy.cumings@compaq.com

Visit the GVC Inline site at <http://nonstop.inet.cpqcorp.net/easupport> -----Original Message----- From:?? Houston Racing Triathlon Club [mailto:houstonracing@excite.com] Sent:?? Monday, July 17, 2000 9:16 AM To:???? houstonracing@excite.com Subject:

As many of you may know there was a serious bike accident last Saturday.? A drunk driver came off 290 and hit a group of cyclists just finishing the Cyfair ride.? Tragically the first rider, Bruce Maughs, was killed.? Three other riders, Barbara Carlson and HRTC members Bobby Riggins and Tim Hunt were seriously injured.? Bobby is in Ben Taub hospital, and Tim and Barbara are in Memorial Hermann Hospital and all have undergone surgery.? Our thoughts go out to them, and the family of Bruce Maughs.? According to the Harris County Sheriff's Department, the driver is to be charged with involuntary manslaughter.

Houston Racing Triathlon Club Hotline: 713-572-0767 Web Page:<http://www.houstonracing.com> E-mail: houstonracing@excite.com Address: P.O. Box 130404 Houston, TX 77219

Say Bye to Slow Internet! <http://www.home.com/xinbox/signup.html>

Message 224 of 413

Confirmation of Conflicts Waiver

Sender	alan.aronowitz@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/all_documents/3822.

FYI.

Beverly Rudy of Sutherland, Asbill & Brennan called me over the holidays about this.

Alan ----- Forwarded by Alan Aronowitz/HOU/ECT on 11/27/2000 10:43 AM -----

"Beverly Rudy" <BRUDY@SABLAW.COM> 11/27/2000 09:03 AM

To: <Alan.Aronowitz@enron.com> cc: "Jamie Cain" <JCAIN@sabl原因.com> Subject: Confirmation of Conflicts Waiver

This e-mail confirms your voice mail of November 23 in which you gave clearance to Sutherland Asbill & Brennan to represent another existing firm client, Kraft Foods (which is owned by Philip Morris), with respect to OTC risk management swaps and like derivatives agreements that Kraft may enter into with Enron North America. Your clearance on behalf of Enron North America is based upon my description of what SAB has been asked to do by Kraft, which is to review the ISDA documentation, provide comments and negotiate with Enron North America, if necessary. We understand that the clearance given to SAB to work for Kraft on this matter is for the aforementioned transactions only. Moreover, we assure you that if Enron North America and Kraft do enter into swap or other derivatives agreements, and a dispute between the parties arise related to those agreements, SAB would not represent either party with respect to such dispute regardless of forum.

Beverly J. Rudy Sutherland Asbill & Brennan LLP 1275 Pennsylvania Avenue, N.W. Washington, D.C. 20004-2415
Phone: 202.383.0885 Fax: 202.637.3593 brudy@sabl原因.com

The information contained in this message from Sutherland Asbill & Brennan LLP and any attachments is confidential and intended only for the named recipient(s). If you have received this message in error, you are prohibited from copying, distributing or using the information. Please contact the sender immediately by return email and delete the original message.

Message 225 of 413

Greenhouse Gas Market and Pricing.....

Sender lisa.jacobson@enron.com

Recipients ['e.taylor@enron.com', 'trevor.woods@enron.com', 'salil.pradhan@enron.com', 'jeff.keeler@enron.com', 'mary.sch...]

File taylor-m/inbox/lisa_j/28.

Per your request, I have compiled the following memo that provides information on the potential international greenhouse gas emissions trading market. It also discusses factors that impact current prices for greenhouse gas emissions transactions and identifies future market influences.

Given current regulatory uncertainty and the patchwork of greenhouse gas emissions initiatives, a liquid market with a clearly defined commodity is likely several years (or more) away. However, given the growing interest in compliance hedging, opportunities to package and sell verifiable greenhouse gas emissions reductions could increase in the near future. Further, with the launch of the U.K. emissions trading program and rule development for the EU trading program expected next year, it is likely that the definition of a verifiable greenhouse gas emission credit will become more clear.

Given the range and varying circumstances under which current greenhouse gas emissions transactions are occurring, Enron business groups should begin to capture (define ownership and package) internal greenhouse gas reductions, look for opportunities to integrate greenhouse gas emissions concerns into existing risk management products and, Enron assets that are significant greenhouse gas emissions sources, should assess and manage exposures.

Environmental Strategies Group will convene a commercially oriented greenhouse gas strategy discussion on Tuesday morning, November 20 (EB 8C1) to explore these opportunities across business groups. I hope you and others from your group will be able to participate. There will be video conference and teleconference capabilities available.

Please contact me with questions, comments, or suggestions for further analysis.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 226 of 413

RE: ENW Executive Staff Meeting

Sender	legal <taylor@enron.com>
Recipients	[n..gray@enron.com]
File	taylor-m/sent_items/463.

I'm not sure. There was a comment by Sally Beck at the last meeting that she was trying to figure out which of her direct reports should be attending so maybe it has something to do with that. I don't really know what changed though.

-----Original Message-----

From: Gray, Barbara N. Sent: Monday, November 05, 2001 5:28 PM To: Taylor, Mark E (Legal) Subject: FW: ENW Executive Staff Meeting

Mark, do you know any of the details of the new reporting structure referred to below???? -----Original Message----- From: Spiller, Tina Sent: Monday, November 05, 2001 5:25 PM To: Apollo, Beth; Barnard, Marla; Beck, Sally; Busby, Todd; Chun, Inja; Dayao, Anthony; Douglas, Stephen H.; Gray, Barbara N.; Gros, Thomas D.; Hotte, Steve; Johnson, Jeff; Kanellopoulos, Drew; Paskin, John; Pearce, Barry; Perlman, Beth; Pickering, Mark; Price, Brent A.; Richter, Brad; Roper, Kerry; Rub, Jenny; Stock, Stephen; Sweeney, Kevin; Taylor, Mark E (Legal); Webb, Jay Cc: Chisley, Katherine; Beffer, Michele; Brandli, Christina; Browder, Mary Lou; Cannon, Lydia; Carrizales, Blanca; Choate, Heather; Costello, Lisa; Craig, Braedi; Estrada, Mercedes E.; Farrell, Keegan; Flores-Cuellar, Brenda; Houser, Rita; James, Giselle; Keiser, Holly; Lapsley, Carol; McDonald, Dawn; Perkins, Kim; Spiller, Tina; Stone, Sandy; Valdez, Christina; Villanueva, Chantelle; Weatherstone, Mary; Westbrook, Cherylene R. Subject: ENW Executive Staff Meeting

Due to recent changes in the reporting structure at ENW, changes were necessary to the structure of the ENW Weekly Executive Staff Meeting on Thursdays at noon.

The staff meeting will now be held bi-weekly, beginning November 15, in the ECS 04990 conference room. You will continue to get a reminder on the Tuesday before the meeting.

Please let me know if you have any questions.

Tina Spiller Assistant to Greg Piper President & CEO Enron Net Works LLC Phone 713.853.5746 Fax 713.646.8070

Message 227 of 413

Projects and coordination...

Sender	lisa.jacobson@enron.com
Recipients	[e.taylor@enron.com', 'trevor.woods@enron.com', 'jeffrey.keeler@enron.com', 'laura.jones@enron.com', 'pat.sho...
File	taylor-m/inbox/lisa_j/41.

Dear Trevor, Michael and Laura,

Good talking with you all this morning. Based on our discussion, I will work with you to get intelligence on the following emissions markets:

SO2 NOx Houston-Galveston - Stacey Bolton is the resident expert, but feel free to use me as main point of contact for the group CO2 (desk in monitoring and gathering intelligence at this point)

Ongoing projects include intelligence on:

industry dynamics and descriptions of coalitions on NOx, SO2 and CO2 emissions issues, specifically multi-emissions legislation what are their priorities, and any information that may indicate their positions

How and when are the current emissions trading programs going to roll into the new programs? how will that impact holders of allowances, etc.

bios of new administration officials with decision making authority on emissions issues at EPA, CEQ, WH, others.

tracking of emissions trading lawsuit in New York, and similar cases as they arise

I will de-brief with Laura next week on the lawsuit issues and will begin working on descriptions of the industry dynamics on multi-emissions proposals and bios of new administration officials.

As for follow-up with EPA on treatment of allowances under new national NOx and SO2 programs -- working with Kevin, John, Jeff Keeler, Lisa Yoho and Pat Shortridge (DC lobbyist) -- we should identify the key issues and develop a strategy. Jeff suggested a conference call to discuss this. I will check in with him and follow up if necessary.

We will also begin our weekly conference calls, starting Tuesday, August 14 - say 9:30 Houston time (please let me know if you would like it to be earlier in the morning or start on a different date)?

In the meantime, just give me a ring if you need anything,

Lisa

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 228 of 413

Re: ETA

Sender	mark.taylor@enron.com
Recipients	['carol.clair@enron.com', 'cecil.john@enron.com']
File	taylor-m/sent/788.

Sorry for the delay - our general policy is (and the first response to this type of question should be) that , due to system requirements, it is not possible to provide for different online contracts for different counterparties. Having said that, in the few cases where a counterparty has raised what we consider to be valid and material concerns, we have agreed to a side letter agreement with that particular counterparty to vary the terms of the ETA. So if the counterparty resist the first response and threatens to not use the system for legal reasons, you should refer them to the legal department. They can contact either Carol St. Clair (x33989) or me (x37459).

Cecil John@ENRON 01/27/2000 11:00 AM To: Mark Taylor/HOU/ECT@ECT cc: Subject: ETA

Hello Mark,

I am trying to follow up on Remedy Tk (54001). I opened this Tk for this customer having questions about the ETA. Please let me know, how you would like to respond to customer's inquiry about modifications to the ETA.. Thanks.

Cecil John EnronOnline 713-853-6259

----- Forwarded by Cecil John/Corp/Enron on 01/27/2000 10:54

AM -----

Cecil John 01/24/2000 02:41 PM To: Mark Taylor/HOU/ECT@ECT cc:

Subject: ETA

Hello Mark, Please advise me on this matter and let me know if you want me to follow up with the customer or if you contact customer. EOL customer is inquiring about if their Lawyers can modify or make comments to the ETA. Thanks.

Cecil John EnronOnline 713-853-6259

----- Forwarded by Cecil John/Corp/Enron on 01/24/2000 02:33 PM

"Smith MD (Mark)" <MDSmith@equiva.com> on 01/24/2000 02:01:11 PM To: ""help@enrononline.com""
<help@enrononline.com> cc: (bcc: Help) Subject: ETA

My manager had a question concerning the ETA's and if they can be modified if our Lawyers have comments or changes that they would like to make. Thanks

Message 229 of 413

RE: Proposed Audit Presentation

Sender	legal <taylor@enron.com>
Recipients	[david.yeres@cliffordchance.com]
File	taylor-m/sent_items/265.

David -

Apologies for my silence. I need to check with Mark H. and make sure he is still on board but I think it is a good idea and would suggest we try and schedule something for early September.

Mark

-----Original Message-----

From: David.Yeres@CliffordChance.com@ENRON

[mailto:IMCEANOTES-David+2EYeres+40CliffordChance+2Ecom+40ENRON@ENRON.com] Sent: Wednesday, July 18, 2001 9:52 AM To: Taylor, Mark E (Legal) Subject: FW: Proposed Audit Presentation

Mark,

Is this still of interest?

David Yeres

-----Original Message----- From: Yeres, David (Financial Products-NY) Sent: Tuesday, June 26, 2001 2:45 PM To: 'mark.taylor@enron.com' Subject: FW: Proposed Audit Presentation Mark, Further to mine of June 8th, do you think there is any continuing interest in your shop for the contract audit matter we discussed? By the way, was Enron's building spared in the recent floods that we read about? Regards, David -----Original Message----- From: Yeres, David (Financial Products-NY) Sent: Friday, June 08, 2001 12:19 PM To: 'mark.taylor@enron.com' Subject: Proposed Audit Presentation Mark, I haven't heard back on scheduling the contract audit presentation. Is this on the back burner or have you decided not to proceed at this time? David Yeres Clifford Chance Rogers & Wells 200 Park Avenue New York, NY 10166 Tel: (212) 878-8075 Fax: (212) 878-8027 email: david.yeres@cliffordchance.com

This message and any attachment are confidential and may be privileged or otherwise protected from disclosure. If you are not the intended recipient, please telephone or email the sender and delete this message and any attachment from your system. If you are not the intended recipient you must not copy this message or attachment or disclose the contents to any other person.

For further information about Clifford Chance please see our website at <http://www.cliffordchance.com> or refer to any Clifford Chance office.

Message 230 of 413

RE: Provisions relating to enrononline link in Posting Agreement

Sender	joe.wright@truequote.com
Recipients	[andy.zipper@enron.com', 'mark.taylor@enron.com', 'joe.wright@truequote.com', 'travis.mccullough@enron.com']
File	taylor-m/all_documents/3680.

Travis,

Thanks for your reply. I will fax to you a copy of our request for no-action relief to the CFTC.

Let me follow-up with the CFTC re your question on the issue of material non-public information and we can discuss this later. In the mean time if you have any questions please contact me.

Joe Wright

-----Original Message-----

From: Travis.McCullough@enron.com [mailto:Travis.McCullough@enron.com] Sent: Tuesday, November 07, 2000 6:31 PM To: joe.wright@truequote.com Cc: Andy.Zipper@enron.com; Mark.Taylor@enron.com Subject: Re: Provisions relating to enrononline link in Posting Agreement

Joe:

After speaking with Andy, I think it is fair to say that there is a substantial (85% probability) that the clawback triggered by our closing a deal with a competing platform will be triggered. We will advise you if and when it is definitely triggered.

As to the representation to the CFTC, we can certainly make the representation regarding no basis for statutory disqualification pursuant to Sections 8a(2) and 8a(3) of the Act. However, we are a little bit concerned about the application of the policies to prevent trading on "material nonpublic information." Most of our concern revolves around what may be included within that term; certainly, it should not include information that we receive from a customer submits to us through the Posting Agreement, but in any event, a better idea of what the CFTC might be concerned about here would be helpful.

Finally, would it be possible for us to get an advance copy of your request for no action letter? You may have sent it to us before, but if you did, I can't locate it now. I think it would be a good idea to get that in front of our regulatory counsel as soon as possible and ask that they confirm that the no-action letter that you get (assuming that they give you all the relief that you have requested) will have everything that they think we need.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 231 of 413

RE: Natsource/UK co2e transaction...

Sender	lisa.jacobson@enron.com
Recipients	['e.taylor@enron.com', 'dan.badger@enron.com', 'louis.redshaw@enron.com', 'trevor.woods@enron.com', 'jeff.keel...]
File	taylor-m/inbox/coe2/1.

FYI only - this is the follow to my conversation with Natsource yesterday. Please let me know if you have any questions.

Lisa,

I was not being very clear yesterday when we were on the phone. Sorry about that.

First of all, the answer to your question is the first UK allowances will be issued in April of 2002.

We have a firm bid for UK allowances at GBP 4.5. Thus we are looking for sellers.

Reasons for the doing a UK Allowance trade include the benefit of early action, the diversification of any GHG portfolio to include actual compliance tools, and the security of holding a bankable (currently through 2007) instrument that is fungible and transferable.

It widely accepted, though not absolutely guaranteed, that UK allowances will be accepted in any EU trading scheme, and beyond Europe within a Kyoto context given UK/EU inclusion in KP.

Appetite for the UK allowances out of Asia exists and represents the potential for a ready market in UK Allowances.

I am attaching the DEFRA UKETS summary documentation and a Natsource brief on the UK system. I hope this helps, and sorry again that I was unclear yesterday.

<<UK ETG Framework Summary1.pdf>> <<ETSummary.pdf>>

-----Original Message-----

From: Jacobson, Lisa Sent: Thursday, August 23, 2001 5:02 PM To: Badger, Dan; Profir, Diana; Redshaw, Louis Cc: Woods, Trevor; Taylor, Michael E; Keeler, Jeff Subject: Natsource/UK co2e transaction...

I got a call from Natsource today. Yesterday, they closed the first UK co2e allowance transaction.

They also have some bids for UK co2e allowances at 4.5 pounds sterling and offers a between 10 - 6 pounds sterling.

If you would like more information please let me know.

As I imagine you get these types of calls --- is this information of value?

Thanks.

(From what I understand, you are permitted to do forward transactions; the actual allocation will occur sometime next year)

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 232 of 413

FW: Enron Accused of Infringing Patent for Electronic Trading

Sender	travis.mccullough@enron.com
Recipients	['b..sanders@enron.com', 'legal <.taylor@enron.com>']
File	taylor-m/deleted_items/110.

Please note new address and fax number:

Travis C. McCullough Enron North America Corp. 1400 Smith Street EB 824 Houston, Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-8860

-----Original Message-----

From: Meyer, Vance Sent: Friday, September 21, 2001 2:38 PM To: McCullough, Travis Subject: FW: Enron Accused of Infringing Patent for Electronic Trading

-----Original Message-----

From: Schmidt, Ann M. Sent: Friday, September 21, 2001 2:29 PM To: Shah, Kal; Meyer, Vance; Philipp, Meredith; Denne, Karen Subject: Enron Accused of Infringing Patent for Electronic Trading

Enron Accused of Infringing Patent for Electronic Trading 2001-09-21 15:07 (New York)

Enron Accused of Infringing Patent for Electronic Trading

Marshall, Texas, Sept. 21 (Bloomberg) -- Enron Corp., the largest energy trader, and its online unit are accused in a lawsuit of infringing a Texas company's patent for an electronic trading system.

Bid/Ask LLC of Baird, Texas, formerly called Auction Source LLC, said it is the sole rights owner of a patent issued in May 2000 for a ``Real-time Network Exchange with Seller Specified Exchange Parameters and Interactive Seller Participation."

Houston-based Enron and its EnronOnline unit are improperly using that patented technology through its Internet-based electronic trading facility, according to the lawsuit filed Sept. 17 in federal court in Marshall, Texas. Enron trades commodities such as natural gas and electricity on that trading network.

Bid/Ask seeks a court order blocking Enron from infringing the patent, and is asking for damages.

EnronOnline began trading electricity and natural gas in November 1999. Between then and the second quarter of 2001, it's handled more than 1 million transactions valued at more than \$685 billion, the company has said.

Enron, which also trades space on fiber-optic networks, coal, paper and other commodities, had net income of \$979 million on revenue of \$100.8 billion in 2000.

An official with Enron couldn't immediately be reached for comment.

Shares of Enron rose 13 cents to \$28.52 in midafternoon trading.

Message 233 of 413

MG Soliciting Substantial Documentation

Sender	mary.cook@enron.com
Recipients	['sarah.wesner@enron.com', 'mark.taylor@enron.com', 'mark.haedicke@enron.com', 'jefferson.sorenson@enron.com',...]
File	taylor-m/archive/9_00/115.

David, do not send out any of the information concerning the proprietary data being collected at ENA finance or other information without first getting the approval of Legal, Trading, and ENA Finance. As I mentioned to you, we are currently in process on the CFTC issues surrounding MG. Mary

John, per my voice message, please give me a call regarding MG. Mary

Enron North America Corp. Mary Cook 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 09/26/2000 11:36 AM -----

David P Dupre 09/26/2000 09:43 AM

To: Jefferson D Sorenson/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT cc: Larry Joe Hunter/HOU/ECT@ECT bcc:
Subject: MG Soliciting Substantial Documentation

To: Jeff Sorenson Mary Cook

I received this from Craig Young yesterday of the MG New York office who visited us Sep. 13-15.

If you review the Word document below, he wants me to gather much information which we've been selective in providing to any internal or external party. As you know, some of this information is being provided to Sarah Wesner under the direction of John Arnold and John Lavorato.

Given the current tentative status of MG clearing trades, I am not comfortable in providing this data at this time to MG.

However, if you think that we should be of assistance for their own analysis to clear/ not to clear trades, please let me know.

Thanks,

David 3-3528

----- Forwarded by David P Dupre/HOU/ECT on 09/26/2000 09:28

AM -----

Craig Young 09/25/2000 12:33 PM To: david.dupre@enron.com cc: Craig Young/NY/ECT@ECT Subject: Soliciting Houstons Clearing

Thanks for all of your help and here is a copy of my memo and some Rolfe & Nola Web system

http://www.rolfeandnolan.com/P_ranweb.htm

http://www.rolfeandnolan.com/Press_Docs/press63.htm

Regards Craig

----- Forwarded by Craig Young/NY/ECT on 09/25/2000 12:05 PM

Craig Young 09/25/2000 10:47 AM To: Michael J Hutchinson/EU/Enron@Enron cc: Craig Young/NY/ECT@ECT Subject: Soliciting Houstons Clearing

h

Message 234 of 413

SCRs, AEP and Buckeye Power Inc.

Sender	lisa.jacobson@enron.com
Recipients	[e.taylor@enron.com] , [trevor.woods@enron.com] , [rajneesh.salhotra@enron.com] , [stacey.bolton@enron.com] , [je...@enron.com]
File	taylor-m/inbox/nox_model/19.

FYI - you may already be aware.... AEP, Buckeye Power to control Ohio NOx emissions

USA: August 3, 2001

COLUMBUS, Ohio - American Electric Power Co. Inc. and Buckeye Power Inc. plan to spend about \$200 million to control nitrogen oxide (NOx) emissions at their jointly owned Cardinal power plant in Brilliant, Ohio, AEP said Yesterday.

When in operation, the selective catalytic reduction (SCR) systems will reduce NOx emissions at the plant by about 90 percent as part of the companies' effort to comply with new U.S. Environmental Protection Agency regulations. Construction of SCRs for the plants three generating units is expected to be completed by May 2003, in time for that summer's ozone season. Cardinal Units 1 and 2, each with a generating capacity of 600 megawatts, are owned by Buckeye Power, which expects to spend about \$135 million to install the NOx controls. Unit 3, with a capacity of 630 megawatts, is owned by AEP, which expects to spend \$65 million. AEP ProServ Inc., an AEP subsidiary, will manage the SCR construction project for all three units at Cardinal, located along the Ohio River in eastern Ohio. Cardinal Plant, which began operation in 1967, represents the first-ever alliance of an investor-owned electric utility, AEP, and a member-owned electric generating and transmission company, Buckeye Power, an organization of 25 rural electric cooperatives, to construct and operate a power station to serve their respective electric customers. "Units 2 and 3 at Cardinal Plant represent all of Buckeye Power's currently operating generating capacity," said Richard Byrne, president of Buckeye Power. "Installing SCR systems on each of these two units will enable Buckeye Power to be in full compliance with the U.S. EPA's new regulations that require reductions in nitrogen oxide emissions." SCR uses a chemical reaction to break down the NOx present in the exhaust gases that are released during the coal combustion process. The NOx is broken down into elemental nitrogen and water.

REUTERS NEWS SERVICE

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 235 of 413

Re: EOL -- European counterparties

Sender	alan.aronowitz@enron.com
Recipients	['brandon.wax@enron.com', 'bob.crane@enron.com', 'travis.mccullough@enron.com', 'greg.piper@enron.com']
File	taylor-m/archive/7_00/105.

Travis:

My understanding is that the Password Application/ETA has been vetted in Singapore (Edmund Cooper in London or Matt Lee could re-confirm this), but I do not know about South Africa.

Alan

Travis McCullough 07/20/2000 12:24 PM

To: Justin Boyd/LON/ECT@ECT, Harry M Collins/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Alan Aronowitz/HOU/ECT@ECT cc: Greg Piper/Corp/Enron@Enron, John Cummings/HOU/ECT@ECT, Brandon Wax/HOU/ECT@ECT, Bob Crane/HOU/ECT@ECT Subject: Re: EOL -- European counterparties

Justin:

Thank you for your message. Let me know if there is anything I should be doing to help you out from this side.

I have attached the list of countries in which the Pulp and Paper group expect to have clients that will be active traders on Clickpaper.com. I believe that EOL has ETAs and Password Applications prepared for these jurisdictions, but I'm not sure where we stand on Singapore, South Africa or Ireland. Justin, you probably know where we are with Ireland, -- Alan or Mark -- any idea on where we may stand in South Africa or Singapore?

Justin, I would assume that the form of ETA that EOL currently uses for a particular jurisdiction could be revised to reflect Clickpaper as the counterparty, but I noticed that EOL's form of ETA is with a UK entity. Should Clickpaper adopt the same structure for trading in Europe?

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490 ----- Forwarded by Travis McCullough/HOU/ECT on 07/19/2000 06:44 PM -----

John Cummings 07/19/2000 12:38 PM

To: Travis McCullough/HOU/ECT@ECT cc: Bob Crane/HOU/ECT@ECT, Brandon Wax/HOU/ECT@ECT, Greg Piper/Corp/Enron@Enron Subject: Re: EOL -- European counterparties

Travis

Attached is the preliminary list of the European counterparties. As of now the countries to work on for the ETC and Password Application are:

Austria Belgium Finland France Ireland Italy Netherlands Portugal Singapore South Africa Spain Sweden United Kingdom

The only ones not on the EOL list are Ireland, Singapore and South Africa. Let me know what is required to Clickpaperize the EOL stuff and also what do we do about GTC physical and financial (ie are these country specific too).

jc

Message 236 of 413

Briefing: Climate Change Exchange...

Sender	lisa.jacobson@enron.com
Recipients	['stacey.bolton@enron.com', 'trevor.woods@enron.com', 'elliott.mainzer@enron.com']
File	taylor-m/inbox/lisa_j/10.

Good morning everyone. Alice LeBlanc of the Chicago Climate Exchange is still in town, as she lives in NYC and cannot get home, and will be coming by at 2:00 pm today to talk about the exchange if folks feel up to it and are free. I will plant to talk with her regardless and hope that some of you can join us. But we will try to re-schedule for early October if today does not work.

DETAILS:

TODAY - 9/12 2:00 pm 3AC 15 CI

Thanks. -----Original Message----- From: Jacobson, Lisa Sent: Tuesday, September 11, 2001 9:23 AM To: Mainzer, Elliot; Bolton, Stacey Subject: FW: Climate Change Exchange...

Stacey,

Now that you are back in town, it would be very helpful to have you (and Elliot) attend this meeting if you are free. CCX is a voluntary GHG emissions trading program -- with several big company participants. They are in the design phase now -- deciding what will qualify as a reduction, what the scope will be (mid-west initially with expansion to national) and what vol. obligations company participants will have.

TODAY - 9/11 2:30 pm 3AC15C1

I can provide more background to you if you would like - I will be up on 47 after about 10:30 am today.

Thanks,

Lisa

-----Original Message-----

From: Jacobson, Lisa Sent: Wednesday, August 29, 2001 11:06 AM To: Bolton, Stacey; Worthen, Susan; Phillips, Marc Cc: Keeler, Jeff Subject: Climate Change Exchange...

Hello!

Would you be free to meet briefly in Houston with reps. of the Chicago Climate Exchange on Tuesday, Sept. 11 (pm). I have met with them a few times -- key issues regarding Enron's participation are 1) lack of a voluntary target and 2) the CCX's initial mid-west focus.

However, more companies are joining and it would be interesting to see how their design phase is evolving and how they are handling the sticking issues related to the targets, among other issues.

Also, please let me know if you have others who you think might find it of value (since the vol. targets issues is not resolved, I am hesitant to invite more commercial people, as I would not want to have the CCX folks pitch them on something that we would most likely not join at this stage -- thoughts?)

Thanks,

Lisa

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 237 of 413

Re: Material Non-public Information and the CFTC

Sender	travis.mccullough@enron.com
Recipients	['mark.taylor@enron.com', 'joe.wright@truequote.com']
File	taylor-m/notes_inbox/1719.

Thanks for forwarding the request for no-action letter. I'll review it with Mark.

It seems that the suggested policy should not be problematic for us. We would just want to make sure that nothing in the policy could be construed to prevent Enron from conducting the very activities that are contemplated by the Posting Agreement. Since the only information we should be getting through our relationship with True Quote (absent a board seat) is information from potential EnronOnline counterparties hitting our prices (and it would be the same information, and no more, that we would be receiving if the party were dealing directly with EnronOnline), it seems unlikely that we could ever be in a position to violate a policy that True Quote would adopt. Am I thinking about this correctly?

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

"Joe Wright" <joe.wright@truequote.com> 11/08/2000 09:38 AM

To: <travis.mccullough@enron.com> cc: "Chris Edmonds"@carvey.adgrafx.com, "Dennis Crum"@carvey.adgrafx.com, "Todd Creek"@carvey.adgrafx.com Subject: Material Non-public Information and the CFTC

Travis,

On further review I believe there is no issue here.

True Quote must represent that persons who are 10% or more interest holders, members of the Board of Directors or senior officers of TQ are not subject to the statutory disqualifications from registration listed in the Commodity Exchange Act. You have indicated that in regard to Enron that TQ should be able to make this representation.

However, we do not have to make a representation that the same persons will not trade on or disclose material, non-public information. Instead, all TQ has to do in this regard is agree that it will endeavor to prevent and will adopt a policy which prohibits any director, officer, employee or agent who gains access to material, non-public information from trading for such person's account or another account and from disclosing such information if it would be inconsistent with that person's performance of his official duties. In order to comply with what the CFTC is requiring of us we would simply agree to this and adopt such a policy.

Let me know what you think; but, I believe we are okay here.

Joe Wright

Message 238 of 413

Regional GHG Goals Adopted -- New England Governors and Eastern

Sender	lisa.jacobson@enron.com
Recipients	['stacey.bolton@enron.com', 'linda.robertson@enron.com', 'pat.shortridge@enron.com', 'michael.terraso@enron.co...]
File	taylor-m/inbox/lisa_j/55.

During its 26th annual conference this week, New England governors and Eastern Canadian premiers adopted a self-monitoring resolution to reduce greenhouse gas (GHG) emissions. Goals set under the plan are: reduce regional GHG emissions to 1990 levels by 2010 reduce regional GHG emissions by 10 percent below 1990 levels by 2020 reduce GHG emissions to "eliminate any dangerous to the climate" (perhaps as much as a 75 - 85 percent cut in emissions) over

an unspecified longer timeframe

The goals are set with the understanding that they will be met regional and with flexibility for localities to determine the most appropriate emissions reduction strategy. Development of a regional GHG registry as well as consideration of emissions trading were included in the plan as well as longer term goals related to reducing carbon dioxide emissions per megawatt hour of electricity within the region (20 percent reduction by 2025) and energy conservation (20 percent increase in region by 2025).

Recommendations on the development of a regional GHG registry will be presented at next year's conference. A Climate Change Steering Committee will coordinate this work. Input from governments and stakeholders, including industry is expected.

IMPACT: The resolution is non-binding, but does call on states and provinces to develop climate change action plans, which could result in state level regulation and regional (including cross border) trading of greenhouse gas emissions.

Several New England states are considering legislation to reduce greenhouse gas emissions, though no mandatory state-level greenhouse gas programs have been adopted.

The adoption of this resolution demonstrates the growing awareness of global climate change among New England and Canadian constituencies and an interest among policymakers to take steps to mitigate its potential impacts.

Please see the links below to the resolution and the climate change action plan (which includes the emission reduction goals).

http://www.scics.gc.ca/cinfo01/850084007_e.html

http://www.scics.gc.ca/pdf/850084011_e.pdf

Please also see the following two news stories on the resolution:

Please let me know if you have any questions.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 239 of 413

September 6, 2000 Minutes from GRC meeting

Sender	craig.young@enron.com
Recipients	['mark.taylor@enron.com', 'craig.young@enron.com']
File	taylor-m/all_documents/3503.

Update on Govt Relations for MFA

Craig Young ----- Forwarded by Craig Young/NY/ECT on 10/23/2000 07:08 AM

"Rice, Kate" <kate@mfainfo.org>@ls.mfainfo.org on 10/19/2000 02:07:41 PM Please respond to "Rice, Kate" <kate@mfainfo.org> Sent by: owner-govrelcomm@ls.mfainfo.org To: "govrelcomm@ls.mfainfo.org" <govrelcomm@ls.mfainfo.org> cc: "Allen, Julia" <Julia_Allen@dc.sba.com> Subject: September 6, 2000 Minutes from GRC meeting

October 19, 2000

Attached is the draft of the minutes from the September 6, 2000 Government Relations Committee meeting. You will note there are seven Action Items from the last meeting. Under Item 2, Overview of Regulatory and Legislative Agenda, it was agreed that the status of the issues that had been previously referred by the Committee to various subcommittees would be discussed at the next meeting. The subcommittee chairs have been reminded of this assignment. Also under Item 2, several members agreed to create an outline of the legislative and regulatory issues that involve ERISA and affect CTA's.

A draft has been produced. Item 6, Uptick Rule, Member Silber volunteered to review the SEC proposal when it is issued and draft a comment letter. Item 7, CFTC Reauthorization Legislation, MFA staff was to send members the letter sent to CFTC Chairman Rainer on the issue of single stock futures. The letter was sent to members in late September. Item 11, MFA International Activities, it was suggested that an article be placed in the MFA Reporter on the FSF international standards program and the foreign markets access issue. The article will appear in the October issue of the MFA Reporter. Item 12, the SOP 95-2, Members Esposito and Pierce, agreed to draft a comment letter which would suggest more flexible disclosure requirements for fund of funds. Item 13, MFA Initiative on Relaxing Regulation D Advertising, a Task Force would review and develop an outline regarding marketing restrictions in Regulation D.

An agenda and materials for the November 2, 2000 meeting in New York City will be sent to Committee Members the last week of October.

<<grcsept6mtgmin.9-7-00.doc>>

Thank you,

Julia C. Allen Managed Funds Association 2025 M Street, N.W. Floor 8 Washington, D.C. 20036 Phone (202) 367-2404
Fax (202) 367-2140

- grcsept6mtgmin.9-7-00.doc

Message 240 of 413

PM 10 ERCs...	
Sender	lisa.jacobson@enron.com
Recipients	['e.taylor@enron.com', 'trevor.woods@enron.com', 'rajneesh.salhotra@enron.com', 'laura.jones@enron.com']
File	taylor-m/inbox/lisa_j/45.

Dear Trevor,

Per your request here is what I have learned about the changes to the rules for PM 10 ERCs in the San Joaquin Valley Air District.

As part of EPA's recent action on the San Joaquin Air District's State Implementation Plan (SIP), PM ERCs generated in the nonattainment season (October - March) can now be used during the attainment season. Previously, nonattainment PM ERCs could only be used as offsets in the quarter in which they were generated.

This provides more flexibility to holders of nonattainment PM ERCs and allows broader usage.

Part of the impetus for this change is that there were several cotton gins in the valley that closed in the fourth quarter, and the ERCs generated by the shutdowns could not be used throughout the year. The district believes this change is better for air quality and provides more flexibility.

The change has the effect of spreading PM ERCs from the nonattainment season to the attainment season.

The change is effective Aug. 20, 2001

Please see the link to the regulation below (page 23, Section 4.13.17)

<http://www.valleyair.org/Workshops/postings/06-21-01/rule2201.pdf>

There were two other regulatory changes as a result of EPA's action that might interest you.

1) Page 22, 4.13.1 - ERCs from major source shutdowns and curtailments previously could only be used for replacement major sources or minor sources. Under the rule change they can now be used for other major sources, as long as the ERCs are part of the EPA approved attainment plan. (if you would like to see the lists of these pre-approved ERCs please let me know).

2) Page 3, 3.7 - Baseline changes - A unit can use the pre-project potential to emit baseline if it falls under four categories (a unit located at a non-Major source; highly utilized unit at a major source; a fully-offset unit at a major source; a clean emissions unit at a major source).

If a unit does not fall under these categories it will need to follow rules for historic emissions, which could mean that it will need to acquire additional offsets. However, the District believes that it captured all major sources through these categories.

Please call me with any questions. Also, are we still on for our call on Tuesday, August 14 at 9:30 am Houston time?

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 241 of 413

Master Netting Agreements

Sender	mary.cook@enron.com
Recipients	['tanya.rohauer@enron.com', 'carol.st.@enron.com', 'harlan.murphy@enron.com', 'lisa.mellencamp@enron.com']
File	taylor-m/archive/2001_10/11.

The recent revisions to the UCC Article 9 relate to the ability of counterparties to engage in receivable financings which could have the effect of defeating the master netting concepts because it makes the restrictions on such actions included in the master netting agreement ineffective. Prior law made prohibitions, but not restrictions, ineffective. I am in the process of adding some language to the form on which we are working to manage this issue (however, we will leave the restrictions in place as well for possible waiver arguments or further changes in future law). In essence each of the parties will take and perfect a security interest in its own potential obligations to each of the other parties. This will require UCC searches of our counterparties at the outset of negotiations to be sure we will hold a first lien. It will require a downdate and filing as we consummate the netting agreement. To the extent you are in current negotiations, you may wish to conduct the appropriate lien searches. Rick Antonoff should coordinate the searches and filings for us. If you have any questions, please advise.

Rick Antonoff, by copy of this memo, please prepare filings for the PGE master netting and the NewPower master netting to support the grants of security interests to us in the amounts we owe them. Each of these agreements includes this language in the security interest grants (6(b)). =20 1. The New Power Company is incorporated in Delaware. Provide me the form of proposed statement for review prior to filing. We should make this filing as soon as possible. A copy of the final version is attached. 2. As to PGE, I will verify with Lisa Mellencamp that it is ok to file on the master netting agreement and the entities involved since they were not in the bankruptcy (to my knowledge). Once verified, I will let you know. = The PGE parties are: PG&E Energy Trading-Gas Corporation, PG&E Energy Trading, Canada Corporation, PG&E Energy Trading-Power, L.P., and CEG Energy, Options Inc. I do not have these entities states of incorporation. Lisa at 853-7986 can get that information for you. I do not have the final version of this netting on line; if you need it, let me know.

=20

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (713) 646-3393 (fax) mary.cook@enron.com

Message 242 of 413

Your Order with Amazon.com (#107-2976244-7887726)

Sender	auto-confirm@amazon.com
Recipients	['legal <taylor@enron.com>']
File	taylor-m/stored_messages/7.

[IMAGE] =09[IMAGE] =09 =09 Thanks for your order, Mark E Taylor! If you ordered several items= to be delivered to the same address, we might send them in separate boxes = to ensure quicker service. But don't worry: you won't be charged any extra = shipping fees. Thanks again for shopping with us. Amazon.com Customer Ser= vice Manage Your Account: Did you know you can view and edit your o= rders online? Click Your Account to: Access "Where's My Stuff?" Combine= orders Change payment options Edit shipping address Cancel unshipped it= ems Change gift messaging Do much more... Purchasing Information= : Your purchase reads as follows: E-mail Address: mark.taylor@enron.co= m Billing Address: Mark E Taylor 1322 Rutland Houston, TX 77008 United = States 713-863-7190 Subtotal: \$ 9.57 Giftwrap: \$ 3.49= Shipping & Handling: \$ 14.98 ----- Total Before Tax:= \$ 28.04 Estimated Tax: \$ 0.00 ----- Purchase Total: \$ = 28.04 Order Summary: Order #1:(Order #107-2976244-7887726) = Ted Bockius Spherion Corp. 2050 Spectrum Blvd. Ft. Lauderdale, FL 33309 U= nited States Shipping Method: Next Day Air Shipping Preference: Ship when = all items are available. [IMAGE] 1 "Rich Dad, Poor Dad: What the Rich= Teach Their Kids About Money--That the Poor and Middle Class Do Not!" Robe= rt T. Kiyosaki, Sharon L. Lechter (Contributor); Paperback; @ \$9.57 each U= sually available in 24 hours Wrap: Amazon gift-wrap Message: Happy Birthd= ay! Mark You can make changes to any unshipped orders in Your Account .= If you've explored the links on that page but still have a question, pleas= e visit our online Help Department . Please note: This e-mail was sent fro= m a notification-only address that cannot accept incoming e-mail. Please d= o not reply to this message. Thanks again for shopping with us. Amazon.= com Earth's Biggest Selection [IMAGE] Prefer not to receive HTML mail? C= lick here Recommendations for Your Next Visit: [IMAGE] The Richest M= an in Babylon by George S. Clason Our Price: \$6.29 [IMAGE] Cashflo= w Quadrant by Robert T. Kiyosaki, Sharon L. Lechter (Contributor) Our Pri= ce: \$14.36 [IMAGE] Think and Grow Rich by Napoleon Hill Our Price:= \$6.29 [IMAGE] Rich Dad's Rich Kid, Smart Kid by Robert T. Kiyosaki= , Sharon L. Lechter (Contributor) Our Price: \$12.76 [IMAGE]See All = Your Recommendations =09

Message 243 of 413

Francisco

Sender	legal <taylor@enron.com>
Recipients	['e..haedicke@enron.com']
File	taylor-m/sent_items/255.

FYI

-----Original Message-----

From: Williams, Jaime Sent: Thursday, July 12, 2001 10:05 PM To: Leite, Francisco Pinto Cc: Perez, Agustin; Lenci, Enrique; Taylor, Mark E (Legal) Subject: Re: Changes

Francisco, I fully agree with you, and I thank you for being so pro-active with our business in Mexico. I can't see how could we progress without ideas like this one... You are by far, the best lawyer we have had in the Enron de Mexico Team... I appreciate it. Best regards.

Francisco Pinto Leite/ENRON@enronXgate 07/12/2001 04:18 PM To: Jaime Williams/NA/Enron@ENRON, Agustin Perez/NA/Enron@ENRON, Enrique Lenci/NA/Enron@Enron cc: Subject: Changes

I am making a couple of important changes in our process that you should be aware.

In the future, we will not be generally requiring legal opinions to be delivered with the Deemed Isdas (we may however require them on a case by case basis). We will still require legal opinions with the Master Agreements. Also, as you all know one of the problems to get from Mexican counterparties is the agent for service of process. In the future we will be sending as part of our package the names, fees and form of contracts for three agents for service of process. All the Mexican counterparties need to do is to choose one, sign the contract (it is normally one page by fax) and send it in. Because this will expedite our counterparties getting agents for service of process, I will start to ask for such information both in the Deemed Isda and the Master.

Finally, I just contacted the confirm desk to ask them to, in the future, always inform me of any Deemed Isdas they get executed from mexican counterparties. Like this I can know and let you know exactly who is signing these documents and who is not. Ideally, we should get these back within a matter of two to three days. If not we should at least attempt to start contacting the counterparties.

Just in case you are wondering why I am so concerned about the deemed Isda. Before we have a Deemed Isda executed, if there is a problem, I will have to litigate in Mexico under Mexican law (ENA does not like this option). Only after I get an executed Deemed Isda, I am out of Mexican courts and Mexican law.

let me know if you have any questions and or suggestions to optimize our process.

The above was duly authorized and will be implemented immediately.

Francisco Pinto-Leite Enron Americas 1400 Smith Street, EB 3888 Houston, TX 77002-7361

Tel: 713-345-7942 Fax: 713-646-3490 fleite@enron.com

Message 244 of 413

Re: Toronto Office

Sender	sharon.crawford@enron.com
Recipients	['mary.cook@enron.com', 'greg.johnston@enron.com', 'mark.powell@enron.com', 'chris.gaffney@enron.com']
File	taylor-m/all_documents/7485.

Mary, Enron Canada has 2 offices, one in Calgary and one in Toronto. The Toronto office was established to participate in all aspects of Enron Canada's business, but principally, power trading, marketing and origination after the de-regulation (or "market opening") of the Ontario power markets, anticipated for the 2nd or 3rd quarter of 2001.

In response to your specific questions:

1. The Toronto office will be engaged in all aspects of trading, including financial trading. As with the Calgary office, it is my understanding that all financial trading documentation will be handled as follows:

(a) financial master agreements (ISDA) and related collateral annexes/guarantees/certificates/etc. will be negotiated and documented by Houston Legal out of the Houston office under the supervision of Mark Taylor and yourself;

(b) financial transaction documentation (i.e., confirmation letters/GTCs/etc.) will be documented out of the Calgary office by Enron Canada Operations/Documentation, under the supervision of Enron Canada Legal where applicable;

(c) physical masters and related documentation will be negotiated and documented out of the Calgary or Toronto office by Calgary/Toronto Legal, as applicable, under my supervision; and

(d) all transaction documentation will be documented out of the Enron Canada Documentation/Operations Group, under the supervision of Enron Canada Legal, as appropriate.

2. All Canadian lawyers, including Chris Gaffney, report to me. However, Chris Gaffney has responsibility for legal matters regularly affecting the Toronto office. Therefore, you can co-ordinate directly with Chris, but please keep me advised.

Chris regularly updates me with respect to Toronto office matters.

Regards, Peter

MARY COOK 01/08/2001 08:05 AM To: Peter Keohane/CAL/ECT@ECT cc: Subject: Toronto Office

Peter, the credit group in Houston has advised that the Toronto office may begin entering into the financial trading arena. Can you advise me on the following:

1. What are the current commercial plans for the Toronto office regarding financial trading?
2. I understand Chris Gaffney is the attorney in the Toronto office. Does he report into you? If the answer to 1 is yes, should I coordinate matters with Chris directly or through you?

Thanks. Give me a call when you get a chance. Mary

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 245 of 413

RE: GEA Rainey

Sender	e.taylor@enron.com
Recipients	['Michael E', 'lucy.king@enron.com', 'trevor.woods@enron.com', 'Taylor']
File	taylor-m/sent_items/524.

GEA Rainey is located in OK. There are no emission trading programs in OK.

-----Original Message-----

From: Woods, Trevor Sent: Thursday, November 15, 2001 4:49 PM To: King, Lucy Cc: Taylor, Michael E Subject: RE: GEA Rainey

probably not. mike t? -----Original Message----- From: King, Lucy Sent: Wednesday, November 14, 2001 2:14 PM To: Woods, Trevor Cc: Taylor, Michael E Subject: GEA Rainey

Trevor,

GEA Rainey manufactures air cooled heat exchangers at a facility in Oklahoma. Would they have/use Emission credits?

Company: GEA Rainey Corporation Industry: Air Cooled Heater Exchangers Enron Owner: Jerry Thomas Private/Public: Private MWBE: No

Business Overview Designs and markets air cooled heat exchangers. GEA Rainey is a wholly owned subsidiary of GEA AG (the world's largest heat transfer equipment company). All manufacturing is done within facility. Business Areas: Design and fabrication of heat transfer equipment including; forced and induced draft air cooled heat exchangers, hydrocarbon process and steam condensers, engine radiators, turbine lube oil coolers, natural gas and vapor coolers, combustion pre-heaters, and flue gas re-heaters. After market products and services including; replacement air moving parts, replacement finned tubes, replacement finned tubes bundles, field service thermal performance evaluation, field service noise testing, field service vibration testing/elimination, field service process controls enhancements, and field service process upgrade recommendations. Customers/Industry Served Engineering and Construction firms, refineries, chemical and petrochemical plants, power companies and utilities, and other related industries worldwide.

Key Corporate Statistics

Headquarters 5202 West Channel Road Catoosa, OK 74015-3017 (918) 266-3060 www.gearainey.com
<<http://www.gearainey.com/>> Locations Worldwide Employees 200-250 Executive Leadership

Financials

Revenues/Sales \$25.3MM Total Assets N/A Net Income N/A Enron Spend (2001) \$252K

Enron Opportunities: EES/EFS 250k sq ft manufacturing facility - 19 acres storage EBS

Freight Ship worldwide Metals Carbon Steel, Alloy Steel, Stainless Steel, Duplex Stainless, Incoloy and other high alloys.
Forest Corrugated Cardboard for shipping heat exchangers Plastics/Petrochem

Enron Global Markets Emissions Enron Credit Credit Manager

Lucy King (713) 345-6435 or 1-800-97-ENRON Business Analyst - Business & Diversity Development Enron Global Strategic Sourcing

Message 246 of 413

RE: Proposed Audit Presentation

Sender	david.yeres@cliffordchance.com
Recipients	['legal <.taylor@enron.com>']
File	taylor-m/archive/2001_07/31.

Mark, let's talk if Mark H. is still interested. I am sure we could work out some convenient date in Sept.

-----Original Message-----

From: Mark.Taylor@enron.com [mailto:Mark.Taylor@enron.com] Sent: Wednesday, July 18, 2001 3:58 PM To: IMCEANOTES-David+2EYeres+40CliffordChance+2Ecom+40ENRON@ENRON.com Subject: RE: Proposed Audit Presentation

David -

Apologies for my silence. I need to check with Mark H. and make sure he is still on board but I think it is a good idea and would suggest we try and schedule something for early September.

Mark

-----Original Message-----

From: David.Yeres@CliffordChance.com@ENRON

[mailto:IMCEANOTES-David+2EYeres+40CliffordChance+2Ecom+40ENRON@ENRON.com]

Sent: Wednesday, July 18, 2001 9:52 AM To: Taylor, Mark E (Legal) Subject: FW: Proposed Audit Presentation

Mark,

Is this still of interest?

David Yeres

-----Original Message----- From: Yeres, David (Financial Products-NY) Sent: Tuesday, June 26, 2001 2:45 PM To: 'mark.taylor@enron.com' Subject: FW: Proposed Audit Presentation Mark, Further to mine of June 8th, do you think there is any continuing

interest

in your shop for the contract audit matter we discussed? By the way,

was

Enron's building spared in the recent floods that we read about? Regards, David -----Original Message----- From: Yeres, David (Financial Products-NY) Sent: Friday, June 08, 2001 12:19 PM To: 'mark.taylor@enron.com' Subject: Proposed Audit Presentation Mark, I haven't heard back on scheduling the contract audit presentation. Is this on the back burner or have you decided not to proceed at this

time?

David Yeres Clifford Chance Rogers & Wells 200 Park Avenue New York, NY 10166 Tel: (212) 878-8075 Fax: (212) 878-8027 email: david.yeres@cliffordchance.com

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For further information about Clifford Chance please see our website at <http://www.cliffordchance.com> or refer to any Clifford Chance office.

Message 247 of 413

Re: Canadian Power Confirms

Sender	peter.keohane@enron.com
Recipients	['mary.cook@enron.com', 'greg.johnston@enron.com', 'mark.powell@enron.com', 'jeffrey.hodge@enron.com']
File	taylor-m/all_documents/4007.

Mary, sorry for not getting back to you sooner.

Of the three concepts, only (i) Market Opening condition is proving sellable, and then only on the basis the it is bilateral and for physical transactions. The other 2 concepts: (ii) modified Market Disruption; or (iii) suspension of obligations if Enron is subject to judicial/regulatory/legislative action (intended to address Project Stanley), are proving to be unworkable concepts. I believe these latter 2 issues and Market Opening Risk for financials will be resolved commercially as something that will be lived with. The traders/marketers have all three concepts however.

With respect to the summary of deals that may be subject to Market Disruption as a result of changing legislation or Pool Rules, as we previously discussed, I am not sure where that work product was going, other than somebody (I believe Lavo) wanted the summary for information purposes (i.e. as the deals were already done, the risk is what it is). If there is some other impetus for your report and I need to do something further, please let me know.

Many thanks for all of the hard and thoughtful work.

Peter.

MARY COOK 12/04/2000 08:46 AM To: Jeffrey T Hodge/HOU/ECT@ECT, Peter Keohane/CAL/ECT@ECT, Greg Johnston/CAL/ECT@ECT, Mark Powell/CAL/ECT@ECT, Derek Davies/CAL/ECT@ECT cc: Mark Taylor/HOU/ECT@ECT Subject: Canadian Power Confirms

Attached is a redraft of the three proposed points for inclusion in each of financial and physical power confirms. Please review and advise of any further comments or thoughts.

It is my understanding that it has been decided that Canada wants to negate Market Disruption concepts on the basis of changes to EUA or Pool rules. I have also negated force majeure claims on the same basis (typically not apt in financial--however, since it could be argued I added it in the financial confirm language as well). Question: Would we also want to add "any other excuse of performance" to this concept? Such language would afford a broader sweep in respect of various claims, however, (i) the sweep may be too broad in light of it covering any change in the EUA or Pool rules and (ii) ultimately, we may want some flexibility to argue other points. Advise.

Under Performance Suspension the intent is to carve out the "trade" for suspension, while leaving the other aspects of the masters/gtcs in place, such as bankruptcy and other termination events.

Mary

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 248 of 413

Governors Endorse Voluntary Carbon Reduction, New Source Review

Sender	lisa.jacobson@enron.com
Recipients	['stacey.bolton@enron.com', 'jeffrey.keeler@enron.com', 'pat.shortridge@enron.com', 'michael.terraso@enron.com...]
File	taylor-m/inbox/lisa_j/43.

FYI - From Today's Inside EPA Governors Endorse Voluntary Carbon Reduction, New Source Review Reform As Congress and the White House struggle to produce a strategy to limit power plant emissions of greenhouse gases, state governors are endorsing voluntary reductions of carbon dioxide (CO₂), along with an overhaul of EPA's New Source Review regulations under the Clean Air Act. An energy policy statement </secure/data_extra/dir_01/epa2001_3641.pdf>, approved August 7 by the National Governors Association at their annual meeting in Providence, recommends that Congress "significantly reduce and cap emissions of sulfur dioxide, nitrogen oxides, mercury, and voluntary reductions of carbon dioxide from electric power generators." This call to action puts political pressure on Congress and the White House, who are now in the process of deciding whether to add voluntary CO₂ reductions to legislation regulating the other three pollutants. But the governors also add a caveat that the regulation of pollutants should be flexible enough not to harm the economy. "The legislation should provide regulatory certainty by establishing reduction targets for emissions, phasing in reductions over a reasonable period of time, and providing market-based incentives, such as emissions-trading credits to help achieve the required reductions," the policy says. A source with the association also says that states have already endorsed voluntary programs to lower CO₂ emissions, and have said as much in earlier policy statements on climate change. The governors are further recommending changes to EPA's New Source Review (NSR) program, which industry has long criticized as too costly and cumbersome because, in some cases, it requires permits for minor plant modifications. EPA Administrator Christine Todd Whitman has suggested that the Administration's proposal for limiting emissions may make new source review unnecessary. But the governors urge EPA to reform NSR. "New Source Review requirements should be reformed to achieve improvements that enhance the environment and increase energy production capacity, while encouraging energy efficiency, fuel diversity, and the use of renewable resources," the policy reads. And the governors are also asking for more state input into federal rules on energy and the environment. The policy asks that states be allowed to review regulations in EPA, the Department of Energy and other agencies before they are released for public comment. Source: InsideEPA.com Date: August 7, 2001 ? Inside Washington Publishers

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 249 of 413

Product Type - Please approve

Sender	kevin.meredith@enron.com
Recipients	['bjorn.hagelmann@enron.com', 'karen.lambert@enron.com', 'matthew.arnold@enron.com', 'tom.moran@enron.com', 'l...]
File	taylor-m/inbox/197.

Your review and approval of the following product types in the EOL Data manager is needed (for directions on approval, please see steps for approval at the bottom of this e-mail). If you have any questions please call me at ext. 39555 or Chris Walker at ext. 37533 **** DO NOT APPROVE PRODUCT TYPES BETWEEN THE HOURS OF 6AM - 11AM****

Lawyer: Robert Bruce(Mark, Robert already approved Long Description) Product Type(s): Full Truck Load Dry Van Cap (2182) Description(s): A US Physical Full Truckload Dry Van Capacity Transaction with Enron Freight Markets Corp., under which the Seller shall provide and the Buyer shall purchase a fixed quantity of firm freight capacity at the Contract Price, as submitted by Counterparty via the Website. The total Shipment Price shall be the product of the Contract Price multiplied by the Trip Distance subject to possible adjustment for Accessorial and other charges as specified in the

General Terms and Conditions. The Trip Distance will be the total number of PC Miler Practical Miles of transport between the five-digit zip codes of the Origin Points and Destination Points. The Payment Date shall be within 30 days of receipt of Seller's invoice and supporting documents. The term of the Transaction shall correspond to the date(s) set forth in the Product description on the Website. This transaction provides Full Truckload Dry Van Capacity from an Origin Point within [Los Angeles, CA], the Origin Zone, to a Destination Point within [Columbus, OH], the Destination Zone. Zip Codes comprising each Origin Zone and Destination Zone are as set forth on the Website. Pickup or delivery outside the Origin Zone or Destination Zone is subject to Out of Route restrictions and surcharges. Transit Time for each Shipment will be 80 hours. Diesel fuel is included in the Contract Price and no surcharge will apply. Cargo limitations may apply. The price is quoted in US Dollars per unit of volume, which will be the Contractual Currency. The unit of measure against which the price is quoted shall be PC Miler Practical Miles of transport and the Contract Quantity shown shall be in number of Shipments per Business Day. Trader(s): Matthew Arnold

GTC:

STEPS FOR APPROVAL:

click the START button select PROGRAMS select TEST APPLICATIONS select ENRONONLINE CLUSTER(PROD) PROCEED WITH USUAL LOGIN/PASSWORD click the Enron Online Production Cluster "START" button select EnronOnline (this is the EOL Datamanager) PROCEED WITH EOL LOGIN/PASSWORD click on the "+" for EnronOnline click on the "+" for Product Types click on the "+" for "Partially Approved" select the product requiring review as stated in e-mail above Right "mouse" click on "properties" to view product set-up TO APPROVE: Right mouse click on "Approved"

Kevin Meredith

EnronOnline (713) 853-9555

Message 250 of 413

FW: ConfirmLogic Target Customer List-Legal Entity Name	
Sender	sara.shackleton@enron.com
Recipients	['legal <.taylor@enron.com']
File	taylor-m/inbox/58.

Mark: Which lawyers should be involved? What is a reasonable timetable? Let's talk and also talk about utility service companies. Thx ss

-----Original Message-----

From: Cordes, Kathryn Sent: Thursday, September 20, 2001 10:18 AM To: Theriot, Kim S.; Shackleton, Sara; Smith, Jennifer Marie Cc: Taylor, Mark E (Legal); Greenberg, Mark; Hansen, Leslie Subject: RE: ConfirmLogic Target Customer List-Legal Entity Name

Sara:

I am following up with you regarding a timetable for the top 20 customers. Per our conversation last Friday we had discussed that you would coordinate with the other lawyers to review the top 20 list and draft amendments for using CommodityLogic's ConfirmLogic module for the purpose of confirmations.

The marketing team's goal for the timetable is to identify when the amendment can be ready for delivery to the customer. Marketing will coordinate the actual delivery of the amendments to the customers at the appropriate time during the sales cycle. Just to restate Tom Gros' goal, he would like the amendments to be drafted and ready to go so there will be no delays when the sales team reaches the point in the sales cycle to provide the documents to the customer. The sales team's immediate focus is on the top 10 customers on this list and the amendments will need to be made available within the next couple of weeks for presenting to the customers.

If you could provide Jennifer, Kim and myself with your timetable that will help us set expectations with the sales team. Jennifer will follow up with you on a weekly basis to get from you a status/update on the timetable to be incorporated in a marketing status report to Enron Networks senior management team.

Thanks, KC

-----Original Message-----

From: Theriot, Kim S. Sent: Tuesday, September 18, 2001 12:30 PM To: Shackleton, Sara Cc: Cordes, Kathryn; Taylor, Mark E (Legal); Greenberg, Mark; Hansen, Leslie Subject: ConfirmLogic Target Customer List-Legal Entity Name Importance: High

Sara, See attached spreadsheet which shows the legal entity names by counterparty for each commodity. Name differences between the commodities are highlighted in Blue.

Kim Theriot

<< File: Top20 Legal Entity Names.xls >>

-----Original Message-----

From: Shackleton, Sara Sent: Monday, September 17, 2001 9:56 AM To: Theriot, Kim S. Cc: Greenberg, Mark; Cordes, Kathryn; Taylor, Mark E (Legal); Hansen, Leslie Subject: ConfirmLogic Target Customer List

Kim:

I am reviewing the list of 20 target customers dated 9/14/01 in an effort to set up a document drafting timetable.

For financial trading purposes, I need an accurate list of trading counterparties reflecting the complete name of each legal entity. Also, if a company is split into more than one legal entity (such as power and gas) for financial trading purposes, I need the names of both entities.

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 251 of 413

Japan's Plans to Ratify the Kyoto Protocol.....

Sender	lisa.jacobson@enron.com
Recipients	['jeff.keeler@enron.com', 'michael.terraso@enron.com', 'linda.robertson@enron.com']
File	taylor-m/inbox/lisa_j/36.

Japan will prepare for domestic ratification of the Kyoto Protocol next year, provided that governments are able to adopt formal texts on implementation rules for the treaty at the climate negotiations next month (COP-7). Reaching agreement on the lengthy texts at COP-7 is possible, but will not be easy.

As the second largest economy, and about 10 percent of the world's greenhouse gas emissions, Japan's decision to ratify the Protocol would make it considerably more likely that the treaty will enter into force. Since "political" agreement was reached in July on implementation rules for the Kyoto Protocol, Japan has expressed its commitment to the treaty but has not set a specific timeline for ratification. Much of its efforts have been spent on trying to persuade the U.S. to offer an alternative to Kyoto or come back to the negotiation table on the treaty.

Given Japan's economic woes, several of its Ministries as well as its domestic industry sectors have cautioned against ratification. These recent announcements represent more buy in from domestic government agencies and an attempt to build momentum for the upcoming climate talks.

Moving ahead with ratification next year would allow the treaty to enter into force shortly after the tenth anniversary meeting of the Rio Earth Summit, scheduled for Johannesburg, South Africa next fall. The EU has set fall 2002 as a goal for ratification.

Japan's Next Steps for Ratification

Japan will take formal action next year if governments adopt formal decisions on the implementation rules for the Kyoto Protocol at COP-7. Legislative action required for ratification includes adoption of a national implementation plan as well as the instrument of ratification. Given the state of Japan's economy, adoption of a domestic implementation plan will likely be challenging.

Kyoto Ratification and Reduction Obligations

The Protocol will enter into force after it has been ratified by at least 55 parties to the United Nations Framework Convention on Climate Change, including industrialized countries representing at least 55 percent of the total 1990 carbon dioxide emissions from that group. Ratification would be possible if the EU, Japan and several economies in transition (or Canada) sign on.

If the Protocol enters into force, national governments in countries that become a party to the treaty will devolve emission reduction obligations to domestic sources. National governments will also decide whether, and how, the private sector can use the market-based mechanisms under the treaty - emissions trading and project-based mechanisms (Joint Implementation and the Clean Development Mechanism).

Please see the attached article from The Japan Times as well a presentation that outlines the key provisions of the Kyoto Protocol.

Please contact me with any questions.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 252 of 413

RE: Energy and Developing Products Conference in London 2001

Sender	christophe.chassard@rwe trading.com
Recipients	[]
File	taylor-m/archive/2001_07/6.

Dear all,

After having consulted with my colleagues, here is our pinch of salt.

We believe markets participants would be interested in the following topics:

- * E-Commerce Panel Discussion: why some platforms succeed and others do not (e.g Enron vs. ICE) the impact of e-trading on standardized documentation
- * Convergence of Trading Forms: role of a master contract in energy markets/cross product netting how to deal with different standardized documentation in Europe for similar products, e.g. EFET, GTMA
- * Workshop One: collateralization of physical gas and electricity transactions under the CSA

My esteemed colleague Rita is happy to present a paper on the development of the EFET gas master and/or coal trading and has also volunteered to participate to one panel. I have also asked another colleague to give an update on the status of EFET for power trading in Continental Europe (I don't have his reply yet).

Best Regards

Christophe Chassard

RWE Trading UK Limited 130 Wood Street London EC2V 6DL

Main switchboard +44 (0) 20 7898 1930 Structuring +44 (0) 20 7898 1944 Direct line +44 (0) 20 7898 1916 Central fax +44 (0) 20 7898 1940

Email: <mailto:christophe.chassard@rwetradings.com>

-----Original Message----- From: Liz O'Sullivan [SMTP:LOSULLIVAN@isda.org] Sent: 25 June 2001 16:55 To: Mark Haedicke; Katia d'Hulster; 'christophe.chassard@trading-rwe.co.uk' Cc: Stacy Carey; Ruth Ainslie; Mark Taylor Subject: Energy and Developing Products Conference in London 2001 I am writing in regards to ISDA's Energy and Developing Products conference in London on December 4, 2001. I have attached a draft agenda for your review. In order to finalize the agenda, please advise on the following issues: - New and Developing Products in Europe - Local public policy issues in Europe - Product types that are of interest to Europe <<draft2.doc>> At the last Energy and Developing Products conference held in Houston in March 2001, we had problems finding suitable speakers willing to participate in conference. Keep in mind we had twenty two speakers for a one day conference!! As a result, we would prefer to have fewer workshops this time in London. Workshop 1 in each session we will provide global and regional perspectives on different product types with a focus on business and trading issues. Workshop 2 is for attendees who are interested in a more in-depth understanding of the ISDA Master Agreement and how it can be used to document energy and power derivatives. This workshop will be repeated in session two. Please note, Houston's conference had one more workshop in session one and session two. Please suggest workshop topics that would be of interest to delegates attending the conference. I look forward to hearing from you. Regards, Liz Liz O'Sullivan ISDA 600 Fifth Avenue Rockefeller Center - 27th floor New York, NY 10020 Phone: (212) 332-2559 Fax: (212) 332-2561 << File: draft2.doc >>

Message 253 of 413

Re: EOL Hedge funds - any issues

Sender	mark.taylor@enron.com
Recipients	['leslie.hansen@enron.com', 'marie.westin@enron.com', 'claudia.clark@enron.com', 'enron.group@enron.com']
File	taylor-m/all_documents/3801.

We have not admitted hedge funds to trade in the US because of the heightened regulatory scrutiny of trading with hedge funds generally since the Long-Term Capital Management debacle of last year. These same issues may not apply in the UK.

Marie Westin 11/20/2000 05:23 AM

To: Mark Taylor/HOU/ECT@ECT, Leslie Hansen/HOU/ECT@ECT, Claudia Clark/HOU/ECT@ECT cc: Enron London - EOL Product Control Group/LON/ECT@ECT Subject: EOL Hedge funds - any issues

Hi guys,

I hope you can help me. Are there any issues with us trading with Hedge funds on EnronOnline? Galtere have applied and seem to be one. I look forward to hearing from you. Regards Marie PCG London ----- Forwarded by Marie Westin/LON/ECT on 20/11/2000 11:16

Justin Boyd 20/11/2000 11:10 To: Marie Westin/LON/ECT@ECT cc:

Subject: Re: Toyota Tsusho America Inc & Galtere International Master Fund - New Counterparties for EnronOnline

Marie

Subject to my comment below and to the Segregated Accounts notice (for metals), I approve for all products, except for US power, credit and weather.

However, in the case of the Galtere, please check with the US PCG whether trading with Hedge funds gives rise to any particular legal issues.

Justin

Marie Westin 20/11/2000 10:25 To: Justin Boyd/LON/ECT@ECT cc:

Subject: Toyota Tsusho America Inc & Galtere International Master Fund - New Counterparties for EnronOnline

Hi there,

Could you please approve the above? Galtere is a US company, (Hedging fund) and Toyota... is also a US company (Both metals) Thanks Marie ----- Forwarded by Marie Westin/LON/ECT on 20/11/2000 10:28

From: Enron London - EOL Product Control Group 08/11/2000 08:06

Sent by: Marie Westin To: Robert Quick/LON/ECT@ECT, Paul Maley/LON/ECT@ECT, ECT London Credit cc: Hamish M Scutt/EU/Enron@Enron, Alan Jamieson/EU/Enron@Enron, Diana Higgins/LON/ECT@ECT, Lindsay F Edmonds/EU/Enron@Enron, Enron Europe Global CounterParty, Enron Europe Global Contracts and Facilities, Alex Heath/LON/ECT@ECT, Britta Dinnendahl/LON/ECT@ECT, Enron London - EOL Product Control Group/LON/ECT@ECT, EOL Marketing Europe@ECT, Annette Schneider/LON/ECT@ECT

Subject: Toyota Tsusho America Inc & Galtere International Master Fund - New Counterparties for EnronOnline

Please can you review the above named counterparties in the S Drive Access Database. Please inform me by return email when this has been done.

GCP - Please note customer does not have EOL link in GCP. (GCP id 82544) Credit - please note that Galtere International Master Fund is not set up in GCP

Regards Marie PCG London

----- Forwarded by Marie Westin/LON/ECT on 08/11/2000 08:07

London Fax System 07/11/2000 22:33 To: Enron London - EOL Product Control Group/LON/ECT@ECT cc:

Subject: New fax received (Likely sender: 713 646 8511).

You have received a new fax from 713 646 8511

The image contains 6 page(s).

Message 254 of 413

Re: FW: Energy Bar Program

Sender	mark.taylor@enron.com
Recipients	['skramer@milbank.com']
File	taylor-m/all_documents/3292.

Steve:

I have now heard back from both Louise and Andy and neither one will be available. Unfortunately, Mark has now left again and I am on my way out on vacation for a couple of weeks. It might make sense for you to contact Mark directly since you will be able to get to him before I can.

Sorry about that.

Mark

SKramer@milbank.com 09/20/2000 11:25 AM

To: mark.taylor@enron.com cc: Subject: FW: Energy Bar Program

Mark,

Just wanted to mention to you that if either Louise Kitchens, Andy Zipper or Mark Haedicke are interested in participating in the Energy Bar program but is not yet in a position to make a firm commitment, we can list the speaker as "invited" for the first mailing and then make any corrections that are necessary on a subsequent mailing that will be distributed.? Of course, the Bar Association would not list a speaker as "invited" without prior authorization.? Would it be possible to get back to me today on an EnronOnline speaker?? Thank you for taking the time out of your busy schedule to provide assistance.

Steve

-----Original Message-----

From:?? Kramer, Steven Sent:?? Wednesday, September 20, 2000 12:23 PM To:???? 'mark.taylor@enron.com'
Subject:??????? FW: Energy Bar Program

Mark,

Just wanted to mention to you that if either Louise Kitchens, Andy Zipper or Mark Haedicke are interested in participating in the Energy Bar program but is not yet in a position to make a firm commitment, we can list the speaker as "invited" for the first mailing and then make any corrections that are necessary on a subsequent mailing that will be distributed.? Of course, the Bar Association would not list a speaker as "invited" without prior authorization.? Would it be possible to get back to me today on an EnronOnline speaker?? Thank you for taking the time out of your busy schedule to provide assistance.

Steve

-----Original Message-----

From:?? Kramer, Steven Sent:?? Friday, September 15, 2000 11:30 AM To:???? 'mark.taylor@enron.com'
Subject:??????? Energy Bar Program

Mark,

I am not sure if you had a chance to contact Louise Kitchens or Andy Zipper regarding the Energy Bar Association program, but I just wanted to check.? If neither of them are available, has Mark Haedicke returned from travel?? If so, would you recommend that I give him a call.

I know that you are very busy and greatly appreciate your assistance.

Steve

Steven M. Kramer Milbank, Tweed, Hadley & McCloy LLP International Square Building 1825 Eye Street, N.W.
Washington, D.C. 20006 TEL: 202-835-7508 FAX: 202-835-7586 skramer@milbank.com

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Message 255 of 413

New Project Direction

Sender	brent.hendry@enron.com
Recipients	['legal < .taylor@enron.com']
File	taylor-m/inbox/32.

Mark, I can use your advise on a few new projects that I am working on.

1. The weather desk is trying to roll out a HDD Swap for Calgary by Monday= . Most of the anticipated buyers of the product will be Canadian counterpa= rties ECC has masters with. The desk originally thought that we need to cr= eate a

GTC for Enron Canada using the ENA weather GTC. Because if the time= issues involved in creating a new GTC (fixing all the things that are wrong with the ENA form) I looked for a new way to deal with this issue. I think I found it in section 3(d) of the ETA which provides that the Enron counterparty to a particular transaction will be the Enron Entity they have a master with that covers that type of transaction. I believe this provision was a stroke of genius designed for just this type of scenario. I can prepare the long description to specify the Enron entity as "the applicable Enron entity" and if there is a master then the Enron Entity is the one with the master pursuant to Section 3(d) of the ETA and if there is no master then the ETA says the GTC applies and the GTC specifies that ENA is the counterparty. Do you think this works?

2. I was contacted by someone at McKinsey & Company yesterday who is working with the weather desk to develop a Bermuda Transformer Commercial Structure to partner up with the Insurance market to provide some capital to our weather trading desk. I have been told that conceptually it will be a Jedi type arrangement. I have been asked to help them think through the issues and coordinate with the other attorneys who work on these types of issues. I do not want to get too deep into the structuring of this investment vehicle myself without the appropriate legal group involved. Would this be something Jordan Mintz's group would handle or would this be something that Lance Schuler's group would develop? I thought I might want to talk to Julia Murrey (or Cristina Mordant or Carol St. Clair) to see what issues cropped up in the development of Jedi I and Jedi II (or maybe I should just talk to whatever lawyer is currently handling these structures). What are your thoughts on how to move forward?

3. The other rush deal is a financing deal out of Jordan's group. The deal I helped look at that was a physical forward using ISDA type language is now a financial deal (a series of Total Return Swaps) that needs to close next Friday. I will go to a meeting in the morning to try and get more information on the structure. Angela Davis who has worked on the Total Return swap deals has offered to help me pilot this through. Sara thought I should check with you to make sure you don't have a problem with me taking on one of these deals. I am going to try and make sure they have Danny Sullivan from A&K working on the deal since he is the most knowledgeable lawyer on this type of structure. =20

I hope all goes well with your return flight plans.

Brent

Brent Hendry Senior Counsel Enron North America 1400 Smith Street Houston TX 77002 Phone 713 853 7124 Fax 713 646 3490

Message 256 of 413

Re: Enron Online Access & ISDA's - ALCOA

Sender	brian.flaherty@enron.com
Recipients	[alfred.pennisi@enron.com, 'edmund.cooper@enron.com', 'kathy.moore@enron.com', 'craig.young@enron.com']
File	taylor-m/archive/8_00/133.

Kathy,

You are obviously correct in your e-mail to me. Thanks for the clarification, and apologies for my choice of wording in the e-mail.

Regards, BEF

Kathy M Moore@ECT 08/23/2000 07:43 AM

To: Brian Flaherty/NYC/MGUSA@MGUSA cc: Frank L Davis/HOU/ECT@ECT, Edmund Cooper/LON/ECT@ECT, Justin Boyd/LON/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Jon Barrett/MGLTD_London/MGLTD@MGLTD@MGUSA, Alfred Pennisi/NYC/MGUSA@MGUSA, TJ Pimpinelli/NYC/MGUSA@MGUSA, Craig Young/LON/ECT@ECT Subject: Re: Enron Online Access & ISDA's - ALCOA

Brian,

I am sorry if you miss understand what I said but I would like to reiterate that I said IF customer had a master in place, that it would also cover EnronOnline but that would have to be verified by the legal group. That is why I emailed and called both Mark Taylor and Leslie Hansen and had them get involved. I had also explained all this to Tim Reyes with Alcoa.

It sounds like Mark has lead you in the right direction for assisting customer.

Kathy

From: Brian Flaherty@MGUSA on 08/23/2000 06:45 AM EDT To: Frank L Davis/HOU/ECT@ECT, Edmund Cooper/LON/ECT@ECT, Justin Boyd/LON/ECT@ECT cc: Kathy M Moore/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Jon Barrett/MGLTD_London/MGLTD@MGLTD, Alfred Pennisi/NYC/MGUSA@MGUSA, TJ Pimpinelli/NYC/MGUSA@MGUSA, Craig Young/LON/ECT@ECT Subject: Enron Online Access & ISDA's - ALCOA

To all,

One of our customers, ALCOA, has been registered on EOL for the OTC metal products, but is having problems accessing the trading site.

The problem stems from two areas:

1) When ALCOA accesses the trading site, the prompt for Enron's terms and conditions comes up with a further prompt to agree or disagree to the conditions. ALCOA's legal team has determined that they should not agree to the conditions because they have an existing ISDA agreement in place with MG Ltd.

2) ALCOA has talked to EOL's help desk (specifically Kathy Moore), who subsequently has determined (I assume with Enron legal) that the current ISDA in place with MG Ltd. is sufficient to begin trading EOL's OTC metal products.

In further discussions I had with Mark Taylor today, he basically confirmed that the ISDA that's in place is valid for EOL's OTC metal products, but said that I should confirm with either Edmund Cooper or Justin Boyd in London for final confirmation of the legal questions, and Frank Davis for the EOL access.

In addition, Mark alluded to the probability that Enron legal/compliance does not have a listing and/or copies of ISDA's that MG Ltd. has in place with customers. If you'd like, I can help facilitate that. Please advise.

Could you confirm for me the following via telephone and/or e-mail:

- 1) That the current ISDA ALCOA has in place is valid for EOL's OTC metal product trading.
- 2) That their account can access the site without the term and conditions prompt.

Please contact me if you have any further questions or concerns.

Regards, BEF

Brian Flaherty Vice President MG London Inc. 520 Madison Avenue 28th Floor New York, NY 10022 Tel: 212.715.2344 Fax: 212.715.2360 E-mail: brian.flaherty@mglondon.com

Message 257 of 413

FW: E:mailing vs Faxing Confirmations

Sender	mary.cook@enron.com
Recipients	['Larry Joe Hunter/HOU/ECT@ECT', 'mary.cook@enron.com', 'sara.shackleton@enron.com', 'carol.clair@enron.com']
File	taylor-m/all_documents/8237.

Continuing on this matter: I think under ISDA provisions and our Schedule that emailing would be allowed see 9eii. Are you ok with advising Joe that we think emailing is adequate.

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com ----- Forwarded by Mary Cook/HOU/ECT on 04/25/2001

09:43 AM -----

Larry Joe Hunter 04/24/2001 04:02 PM

To: Sara Shackleton/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Frank Sayre/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Brent Hendry/NA/Enron@Enron, Mark Taylor/HOU/ECT@ECT Subject: FW: E:mailing vs Faxing Confirmations

The Physical Liquids group is proposing that they begin e-mailing Confirmations rather than faxing. Does anyone have any issues with us doing the same for Financial deals?

Thanks, Joe Hunter

----- Forwarded by Larry Joe Hunter/HOU/ECT on 04/24/2001

03:59 PM -----

Samuel Schott 04/24/2001 03:27 PM

To: Bill D Hare/HOU/ECT@ect, Marilyn Colbert/HOU/ECT@ECT, Sundar Chitradurga/Enron@EnronXGate cc: Larry Joe Hunter/HOU/ECT@ECT Subject: FW: E:mailing vs Faxing Confirmations

I believe that we should have a meeting on this before we respond.

Sundar, when can you meet for a few minutes?

Joe, let me know if you would like to attend or conference in.

Thanks !!

Samuel x3-9890 (GCP) Enron Net Works _ Global Data Management

----- Forwarded by Samuel Schott/HOU/ECT on 04/24/2001 03:19

PM ----- From: Herbert Goodwin/ENRON@enronXgate on 04/24/2001 01:16 PM To: Samuel Schott/HOU/ECT@ECT cc: Subject: FW: E:mailing vs Faxing

Sam, your name was passed along to me as someone that maybe able to help us. We are investigating the prospect of emailing our confirmations vs faxing them and one of the things that came up was the possibility of a drop box email address for the counterparty involved that would be setup in the global counterparty system. Any ideas off the top of your head of what it might take to get this information included in the global counterparty system?

-----Original Message-----

From: Goodwin, Herbert Sent: Tuesday, April 24, 2001 10:41 AM To: Flores, Nony Subject: FW: E:mailing vs Faxing

Nony, there is some discussing around developing an email process for our confirmations (vs. faxing) and we are wanting to get an opinion from Legal on the proposal. Can you please let me know what Legal's feelings would be about such a process? Thanks.

-----Original Message-----

From: Sorenson, Jefferson D. Sent: Monday, April 23, 2001 3:07 PM To: Goodwin, Herbert; Loukanis, Linda K. Cc: Stubbs, Shelly; Bruce, Michelle; Denson, Mary Jane; Gonzales, Alexia; Goodwin, Herbert; Harris, Stephanie L; Loukanis, Linda K.; Nelson, Damian; Schultz, Michelle; Scully, James Subject: E:mailing vs Faxing

Herbert - Would you please investigate what it would take for us to begin E:mailing our confirmations as opposed to faxing. Check with Legal, Ron Nolte, and Global Counterparty.

Linda - let's see about starting Freight off this way.

I would like to go this route if possible.

thanks, Jeff

Message 258 of 413

Brazil conf. on GHG emissions trading

Sender	lisa.jacobson@enron.com
Recipients	['dan.badger@enron.com', 'henry.van@enron.com', 'jeff.keeler@enron.com']
File	taylor-m/inbox/lisa_j/4.

FYI only...I know some people who attended I will let you know if anything significant came out of the meetings. UN forum in Rio to set up "environmental" market

BRAZIL: September 3, 2001

RIO DE JANEIRO, Brazil - Business executives, government officials and environmentalists from all over the world converged on Rio de Janeiro last week under U.N. auspices to discuss rules for a new "environmental market" to fight global warming.

They hope the business potential of the market, with an expected turnover of \$10 billion to \$15 billion a year for the next 15 years or so, will tempt big US companies to support the plan. The main commodities of the new global market are quotas for greenhouse gas emissions for private companies and countries, low-emission technologies and investment in lesser developed countries, U.N. officials told a news conference. "It is a fascinating process of the creation of a new market, with new commodities, which still needs rules to work," said Rubens Ricupero, a Brazilian, who is secretary-general of the U.N. Conference on Trade and Development. The quotas would be imposed only if and when the Kyoto treaty on global warming comes into effect. The future of the Kyoto accord, however, is still in question after the United States - the world's biggest polluter - rejected it. Last month, environment ministers meeting in Germany reached a compromise deal to salvage the Kyoto treaty, calling on nations to cut greenhouse gas emissions by 5.2 percent below their 1990 levels by 2012. The protocol should become a workable treaty and be brought into force next year. HOW TO IMPLEMENT IT? "The question now is how to implement that, minimizing sacrifice of the economy," said Ricupero. For the 30-some industrially developed nations there will be a market for emission certificates, or quotas for harmful gas emissions, that can be traded. Investing in low-emission industrial technologies for lesser developed countries, forest planting and other projects, these countries would be able to get "credits" in the form of higher emission quotas. Ricupero underscored that Brazil, one of the world's largest developing countries, could receive a great deal of investment in the future as it needs many new gas-fired power plants to withstand a severe energy shortage. "This is the area which has a lot to do with gas emissions and the technology costs quite a lot. Forest planting can also bring big investment, given the size of deforestation here," he said. "No nation, however powerful it is, can go in the opposite direction than other nations on the planet.... We are getting some positive signs already," said Earth Council President Maurice Strong. Ricupero said that Canada and Brazil, the biggest countries in the Americas, along with the United States, should do their best to convince US President George W. Bush's administration to return to talks on global warming. "It is in the interest of the US private sector. They are the world leaders in this technology and they will only win by supplying this technology to others."

Story by Andrei Khalip

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 259 of 413

Dobriansky briefing on Bush climate change policy...

Sender	lisa.jacobson@enron.com
Recipients	['stacey.bolton@enron.com', 'linda.robertson@enron.com', 'pat.shortridge@enron.com', 'michael.terraso@enron.co...]
File	taylor-m/inbox/lisa_j/7.

The following are the main points from a briefing that Dr. Paula Dobriansky gave to National Association of Manufacturers (NAM) members this morning. Dobriansky is the Undersecretary for Global Affairs at the Department of State, which serves as the head delegate for the United States at the climate change negotiations.

The next set of negotiations are scheduled for late October in Morocco (COP-7) and the delegates are expected to adopt texts on rules for implementation of the Kyoto Protocol, including the broad frameworks for the market-based mechanisms such as international emissions trading. The U.S. has announced its opposition to the Protocol on grounds that it would harm economic interests and it does not include sufficient participation by developing countries.

Not much new to report, though she lowered expectations and distanced the Bush Administration from press reports after the Bonn negotiations in July that the U.S. would be developing an "alternative" to Kyoto. She said several of the statements made by Powell and Rice were taken out of context and the term "alternative" implies to her a "grand design or strategic plan," which the U.S. is not currently developing.

She started off by affirming that the U.S. would not be coming back into the Kyoto Protocol - "plain and simple"

The U.S. is not seeking an amendment or other change that would bring it back into the Protocol

The cabinet-level review on climate change is on-going and the timing as well as the type of initiative that the Bush Administration will develop on climate change are still unknown. She said that President Bush views climate change as a serious issue and is committed to doing something about it, but the issue is complex. The Administration strives to offer a "balanced" approach -- no a cost-punitive approach.

The strategy for COP-7 will be similar to COP-6, the U.S. will engage in climate change convention issues and inject itself to protect U.S. interests, including non-tariff trade barriers and competitiveness issues.

Despite NAM's opposition to the Protocol, some NAM members encouraged the U.S. to re-engage on elements of the Kyoto Protocol to protect business interests, specifically on emissions trading and project-based mechanisms as well as its inclusion of a basket of greenhouse gases.

She highlighted the importance of bilaterals and plans to meet with the Japanese Environment Minister today in Washington, focusing on partnerships on climate science among other topics, but not the Protocol.

The U.S. is developing an agenda for the Earth Summit in (Rio+10) to be held in South Africa next fall. The U.S. will promote good governance, accountability and foreign investment as the main tools to achieve sustainable development.

I will attend a briefing with Dobriansky next Friday with the Business Council for Sustainable Energy -- an industry trade group for the efficiency, natural gas and renewables industries in the U.S. The Council supports the adoption of a binding international treaty to address climate change, it will be interesting to see if her message changes for this audience.

Thanks.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 260 of 413

Mexico - Proposed changes

Sender	francisco.leite@enron.com
Recipients	[]
File	taylor-m/notes_inbox/2511.

Mark:

Below are some changes I would like to propose we make to our form of Maste= r=20 that we send to Mexican counterparties.

The issue is what documents do we request of Mexican counterparties in order to receive assurances of appropriate corporate authority for the execution and delivery of the Master. Below is the current language and my proposal.

Current A Certificate certifying (a) resolutions of Party B and its Credit Support Provider (if any) board of directors (or other governing body) authorizing this Agreement and the Transactions contemplated hereby (or the Credit Support Document, as the case may be) and (b) copies of Party B and its Credit Support Provider (if any) articles of incorporation and bylaws (or other constituent documents) A certified copy of a Power of Attorney authorizing a specified person or persons to execute and deliver on its behalf this Agreement (or the Credit Support Document, as the case may be)

Proposal:

A) Copies of Party B's and its Credit Support Provider's (if any) articles of incorporation and bylaws, as amended from time to time (escritura constitutiva y estatutos sociales vigentes) and, if required under Party B's bylaws and its Credit Support Provider (if any) or, if otherwise available, copies of the minutes of the meetings of the board of directors (or other governing body) of Party B and its Credit Support Provider (if any) authorizing this Agreement and the Transactions contemplated hereby.

B) certified copy of a Power of Attorney granting a specified person or persons with sufficient powers and authority to execute and deliver this Agreement on its behalf (or the Credit Support Document, as the case may be).

As you may know, most of our Mexican counterparties do not really pay attention to what they are signing. The result is that, in most cases, they agree to provide certain evidence of authority that they really do not have (for example, in Mexico, officer certificates are not usual and they do not really mean much). At the end of the day we receive executed Masters and all corporate documents that are required under Mexican law to adequately prove corporate authority but we are not receiving what the counterparty agreed to provide in the Master (again they agreed to this because they do not read it carefully). I checked with our Mexican counsel both the issue and the proposed language and he agreed with both.

The other issue is to add a paragraph in the form of legal opinion we request from counsel to our Mexican counterparty, limiting the legal opinion to the laws of Mexico. The idea is to avoid wasting time with a change we necessarily must agree with and most importantly, end up with a legal opinion that "looks" more like a US opinion. Language proposed: "The opinions herein expressed and statements herein made are limited in all respects to the law of Mexico"

Finally, as I previously told you, I personally have no problems about receiving legal opinions from in-house counsel. Are you okay with this with respect to Mexican counterparties?

I will prepare subordination language for the intercompany debt and will send it to you tomorrow.

Thanks Francisco Pinto-Leite Enron Americas 1400 Smith Street Houston, TX 77002-7361

Tel: 713-345-7942 Fax: 713-646-3490

Message 261 of 413

FW: ConfirmLogic Target Customer List-Legal Entity Name

Sender	kathryn.cordes@enron.com
Recipients	['legal <taylor@enron.com>', 'mark.greenberg@enron.com']
File	taylor-m/inbox/111.

Mark:

Per Tom Gros, Greg Piper is seeing a status on Monday's which tracks various activities one being the progress of legal amendments to customers. Attached is this week's status report. I've asked that you be included in the distribution since

your team's effort is being reported.

Kathryn

-----Original Message-----

From: Cordes, Kathryn Sent: Wednesday, October 03, 2001 4:52 PM To: Theriot, Kim S.; Shackleton, Sara Cc: Taylor, Mark E (Legal); Greenberg, Mark; Hansen, Leslie; Smith, Jennifer Marie Subject: RE: ConfirmLogic Target Customer List-Legal Entity Name

Sara:

I have followed up with Brent and he is working on the Entergy-Koch amendment for CommodityLogic. He cannot commit to a completion date at this time since he has some other priorities. I've asked for Friday and he has indicated that may be aggressive. The sales team is presenting Entergy-Koch the CommodityLogic legal agreements today (ESA, Password application, Subscription Agreement). In light of this, can you provide a status of where the other 18 customer amendments are (excluding Sempra and Entergy-Koch) ? The Sales process is moving along and we will need to have these amendments ready to present to the customer soon. Could you go through the list and provide an estimate date of when a draft of the amendment would be available by client. We need to provide a status to management on Monday 10/8.

Per our conversation today, if there is a way to focus on the creation of a template that addresses the confirmation exchange via electronic systems (e.g. ConfirmLogic) that can be shared earlier with the clients. The additional language that is deemed necessary can be added to this form as needed per counterparty. This will allow us to achieve getting something to the client so they can start the process from their side while we continue to shore up what language needs to be added. We still need to be thinking of how to keep this process simple to allow quick turnaround yet satisfy the legal requirements for confirmations. I ask that you and Leslie continue to help define a better process for us and I will continue to work with Kim and the sales team to implement this process.

Thanks for your help Kathryn -----Original Message----- From: Theriot, Kim S. Sent: Tuesday, September 18, 2001 12:30 PM To: Shackleton, Sara Cc: Cordes, Kathryn; Taylor, Mark E (Legal); Greenberg, Mark; Hansen, Leslie Subject: ConfirmLogic Target Customer List-Legal Entity Name Importance: High

Sara, See attached spreadsheet which shows the legal entity names by counterparty for each commodity. Name differences between the commodities are highlighted in Blue.

Kim Theriot

<< File: Top20 Legal Entity Names.xls >>

-----Original Message-----

From: Shackleton, Sara Sent: Monday, September 17, 2001 9:56 AM To: Theriot, Kim S. Cc: Greenberg, Mark; Cordes, Kathryn; Taylor, Mark E (Legal); Hansen, Leslie Subject: ConfirmLogic Target Customer List

Kim:

I am reviewing the list of 20 target customers dated 9/14/01 in an effort to set up a document drafting timetable.

For financial trading purposes, I need an accurate list of trading counterparties reflecting the complete name of each legal entity. Also, if a company is split into more than one legal entity (such as power and gas) for financial trading purposes, I need the names of both entities.

Thanks.

Sara Shackleton Enron Wholesale Services 1400 Smith Street, EB3801a Houston, TX 77002 Ph: (713) 853-5620 Fax: (713) 646-3490

Message 262 of 413

PG&E: Enron Corp. Receivable Financing

Sender	mary.cook@enron.com
Recipients	[william.bradford@enron.com', 'lisa.mellencamp@enron.com', 'mark.taylor@enron.com']
File	taylor-m/all_documents/7576.

Based upon our negotiations in respect of the Master Netting Agreement, please be sure we notify the Enron Corp. banks that the following contracts are not to be included in the receivables subject to the Enron Corp. receivable financing arrangement. I was advised by Jeff Hodge that this line has been restructured such that we simply provide some type of notice to the banks regarding particular contracts that are not subject to the line.

thank you

Various Enfolio Spot GTC Enron North America Corp. PG&E Energy Services, Energy Trading Corp. Physical Gas Master Coal Purchase and Sale Agreement Enron Coal Services Ltd. PG&E Energy Trading Power, L.P. Physical
 3 Various GTC Form Enron North America Corp. PG&E Energy Trading Power, L.P. Financial Electricity
 4 092/2/00 Master Coal Purchase & Sale Agreement Enron North America Corp. PG&E Energy Trading Power, L.P. Physical Coal
 5 0911/27/96 Master Energy Purchase and Sale Agreement EPMI PG&E Energy Trading Power, L.P. (USGEN Power) Electricity Physical
 6 099/1/98 Master Agreement PG&E Energy Services (Assigned to EEMC and subsequently assigned to EPMI PG&E Energy Trading Power, L.P. Electricity Physical
 7 091/15/99 ISDA Master Agreement with ISDA Credit Support Annex and Enron Corp. Guaranty, PG&E Corp. Guaranty Enron Canada Corp. PG&E Energy Trading, Canada Corp. Financial
 8 093/11/97 Master Firm Gas Purchase/ Sale Agreement Enron Canada Corp. PG&E Energy Trading, Canada Corp. Physical Gas
 9 0902/01/99 Master Interruptible Purchase/ Sale Agreement Enron North America Corp. PG&E Energy Trading, Canada Corp. Physical Gas
 10 0902/01/99 Master Firm Purchase/ Sale Agreement Enron North America Corp. PG&E Energy Trading, Canada Corp. Physical Gas
 11 094/17/97 Master Firm Gas Purchase/ Sale Agreement Enron Canada Corp. PG&E Energy Trading-Gas Corp. Physical Gas
 12 091/15/99 ISDA Master Agreement with ISDA Credit Support Annex and Enron Corp. Guaranty and PG&E Corp. Guarantee and PG&E Energy Trading Corporation Guarantee Enron North America Corp. PG&E Energy Trading-Gas Corp. Financial
 13 092/1/99 Master Firm Purchase/ Sale Agreement Enron North America Corp. PG&E Energy Trading-Gas Corp. (original party was PG&E Energy Trading, Canada) Physical Gas
 14 092/1/99 Master Firm Purchase/ Sale Agreement Enron North America Corp. PG&E Energy Trading-Gas Corp. Physical Gas
 15 091/10/01 Enfolio Spot GTC Enron North America Corp. PG&E Energy Trading Gas Corp. Physical Gas
 16 093/1/95 Enfolio Master Spot Purchase Sale Agreement Houston Pipe Line Co. PG&E Energy Trading-Gas Corp. Physical Gas
 17 091/4/01 Houston Pipe Line CO. Spot GTC Houston Pipe Line Co. PG&E Energy Trading Gas Corp. Physical Gas
 18 094/1/98 Enfolio Master Firm Purchase Agreement EES PG&E Energy Trading-Gas Corp. Physical Gas
 19 0911/1/97 Master Firm Gas Purchase/ Sale Agreement EEMC PG&E Energy Trading-Gas Corp. Physical Gas

Cordially, Mary Cook Enron North America Corp. 1400 Smith, 38th Floor, Legal Houston, Texas 77002-7361 (713) 345-7732 (phone) (713) 646-3490 (fax) mary.cook@enron.com

Message 263 of 413

Clickpaper	
Sender	travis.mccullough@enron.com
Recipients	[mark.taylor@enron.com', 'john.cummings@enron.com', 'harry.collins@enron.com', 'justin.boyd@enron.com']
File	taylor-m/notes_inbox/1069.

Justin:

I apologize for bombarding you with e-mails on this matter. There is actually quite a bit of activity around this project this week, and I want to be sure I keep you up to date on what is going on (and give you an opportunity to smack me down if I'm headed off in the wrong direction). I have spoken to Mark Taylor about this, but I wanted to consult you as well.

The Clickpaper site does not currently have the functionality to display a Password Application or Electronic Trading Agreement (actually, it is an "Electronic Transactions Agreement" in Clickpaper) for any jurisdiction other than US/Canada. Customers in those jurisdictions will be able to print out a Password Application and sign and return it, and then "click" through the Electronic Transactions Agreement, just as they currently do on EnronOnline.

The Pulp and Paper Group has identified several potential customers in non-US jurisdictions that they would like to "enroll" on Clickpaper as soon as possible. Since we will not be able to display jurisdiction-specific Password Applications or ETAs on the site, we will send to those customers a jurisdiction-specific Password Application and ETA by courier, both of which will provide for agreement by manual signatures (the ETA will be revised to add signature lines and take out references to agreement by "clicking").

Since Clickpaper's North America ETA and Password Application are virtually identical to those of EOL; It appears that Clickpaper should also be able to adopt EnronOnline's versions of those agreements for the other jurisdictions (that is, Clickpaper's "UK" version of these agreements will be similar to EOL's "UK" Version of those agreements. Based on that assumption, we are preparing those documents for delivery to our customers next week, and will issue passwords upon receipt of executed PWAs and ETAs. .

Clickpaper should be able to display jurisdiction-specific documents on-line in the near future, but this will get them started. Let me know if you have any thoughts.

Travis McCullough Enron North America Corp. 1400 Smith Street EB 3817 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490 ----- Forwarded by Travis McCullough/HOU/ECT on 07/20/2000 08:03 PM -----

John Cummings 07/20/2000 04:55 PM

To: Travis McCullough/HOU/ECT@ECT cc: Brandon Wax/HOU/ECT@ECT, Tom Bruce-Jones/LON/ECT@ECT, Martin Holmes/LON/ECT@ECT, Steve Kim/LON/ECT@ECT, Fraser Allen/LON/ECT@ECT, Greg Piper/Corp/Enron@Enron
Subject: European Counterparties

Travis

As discussed on the phone, attached is the latest spreadsheet of the European counterparties and the North American letter that needs to be revised. We know one revision needs to be that they are directed to the Pulp & Paper Group in London instead of a 1-800 number. I will take a crack at rewriting the letter, but I understand that it may need to be rewritten to reflect the trading laws regarding solicitation etc. As discussed the plan should be to send the counterparties the revised letter, a country-specific password application, a country-specific ETA. What remains is what to do with the counterparties that do not have executed ISDA's. You are going to check if the existing Trade GTC will be valid based on New York Law. The countries we need ETA and PA for are:

Austria Belgium Finland France Germany Ireland Italy Netherlands Portugal Singapore South Africa Spain Sweden Switzerland United Kingdom

Let me know timing as soon as you can. The European guys need to check the spreadsheet and adjust the columns and information accordingly. We need the Ekman contact from Steve K. Let me know if you have any questions.

JC

Message 264 of 413

RE:	
Sender	legal <taylor@enron.com>
Recipients	[dhudanish@brobeck.com]
File	taylor-m/sent_items/106.

David,

Thanks for your note. Glad to hear you and yours are well.

We docked in Southampton on Monday morning so I was already in our London office on Tuesday and just back from lunch when the news started coming through. I was traveling with a couple of friends from NYC (Amanda McGovern, Noble Black's UVA classmate, and Linda Hayman, her mom and a friend of mine from my Skadden days) so it was rather tense for a while as we tried to find their friends but everyone came through pretty well. Our return had been scheduled for Wednesday of that week so of course we were stranded in London but made it back Sunday. Not that we were having much fun, but there were worse places to be stranded. I felt bad for the QE2 passengers on their way from Southampton to NYC. They would have gotten the news on their first day at sea and had to spend what should have been a pleasant cruise thinking about events and worrying.

I've heard good things from both Anne and Brad about your meeting here in Houston. Thanks for getting into that. It sounds like exactly what we needed. I have been talking to Barbara and she will check with Frank concerning the letter.

I'll look forward to chatting sometime soon so I can hear what's been happening with you and how you are coping. Hope it is all going as smoothly as possible. Linda tells me that New York is a changed place -- nearly empty evenings and weekends.

Mark

-----Original Message-----

From: "Hudanish, David M." <DHudanish@brobeck.com>@ENRON [mailto:IMCEANOTES-+22Hudanish+2C+20David+20M+2E+22+20+3CDHudanish+40brobeck+2Ecom+3E+40ENRON@ENRON.com] Sent: Monday, October 01, 2001 10:14 AM To: Taylor, Mark E (Legal) Subject:

Mark,

First off, I hope that your family and friends are all well. I feel very lucky in that my family, friends and colleagues are all okay. I kept thinking about you and wasn't sure if you were stuck on the ship at the time. What happened - how did you get back?

On a more mundane, although important, note I thought I would update you on some recent events.

We had a great meeting a few weeks back with Anne Koehler, Brad Richter and Rex Shelby. We helped them consider the various legal and practical issues that would face Enron should you chose to host internet sites for customers (as opposed to licensing the software to a company and letting them host their own sites). As it turns out, the business team decided to do some more analysis before proceeding.

Pam Kavieff has asked us for help with eProjects (online auction sites for construction projects) and we have provided documents to her team.

Barbara Gray has also asked for help on a project involving AEP. I think she wanted to clear this with you.

In that regard, I just confirmed with my assistant that I did not receive a signed fee letter back from Frank Sayer (I had sent one to him after we meet with him several months ago). We can either try to find that letter and see if Frank signed it (or have him sign it) or I can send a new letter to your attention. In fairness to you, there may be a few things you need to

review (e.g., fax, copying charges come to mind).

Best regards,

David

DAVID M. HUDANISH BROBECK Voice: 212.237.2502 Fax: 212.586.7878 1633 Broadway, 47th Floor New York, NY 10016

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Message 265 of 413

McCain, Lieberman Urge GHG Reductions - White House to "Likely"

Sender	lisa.jacobson@enron.com
Recipients	['stacey.bolton@enron.com', 'linda.robertson@enron.com', 'pat.shortridge@enron.com', 'jeffrey.keeler@enron.com...]
File	taylor-m/inbox/lisa_j/39.

Before leaving for the August congressional recess, Senator John McCain (R-AZ) and Senator Joseph Lieberman (D-CT) made a joint statement on the Senate floor calling for an economy-wide cap and trade program to reduce greenhouse gas emissions. Please see the attached copy of their floor statements. They laid out a timeframe for consultation with stakeholders, including U.S. industry, and development of legislation this fall. This follows a series of legislative activity in the Senate since the conclusion of the international climate change negotiations in Bonn, Germany in July. At the talks, without the support and direct participation of the U.S., nations agreed to continue to develop the rules for the Kyoto Protocol with a target date for ratification by 2002. Other Senate activity includes: Committee approval of climate change legislation sponsored by Senator Robert Byrd (D-W.Virginia) and Senator Ted Stevens (R-AL). The bill would require development of a U.S. climate change response strategy with a long-term goal of stabilizing greenhouse gas emissions in the U.S. The strategy would seek ways to mitigate emissions and promote technology innovation, climate adaptation research and efforts to resolve scientific and economic uncertainties. It would authorize spending of \$4.9 billion over 10 years. Passage of a non-binding resolution in the Senate Foreign Relations committee calling for the U.S. to engage in the climate change negotiations. Introduction of legislation by Senator Frank Murkowski (R-AL), Senator Chuck Hagel (R-NE), Senator Larry Craig (R-ID) and others that provide for tax incentives for energy efficiency and clean energy technologies, increased research on climate science and government coordination on climate change. Introduction of legislation by Senator Sam Brownback (R-KS) and Senator Ron Wyden (D-OR) to enable reporting and provide credit for land management and sequestration under a national climate change program. Upcoming Administration and Congressional Activity Despite statements made last week by EPA Administrator Christine Whitman and National Security Advisory Condoleezza Rice, White House Chief of Staff Andrew Card said yesterday that the Bush Administration would likely have an alternative climate change proposal for consideration at the next negotiations in Morocco in late-October. A key issue remains whether the Bush Administration will support mandatory programs to reduce greenhouse gas emissions, like a domestic cap and trade system. In March, President Bush said he would not support mandatory regulation of carbon dioxide emissions at power plants. As recent events suggest, consideration of mandatory programs and emissions trading, including regulation of carbon, will be on the Senate agenda this fall. Approaches to reduce greenhouse gas emissions will be considered through hearings and committee consideration of climate change legislation, multipollutant proposals and New Source Review reform. Enron's Advocacy Enron will continue to promote its multipollutant proposal as a model for a domestic cap and trade program -- that could also provide a framework to address carbon emissions. We will also offer our expertise on emissions trading and risk management to the Administration and Congress as they consider options to address climate change. I will keep you posted on the status and movement on these legislative proposals. Please feel

free to contact me with questions about any of these proposals. Please see links to several related news stories below:

Aide: Bush Warming Plan Likely Card Is 'Optimistic' Kyoto Alternative Will Be Ready by Fall

<http://www.washingtonpost.com/wp-dyn/articles/A35811-2001Aug5.html> McCain, Lieberman Urge Greenhouse Gas Curbs

Senators Press Bush on Global Warming <http://www.washingtonpost.com/wp-dyn/articles/A29163-2001Aug3.html>

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 266 of 413

Re: Envera

Sender	nora.dobin@enron.com
Recipients	['mark.taylor@enron.com', 'suresh.raghavan@enron.com', 'rbaird@velaw.com', 'dharvey@velaw.com']
File	taylor-m/notes_inbox/2690.

Bob, thanks for looking into this for us (Ted and Suresh, I had asked Bob to consider the various proposed relationships between DealBench and Envera from exchange and other legal perspectives given recent issues we have been considering on possible unrelated transactions involving somewhat similar issues).

DealBench explicitly has declined to be involved in clearing/settlement through Envera of any transactions conducted on the DealBench site; the most DealBench will agree to do is make available hard copy of transaction information to Enron Global Markets (with Deal Manager's permission) and/or Deal Manager.

As to volume discounts, they are being offered on a per Envera member (as opposed to aggregate Envera member) basis based upon site usage (see latest version of relevant provision attached).

Thanks again for your help.

Regards, NJD

Nora J. Dobin Senior Counsel Enron Global Finance Enron Corp. 1400 Smith Street Houston, Texas 77002

713/345-7723 (phone) 713/853-9252 (fax) E-mail: nora.dobin@enron.com

"Baird, Bob" <RBaird@velaw.com> 01/08/01 02:04 PM

To: "Dobin, Nora (Enron)" <nora.dobin@enron.com> cc: "Harvey, Dean" <dharvey@velaw.com>, "Taylor, Mark (Enron)" <mark.taylor@enron.com> Subject: Envera

I did look at the Envera documents, and I believe that they do not present any new or different issues for DealBench. I am assuming that the Envera members will be using the DealBench platform for physical delivered transactions. The discounting and special rates are issues that I assume DealBench faces all the time, and I believe that there are no issues under the Robinson-Patman Act relating to that. Under the Robinson-Patman Act it is ok to give volume discounts if they are justifiable, and I assume they would be in this case in light of the other considerations. Also, Robinson-Patman only applies to "commodities" and the DealBench services that are being provided are most likely not commodities within the meaning of the Robinson-Patman Act. I have spoken briefly with Alison Smith (one of our antitrust lawyers) about this, and she is going to take a quick look at those issues to make sure nothing has happened recently in this area that would be of concern.

It is my understanding that I was asked to look at this only from DealBench's standpoint. There are some EnronOnline issues and issues under the business opportunity agreement provisions. I have relayed comments on the latter to Phillips Nazro of our firm (who is working on the matter on Enron's behalf and asked me about them).

I think that the EnronOnline issues ought to be obvious to Mark Taylor. Just in case, I am sending a copy of this to Mark, because I do think that Mark ought to focus on the words in Section 8.1 "if and to the extent that Enron can place a matching trade via Enron Online" Does that language mean that Enron will be performing a clearing function? If the

answer is yes, there may be some questions that need to be answered under the Commodity Futures Modernization Act of 2000, which I have not even attempted to answer. I assume Mark is aware of this, but just in case I'm sending him a copy of this message.

Robert S. Baird Vinson & Elkins L.L.P. One American Center 600 Congress Austin, Texas 78701 Telephone: (512)495-8451 When calling from Houston (713)758-2414 Fax: (512)236-3210 Email: rbaird@velaw.com Home telephone (512)347-8066 Car phone: (512)627-8065 Home fax: (512)347-8065 Pager: 1-888-487-2651

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Message 267 of 413

Statoil's clean ships could offset NOx emissions

Sender	lisa.jacobson@enron.com
Recipients	['diana.profir@enron.com', 'peter.styles@enron.com', 'nailia.dindarova@enron.com']
File	taylor-m/inbox/lisa_j/44.

FYI only Statoil's clean ships could offset NOx emissions

UK: August 8, 2001

LONDON - Norwegian energy firm Statoil said on Tuesday savings in acid-rain-causing nitrogen oxide (NOx) from two new low-emitting ships would allow it to meet its NOx emissions reduction targets from one new power station.

"We've been given permission to credit these NOx reductions against land-based projects," Knut Barland, vice-president for environment at Statoil told Reuters. "And the kind of reduction we'd be getting on these ships would meet the NOx emission reduction target for one of these (planned) power plants." The North Sea supply ships are small compared to cargo ships, but are so powerful they can be used to drag around oil rigs. They are usually so thirsty for diesel that they pump out as much NOx pollution each day as several thousand cars. But by designing each of them to run on Liquefied Natural Gas (LNG), gas that has been super-cooled until it condenses as liquid, NOx emissions from the two ships can be cut by 85 percent or 420 tonnes a year. "That means one ship is equivalent to half the (NOx) emissions from a gas-fired power station," said Aksel Skjervheim of Naturgass Vest, which will provide the ships with their super-cooled fuel. UNIQUE GOVERNMENT APPROVAL Statoil's Barland said that the government had given it a unique permission to credit the NOx reduction against land-based emissions, which could be from any one of five projects including two controversial 400 megawatt gas-fired power stations Statoil is involved in. He said the power plants, one at Kaarstoe and one at Kollsnes near Bergen, were planned by a joint venture between Statoil, Norsk Hydro and Statkraft. They are not controversial because of their NOx emissions, but because of their carbon dioxide (CO2) emissions. "We've been granted permission for the CO2 as long as we comply with Kyoto, but keeping the NOx down to the five parts per million (ppm) limit (specified by the government) could be very expensive," said Barland. Norway imposes a five ppm limit on NOx emissions in some regions aimed at curbing acid rain. "Constructing a NOx treatment plant would be a very expensive and very old-fashioned way, and therefore we've been given the opportunity of finding a third party solution," he said. The shipping NOx offset deal works out comparatively cheaply. The two hi-specification ships will cost Statoil an extra nine million Norwegian crowns per year to run, compared to conventional diesel-powered ships. But when converted into NOx credits, they would allow Statoil to cut emissions at a cost of 22 crowns per kilogram (kg), compared to 30-40 crowns per kg by building NOx treatment into a new power plant. While this approach to emissions might help overcome the NOx hurdle for the Kaarstoe and Kollsnes plants, the project might yet stumble on CO2 limits. "We could buy CO2 emissions permits, but there's still a lot of political uncertainty over the cost and that is something we're having to consider very carefully," said Barland. He said much would depend on Kyoto's final mechanism for CO2 emissions trading and the extent to which Norway adopted the measures. Barland said he hoped the cost of future LNG-powered ships would fall as more LNG

filling-stations were built around Norway's coast, and shipyards gained the right expertise. To date only one LNG-powered ship has been built, a Norwegian fjord ferry, which runs on fuel from Norway's only LNG filling station, the Aga-owned 15,000 tonne per year (tpy) mini-LNG plant at Tjeldbergodden. Naturgass Vest, in which Statoil is a partner, hopes to build Norway's second mini-LNG plant of 30-40,000 tpy at Kollsnes and later on another near Stavanger. "That will make LNG-powered coastal shipping possible in Norway," said Barland. "Next time we issue a contract, we hope LNG will be competitive in its own right."

Story by Pete Harrison

REUTERS NEWS SERVICE

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

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Message 268 of 413

Bush appointees info....

Sender lisa.jacobson@enron.com

Recipients ['e.taylor@enron.com', 'trevor.woods@enron.com', 'salil.pradhan@enron.com']

File taylor-m/inbox/lisa_j/13.

Trevor and Michael,

FYI - Here is some additional information on Bush Administration appointees. Please let me know if you have any questions.

-Lisa

--- Nominees to get approved by EPW this week Nominees for several key environmental positions received few questions at a confirmation hearing last week, and approval by the Environment and Public Works Committee this week is expected to come as easily. Rescheduled due to the Sept. 11 terrorist attack, testimony and statements at the confirmation hearing reflected the need for quick work in getting the nominations done in light of other problems now faced by Congress. Senate Environment Committee Chairman Jim Jeffords (I-Vt.) said the committee will meet Tuesday to vote on the nominations. At the markup, the panel will also consider a bill on methyl tertiary butyl ether (see related story). Nuclear Regulatory Commission nominee Nils Diaz received direct questioning from Jeffords on what will now be done regarding nuclear security concerns relative to other possible terrorism threats. Diaz, who has been nominated to be NRC commissioner, said the commission has always been concerned about security issues and will continue to look at nuclear plants' safety. He said it would be difficult for terrorists to damage plants at this point, but nothing is fool-proof. "I assure you that if confirmed, I am going to make this one of my top priorities," Diaz said. Diaz previously served as an NRC commissioner from August 1996 until his term expired this year, and President Bush nominated him for the post again. Representatives of Friends of the Earth (FOE) passed out papers outlining their concerns with Bush's nominee for the Interior Department's assistant secretary for fish, wildlife and parks -- Harold Manson. If confirmed, Manson would oversee the Fish and Wildlife Service and National Park Service, both of which have significant maintenance backlogs. Manson, who would be the first African American to serve in that position, has been a judge in the California Superior Court since June 1998. From 1993 to 1998, he served as general counsel for the California Department of Fish and Game, and before that, outside counsel for the California Department of Conservation. Kristen Sykes, FOE's Interior Department watchdog, said that Manson's record with implementation of California's Endangered Species Act as well as involvement with land developers are just some of the reasons the group objects to the nomination. FOE also has concerns over Mike Parker, nominated to be the assistant secretary of the Army for civil works. If confirmed by the full Senate, the former congressman would be the head of the U.S. Army Corps of Engineers. Parker was elected to represent Mississippi's 4th District in 1988 as a Democrat and switched to the GOP in 1995. He gave up his seat to run for governor in 1999 but narrowly lost to Democrat Ronnie Musgrave. Parker's selection has been highly regarded by Senate Minority Leader Trent Lott (R-Miss.) but has been greeted with caution by environmental groups. FOE issued a letter highlighting Parker's

actions in Congress, claiming that Parker engaged in attempts to "gut" the Clean Water Act and "ridiculed" fish restoration programs. Other nominees include Marianne Lamont Horinko to be the Environmental Protection Agency's assistant administrator for solid waste. Horinko said she will be looking at how to prioritize the Superfund budget and programs as well as ways to promote recycling. Earlier this month, Donald Schregardus, the former director of the Ohio EPA, ended his bid to serve as EPA's assistant administrator for the Office of Enforcement and Compliance Assurance (see the 9/20 Environment and Energy Daily.) Mary Peters, Bush's nominee to head the Federal Highway Administration, also testified. If confirmed, Peters would oversee a \$30 million budget and would take over just as the Senate prepares to launch hearings on the next transportation authorization bill. The current law, the Transportation Equity Act for the 21st Century, expires in 2003. Peters has been director of the Arizona Department of Transportation, an agency with 4,800 employees and a \$3 billion budget, since 1998.

Lisa Jacobson Enron Manager, Environmental Strategies 1775 Eye Street, NW Suite 800 Washington, DC 20006

Phone: +(202) 466-9176 Fax: +(202) 331-4717

Message 269 of 413

nan	
Sender	travis.mccullough@enron.com
Recipients	['mark.taylor@enron.com', 'shodgson@velaw.com']
File	taylor-m/all_documents/8219.

Steve:

As we discussed, I have attached a substantial redraft of the description of the invention for the EOL business method patent. The attached is a clean version; while you can run a redline, I am not sure how much use it will be, since such large portions of the text have been moved around. This only covers that portion of the patent up to the illustrative example of Clickpaper.com.

The attached description is the result of comments by several reviewers; there is general agreement that your drafts were technically correct, and that they incorporated all of the significant elements of the invention. However, there was some sentiment that the description was not very "readable." I have reviewed your drafts and my changes again just before sending this out, and I am pretty confident that none of my changes are substantive; however, there are some organizational changes and a lot of changes that try to explain the reasoning behind some of the elements of the invention.

In the interest of time, I am circulating this to the commercial team at the same time that I am sending it to you. After you and they have had a chance to review it, we can convene a meeting with the inventors to wrap the application up. As Peter Mims may have mentioned to you, we are in a bit of a time crunch because Louise Kitchen, one of the inventors, will be out on maternity leave in early May. What is worse, I am on vacation until early May, leaving tomorrow morning. However, I am available by phone and e-mail, and we can speak if we need to in order to move this along.

I suggest that we exchange e-mails or voicemails about next steps after you have had a chance to take a look at this.

With respect to the claims, in the ENR100/4-15 document, we have the following comments. I suspect that our comments come from a basic misunderstanding or lack of knowledge about how claims are actually drafted, and how they actually are supposed to work, and there is probably a very good reason that you constructed them the way you did; therefore, I have included our comments for what they are worth.

Claim 1, line 17: We don't think we use computer software to evaluate credit risk; our credit department determines credit headroom through procedures completely independent of the website. However, this system does monitor headroom.

Claim 1, line 24: Does someone get around this claim simply by charging a commission?

Claim 10: Why should we limit claim 7 to specific products?

With respect to the claims in the ENR100/4-17 document, we have the following comments:

Our biggest concern here is that these claims potentially describe a system that was in operation before EnronOnline was launched -- something called NGX, according to Dave Forster. It provided a dedicated connectino (not internet based) -- but companies could put in bids and offers on a variety of products. The transactions were always with NGX, which more or less cleared deals for a fee. According to Dave:

Claim 2 could describe NGX.

In Claim 3, the use of the terms "stack manager software" is the only way we can differentiate claim 3 from NGX

However, claim 4 is unique to EOL

Claim 6, we would say "completion of a hedging transaction"

Claim 13 -- looks like NGX

Claims 14, 15 and 16 -- lots of other sites have credit limits

Claim 17 -- really says nothing , but claims 17, 18 and 19 together describe the contracting process

Claim 20 to 24 really describe collectively the engine for creating a new product

Claim 25 and 26 -- nothing novel in these two

Claim 28 -- nothing novel

claim 29 -- nothing novel

claim 34 -- could do that on NGX

claim 44 -- first line is NGX

claim 45 -- not sure what the second paragraph accomplishes

claim 49 -- can someone avoid this patent by charging a commission?

claim 50 -- I don't think Clickpaper is actually using hubs -- not sure if this is valuable

claim 51 -- this is just a description of a contract

claim 55 -- everyone does this

claim 56 through 58 -- lots of people have been doing this for years

Again, these comments to the claims are included here only for what they are worth; I suspect our comments come from a lack of understanding about how they should be constructed for maximum effect.

Enron North America Corp. 1400 Smith Street EB 3893 Houston Texas 77002 Phone: (713) 853-1575 Fax: (713) 646-3490

Message 270 of 413

Online Issues	
Sender	carol.clair@enron.com
Recipients	['louise.kitchen@enron.com', 'mark.taylor@enron.com']
File	taylor-m/all_documents/1191.

Louise: Here are the counterparties that have expressed some concern about any potential conflict between what is in their ISDA Master and the long descriptions on the Website:

1. Cargill - my legal contact is Mike Peterson. I am awaiting his mark-up of the ETA so let me see what if anything he does with Section 3(a) of the ETA.

2. Engage - my legal contact is Luke Mickum and like Cargill, I am awaiting his mark-up of the ETA.

3. Union Oil - my legal contact is Rosario Sindel (310-726-7767). This was her only comment.

I'll keep you posted no where Cargill and Engage stand on this issue after I have received their mark-ups.

Carol (ext.33989)

Message 271 of 413

Re: UK Mobile Phone

Sender	mark.taylor@enron.com
Recipients	['taffy.milligan@enron.com']
File	taylor-m/sent/1138.

Thanks for figuring this out!

Taffy Milligan 06/27/2000 06:07 PM

To: Mark Taylor/HOU/ECT@ECT, Jeffrey T Hodge/HOU/ECT@ECT, Lance Schuler-Legal/HOU/ECT@ECT, Peter del Vecchio/HOU/ECT@ECT cc: Jenny Helton/HOU/ECT@ect, Dina Snow/Corp/Enron@Enron, Janette Elbertson/HOU/ECT@ECT, Sheri L Cromwell/HOU/ECT@ECT Subject: UK Mobile Phone

For your information:

Telephone No. if dialling from the USA 011-447881512535 or UK local 07881 512535

To access voice mail from the USA dial 011-44-777 533 7885 or UK local dial 44 777 533 785 You may interrupt the message by pressing "9" Global Access No is "3333" Follow the verbal prompts

Please let me know if you have any questions X57373.

Message 272 of 413

RE: zbt butler auction & twisted christmas party!!!!!!

Sender	jtyler@monm.edu
Recipients	['e..grahe@enron.com', 'd..white@enron.com', 'jerone.tyler@enron.com']
File	taylor-m/deleted_items/491.

ALUMNI MESSAGE FROM: MIKE CORTINA '95

I would like to gather the names,addresses, phone numbers and e-mail addresses of all past-presidents so that we can possibly coordinate more alumni support for the Delta Lambda chapter. The idea is to have the past-presidents contact only the Brothers from their respective graduating class so as to not inundate anyone with too much work. Any past-president who is interested in helping with this project should e-mail me at mcortina@zrfmlaw.com. C, F & S Mike Cortina, Past-President, Class of '95.

Michael G. Cortina Attorney at Law Zukowski, Rogers, Flood & McArdle 50 N. Virginia Street Crystal Lake, IL 60014
815.459.2050 mcortina@zrfmlaw.com

*Message 273 of 413***ISDA Energy Conference**

Sender	losullivan@isda.org
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/1773.

Dear Mark:

We are in the process of marketing an ISDA Energy Conference in Houston on Tuesday, March 6, 2001. My colleague, Mary Cunningham, spoke with Mark Haedicke and he advised we ask you for contact names within the industry that may wish to attend conference.

Last year Enron graciously supplied us with company names to receive our Energy and Power Derivatives brochure. However, we found that in order for the mailing to be completely successful we need a contact name within the company to receive the brochure.

I look forward to hearing from you.

Regards,

Liz Conference Department

Ms. Liz O'Sullivan International Swaps and Derivatives Association, Inc. 600 Fifth Avenue - 27th Floor Rockefeller Center
New York, NY 10020 (212) 332-2559

*Message 274 of 413***Re: MAP Filing**

Sender	marcus.nettelton@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/1704.

Mark

This is probably something for your team and not quite sure why I am in the middle of this.

Regards

Marcus ----- Forwarded by Marcus Nettelton/NA/Enron on 11/07/2000 08:55 AM ----- From:
Alfred Pennisi@MGUSA on 11/07/2000 08:03 AM EST To: Marcus Nettelton/NA/Enron@ENRON cc:

Subject: Re: MAP Filing

Marcus,

Do we have a Chart for MAP's? Do we have policies and procedures for Enron Trading Services Inc.?

I am going to forward an e-mail to you from Paul Pantano, the outside attorney I am working with to file the Risk Assessment filing with the CFTC.

regards,

Alfred Pennisi Enron Trading Services Inc 520 Madison Avenue 28th Floor New York, NY 10022 Tel: 212.715.5845
E-mail: alfred.pennisi@enron.com

Message 275 of 413

FW: Information

Sender	rajneesh.salhotra@enron.com
Recipients	[e.taylor@enron.com]
File	taylor-m/inbox/nox_model/6.

-----Original Message-----

From: Quinn, Kristin Sent: Thursday, July 26, 2001 3:27 PM To: Salhotra, Rajneesh Subject: RE: Information

I think you're talking about Mcllvaine. The website is www.mcllvainecompany.com. Login ID = daviddye & PW = 13268.

Let me know if you have any further questions.

-----Original Message-----

From: Salhotra, Rajneesh Sent: Thursday, July 26, 2001 3:23 PM To: Quinn, Kristin Subject: Information

Dear Kristin,

I seem to have misplaced the website address and the password that you gave me for access to a consulting outfit's website that has information regarding SCRs and NOx emissions among other things. I would appreciate if you could let me know the same.

Sincerely, Rajneesh

Rajneesh Salhotra Coal and Emissions Trading Enron Global Markets 713.853.6764

Message 276 of 413

Sunoco Master Swap and Master Physical

Sender	mark.taylor@enron.com
Recipients	[marie.heard@enron.com', 'Mark - ECT Legal Taylor/HOU/ECT@ECT', 'Jeffrey T Hodge/HOU/ECT@ECT']
File	taylor-m/sent/329.

I don't think we should take this at face value - company the size of Sunoco should be able to use an ISDA.

----- Forwarded by Mark - ECT Legal Taylor/HOU/ECT on 07/01/99 06:26 PM ----- To: Rod Nelson/HOU/ECT@ECT, Marie Heard/HOU/ECT@ECT, Debra Perlingiere/HOU/ECT@ECT cc: Jeffrey T Hodge/HOU/ECT@ECT, Mark - ECT Legal Taylor/HOU/ECT@ECT Subject: Sunoco Master Swap and Master Physical

Rod, Marie, and Debra:

We would appreciate your assistance in setting up a master swap and master physical with Sunoco. They would like to use an industrial form instead of the ISDA. The contacts at Sunoco are Robin Brown at 215-977-3759 and Maria Sanone.

I would appreciate it if you would put this as a high priority since the holiday weekend is coming up. Please call me at X 35638 if you have any questions.

Thanks,

Nicole

Message 277 of 413

Fuel Cell Energy Inc.	
Sender	cynthia.boseman-harris@enron.com
Recipients	[e.taylor@enron.com]
File	taylor-m/inbox/361.

November 1, 2001

Mr. Taylor, Greetings from eSource:

Pursuant to your request for company information on FuelCell Energy Inc., please see the results of our research below. I was unable to find information on FuelCell Energy's emissions credit activity through my free sources. If you would like to revisit this aspect of your request, please inform me and I will consult with you on my fee based resources. Should you have any further questions, or additional tasking, please do not hesitate to contact us.

FuelCell Energy Inc. and Enron alliance announcements and business initiatives

All of the links and tabs contained within this document should be functional, please call if you need assistance.

Hoover's Business Network

<http://www.hoovers.com/co/capsule/4/0,2163,45504,00.html>

Thank you for using eSource <<http://esource.enron.com/>>. We look forward to assisting you in the future.

Regards, Cynthia Boseman-Harris eSource Researcher 713-853-6531

<Embedded >

Message 278 of 413

eSpeed Documents	
Sender	ygoldfeder@swidlaw.com
Recipients	[andy.zipper@enron.com', 'mtelle@velaw.com', 'travis.mccullough@enron.com', 'ragoldberg@swidlaw.com', 'eksass...]
File	taylor-m/all_documents/2752.

? As per our conference call earlier this week we have attached a draft of the Subscription Agreement between eSpeed and Enron along with two Certificates of Designations reflecting the preferred stock (convertible into warrants) to be issued to Enron pursuant to the Subscription Agreement.

??????? Please call me if there are any problems with this e-mail.

Yoel Goldfeder Swidler Berlin Shereff Friedman, LLP The Chrysler Building 405 Lexington Ave. New York, New York 10174 (212) 891-9422

The preceding E-mail message contains information that is confidential, may be protected by the attorney/client or other applicable privileges, and may constitute non-public information.? It is intended to be conveyed only to the designated recipient(s).? If you are not an intended recipient of this message, please notify the sender at (212) 891-9422.

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???

<<8hxw01_.DOC>> <<8hx401_.DOC>> <<8hdk01_.DOC>> - 8hxw01_.DOC - 8hx401_.DOC - 8hdk01_.DOC

Message 279 of 413

FW: Some thoughts for the business plan

Sender	trevor.woods@enron.com
Recipients	[e.taylor@enron.com]
File	taylor-m/inbox/noxtech/2.

-----Original Message-----

From: Kreamer, Nat Sent: Thursday, November 01, 2001 11:49 AM To: Woods, Trevor Cc: Affelt, Scott Subject: Some thoughts for the business plan

Trevor,

Sorry that I don't have more time to help. Please keep me in the loop. I hope this has some merit.

- Nat

Leveraging NOxTech:

1. Selling NOxTech to power generators will: a. Gain critical information about the compliance plans of utilities i. Useful to determine NOx market participants positions (long/short) b. Generate profits that may be used to support the development of peaking units i. Since ENE funds are tight, the more positions we may support with organic cash flows the better 2. NOxTech provides a high performance, low total evaluated cost NOx reduction technology a. Enables ENE to build peaking units that may manipulate the market i. Take advantage of shortages ii. Create shortages iii. Enable an understanding of prices / price transparency b. Peaking units that include Over-fired Air modifications will provide an additional cash flow to CES / EGM Tech Ventures that will support market-to-market positions c. Peaking units may also support the economic foundation for double trigger contingent calls on allowances i. Similar to the double trigger power outage calls written by GRM (see attached presentation) ii. Contingent on technology failure (i.e. SCR clogs) and inflated spot price for credits

Nat Kreamer Enron Global Markets Enron Center South 03343 t. 713.853.6022

Message 280 of 413

Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	[storm@lists.hurricanecentral.com]
File	taylor-m/deleted_items/269.

000 WTNT34 KNHC 271432 TCPAT4 BULLETIN TROPICAL DEPRESSION FOURTEEN ADVISORY NUMBER 1
NATIONAL WEATHER SERVICE MIAMI FL 11 AM AST SAT OCT 27 2001

...TROPICAL DEPRESSION FOURTEEN FORMS OVER THE EASTERN ATLANTIC...

AT 11 AM AST...1500Z...THE CENTER OF TROPICAL DEPRESSION FOURTEEN WAS LOCATED NEAR LATITUDE 27.0 NORTH...LONGITUDE 34.9 WEST OR ABOUT 895 MILES...1440 KM...SOUTHWEST OF SANTA MARIA IN THE AZORES ISLANDS.

THE DEPRESSION IS DRIFTING WESTWARD. A SLOW WESTWARD MOTION IS EXPECTED FOR THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 35 MPH... 55 KM/HR...WITH HIGHER GUSTS. LITTLE CHANGE IN STRENGTH IS FORECAST DURING THE NEXT 24 HOURS.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 1010 MB...29.83 INCHES.

REPEATING THE 11 AM AST POSITION...27.0 N... 34.9 W. MOVEMENT TOWARD...DRIFTING WESTWARD.
MAXIMUM SUSTAINED WINDS... 35 MPH. MINIMUM CENTRAL PRESSURE...1010 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 5 PM AST.

FORECASTER BEVEN

Make GoPBI.com's Storm Warning Center your No. 1 resource for hurricane and tropical storm updates:
<http://GoPBI.com/storm>

To subscribe or unsubscribe from this list, visit our Web site: <http://GoPBI.com/storm/email>

DO NOT REPLY to this email. If you have questions or comments, send them to storm@cimedia.com

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You can contact us by mail or telephone at: GoPBI.com 2751 South Dixie Highway West Palm Beach FL 33405 (561)
820-3700

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Message 281 of 413

Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	[' storm@lists.hurricanecentral.com ']
File	taylor-m/deleted_items/476.

000 WTNT32 KNHC 251457 TCPAT2 BULLETIN SUBTROPICAL STORM TWO ADVISORY NUMBER 4 NATIONAL
WEATHER SERVICE MIAMI FL 11 AM AST SUN NOV 25 2001

AT 11 AM AST...1500Z...THE CENTER OF SUBTROPICAL STORM TWO WAS LOCATED NEAR LATITUDE 31.8
NORTH...LONGITUDE 53.9 WEST OR ABOUT 640 MILES ...1030 KM...EAST OF BERMUDA.

THE STORM IS MOVING TOWARD THE WEST NEAR 15 MPH...23 KM/HR...AND A DECREASE IN FORWARD SPEED
IS EXPECTED DURING THE NEXT DAY OR SO.

MAXIMUM SUSTAINED WINDS ARE ESTIMATED NEAR 65 MPH...100 KM/HR... WITH HIGHER GUSTS. SOME
STRENGTHENING IS FORECAST DURING THE NEXT 24 HOURS.

WINDS OF 40 MPH EXTEND OUTWARD UP TO 635 MILES ...1120 KM MAINLY TO THE NORTH OF THE CENTER.

THE ESTIMATED MINIMUM CENTRAL PRESSURE IS 989 MB...29.21 INCHES.

REPEATING THE 11 AM AST POSITION...31.8 N... 53.9 W. MOVEMENT TOWARD...WEST NEAR 15 MPH. MAXIMUM
SUSTAINED WINDS... 65 MPH. MINIMUM CENTRAL PRESSURE... 989 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 5 PM AST.

FORECASTER LAWRENCE

Make GoPBI.com's Storm Warning Center your No. 1 resource for hurricane and tropical storm updates:
<http://GoPBI.com/storm>

To subscribe or unsubscribe from this list, visit our Web site: <http://GoPBI.com/storm/email>

DO NOT REPLY to this email. If you have questions or comments, send them to storm@cimedia.com

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You can contact us by mail or telephone at: GoPBI.com 2751 South Dixie Highway West Palm Beach FL 33405 (561)
820-3700

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Message 282 of 413

RE: More Designs	
Sender	carter.miles@enron.com
Recipients	['e.taylor@enron.com']
File	taylor-m/inbox/marketing/13.

Thanks Mike.

I will have the designer put the final copy into design six. We do not have a sample of the 100# paper that was quoted for the job. However, I could show you a color laser for you to sign off on if you just wanted to see a printed copy.

Just let me know.

Thanks, Carter

-----Original Message-----

From: Taylor, Michael E Sent: Wednesday, October 03, 2001 7:29 AM To: Miles, Carter Subject: RE: More Designs

Carter,

We like design six. Please put in the text from yesterday. The color scheme is good. Please make sure Enron Emissions Services is bigger than the second title (only by one font size). Also, can we see it on the 100# paper this afternoon. Around 3-3:30 this afternoon would be great.

Mike

-----Original Message-----

From: Miles, Carter Sent: Tuesday, October 02, 2001 11:29 AM To: Taylor, Michael E Subject: More Designs

Michael,

Based on what we talked about this morning, we will address the size issue of the heading, "Enron Emissions" compared to the the sub head.

Tell me what you think about this new direction and maybe we can go from there. Also, we will wait for the copy to be finalized before proceeding.

We are thinking about putting more of the content on the back. Right now they are one sided but are reading kind of copy heavy.

Call me to discuss.

Thanks, Carter Miles Creative Center at Enron 1400 Smith St. Suite 1376 Houston, TX 77002 713.345.1867 << File: Design_Four.pdf >> << File: Design_three.pdf >> << File: Design_Two.pdf >> << File: Design_six.pdf >> << File: Design_five.pdf >> << File: Design_One.pdf >>

Message 283 of 413

Tropical Weather Advisory	
Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/275.

Track the new system in the Atlantic plus other possible development with position maps, satellite and radar images plus official advisories or post your forecast on the message board: http://www.GoPBI.com/storm?tag=e_1028

000 WTNT34 KNHC 290249 TCPAT4 BULLETIN TROPICAL DEPRESSION FOURTEEN ADVISORY NUMBER 7
NATIONAL WEATHER SERVICE MIAMI FL 10 PM EST SUN OCT 28 2001

AT 10 PM EST...0300Z...THE CENTER OF TROPICAL DEPRESSION FOURTEEN WAS LOCATED NEAR LATITUDE 27.2 NORTH...LONGITUDE 41.9 WEST OR ABOUT 1080 MILES...1740 KM...SOUTHWEST OF LAJES IN THE AZORES ISLANDS.

THE DEPRESSION IS MOVING TOWARD THE WEST NEAR 10 MPH...17 KM/HR... AND THIS MOTION IS EXPECTED TO CONTINUE ON MONDAY.

MAXIMUM SUSTAINED WINDS ARE NEAR 35 MPH... 55 KM/HR...WITH HIGHER GUSTS. LITTLE CHANGE IN STRENGTH IS FORECAST DURING THE NEXT 24 HOURS.

THE ESTIMATED MINIMUM CENTRAL PRESSURE IS 1009 MB...29.80 INCHES.

REPEATING THE 10 PM EST POSITION...27.2 N... 41.9 W. MOVEMENT TOWARD...WEST NEAR 10 MPH. MAXIMUM SUSTAINED WINDS... 35 MPH. MINIMUM CENTRAL PRESSURE...1009 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 4 AM EST...MONDAY.

FORECASTER LAWRENCE

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<http://GoPBI.com/storm>

To subscribe or unsubscribe from this list, visit our Web site: <http://GoPBI.com/storm/email>

DO NOT REPLY to this email. If you have questions or comments, send them to storm@cimedia.com

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Message 284 of 413

Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/281.

Track the new system in the Atlantic plus other possible development with position maps, satellite and radar images plus official advisories or post your forecast on the message board: http://www.GoPBI.com/storm?tag=e_1027

000 WTNT34 KNHC 280836 TCPAT4 BULLETIN TROPICAL DEPRESSION FOURTEEN ADVISORY NUMBER 4
NATIONAL WEATHER SERVICE MIAMI FL 4 AM EST SUN OCT 28 2001

AT 4 AM EST...0900Z...THE CENTER OF TROPICAL DEPRESSION FOURTEEN WAS LOCATED NEAR LATITUDE 27.5 NORTH... LONGITUDE 39.1 WEST OR ABOUT 970 MILES...1560 KM...SOUTHWEST OF SANTA MARIA ISLAND IN THE AZORES.

THE DEPRESSION IS MOVING TOWARD THE WEST NEAR 9 MPH ...15 KM/HR...AND THIS MOTION IS EXPECTED TO CONTINUE FOR THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 35 MPH... 55 KM/HR...WITH HIGHER GUSTS. LITTLE CHANGE IN STRENGTH IS FORECAST DURING THE NEXT 24 HOURS.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 1009 MB...29.80 INCHES.

REPEATING THE 4 AM EST POSITION...27.5 N... 39.1 W. MOVEMENT TOWARD...WEST NEAR 9 MPH. MAXIMUM SUSTAINED WINDS... 35 MPH. MINIMUM CENTRAL PRESSURE...1009 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 10 AM EST.

FORECASTER JARVINEN

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<http://GoPBI.com/storm>

To subscribe or unsubscribe from this list, visit our Web site: <http://GoPBI.com/storm/email>

DO NOT REPLY to this email. If you have questions or comments, send them to storm@cimedia.com

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Message 285 of 413

Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	[storm@lists.hurricanecentral.com]
File	taylor-m/deleted_items/272.

Track the new system in the Atlantic plus other possible development with position maps, satellite and radar images plus official advisories or post your forecast on the message board: http://www.GoPBI.com/storm?tag=e_1029

000 WTNT34 KNHC 290829 TCPAT4 BULLETIN TROPICAL DEPRESSION FOURTEEN ADVISORY NUMBER 8
NATIONAL WEATHER SERVICE MIAMI FL 4 AM EST MON OCT 29 2001

AT 4 AM EST...0900Z...THE CENTER OF TROPICAL DEPRESSION FOURTEEN WAS LOCATED NEAR LATITUDE 27.7 NORTH... LONGITUDE 42.3 WEST OR ABOUT 1090 MILES...1750 KM...SOUTHWEST OF LAJES IN THE AZORES ISLANDS.

THE DEPRESSION IS MOVING TOWARD THE WEST NORTHWEST NEAR 9 MPH ...15 KM/HR...AND THIS MOTION IS EXPECTED TO CONTINUE FOR THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 35 MPH... 55 KM/HR...WITH HIGHER GUSTS. SOME STRENGTHENING IS FORECAST DURING THE NEXT 24 HOURS.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 1009 MB...29.80 INCHES.

REPEATING THE 4 AM EST POSITION...27.7 N... 42.3 W. MOVEMENT TOWARD...WEST NORTHWEST NEAR 9 MPH. MAXIMUM SUSTAINED WINDS... 35 MPH. MINIMUM CENTRAL PRESSURE...1009 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 10 AM EST.

FORECASTER JARVINEN

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Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	[' storm@lists.hurricanecentral.com ']
File	taylor-m/deleted_items/283.

Track the new system in the Atlantic plus other possible development with position maps, satellite and radar images plus official advisories or post your forecast on the message board: http://www.GoPBI.com/storm?tag=e_1027

000 WTNT34 KNHC 280224 TCPAT4 BULLETIN TROPICAL DEPRESSION FOURTEEN ADVISORY NUMBER 3
NATIONAL WEATHER SERVICE MIAMI FL 11 PM EDT SAT OCT 27 2001

AT 11 PM EDT...0300Z...THE CENTER OF TROPICAL DEPRESSION FOURTEEN WAS LOCATED NEAR LATITUDE 27.8 NORTH...LONGITUDE 37.6 WEST. THIS POSITION IS IN THE EASTERN NORTH ATLANTIC OCEAN ABOUT 960 MILES... 1545 KM...SOUTHWEST OF SANTA MARIA ISLAND IN THE AZORES.

THE DEPRESSION IS MOVING TOWARD THE WEST NEAR 7 MPH ...11 KM/HR ...AND THIS MOTION IS EXPECTED TO CONTINUE ON SUNDAY.

MAXIMUM SUSTAINED WINDS ARE NEAR 35 MPH... 55 KM/HR...WITH HIGHER GUSTS. SOME SLOW STRENGTHENING IS POSSIBLE DURING THE NEXT 24 HOURS.

THE ESTIMATED MINIMUM CENTRAL PRESSURE IS 1009 MB...29.80 INCHES.

REPEATING THE 11 PM EDT POSITION...27.8 N... 37.6 W. MOVEMENT TOWARD...WEST NEAR 7 MPH. MAXIMUM SUSTAINED WINDS... 35 MPH. MINIMUM CENTRAL PRESSURE...1009 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 5 AM EDT...SUNDAY.

FORECASTER LAWRENCE

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Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/482.

000 WTNT31 KNHC 242028 TCPAT1 BULLETIN SUBTROPICAL STORM TWO ADVISORY NUMBER 1 NATIONAL WEATHER SERVICE MIAMI FL 4 PM EST SAT NOV 24 2001 CORRECTION...TO EASTERN STANDARD TIME...

...SUBTROPICAL STORM FORMS IN CENTRAL NORTH ATLANTIC...

ADVISORIES ARE BEING ISSUED FOR THE PURPOSE OF WARNING SHIPS AT SEA OF THE THREAT OF STRONG WINDS NEAR THE CENTER OF THIS LARGE STORM

AT 4 PM EST...2100Z...THE CENTER OF SUBTROPICAL STORM TWO WAS LOCATED NEAR LATITUDE 30.5 NORTH...LONGITUDE 49.5 WEST OR ABOUT 920 MILES...1480 KM...EAST OF BERMUDA.

THE STORM IS MOVING TOWARD THE NORTH NEAR 5 MPH... 7 KM/HR...AND A TURN TOWARD THE NORTHWEST IS EXPECTED DURING THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 60 MPH... 95 KM/HR...WITH HIGHER GUSTS. LITTLE CHANGE IN STRENGTH IS FORECAST DURING THE NEXT 24 HOURS.

WINDS OF 40 MPH EXTEND OUTWARD UP TO 490 MILES...790 KM...TO THE NORTH OF THE CENTER.

THE ESTIMATED MINIMUM CENTRAL PRESSURE IS 990 MB...29.23 INCHES.

REPEATING THE 4 PM EST POSITION...30.5 N... 49.5 W. MOVEMENT TOWARD...NORTH NEAR 5 MPH. MAXIMUM SUSTAINED WINDS... 60 MPH. MINIMUM CENTRAL PRESSURE... 990 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 10 PM EST.

FORECASTER LAWRENCE

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Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/471.

000 WTNT32 KNHC 260829 TCPAT2 BULLETIN SUBTROPICAL STORM TWO ADVISORY NUMBER 7 NATIONAL WEATHER SERVICE MIAMI FL 5 AM AST MON NOV 26 2001

...SUBTROPICAL STORM NOW STATIONARY...

AT 5 AM AST...0900Z...THE CENTER OF SUBTROPICAL STORM TWO WAS LOCATED NEAR LATITUDE 30.2 NORTH...LONGITUDE 55.6 WEST OR ABOUT 555 MILES...895 KM...EAST-SOUTHEAST OF BERMUDA.

THE STORM IS NEARLY STATIONARY...AND A SLOW AND ERRATIC MOTION IS EXPECTED OVER THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 70 MPH...110 KM/HR...WITH HIGHER GUSTS. SOME INCREASE IN STRENGTH IS POSSIBLE AND THE SYSTEM COULD BECOME A HURRICANE DURING THE NEXT 24 HOURS.

WINDS OF 40 MPH EXTEND OUTWARD UP TO 690 MILES...1110 KM MAINLY TO THE NORTH OF THE CENTER. THIS IS A VERY LARGE STORM AND SWELLS GENERATED BY IT MAY AFFECT PORTIONS OF THE EAST COAST OF NORTH AMERICA AND THE NORTH-FACING BEACHES OF THE BAHAMAS AND GREATER ANTILLES DURING THE NEXT FEW DAYS.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 979 MB...28.91 INCHES.

REPEATING THE 5 AM AST POSITION...30.2 N... 55.6 W. MOVEMENT...STATIONARY. MAXIMUM SUSTAINED WINDS... 70 MPH. MINIMUM CENTRAL PRESSURE... 979 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 11 AM AST.

FORECASTER FRANKLIN

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Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/270.

Track the new system in the Atlantic plus other possible development with position maps, satellite and radar images plus official advisories or post your forecast on the message board: http://www.GoPBI.com/storm?tag=e_1027

000 WTNT34 KNHC 272025 TCPAT4 BULLETIN TROPICAL DEPRESSION FOURTEEN ADVISORY NUMBER 2
NATIONAL WEATHER SERVICE MIAMI FL 5 PM AST SAT OCT 27 2001

...CENTER OF TROPICAL DEPRESSION FOURTEEN RE-FORMS TO THE NORTHWEST...

AT 5 PM AST...2100Z...THE CENTER OF TROPICAL DEPRESSION FOURTEEN WAS RE-LOCATED NEAR LATITUDE 27.7 NORTH...LONGITUDE 36.3 WEST OR ABOUT 910 MILES...1470 KM...SOUTHWEST OF SANTA MARIA IN THE AZORES ISLANDS.

THE DEPRESSION IS MOVING TOWARD THE WEST NEAR 6 MPH... 9 KM/HR... AND THIS GENERAL MOTION IS EXPECTED TO CONTINUE FOR THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 35 MPH... 55 KM/HR...WITH HIGHER GUSTS. LITTLE CHANGE IN STRENGTH IS FORECAST DURING THE NEXT 24 HOURS.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 1009 MB...29.80 INCHES.

REPEATING THE 5 PM AST POSITION...27.7 N... 36.3 W. MOVEMENT TOWARD...WEST NEAR 6 MPH. MAXIMUM SUSTAINED WINDS... 35 MPH. MINIMUM CENTRAL PRESSURE...1009 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 11 PM AST.

FORECASTER BEVEN

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Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	[storm@lists.hurricanecentral.com]
File	taylor-m/deleted_items/279 .

Track the new system in the Atlantic plus other possible development with position maps, satellite and radar images plus official advisories or post your forecast on the message board: http://www.GoPBI.com/storm?tag=e_1027

000 WTNT34 KNHC 281453 TCPAT4 BULLETIN TROPICAL DEPRESSION FOURTEEN ADVISORY NUMBER 5
NATIONAL WEATHER SERVICE MIAMI FL 10 AM EST SUN OCT 28 2001

...TROPICAL DEPRESSION OVER THE FAR EASTERN ATLANTIC OCEAN...NO THREAT TO ANY LAND AREAS...

AT 10 AM EST...1500Z...THE CENTER OF TROPICAL DEPRESSION FOURTEEN WAS LOCATED NEAR LATITUDE 27.6 NORTH...LONGITUDE 40.2 WEST OR ABOUT 1010 MILES...1630 KM...SOUTHWEST OF LAJES IN THE AZORES.

THE DEPRESSION IS MOVING TOWARD THE WEST NEAR 12 MPH...19 KM/HR... AND THIS MOTION IS EXPECTED TO CONTINUE FOR THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 35 MPH... 55 KM/HR...WITH HIGHER GUSTS. LITTLE CHANGE IN STRENGTH IS FORECAST DURING THE NEXT 24 HOURS.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 1009 MB...29.80 INCHES.

REPEATING THE 10 AM EST POSITION...27.6 N... 40.2 W. MOVEMENT TOWARD...WEST NEAR 12 MPH. MAXIMUM SUSTAINED WINDS... 35 MPH. MINIMUM CENTRAL PRESSURE...1009 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 4 PM EST.

FORECASTER STEWART

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Message 291 of 413

FW: MTEF Definition

Sender	rbaird@velaw.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/1222.

-----Original Message----- From: Baird, Bob Sent: Wednesday, August 16, 2000 4:22 PM To: Stockbridge, Edward T Subject: MTEF Definition The CFTC's proposed definition of MTEF: Sec. 36.1 Definitions. As used in this part: . . . Multilateral transaction execution facility means an electronic or non-electronic market or similar facility through which persons, for their own accounts or for the accounts of others, enter into, agree to enter into or execute binding transactions by accepting bids or offers made by one person that are open to multiple persons who conduct business through such market or similar facility, but does not include: (1) A facility whose participants individually negotiate (or have individually negotiated) with counterparties the material terms applicable to transactions between them, including transactions conducted on the facility, and which are subject to subsequent acceptance by the counterparties; (2) Any electronic communications system on which the execution of a transaction results from the content of bilateral communications exchanged between the parties and not by the interaction of multiple orders within a predetermined, non-discretionary automated trade matching algorithm; or (3) Any facility on which only a single firm may participate as market maker and participants other than the market maker may not accept bids or offers of other non-market maker participants. Robert S. Baird Vinson & Elkins L.L.P. One American Center 600 Congress Avenue Austin, Texas 78701-3200 Office phone: 512/495-8451 Fax: 512/236-3210 Home phone: 512/347-8065 Car phone: 512/627-8065 Pager: 1-888-487-2651 Voice mail: 512/495-8696, x8451 Internet: rbaird@velaw.com

Message 292 of 413

Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/291.

Track the new system in the Atlantic plus other possible development with position maps, satellite and radar images plus official advisories or post your forecast on the message board: http://www.GoPBI.com/storm?tag=e_1029

000 WTNT34 KNHC 291433 TCPAT4 BULLETIN TROPICAL DEPRESSION FOURTEEN ADVISORY NUMBER 9
NATIONAL WEATHER SERVICE MIAMI FL 10 AM EST MON OCT 29 2001

...DEPRESSION NEARING TROPICAL STORM STRENGTH...

AT 10 AM EST...1500Z...THE CENTER OF TROPICAL DEPRESSION FOURTEEN WAS LOCATED NEAR LATITUDE 28.0 NORTH...LONGITUDE 43.5 WEST OR ABOUT 1215 MILES...1955 KM...WEST-SOUTHWEST OF LAJES IN THE AZORES ISLANDS.

THE DEPRESSION IS MOVING TOWARD THE WEST NEAR 12 MPH...19 KM/HR. A TURN TO THE NORTHWEST IS EXPECTED OVER THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 35 MPH... 55 KM/HR...WITH HIGHER GUSTS. THE DEPRESSION IS NEARLY AT TROPICAL STORM STRENGTH...AND COULD BECOME A TROPICAL STORM LATER TODAY OR TOMORROW.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 1009 MB...29.80 INCHES.

REPEATING THE 10 AM EST POSITION...28.0 N... 43.5 W. MOVEMENT TOWARD...WEST NEAR 12 MPH. MAXIMUM SUSTAINED WINDS... 35 MPH. MINIMUM CENTRAL PRESSURE...1009 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 4 PM EST.

FORECASTER FRANKLIN

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Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/277.

Track the new system in the Atlantic plus other possible development with position maps, satellite and radar images plus official advisories or post your forecast on the message board: http://www.GoPBI.com/storm?tag=e_1028

000 WTNT34 KNHC 282031 TCPAT4 BULLETIN TROPICAL DEPRESSION FOURTEEN ADVISORY NUMBER 6
NATIONAL WEATHER SERVICE MIAMI FL 4 PM EST SUN OCT 28 2001

...TROPICAL DEPRESSION OVER THE FAR EASTERN ATLANTIC OCEAN POSES NO THREAT TO ANY LAND AREAS...

AT 4 PM EST...2100Z...THE CENTER OF TROPICAL DEPRESSION FOURTEEN WAS LOCATED NEAR LATITUDE 27.5 NORTH...LONGITUDE 41.6 WEST OR ABOUT 1075 MILES...1730 KM...SOUTHWEST OF LAJES IN THE AZORES ISLANDS.

THE DEPRESSION IS MOVING TOWARD THE WEST NEAR 13 MPH...20 KM/HR... AND THIS GENERAL MOTION IS EXPECTED TO CONTINUE FOR THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 35 MPH... 55 KM/HR...WITH HIGHER GUSTS. LITTLE CHANGE IN STRENGTH IS FORECAST DURING THE NEXT 24 HOURS.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 1010 MB...29.83 INCHES.

REPEATING THE 4 PM EST POSITION...27.5 N... 41.6 W. MOVEMENT TOWARD...WEST NEAR 13 MPH. MAXIMUM SUSTAINED WINDS... 35 MPH. MINIMUM CENTRAL PRESSURE...1010 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 10 PM EST.

FORECASTER STEWART

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Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	[' storm@lists.hurricanecentral.com ']
File	taylor-m/deleted_items/470.

000 WTNT32 KNHC 260231 TCPAT2 BULLETIN SUBTROPICAL STORM TWO ADVISORY NUMBER 6 NATIONAL WEATHER SERVICE MIAMI FL 11 PM AST SUN NOV 25 2001

...SUBTROPICAL STORM MOVING MORE SLOWLY...

AT 11 PM AST...0300Z...THE CENTER OF SUBTROPICAL STORM TWO WAS LOCATED NEAR LATITUDE 30.0 NORTH...LONGITUDE 55.7 WEST OR ABOUT 560 MILES...905 KM...EAST-SOUTHEAST OF BERMUDA.

THE STORM IS MOVING TOWARD THE SOUTHWEST NEAR 9 MPH ...15 KM/HR...AND A SLOW...GENERALLY WESTWARD MOTION IS EXPECTED DURING THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 70 MPH...110 KM/HR...WITH HIGHER GUSTS. SOME INCREASE IN STRENGTH IS POSSIBLE DURING THE NEXT 24 HOURS.

WINDS OF 40 MPH OR HIGHER EXTEND OUTWARD UP TO 690 MILES...1110 KM MAINLY TO THE NORTH OF THE CENTER. THIS IS A VERY LARGE STORM AND SWELLS GENERATED BY IT MAY AFFECT PORTIONS OF THE EAST COAST OF NORTH AMERICA AND THE NORTH-FACING BEACHES OF THE BAHAMAS AND GREATER ANTILLES DURING THE NEXT FEW DAYS.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 979 MB...28.91 INCHES.

REPEATING THE 11 PM AST POSITION...30.0 N... 55.7 W. MOVEMENT TOWARD...SOUTHWEST NEAR 9 MPH. MAXIMUM SUSTAINED WINDS... 70 MPH. MINIMUM CENTRAL PRESSURE... 979 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 5 AM AST...MONDAY.

FORECASTER PASCH

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Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/307.

Track the new system in the Atlantic plus other possible development with position maps, satellite and radar images plus official advisories or post your forecast on the message board: http://www.GoPBI.com/storm?tag=e_1029

000 WTNT34 KNHC 292035 TCPAT4 BULLETIN TROPICAL DEPRESSION FOURTEEN ADVISORY NUMBER 10
NATIONAL WEATHER SERVICE MIAMI FL 4 PM EST MON OCT 29 2001

...DEPRESSION CONTINUES WITH LITTLE CHANGE...NO THREAT TO LAND...

AT 4 PM EST...2100Z...THE CENTER OF TROPICAL DEPRESSION FOURTEEN WAS LOCATED NEAR LATITUDE 28.2 NORTH...LONGITUDE 44.2 WEST OR ABOUT 1235 MILES...1990 KM...WEST-SOUTHWEST OF LAJES IN THE AZORES ISLANDS.

THE DEPRESSION IS MOVING TOWARD THE WEST NEAR 9 MPH ...15 KM/HR. A TURN TO THE NORTHWEST IS EXPECTED OVER THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 35 MPH... 55 KM/HR...WITH HIGHER GUSTS. THE DEPRESSION IS NEARLY AT TROPICAL STORM STRENGTH...AND COULD BECOME A TROPICAL STORM LATER TODAY OR TOMORROW.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 1009 MB...29.80 INCHES.

REPEATING THE 4 PM EST POSITION...28.2 N... 44.2 W. MOVEMENT TOWARD...WEST NEAR 9 MPH. MAXIMUM SUSTAINED WINDS... 35 MPH. MINIMUM CENTRAL PRESSURE...1009 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 10 PM EST.

FORECASTER FRANKLIN

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Message 296 of 413

FW: BoilCap	
Sender	rajneesh.salhotra@enron.com
Recipients	[e.taylor@enron.com]
File	taylor-m/inbox/nox_model/23.

-----Original Message-----

From: Barlow, Merrill Sent: Thursday, August 09, 2001 2:26 PM To: Salhotra, Rajneesh Subject: BoilCap

Rajneesh

Here is a copy of the "BoilCap and NOx" file, which I am submitting for review. It is as up to data as I can get it.

Changes Suggested - If the Holding Company's background is red, I suggest deleting the duplicated line. - If the Holding Company's background is black, read the comment and do or dont do what I suggest. - If the Holding Company's background is orange, then it is listed twice for the same unit, but in different percentages, and sometimes Operating companies. Can decide to combine this into one line or leave it as it is. - If the Holding Company's background is pink, then I attempted to contact the plant/company directly for information and the email address or phone number is listed in the comment. No one has responded (of course).

Changes Made - Holding Company, Operator, Plant Name, Current Tech, Future Tech, Boiler Type, Ownership, Nameplate, NOx Rate, Fuels, EGU, Major Ownership, and Sec. 126 Inclusion have been updated by what I found in PowerDat and other sources. - Sec. 126 EGU and Non-EGU credit allocations were entered as per 1999 EPA data given in hardcopy form. Some of this was "adjusted", regard comments for individual spreadsheet entries.

New Sources - If I found a facility that did not have all its ownership represented, I added the missing party below the big maroon line as a new entry. Only information I was confident entering was added. - If I fould a new facility, either in operation, standby, or planned (due online by 2004), I added its data below the maroon line.

I can stop by to discuss this if you have any questions. Thanks.

Merrill Barlow

Analyst Enron Global Markets 1400 Smith St, Ste. 2987h Houston, TX 77002 (713) 345-3283

Message 297 of 413

Provider Agreement and General Terms and Conditions - Enron North	
Sender	jason.peters@enron.com
Recipients	[mark.taylor@enron.com', 'dryan@energygateway.com', 'bill.berkeland@enron.com']
File	taylor-m/notes_inbox/796.

Dan,

As a follow up to my voice mail, we have the following comments to the above-referenced Agreements:

Provider Agreement - notices - Please add the following: Notice of any default shall also be sent to Enron Corp., 1400 Smith Street, Houston, Texas 77002, Attn: Executive Vice president and General Counsel.

General Terms and Conditions 1. Section 1 - Third sentence - Please add "and written notice to Provider as set forth in the Provider Agreement" after the word "System".

2. Section 3 - Third Sentence - Please add " during the term of this Agreement" after the word "time".

3. Section 5 - Sixth Sentence - Please substitute "the accepting party" in lieu of the word "User".

4. Section 5 - Seventh Sentence - Please substitute "EnergyGateway shall cause the System to" in lieu of the phrase "The System shall".

5. Section 8 - Please delete the word "grossly" and the last phrase ", User or a third party".

6. Section 9 - Please revise the third sentence to read "Transaction fees will be based on the total volume set forth in an accepted transaction and will be invoiced by EnergyGateway in full following the transaction confirmation."

7. Section 16 - Please add the word "written" before the word "consent".

8. Section 23 - Please make this provision mutual and delete the last half of the section beginning with "RESULTING FROM".

9. Section 24 - Please change Ohio to New York and delete the second sentence. We prefer arbitration. Please let me know if you would agree to look at our standard arbitration provision. In the fourth sentence, please change "EnergyGateway's" to "Either party's".

10. please provide me with a copy of the privacy policy. I was unable to locate it on your website.

Should you have any comments or questions, please call me at 713-853-9720. Your attention to this matter is greatly appreciated.

Jason Peters

Message 298 of 413

Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/314.

Track the new systems in the Caribbean and Atlantic with position maps, satellite and radar images or post your forecast:
http://www.GoPBI.com/storm?tag=e_1029

696 WTNT34 KNHC 300236 TCPAT4 BULLETIN TROPICAL STORM LORENZO ADVISORY NUMBER 11 NATIONAL WEATHER SERVICE MIAMI FL 10 PM EST MON OCT 29 2001

...LORENZO BECOMES THE TWELFTH NAMED TROPICAL STORM OF THE SEASON IN THE FAR EASTERN ATLANTIC...

AT 10 PM EST...0300Z...THE CENTER OF TROPICAL STORM LORENZO WAS LOCATED NEAR LATITUDE 28.7 NORTH...LONGITUDE 45.0 WEST OR ABOUT 1250 MILES...2015 KM...WEST-SOUTHWEST OF LAJES IN THE AZORES ISLANDS.

LORENZO IS MOVING TOWARD THE WEST-NORTHWEST NEAR 10 MPH ...17 KM/HR...AND A GRADUAL TURN TO THE NORTHWEST AND EVENTUALLY TO THE NORTH IS EXPECTED LATER TONIGHT AND DURING THE DAY TUESDAY.

MAXIMUM SUSTAINED WINDS ARE NEAR 40 MPH... 65 KM/HR...WITH HIGHER GUSTS. SOME SLIGHT STRENGTHENING IS FORECAST DURING THE NEXT 24 HOURS.

TROPICAL STORM FORCE WINDS EXTEND OUTWARD UP TO 115 MILES...185 KM ...MAINLY TO THE SOUTHEAST OF THE CENTER.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 1007 MB...29.74 INCHES.

REPEATING THE 10 PM EST POSITION...28.7 N... 45.0 W. MOVEMENT TOWARD...WEST NORTHWEST NEAR 10 MPH. MAXIMUM SUSTAINED WINDS... 40 MPH. MINIMUM CENTRAL PRESSURE...1007 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 4 AM EST...TUESDAY.

FORECASTER STEWART

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Message 299 of 413

Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	[' storm@lists.hurricanecentral.com ']
File	taylor-m/deleted_items/512.

Follow Olga as it brings swells to the Caribbean and the U.S. coast with news updates, satellite and radar images, forecast maps, and message board: http://www.GoPBI.com/storm?tag=e_1127

000 WTNT32 KNHC 271432 TCPAT2 BULLETIN HURRICANE OLGA ADVISORY NUMBER 12 NATIONAL WEATHER SERVICE MIAMI FL 11 AM AST TUE NOV 27 2001

...OLGA DRIFTING EASTWARD WITH 85 MPH WINDS...

AT 11 AM AST...1500Z...THE EYE OF HURRICANE OLGA WAS LOCATED NEAR LATITUDE 31.5 NORTH... LONGITUDE 57.0 WEST OR ABOUT 455 MILES...730 KM...EAST OF BERMUDA.

OLGA IS LOOPING OR DRIFTING EASTWARD AT THIS TIME BUT NO SIGNIFICANT MOTION IS EXPECTED DURING THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 85 MPH...140 KM/HR...WITH HIGHER GUSTS. LITTLE CHANGE IN STRENGTH IS FORECAST DURING THE NEXT 24 HOURS.

HURRICANE FORCE WINDS EXTEND OUTWARD UP TO 25 MILES... 35 KM... FROM THE CENTER...AND TROPICAL STORM FORCE WINDS EXTEND OUTWARD UP TO 345 MILES...555 KM.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 975 MB...28.79 INCHES.

SWELLS FROM THE HURRICANE ARE LIKELY TO AFFECT BERMUDA...PORTIONS OF THE U.S. EAST COAST...THE BAHAMAS...AND THE ISLANDS OF THE NORTHERN CARIBBEAN FROM HISPANIOLA EASTWARD DURING THE NEXT COUPLE OF DAYS.

REPEATING THE 11 AM AST POSITION...31.5 N...57.0 W. MOVEMENT DRIFTING EASTWARD. MAXIMUM SUSTAINED WINDS... 85 MPH. MINIMUM CENTRAL PRESSURE...975 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 5 PM AST.

FORECASTER AVILA

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Message 300 of 413

Your Order with Amazon.com (#107-4447861-7494969)

Sender	auto-confirm@amazon.com
Recipients	['legal < taylor@enron.com >']
File	taylor-m/inbox/319.

[IMAGE] =09[IMAGE] =09 =09 Thanks for your order, Mark E Taylor! Thanks again for shopping with us. Amazon.com Customer Service Did you know you can view and edit your orders online? Click Your Account to: Access "Where's My Stuff?" = Combine orders Change payment options Change shipping address Cancel unshipped items Change gift messaging Do much more... Purchasing Information: Your purchase reads as follows: E-mail Address: mark.taylor@enron.com Billing Address: Mark E Taylor 1322 Rutland Houston, TX 77008 United States 713-863-7190 Items: \$399.99 Shipping & Handling: \$0.00 ----- Total Before Tax: \$399.99 Estimated Tax: \$0.00 ----- Purchase Total: \$399.99 Order Summary: Order #1:(Order #107-4447861-7494969) Mark E Taylor 1322 Rutland Houston, TX 77008 United States Shipping Method: Standard Shipping Shipping Preference: Ship when all items are available. [IMAGE] 1 "Canon PowerShot S110 Digital ELPH Camera Kit" Electronics; @ \$399.99 each = Usually available in 24 hours You can make changes to any unshipped orders in Your Account. If you've explored the links on that page but still have a question, please visit our online Help Department. Please note: This e-mail was sent from a notification-only address that cannot accept incoming e-mail. Please do not reply to this message. Thanks again for shopping with us. Amazon.com Earth's Biggest Selection [IMAGE] Prefer not to receive HTML mail? Click here Recommendations for Your Next Visit: [IMAGE] Canon AC adapter kit ACK500 Our Price: \$59.99 [IMAGE] FREE Online Photo Software + 25 Free Prints, by Ofoto [IMAGE] SanDisk SDDR-31-01 USB ImageMate CompactFlash Card Reader by SanDisk Our Price: \$28.99 [IMAGE] Viking CF-ADAPT CompactFlash Adapter by Viking Components Our Price: \$9.99 [IMAGE] See All Your Recommendations = 09

Message 301 of 413

Energy Exemption

Sender	mark.taylor@enron.com
Recipients	[' raislerk@sullcrom.com ']
File	taylor-m/all_documents/304.

Ken:

I thought you might be interested in the attachment.

Mark ----- Forwarded by Mark - ECT Legal Taylor/HOU/ECT on 05/20/99 05:19 PM -----

Elizabeth Sager 05/20/99 04:52 PM To: Mark - ECT Legal Taylor/HOU/ECT@ECT cc: Subject: June meeting of Contract Standardization Group

----- Forwarded by Elizabeth Sager/HOU/ECT on 05/20/99 04:51

PM -----

Enron Capital & Trade Resources Corp.

From: "Kathy Seaman" <KSeaman@eei.org> 05/20/99 04:10 PM

Please respond to "Wholesale Electric Contract Standardization Group" <contract@ls.eei.org> To: "Wholesale Electric Contract Standardization Group" <contract@ls.eei.org> cc: (bcc: Elizabeth Sager/HOU/ECT) Subject: June meeting of Contract Standardization Group

Please be advised that the meeting in June for the entire Standard Contract Group is now confirmed to take place on Tuesday, June 8th, from 9:30 a.m. * 3:30 a.m. in EEI's offices at 701 Pennsylvania Avenue, N.W., Washington, D.C. 20004. A revised contract and agenda will be forthcoming.

If you plan to attend this meeting, please inform Kathy Seaman at 202/508-5757 or respond to this message by using your e-mail program's "ReplyTo" function. If you have any questions or concerns, you can reach Kathy at 202/508-5757 or Andy Katz at 202/508-5616.

In the meantime, attached for the entire group is a Petition for Exemption filed with the CFTC on May 19 requesting that certain Electric Energy Contracts be exempted from CFTC jurisdiction under the Commodities Exchange Act (CEA). The CEA contains an exemption for Energy Contracts for the purchase sale of oil and natural gas products which have certain characteristics. The Petition asks that similarly situated Electric Energy Contracts be included in the exemption. For further information on the Petition, contact Michael S. Hindus, Cameron McKenna LLP, 415-954-8484, mhindus@cmckenna.com

- Petition_email version.doc

Message 302 of 413

ZBT ALUMNI

Sender	jtyler@monm.edu
Recipients	['legal <.taylor@enron.com>']
File	taylor-m/inbox/205.

Dear Alumni,

ZBT's main focus for this school year is to reconnect with our alumni. We will be e-mailing you periodically about events you might be interested in attending throughout the school year. If you know of any other alumni who aren't receiving our e-mails, contact us and we'll add their names to our e-mail data base.

Thanks, Jerone Tyler web-master (ZBT)

ZBT to host Benefit Concert

We, the Brothers of Zeta Beta Tau, members of the Monmouth College community wish to, in an entertaining manner, give back to the community that has thus far supported us so well. In order to accomplish this, the Brothers of ZBT will host a Benefit Concert which will provide excellent entertainment for the entire community while raising money for an important local organization, Jamieson Center.

The Jamieson Community Center is a private, non-profit human service agency that caters to the needs of the residents of Warren and Henderson Counties of Illinois. Present services offered by the Jamieson Community Center include a Thrift Shop, emergency food pantry, emergency services, Christmas Store and Christmas Baskets, childhood immunizations, SHARE Food Program, meals for seniors, summer feeding services for children, Women Infants and Children, domestic violence counseling, and much more. Jamieson Center provides thousands of instances of assistance each year to persons of all ages with a variety of needs.

On November 10th Zeta Beta Tau will be holding the philanthropic event for the Jamieson Community Center. The ZBT Benefit Concert will be a combination of musical performances by members of the Zeta Beta Tau Fraternity, students and

faculty members of Monmouth College. To reserve tickets, please call Andrew Rubia at (309) 457-3069. Donations for Jamieson Center will be accepted c/o Zeta Beta Tau at 318 N. 9th St., #491, Monmouth, Illinois, 61462. As stated before all proceeds will go to the Jamieson Community Center. The show is sure to be a great event!

check out our own ZBT web-site at: <http://department.monm.edu/zbt/default.htm>

Message 303 of 413

Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/505.

Follow Olga as it brings swells to the Caribbean and the U.S. coast with news updates, satellite and radar images, forecast maps, and message board: http://www.GoPBI.com/storm?tag=e_1127

000 WTNT32 KNHC 270831 TCPAT2 BULLETIN HURRICANE OLGA ADVISORY NUMBER 11 NATIONAL WEATHER SERVICE MIAMI FL 5 AM AST TUE NOV 27 2001

...OLGA MEANDERING AIMLESSLY OVER ATLANTIC WATERS...

AT 5 AM AST...0900Z...THE CENTER OF HURRICANE OLGA WAS LOCATED NEAR LATITUDE 32.5 NORTH...LONGITUDE 57.5 WEST OR ABOUT 415 MILES...670 KM...EAST OF BERMUDA.

OLGA HAS BEEN MEANDERING IN A LOOP WITH LITTLE OVERALL MOTION. AN ERRATIC MOTION IS EXPECTED OVER THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 85 MPH...140 KM/HR...WITH HIGHER GUSTS. LITTLE CHANGE IN STRENGTH IS FORECAST DURING THE NEXT 24 HOURS.

HURRICANE FORCE WINDS EXTEND OUTWARD UP TO 25 MILES... 35 KM... FROM THE CENTER...AND TROPICAL STORM FORCE WINDS EXTEND OUTWARD UP TO 345 MILES...555 KM.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 975 MB...28.79 INCHES.

SHIP REPORTS INDICATE A VERY LARGE AREA OF SEAS OF 12 FEET OR GREATER ASSOCIATED WITH OLGA. SWELLS FROM THE HURRICANE ARE LIKELY TO AFFECT BERMUDA...PORTIONS OF THE U. S. EAST COAST...THE BAHAMAS...AND THE ISLANDS OF THE NORTHERN CARIBBEAN FROM HISPANIOLA EASTWARD DURING THE NEXT COUPLE OF DAYS.

REPEATING THE 5 AM AST POSITION...32.5 N... 57.5 W. MOVEMENT STATIONARY. MAXIMUM SUSTAINED WINDS... 85 MPH. MINIMUM CENTRAL PRESSURE... 975 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 11 AM AST.

FORECASTER FRANKLIN

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Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/508.

Follow Olga as it brings swells to the Caribbean and the U.S. coast with news updates, satellite and radar images, forecast maps, and message board: http://www.GoPBI.com/storm?tag=e_1126

000 WTNT32 KNHC 270248 TCPAT2 BULLETIN HURRICANE OLGA ADVISORY NUMBER 10 NATIONAL WEATHER SERVICE MIAMI FL 11 PM AST MON NOV 26 2001

...OLGA STRENGTHENS...

AT 11 PM AST...0300Z...THE CENTER OF HURRICANE OLGA WAS LOCATED NEAR LATITUDE 32.4 NORTH...LONGITUDE 56.2 WEST OR ABOUT 495 MILES...795 KM...EAST OF BERMUDA.

OLGA IS MOVING TOWARD THE NORTH NEAR 8 MPH...13 KM/HR. A SLOW...ERRATIC MOTION IS EXPECTED DURING THE NEXT 24 HOURS.

SATELLITE IMAGES INDICATE THAT THE MAXIMUM SUSTAINED WINDS HAVE INCREASED TO NEAR 85 MPH...140 KM/HR. SOME ADDITIONAL STRENGTHENING COULD OCCUR ON TUESDAY.

HURRICANE FORCE WINDS EXTEND OUTWARD UP TO 25 MILES... 35 KM... FROM THE CENTER...AND TROPICAL STORM FORCE WINDS EXTEND OUTWARD UP TO 345 MILES...555 KM.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 975 MB...28.79 INCHES.

SHIP REPORTS INDICATE A VERY LARGE AREA OF SEAS OF 12 FEET OR GREATER ASSOCIATED WITH OLGA. SWELLS FROM THE HURRICANE ARE LIKELY TO AFFECT BERMUDA...PORTIONS OF THE U. S. EAST COAST...THE BAHAMAS...AND THE ISLANDS OF THE NORTHERN CARIBBEAN FROM HISPANIOLA EASTWARD DURING THE NEXT COUPLE OF DAYS.

REPEATING THE 11 PM AST POSITION...32.4 N... 56.2 W. MOVEMENT TOWARD...NORTH NEAR 8 MPH. MAXIMUM SUSTAINED WINDS... 85 MPH. MINIMUM CENTRAL PRESSURE... 975 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 5 AM AST...TUESDAY.

FORECASTER PASCH

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Message 305 of 413

FW: Altrade International Contract

Sender	mark.greenberg@enron.com
Recipients	['robert.quick@enron.com', 'legal <taylor@enron.com>', 'bo.petersen@enron.com', 'stephanie.sever@enron.com']
File	taylor-m/deleted_items/416.

Bo/Robert -

Mark asked me to take a look over the attached, which I am more than happy to do. I has a few questions in relation to the product. First, is this an internet based product through which we will actually buy/sell? If so, do we have a URL (internet address) where I can find the site? What group do we envision using this product at the current time?

I will look over the agreement and let you know my thoughts. It may be closer to the end of the week before I am able to get back to you. In the meantime, if there is anything else I need to know, please e-mail me or call me in Houston.

Thanks.

Mark

-----Original Message-----

From: Taylor, Mark E (Legal) Sent: Tuesday, October 30, 2001 10:08 AM To: Greenberg, Mark Subject: FW: Altrade International Contract

Can you take a look at this for the London office?

-----Original Message-----

From: Quick, Robert Sent: Tuesday, October 30, 2001 8:36 AM To: Taylor, Mark E (Legal) Cc: McKinney, Lara; Petersen, Bo Subject: FW: Altrade International Contract

Mark, I wonder whether you will be able to help out on this. Attached is a usage agreement with a company called Altrade Energy System Corp. It is subject to Texas law -wh. I imagine is non-negotiable. Wd someone in yr group be able to look over this for Bo (Bo heads up the NGL group here in Europe).

many tks

Robert

-----Original Message-----

From: Petersen, Bo Sent: 30 October 2001 10:49 To: Quick, Robert Subject: FW: Altra International Contract

As promised.

-----Original Message-----

From: Paula Rodriguez [mailto:Paula.Rodriguez@altra.com] Sent: Tuesday, October 30, 2001 9:49 AM To: Petersen, Bo Subject: Altra International Contract

Hey Bo, Here are copies of Altra's international contract in Word Doc so your lawyers can make changes. Either e-mail back or FAX when complete. Thanks Paula <<Solarc Agreement Letter.doc>> <<NGL-Crude-[5-01].doc>> Thanks, y'all! Paula V. Rodriguez Altra Energy Technologies, Inc. 1221 Lamar, Suite 950 Houston, Texas 77010 713-210-8023 e-mail: paula.rodriguez@altra.com

Message 306 of 413

Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/306.

Track the new systems in the Caribbean and Atlantic with position maps, satellite and radar images or post your forecast:
http://www.GoPBI.com/storm?tag=e_1029

000 WTNT35 KNHC 292029 TCPAT5 BULLETIN TROPICAL DEPRESSION FIFTEEN ADVISORY NUMBER 1
NATIONAL WEATHER SERVICE MIAMI FL 5 PM EDT MON OCT 29 2001

...TROPICAL DEPRESSION FORMS ALONG THE COAST OF NICARAGUA...

SATELLITE IMAGERY AND REPORTS FROM AN AIR FORCE RESERVE UNIT RECONNAISSANCE AIRCRAFT INDICATE THAT THE BROAD AREA OF LOW PRESSURE IN THE SOUTHWESTERN CARIBBEAN HAS BECOME A TROPICAL DEPRESSION.

AT 5 PM EDT...2100Z...THE POORLY-DEFINED CENTER OF TROPICAL DEPRESSION FIFTEEN WAS LOCATED NEAR LATITUDE 13.0 NORTH...LONGITUDE 83.5 WEST OR ON THE COAST OF NICARAGUA ABOUT 40 MILES...60 KM...SOUTH-SOUTHWEST OF PUERTO CABEZAS NICARAGUA.

THE DEPRESSION IS STATIONARY. A DRIFT TO THE NORTH-NORTHWEST OVER EASTERN NICARAGUA IS EXPECTED OVER THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 35 MPH... 55 KM/HR...WITH HIGHER GUSTS. LITTLE CHANGE IN STRENGTH IS FORECAST DURING THE NEXT 24 HOURS WHILE THE CENTER IS OVER LAND.

THE MINIMUM CENTRAL PRESSURE REPORTED BY RECONNAISSANCE AIRCRAFT IS 1005 MB...29.68 INCHES.

SIGNIFICANT RAINFALL AMOUNTS HAVE ALREADY OCCURRED IN EASTERN HONDURAS AND NORTHEASTERN NICARAGUA. ADDITIONAL RAINFALL AMOUNTS OF 10 TO 15 INCHES ARE POSSIBLE...AND THESE RAINS ARE EXPECTED TO PRODUCE LIFE-THREATENING FLASH FLOODS AND MUD SLIDES.

REPEATING THE 5 PM EDT POSITION...13.0 N... 83.5 W. MOVEMENT STATIONARY. MAXIMUM SUSTAINED WINDS... 35 MPH. MINIMUM CENTRAL PRESSURE...1005 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 11 PM EDT.

FORECASTER FRANKLIN

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Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/493.

000 WTNT32 KNHC 261438 TCPAT2 BULLETIN TROPICAL STORM OLGA ADVISORY NUMBER 8 NATIONAL WEATHER SERVICE MIAMI FL 11 AM AST MON NOV 26 2001

...SUBTROPICAL STORM TWO BECOMES TROPICAL STORM OLGA...

SATELLITE IMAGERY THIS MORNING INDICATES THAT THUNDERSTORM ACTIVITY HAS INCREASED AROUND THE CENTER OF SUBTROPICAL STORM TWO...AND THAT IT HAS BECOME TROPICAL STORM OLGA. AT 11 AM AST...1500Z...THE CENTER OF OLGA WAS LOCATED NEAR LATITUDE 30.7 NORTH...LONGITUDE 56.1 WEST OR ABOUT 515 MILES...830 KM...EAST OF BERMUDA.

OLGA IS NOW MOVING TOWARD THE NORTHWEST NEAR 7 MPH...11 KM/HR. A GENERAL NORTHWESTWARD TO WEST-NORTHWESTWARD MOTION IS EXPECTED DURING THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 70 MPH...110 KM/HR...WITH HIGHER GUSTS. SATELLITE IMAGERY INDICATES OLGA IS TRYING TO FORM AN EYE... AND IT COULD BECOME A HURRICANE LATER TODAY.

TROPICAL STORM FORCE WINDS EXTEND OUTWARD UP TO 555 MILES ...890 KM MAINLY TO THE NORTHWEST OF THE CENTER.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 979 MB...28.91 INCHES.

SHIP REPORTS INDICATE A VERY LARGE FIELD OF 12 FT OR GREATER SEAS IS ASSOCIATED WITH OLGA. SWELLS FROM THE STORM ARE ALREADY REACHING BERMUDA AND PORTIONS OF THE U. S. MID-ATLANTIC STATES. THESE SWELLS WILL REACH THE ISLANDS OF THE NORTHERN CARIBBEAN FROM HISPANIOLA EASTWARD LATER TODAY OR TONIGHT...AND REACH THE BAHAMAS AND THE REMAINDER OF THE EASTERN COAST OF THE UNITED STATES OVER THE NEXT DAY OR TWO.

REPEATING THE 11 AM AST POSITION...30.7 N... 56.1 W. MOVEMENT TOWARD...NORTHWEST NEAR 7 MPH. MAXIMUM SUSTAINED WINDS... 70 MPH. MINIMUM CENTRAL PRESSURE... 979 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 5 PM AST.

FORECASTER BEVEN

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Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/308.

Track the new systems in the Caribbean and Atlantic with position maps, satellite and radar images or post your forecast:
http://www.GoPBI.com/storm?tag=e_1029

000 WTNT35 KNHC 292100 TCPAT5 BULLETIN TROPICAL DEPRESSION FIFTEEN ADVISORY NUMBER 1
NATIONAL WEATHER SERVICE MIAMI FL 4 PM EST MON OCT 29 2001

...CORRECTED TO SHOW ADVISORY TIME IN EASTERN STD TIME...

...TROPICAL DEPRESSION FORMS ALONG THE COAST OF NICARAGUA...

SATELLITE IMAGERY AND REPORTS FROM AN AIR FORCE RESERVE UNIT RECONNAISSANCE AIRCRAFT INDICATE THAT THE BROAD AREA OF LOW PRESSURE IN THE SOUTHWESTERN CARIBBEAN HAS BECOME A TROPICAL DEPRESSION.

AT 4 PM EST...2100Z...THE POORLY-DEFINED CENTER OF TROPICAL DEPRESSION FIFTEEN WAS LOCATED NEAR LATITUDE 13.0 NORTH...LONGITUDE 83.5 WEST OR ON THE COAST OF NICARAGUA ABOUT 40 MILES...60 KM...SOUTH-SOUTHWEST OF PUERTO CABEZAS NICARAGUA.

THE DEPRESSION IS STATIONARY. A DRIFT TO THE NORTH-NORTHWEST OVER EASTERN NICARAGUA IS EXPECTED OVER THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 35 MPH... 55 KM/HR...WITH HIGHER GUSTS. LITTLE CHANGE IN STRENGTH IS FORECAST DURING THE NEXT 24 HOURS WHILE THE CENTER IS OVER LAND.

THE MINIMUM CENTRAL PRESSURE REPORTED BY RECONNAISSANCE AIRCRAFT IS 1005 MB...29.68 INCHES.

SIGNIFICANT RAINFALL AMOUNTS HAVE ALREADY OCCURRED IN EASTERN HONDURAS AND NORTHEASTERN NICARAGUA. ADDITIONAL RAINFALL AMOUNTS OF 10 TO 15 INCHES ARE POSSIBLE...AND THESE RAINS ARE EXPECTED TO PRODUCE LIFE-THREATENING FLASH FLOODS AND MUD SLIDES.

REPEATING THE 4 PM EST POSITION...13.0 N... 83.5 W. MOVEMENT STATIONARY. MAXIMUM SUSTAINED WINDS... 35 MPH. MINIMUM CENTRAL PRESSURE...1005 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 10 PM EST.

FORECASTER FRANKLIN

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*Message 309 of 413***CFTC Rules**

Sender	rbaird@velaw.com
Recipients	['mark.taylor@enron.com', 'nora.dobin@enron.com']
File	taylor-m/notes_inbox/1828.

The language that puzzles me is on page 24 of the New Regulatory Framework release. It is discussing the Chicago Board of Trade's suggestion that the exclusion for unilateral transaction execution facilities, such as EnronOnline, be deleted. The release says:

"However, under the proposed exclusion there can be but one counterparty to all market participants. That is quite different from using one or more specialists in a multilateral trading setting. In that structure, the bids and offers of non-specialists are permitted to interact with each other."

I can understand the point with respect to "or more" specialists, but I don't understand how you can distinguish EnronOnline from a market with a single specialist who is a counterparty to all trades. I also don't understand the point about bids and offers interacting with each other. This may be because I don't understand how specialists go about their business. But the question is, I suppose, does EnronOnline have to take steps to make sure that bids and offers are isolated from one another so they don't "interact?" Maybe, in fact, that's the way EnronOnline works, but this is pretty confusing to me. I suppose this language may cause more trouble for DealBench than EnronOnline, since DealBench deal rooms may have all sorts of interactions among bidders.

I'd appreciate your thoughts.

Robert S. Baird Vinson & Elkins L.L.P. One American Center 600 Congress Austin, Texas 78701 Telephone: (512)495-8451 When calling from Houston (713)758-2414 Fax: (512)236-3210 Email: rbaird@velaw.com Home telephone (512)347-8066 Car phone: (512)627-8065 Home fax: (512)347-8065 Pager: 1-888-487-2651

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*Message 310 of 413***S&C Memo Re: Commodity Futures Trading Commission: Proposed Rulem**

Sender	cromwell@sullcrom.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/all_documents/8054.

Re: Commodity Futures Trading Commission: Proposed Rulemaking for a New Regulatory Framework for Trading Facilities

Attached is a memorandum from Sullivan & Cromwell concerning the above subject. A summary is also included at the end of the text of this e-mail message.

The attached file is in Adobe Acrobat format. We believe most PCs will already have an Acrobat viewer loaded; we can provide free copies if Acrobat is not already loaded, and free copies can also be downloaded from the Adobe Acrobat web site at www.adobe.com. To view or print the memo use your e-mail system's function for opening attachments in their native format. Hard copies can be obtained from Ivy Moreno at S&C in New York, telephone 212-558-3448, e-mail: Morenoi@sullcrom.com.

SUMMARY

On March 9, 2001, the Commodity Futures Trading Commission (the "CFTC") published proposed rules (the "Proposed Rules") which are designed to implement certain provisions of the Commodity Futures Modernization Act of 2000 (the "CFMA"). 66 F.R. 14262. Comments are due on the Proposed Rules by April 9, 2001.

As discussed in our Memorandum dated December 21, 2000, the CFMA introduced a tiered approach to regulating boards of trade, establishing separate regulatory regimes for designated contract markets (subject to the highest level of regulatory oversight), derivatives transaction execution facilities (a new category of less regulated markets), and certain exempt markets (subject only to antifraud and anti-manipulation rules). The Proposed Rules implement this tiered approach and reflect the CFTC's new oversight role with respect to markets and market participants, in contrast to the prior system of direct regulation. The Proposed Rules generally track the CFMA closely and also provide guidance for complying with the CFMA's provisions. This memorandum highlights the most significant Proposed Rules applicable to each of these types of markets.

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

- climail.pdf

Message 311 of 413

FW: E-commerce and steel

Sender	legal <taylor@enron.com>
Recipients	[chris.long@enron.com', 'Greg', 'Hermans']
File	taylor-m/sent_items/320.

I didn't see your name in any of these e-mails. Do you get involved in Trade Commission issues?

-----Original Message-----

From: Murray, Julia Sent: Monday, August 06, 2001 4:17 PM To: Yoho, Lisa; Taylor, Mark E (Legal) Cc: Hermans, Greg
Subject: FW: E-commerce and steel

The attached is a request that we received from the U.S. Trade Commission in connection with the pending 201 proceeding. We need to coordinate a response. Please review and I will coordinate a meeting to discuss. Thanks, Julia

-----Original Message-----

From: Hermans, Greg Sent: Monday, August 6, 2001 1:36 PM To: Murray, Julia Subject: FW: E-commerce and steel
as per phonecall...

Let's discuss Greg

-----Original Message-----

From: Vincent DeSapio [mailto:desapio@usitc.gov] Sent: Monday, August 06, 2001 12:39 PM To: Hermans, Greg
Subject: E-commerce and steel

Dear Mr. Hermans: The following are the questions I referred to in the the phone message of August 6.

1. In what significant ways does Enron Online differ from the London Metal Exchange or the New York Mercantile Exchange in the trading of futures contracts (apart from the specific metals it trades) or from other on-line exchanges in the trading of physical metal?
2. What are the most important benefits that a public exchange like Enron's brings to the steel industry?
3. Does Enron have a trade clearing mechanism to guarantee the creditworthiness of suppliers and customers?

4. Why have some on-line steel trading sites failed?

5. Are there particular problems in trading steel on-line versus oil, agricultural products, or any of the other products that are successfully traded on-line?

Any information you are able to supply would be greatly appreciated.

Vincent DeSapio

U.S. International Trade Commission

500 E. Street, SW

Washington, DC 20436

202-205-3435 (phone)

Message 312 of 413

Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	['storm@lists.hurricanecentral.com']
File	taylor-m/deleted_items/499.

Follow Olga as it brings swells to the Caribbean and the U.S. coast with news updates, satellite and radar images, forecast maps, and message board: http://www.GoPBI.com/storm?tag=e_1126

000 WTNT32 KNHC 262035 TCPAT2 BULLETIN HURRICANE OLGA ADVISORY NUMBER 9 NATIONAL WEATHER SERVICE MIAMI FL 5 PM AST MON NOV 26 2001

...OLGA BECOMES THE NINTH HURRICANE OF THE 2001 HURRICANE SEASON...

AT 5 PM AST...2100Z...THE CENTER OF HURRICANE OLGA WAS LOCATED NEAR LATITUDE 31.5 NORTH...LONGITUDE 56.0 WEST OR ABOUT 510 MILES...820 KM...EAST OF BERMUDA.

OLGA IS NOW MOVING TOWARD THE NORTH NEAR 6 MPH... 9 KM/HR...AND A SLOW NORTHWARD TO NORTHWESTWARD MOTION IS EXPECTED DURING THE NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS HAVE INCREASED TO NEAR 75 MPH...120 KM/HR...WITH HIGHER GUSTS. SOME SLOW STRENGTHENING MAY OCCUR DURING THE NEXT 24 HOURS.

HURRICANE FORCE WINDS EXTEND OUTWARD UP TO 25 MILES... 35 KM... FROM THE CENTER...AND TROPICAL STORM FORCE WINDS EXTEND OUTWARD UP TO 415 MILES...665 KM...MAINLY TO THE NORTHWEST OF THE CENTER.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 977 MB...28.85 INCHES.

SHIP REPORTS INDICATE A VERY LARGE FIELD OF SEAS OF 12 FEET OR GREATER IS ASSOCIATED WITH OLGA. SWELLS FROM THE STORM ARE ALREADY REACHING BERMUDA AND PORTIONS OF THE U. S. MID-ATLANTIC STATES. THESE SWELLS WILL REACH THE BAHAMAS AND THE ISLANDS OF THE NORTHERN CARIBBEAN FROM HISPANIOLA EASTWARD LATER TODAY OR TONIGHT...AND REACH THE REMAINDER OF THE EASTERN COAST OF THE UNITED STATES OVER THE NEXT DAY OR TWO.

REPEATING THE 5 PM AST POSITION...31.5 N... 56.0 W. MOVEMENT TOWARD...NORTH NEAR 6 MPH. MAXIMUM SUSTAINED WINDS... 75 MPH. MINIMUM CENTRAL PRESSURE... 977 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 11 PM AST.

FORECASTER BEVEN

Make GoPBI.com's Storm Warning Center your No. 1 resource for hurricane and tropical storm updates:

<http://GoPBI.com/storm>

To subscribe or unsubscribe from this list, visit our Web site: <http://GoPBI.com/storm/email>

DO NOT REPLY to this email. If you have questions or comments, send them to storm@cimedia.com

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You can contact us by mail or telephone at: GoPBI.com 2751 South Dixie Highway West Palm Beach FL 33405 (561) 820-3700

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Message 313 of 413

Tropical Weather Advisory

Sender	storm-advisory@lists.hurricanecentral.com
Recipients	[storm@lists.hurricanecentral.com]
File	taylor-m/inbox/215.

Track the new systems in the Caribbean and Atlantic with position maps, satellite and radar images or post your forecast: http://www.GoPBI.com/storm?tag=e_1029

000 WTNT35 KNHC 300245 TCPAT5 BULLETIN TROPICAL DEPRESSION FIFTEEN ADVISORY NUMBER 2
NATIONAL WEATHER SERVICE MIAMI FL 10 PM EST MON OCT 29 2001

...TROPICAL DEPRESSION MOVING SLOWLY NORTHWARD AND PRODUCING HEAVY RAINFALL OVER
NICARAGUA AND HONDURAS...

ALL INTERESTS IN THE NORTHWESTERN CARIBBEAN SEA SHOULD CLOSELY MONITOR THE PROGRESS OF
THIS SYSTEM.

AT 10 PM EST...0300Z...THE CENTER OF TROPICAL DEPRESSION FIFTEEN WAS LOCATED NEAR LATITUDE 13.9
NORTH...LONGITUDE 83.5 WEST OR ABOUT 15 MILES...20 KM...SOUTH OF PUERTO CABEZAS ALONG THE
COAST OF EASTERN NICARAGUA.

THE DEPRESSION IS MOVING TOWARD THE NORTH NEAR 5 MPH...7 KM/HR... AND A GRADUAL TURN TO THE
NORTH-NORTHWEST OVER NORTHEASTERN NICARAGUA AND EASTERN HONDURAS IS EXPECTED OVER THE
NEXT 24 HOURS.

MAXIMUM SUSTAINED WINDS ARE NEAR 35 MPH... 55 KM/HR...WITH HIGHER GUSTS. LITTLE CHANGE IN
STRENGTH IS FORECAST DURING THE NEXT 24 HOURS.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 1005 MB...29.68 INCHES.

SIGNIFICANT RAINFALL AMOUNTS HAVE ALREADY OCCURRED IN EASTERN HONDURAS AND NORTHEASTERN
NICARAGUA. ADDITIONAL RAINFALL AMOUNTS OF 10 TO 15 INCHES...250 TO 400 MILLIMETERS...ARE
POSSIBLE...AND THESE RAINS ARE EXPECTED TO PRODUCE LIFE-THREATENING FLASH FLOODS AND MUD
SLIDES.

REPEATING THE 10 PM EST POSITION...13.9 N... 83.5 W. MOVEMENT TOWARD...NORTH NEAR 5 MPH. MAXIMUM
SUSTAINED WINDS... 35 MPH. MINIMUM CENTRAL PRESSURE...1005 MB.

FOR STORM INFORMATION SPECIFIC TO YOUR AREA...PLEASE MONITOR PRODUCTS ISSUED BY YOUR LOCAL
WEATHER OFFICE.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 4 AM EST...TUESDAY.

FORECASTER STEWART

Make GoPBI.com's Storm Warning Center your No. 1 resource for hurricane and tropical storm updates:
<http://GoPBI.com/storm>

To subscribe or unsubscribe from this list, visit our Web site: <http://GoPBI.com/storm/email>

DO NOT REPLY to this email. If you have questions or comments, send them to storm@cimedia.com

Brought to you by GoPBI.com: <http://GoPBI.com>

You can contact us by mail or telephone at: GoPBI.com 2751 South Dixie Highway West Palm Beach FL 33405 (561) 820-3700

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Message 314 of 413

FW: Tropical Weather Advisory

Sender	legal < taylor@enron.com >
Recipients	[' lhayman@skadden.com ']
File	taylor-m/sent_items/404.

I feel sorry for the people coming across the Atlantic this week. One more reason to thank Amanda for switching our routing!

-----Original Message-----

From: "GoPBI.com Storm Warning Center" <storm-advisory@lists.hurricanecentral.com>@ENRON [mailto:IMCEANOTES-22GoPBI+2Ecom+20Storm+20Warning+20Center+22+20+3Cstorm-advisory+40lists+2Ehurricanecentral+2Ecom+3E+40ENRON@ENRON.com] Sent: Monday, August 27, 2001 7:51 AM To: GoPBI.com Storm Warning Center Subject: Tropical Weather Advisory

Track Dean as it regenerates in the north Atlantic with satellite and radar images, position and forecast maps plus message board: http://GoPBI.com/storm?tag=e_0827

000 WTNT35 KNHC 270851 TCPAT5 BULLETIN TROPICAL STORM DEAN ADVISORY NUMBER 6 NATIONAL WEATHER SERVICE MIAMI FL 5 AM AST MON AUG 27 2001

...DEAN REGENERATES OVER THE NORTH ATLANTIC SHIPPING LANES...NO THREAT TO LAND...

SHIP REPORTS AND SATELLITE IMAGERY INDICATE THAT DEAN HAS REGAINED TROPICAL STORM STATUS.

AT 5 AM AST...0900Z...THE CENTER OF TROPICAL STORM DEAN WAS LOCATED NEAR LATITUDE 38.3 NORTH...LONGITUDE 61.3 WEST OR ABOUT 415 MILES...645 KM...SOUTH OF SABLE ISLAND NOVA SCOTIA.

DEAN IS MOVING TOWARD THE NORTHEAST NEAR 18 MPH...30 KM/HR...AND THIS MOTION IS EXPECTED TO CONTINUE TODAY.

MAXIMUM SUSTAINED WINDS ARE NEAR 60 MPH... 95 KM/HR...WITH HIGHER GUSTS. LITTLE CHANGE IN STRENGTH IS FORECAST TODAY.

TROPICAL STORM FORCE WINDS EXTEND OUTWARD UP TO 105 MILES ...165 KM FROM THE CENTER.

ESTIMATED MINIMUM CENTRAL PRESSURE IS 1000 MB...29.53 INCHES.

REPEATING THE 5 AM AST POSITION...38.3 N... 61.3 W. MOVEMENT TOWARD...NORTHEAST NEAR 18 MPH. MAXIMUM SUSTAINED WINDS... 60 MPH. MINIMUM CENTRAL PRESSURE...1000 MB.

THE NEXT ADVISORY WILL BE ISSUED BY THE NATIONAL HURRICANE CENTER AT 11 AM AST.

FORECASTER PASCH

Make GoPBI.com's Storm Warning Center your No. 1 resource for hurricane and tropical storm updates:
<http://GoPBI.com/storm>

To subscribe or unsubscribe from this list, visit our Web site: <http://GoPBI.com/storm/email>

DO NOT REPLY to this email. If you have questions or comments, send them to storm@cimedia.com

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You can contact us by mail or telephone at: GoPBI.com 2751 South Dixie Highway West Palm Beach FL 33405 (561) 820-3700

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Message 315 of 413

Re: Capital Contribution documentation

Sender	stuart.ogg@weil.com
Recipients	['legal <.taylor@enron.com>']
File	taylor-m/archive/2001_11/65.

Once the agreement is signed, it would prohibit us from issuing the golden share, as well as the shares to ENA for enron online, unless we put that on the disclosure schedule. However, since I don't know that we can get a golden shareholder today, we should probably consider putting this on the disclosure schedule to the merger agreement. Is it problematic for you to disclose this to the other side? If so, we might be able to have the golden interest issued to an individual who can later transfer them to a corporate shareholder. Let me know what you think.

"Taylor, Mark E (Legal)" <Mark.Taylor@ENRON.com> on 11/05/2001 02:16:19 PM cc: Subject: Capital Contribution documentation

Under normal circumstances we would not need an Enron Corp. resolution and in fact the Corporate Secretary and Treasury offices can handle moving the money around so we do not propose to do an Enron Corp. Board action unless you folks think it is absolutely necessary. The other resolutions we can get in place easily.

I think Notre Dame agreement contains restrictions on what we can do with capital stock of subsidiaries after it is signed -- does that mean we need to issue the Golden Share today?

Mark Taylor Vice President and General Counsel Enron Wholesale Services 1400 Smith Street - EB3892 Houston, Texas 77008 (713)853-7459 (713)646-3490 (fax)

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Message 316 of 413

Re: Agency.com Identification

Sender	mark.taylor@enron.com
Recipients	['Louise Kitchen/LON/ECT@ECT', 'Elena Kapralova/LON/ECT@ECT', 'david.forster@enron.com']
File	taylor-m/sent/654.

These are ok with me if Agency.com has approved. How will PR be handling #3?

David Forster 12/01/99 05:42 PM To: Mark Taylor/HOU/ECT@ECT cc: Elena Kapralova/LON/ECT@ECT, Louise Kitchen/LON/ECT@ECT Subject: Re: Agency.com Identification

Mark,

You may have responded to this email before, but I am unable to find it.

Could you please have a look over it and let me know what you think?

Thanks,

Dave ----- Forwarded by David Forster/LON/ECT on 01/12/99 23:39

David Forster 10/11/99 16:22 To: Mark Taylor/HOU/ECT@ECT cc: Elena Kapralova/LON/ECT@ECT, Awais Omar/LON/ECT@ECT

Subject: Re: Agency.com Identification

Mark,

Could you please cast your eye over these additions to the FAQ list?

Thanks,

Dave ----- Forwarded by David Forster/LON/ECT on 10/11/99 16:18

Louise Kitchen 10/11/99 16:10 To: David Forster/LON/ECT@ECT cc: Subject: Re: Agency.com Identification

Q1: Did you write your web page internally or use an outside company?

A: Enron used an outside company for the web page coding, but the internal applications which our traders use for posting their bids and offers were built by Enron personnel.

Q2: What is the name of the outside agency which Enron used for web page development and how can we contact them?

A: The company which wrote the internet software for EnronOnline is Agency.com.

Q3: Are you satisfied with Agency's performance?

Refer the caller to our PR dept.

David Forster 09/11/99 17:32 To: Louise Kitchen/LON/ECT@ECT cc: Subject: Re: Agency.com Identification

OK - Q1 and Q3 obviously only need internal approval, but I will send Q2 to Agency, if you approve.

Q1: Did you write your web page internally or use an outside company?

A: Enron used an outside company for the web page coding, but the internal applications which our traders use for posting their bids and offers were built by Enron personnel.

Q2: What is the name of the outside agency which Enron used for web page development and how can we contact them?

A: The company which wrote the internet software for EnronOnline is Agency.com. They are located in Dallas, Texas and can be reached at 214-571-4000, or by mail at 1701 N. Market Street, Suite 400, Dallas, Texas 75202.

Q3: Are you satisfied with Agency's performance?

Refer the caller to our PR dept.

Louise Kitchen 09/11/99 15:27 To: David Forster/LON/ECT@ECT cc: Subject: Re: Agency.com Identification

We need to draft an FAQ and get it approved by Agency. Can you draft something?Thanks

David Forster 09/11/99 15:13 To: Louise Kitchen/LON/ECT@ECT cc: Subject: Agency.com Identification

If someone calls the Call Centre and asks if we used an outside vendor for the website, and who the vendor is, shall we tell them?

We have received such a query - I want to establish policy.

Thanks,

Dave

Message 317 of 413

RE: E-commerce and steel

Sender	legal <taylor@enron.com>
Recipients	['Greg', 'Hermans', 'lisa.yoho@enron.com']
File	taylor-m/sent_items/357.

1. EnronOnline is not an exchange, it is a bilateral transaction system. It differs from futures exchanges in many respects including the following: (i)an Enron entity is a counterparty to every transaction concluded over the system; (ii) EnronOnline transactions are not cleared; (iii) the transactions concluded on the system are forward contracts or derivatives, not futures; and (iv) access to EnronOnline is restricted to commercial entities, i.e. no retail transactions are concluded on EnronOnline.

3. EnronOnline transactions are not cleared through any third party mechanism. Enron evaluates the credit of its customers and determines how much credit exposure it is willing to take with respect to each of them.

-----Original Message-----

From: Yoho, Lisa Sent: Friday, August 10, 2001 11:12 AM To: Taylor, Mark E (Legal) Subject: FW: E-commerce and steel

Mark: Could you (or someone in your group) help with questions 1 and 3? Thanks so much. Lisa

-----Original Message-----

From: Murray, Julia Sent: Monday, August 06, 2001 4:17 PM To: Yoho, Lisa; Taylor, Mark E (Legal) Cc: Hermans, Greg Subject: FW: E-commerce and steel

The attached is a request that we received from the U.S. Trade Commission in connection with the pending 201 proceeding. We need to coordinate a response. Please review and I will coordinate a meeting to discuss. Thanks, Julia

-----Original Message-----

From: Hermans, Greg Sent: Monday, August 6, 2001 1:36 PM To: Murray, Julia Subject: FW: E-commerce and steel

as per phonecall...

Let's discuss Greg

-----Original Message-----

From: Vincent DeSapio [mailto:desapio@usitc.gov] Sent: Monday, August 06, 2001 12:39 PM To: Hermans, Greg Subject: E-commerce and steel

Dear Mr. Hermans: The following are the questions I referred to in the the phone message of August 6.

1. In what significant ways does Enron Online differ from the London Metal Exchange or the New York Mercantile Exchange in the trading of futures contracts (apart from the specific metals it trades) or from other on-line exchanges in the trading of physical metal?
2. What are the most important benefits that a public exchange like Enron's brings to the steel industry?
3. Does Enron have a trade clearing mechanism to guarantee the creditworthiness of suppliers and customers?
4. Why have some on-line steel trading sites failed?
5. Are there particular problems in trading steel on-line versus oil, agricultural products, or any of the other products that are successfully traded on-line?

Any information you are able to supply would be greatly appreciated.

Vincent DeSapio

U.S. International Trade Commission

500 E. Street, SW

Washington, DC 20436

202-205-3435 (phone)

Message 318 of 413

Re: QE2

Sender	lhayman@skadden.com
Recipients	['legal <taylor@enron.com>']
File	taylor-m/travel/18.

What kind of a fool do you think I am. No way I am getting in the middle of you and Amanda on vacation plans. I'll just pack my little bag and wait at the dock until you two show up. I will however give you both a credit card number - it is 5410 6584 0536 6574 exp 11/01

"Taylor, Mark E (Legal)" <Mark.Taylor@enron.com> 07/20/01 09:48AM >>>

I have tentatively booked us on the QE2 sailing from Southampton at 5pm on August 29, arriving New York at 7:30am on September 4. You and Amanda have a Caronia class cabin at \$2045.32 per person, including air from New York to London (with a business class upgrade on Continental). I have a single in the same class (so we eat in the same restaurant). My plan would be to fly over on Sunday evening - the 26th - since I have to be in Ohio that morning. With that in mind I have also booked jr. suites for us at "41" the all-inclusive London hotel near Buckingham Palace that I've mentioned to you before. They are at 275 GBP per night (2 nights). Of course, if you guys wanted to go earlier to spend more time in London, I am sure that would be possible.

The difficulty is that Amanda has indicated an interest in staying in Europe longer - certainly understandable. Her preference would be to go over on the boat leaving NY on September 5, arriving in Southampton Sept. 10 and then stay in Europe for a few weeks. That doesn't work quite as well for me because I only have 6 vacation days left and on that routing I get one less day in London - i.e. we get off the boat on Monday morning and I have to fly back Tuesday morning. On the other hand, we wouldn't be jet lagged on arrival in London!

They will hold the reservation until tomorrow. What's your preference?

Mark Taylor Vice President and General Counsel Enron Wholesale Services (713)853-7459

Message 319 of 413

Enron Center South Technology Watch

Sender	technology.enron@enron.com
Recipients	['jenny.rub@enron.com', 'vikram.abhyankar@enron.com', 'mark.pickering@enron.com', 'greg.piper@enron.com', 'i.....
File	taylor-m/inbox/enron_south/1.

Welcome to Enron Center South. As you have probably already noticed, things look a little different here. We wanted to orientate you to your new environment and inform you about the future technology coming on-line in the coming weeks.

Occupancy Guidebook To Enron Center South You will find this handy guide on your desk; it contains information concerning the enhanced printer environment, the new easy access keyboards and telephony procedures.

Turret Users An "Alliance MX turret quick reference guide" has been placed on your desk; this includes important information about the new features such as "Caller ID" and "Voicemail Indication".

Increased Information Access There are approximately 65 NEC 50" Plasma screens installed on the 3rd floor. While many of these will be displaying information designed for the specific unit, others will be displaying various television channels. The audio to these television channels can be accessed via any of your telephony equipment. Here's how:

Ten audio channels have been set up for access from your either your Avaya telephone, Stentophon, or IPC Turret. The channels have been defined on Page 15 of your Turret. To access the audio from either your Avaya or Stentophon, simply dial the extensions shown in the table below:

Channel Avaya Stentophon Weather Channel 12401 801 CNN Headlines News 12402 802 CNN Financial News 12403 803 CNN 12404 804 CNBC 12405 805 MSNBC 12406 806 Financial News Network 12407 807 Bloomberg 12408 808 Fox Sports 12409 809 ESPN1 12410 810

Wireless Telephony You may notice the cellular phone coverage is not consistent across the floor, and some areas have virtually no coverage at all. We are implementing a multi-network "in-building" system to provide consistent high quality service for the campus, keeping you in touch while you are on the move.

Wireless LAN The infrastructure to support Wireless LAN technology is in place and is being tested. We will be implementing multi level encryption and security to keep our intellectual property safe from eavesdroppers or hackers.

Amtel Replacement As a move to provide a more flexible "Plug n Play" environment and to help with the reduced desk footprint, we have replaced the Amtel message boxes with Microsoft Exchange Instant Messaging. We are testing an additional software product to provide some of the features not available with Exchange Instant Messaging; these include one-touch response keys, external LED display, message logging and printing. This system is being tested within the environment and will be available in the next few weeks.

Keeping an Open forum We will keep you informed of the changes and developments as the migration to the building continues, please feel free to respond with any comments, queries or suggestions to <mailto:Enron.Center.South.Technology@enron.com>

Message 320 of 413

Francisco Pinto-Leite - Colombia/Guatemala

Sender	holly.keiser@enron.com
Recipients	['mary.cook@enron.com', 'susan.bailey@enron.com', 'samantha.boyd@enron.com', 'janette.elbertson@enron.com']
File	taylor-m/archive/2001_08/25.

Francisco will be out the Houston office the rest of this week. If you need to contact him, below are numbers where he may be reached.

Wednesday (2:00p) through Thursday (3:00p): Colombia Club Nogal Phone: 011-571-313-1353 Fax: 011-571-313-1250
FPL Colombia cellular: 011-573-243-8326

Thursday (3:00p) through Friday evening: Guatemala Westin Camino Real Phone: 011-502-333-3000 Fax:
011-502-337-4313 Enron office: 011-502-368-2459

He will be traveling back to Houston on Saturday morning.

If I can be of further assistance, please let me know.

Thanks!

Holly Keiser ENA - Legal Phone: 713-345-7893 Fax: 713-646-3490 Location: EB 3887 Holly.Keiser@enron.com

Message 321 of 413

Sec/E-sign	
Sender	chris.long@enron.com
Recipients	['mark.taylor@enron.com', 'lisa.yoho@enron.com']
File	taylor-m/all_documents/7855.

Mark - Is this something you think we need to monitor?

No. 41 Thursday March 1, 2001 Page A-1 ISSN 1523-567X Regulation, Law & Economics

Electronic Commerce SEC Planning Rulemaking In Wake of ESign Legislation

The Securities and Exchange Commission announced Feb. 28 that it is planning several rulemaking actions with respect to recordkeeping requirements in light of the recently enacted Electronic Signatures in Global and National Commerce Act--ESign. ESign's record retention provisions will become effective June 1, the agency advised. In its release, the SEC noted that under the federal securities laws, regulated entities--including broker-dealers, transfer agents, investment companies, investment advisers, and public utility holding companies, must keep certain records of their activities. According to the SEC, such entities currently may keep certain records electronically, "subject to standards designed to protect investors' interests, the financial stability of regulated entities and generally to further the purposes of the federal securities laws."

Remove Impediments

"ESign," the SEC continued, "is intended to remove unnecessary impediments to the use of electronic records in commerce, while preserving the ability of agencies like the Commission to reconcile ESign's policy with the statutes they administer." In its release, the agency said it plans shortly to provide interpretive guidance, and, where appropriate, "propose or adopt rules consistent with ESign. These releases will be published separately in the Federal Register," the commission noted. It added that because ESign does not generally apply to information required to be filed with government agencies, the commission is not currently contemplating any changes to its existing filing rules as a result of ESign. "Filers should therefore continue to follow current filing rules," the agency advised. For more information, contact: Michael A. Macchiaroli, Associate Director, (202) 942-0131; Thomas K. McGowan, Assistant Director, (202) 942-4886; Randall W. Roy, Special Counsel, (202) 942-0798, or Mathew Comstock, Attorney, (202) 942-0156, Division of Market Regulation (for broker-dealers); Larry E. Bergmann, Associate Director (202) 942-0770; Jerry Carpenter, Assistant Director; David Karasik, Special Counsel, (202) 942-4187, Division of Market Regulation (for transfer agents); Martha B. Peterson, Special Counsel, Office of Regulatory Policy, Division of Investment Management (202) 942-0690; Victoria J. Adraktas, Attorney-Advisor at the Office of Public Utility Regulation (202) 942-0545; Mark Borges, Attorney-Advisor, Office of Rulemaking, Division of Corporation Finance, (202) 942-2900.

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Message 322 of 413

computer	
Sender	mark.taylor@enron.com
Recipients	[janette.elbertson@enron.com]
File	taylor-m/all_documents/7938.

I'm not sure if Carol's request ever made it to you - she is asking for a flat panel monitor - approved. ----- Forwarded by Mark Taylor/HOU/ECT on 03/13/2001 12:01 PM -----

Carol St Clair 03/13/2001 09:12 AM

To: Mark Taylor/HOU/ECT@ECT cc: Holly Keiser/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: computer

Holly: Could you please check into the status of this request? Thanks.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com ----- Forwarded by Carol St Clair/HOU/ECT on 03/13/2001 09:11 AM -----

Carol St Clair 01/11/2001 08:31 AM

To: holly.keiser@enron.com cc: Subject: computer

Holly: I'm not sure if this request has been processed by Taffy, but could you please check with her about this? Thanks.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com ----- Forwarded by Carol St Clair/HOU/ECT on 01/11/2001 08:30 AM -----

Carol St Clair 01/08/2001 10:53 AM

To: Mark Taylor/HOU/ECT@ECT cc: Taffy Milligan/HOU/ECT@ECT, Suzanne Adams/HOU/ECT@ECT Subject: computer

Mark: Taffy indicated that I needed to end you an e-mail requesting the new type of computer. Could you please order one for me? Thanks.

Carol St. Clair EB 3892 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 323 of 413

Re: Deutsche Bank	
Sender	carol.clair@enron.com
Recipients	[mark.taylor@enron.com]
File	taylor-m/archive/7_00/40.

Carol St. Clair EB 3892 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com ----- Forwarded by Carol St Clair/HOU/ECT on 07/10/2000 06:37 PM -----

Rod Nelson 07/10/2000 10:30 AM

To: Carol St Clair/HOU/ECT@ECT cc: Subject: Re: Deutsche Bank

No problem on the crib. As for Mexico setoff, I am aware. I was under the impression that even setoff among common entities is questionable. My rationale is that we will almost certainly trade with any given cp through one Enron entity or the other, and not both. If I am wrong, we will manage the process internally (i.e. cut the cp's credit line in half).

Rod

Carol St Clair 07/10/2000 08:47 AM

To: Rod Nelson/HOU/ECT@ECT cc: Subject: Re: Deutsche Bank

Rod: Thanks. I expect to get a new draft of the Schedules from DB later today. As for the crib, it is perfect and Bill and a friend managed to put it together. Thanks so much for lending it to us. I'm hoping that we will have a child to put in it within the next week. As for Mexico, the issue there is that they do not recognize setoff in bankruptcy so that if deals are done with 2 different Enron counterparties we will not be able to setoff.

Carol St. Clair EB 3892 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Rod Nelson 07/10/2000 01:21 AM

To: Carol St Clair/HOU/ECT@ECT cc: Subject: Re: Deutsche Bank

I will continue with this one, for as long as we can adapt to the time difference. I will approve the A/A2 minimum requirement.

Did Bill get the crib together?

Rod

Carol St Clair 07/07/2000 10:12 AM

To: Rod Nelson/HOU/ECT@ECT cc: Subject: Deutsche Bank

Rod: I don't know if you are still handling this. We are close to getting this finalized. One credit comment from them that I need someone's thoughts on. They want the Issuer of LC's to maintain a credit rating of A from S&P and A2 from Moody's. We usually put A- and A3. are you okay with this? If I need to run this by someone else please let me know.

Carol St. Clair EB 3892 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 324 of 413

RE: Follow-up Materials

Sender	mary.schoen@enron.com
Recipients	['e.taylor@enron.com']
File	taylor-m/inbox/364.

Michael - the above Q&A document for the EPA discusses the compliance supplement pool questions you raise. The document is dated - so the dates are no longer accurate given the court delays of the SIP Call implementation. But basically, it is up to each state to develop a methodology for allocating their compliance supplement pool. The CSP is meant to give credits to units that make early reductions. The compliance supplement pool (roughly 200,000 allowances for the NOx SIP Call) is only good for the first two years of a state's launch of its NOx SIP Call. Those allowances that aren't allocated during these first two years are retired.

Mary Schoen Environmental Strategies Enron Corp 415.782.7803 (phone) 415.782.7854 (fax)

-----Original Message-----

From: Taylor, Michael E Sent: Wednesday, November 14, 2001 10:19 AM To: Schoen, Mary Subject: RE: Follow-up Materials

Ok. The file you sent me contains the total trading budget and CSP. The states total allowances equal the total trading budget and the CSP? Is the CSP a one time allocation in SIP CALL while total trading budget is annually? If CSP is only a one time allocation, have the states determined how many allowances from the CSP will be used in 04? 05? etc. Or is there some other method that I am missing?

-----Original Message-----

From: Schoen, Mary Sent: Wednesday, November 14, 2001 12:13 PM To: Taylor, Michael E Subject: RE: Follow-up Materials

These are the compliance supplement numbers for the NOx SIP Call not the OTR compliance supplement numbers which are roughly 25,000 tons.

Mary Schoen Environmental Strategies Enron Corp 415.782.7803 (phone) 415.782.7854 (fax)

-----Original Message-----

From: Taylor, Michael E Sent: Tuesday, November 13, 2001 3:00 PM To: Schoen, Mary Subject: RE: Follow-up Materials

On the state file. The CSP of each state added together is way above 25,000. Why is this? How should I look at this CSP? Is there a discount factor that will be applied to get down to the 25,000 at the end of 2002. If so, what is it?

Should I add them all together and get a percent per state? And then multiply the percent by 25,000 to determine the state's CSP at the end of 2002? Please advise. -----Original Message----- From: Schoen, Mary Sent: Tuesday, November 13, 2001 2:46 PM To: Taylor, Michael E Cc: Jacobson, Lisa Subject: Follow-up Materials

Michael - I haven't heard back from Joel yet on a call date & time, but here is some of the info I promised. Attached is the latest information I have on the state allocations, including their total trading budgets:

<< File: State.htm >>

Also attached, is the Section 126 Non-EGU allocations:

<< File: Sec. 126 NonEGU affected units.pdf >>

I am pretty sure this is all the non-EGUs that will be affected in those states under the SIP Call, but am double checking just to be completely sure.

I am still working on a date that the allowances have to be parked in the compliance supplement pool in 2002 to be valid in 2003.

I'll let you know as soon as I have some more answers.

Mary Schoen Environmental Strategies Enron Corp 415.782.7803 (phone) 415.782.7854 (fax)

Message 325 of 413

RE: Viva VI or are they?

Sender	gpier@doubleclick.net
Recipients	['mark.taylor@enron.com', 'gpier@doubleclick.net', 'bhutt@ankarcapital.com']
File	taylor-m/archive/november1999/42.

One more update:

I tried to change the departure date, but the flights are all sold out on Saturday and Sunday (they would have changed them free of charge). I have included a map of the area and the Airline has told me that they are planning now on resuming flights to St Thomas as of 9pm tonight. They also just told me that since we are pre-confirmed customers on the San Juan to St Thomas we will not get bumped off the flight to accommodate previously cancelled customers - especially in the middle of an active trip. That is good news.

Looks full steam ahead. Bruce - just a tactical question for you - do you want to move to St John on Saturday if there are not a lot of penalties to do so? Could be fun to see the other island.

<<map_of_area.gif>> Greg Pier Client Services Director Closed-Loop Marketing Solutions gpier@doubleclick.net
<mailto:gpier@doubleclick.net> [DIRECT] 212.497.4326 [FAX] 212.655.7330 [PAGER] 1-800-724-3624 PAGER PIN# 1434222 E-mail my pager: 1434222@pagemci.com <mailto:1434222@pagemci.com> (240 char. max)

DoubleClick TechSolutions (DART, Closed-Loop, NetGravity) This October, DoubleClick merged with NetGravity to offer advertisers and publishers the most comprehensive array of online advertising technology solutions. To find out why over 3,600 advertisers and 10,000 Web sites turn to DoubleClick TechSolutions to answer their online marketing needs visit <http://www.doubleclick.net>.

-----Original Message-----

From: Pier, Greg Sent: Thursday, November 18, 1999 1:07 PM To: 'Bruce Hutt'; Mark Taylor Subject: RE: Viva VI or are they?

I spoke with the Hotel in St Thomas - all systems go for now - they seemed totally unfazed by the entire thing. They have the reservation and no problem.

The Airline has cancelled all flights from San Juan to St Thomas for today. They did not have an outlook at this time for tomorrow. They suggested we check in as early as possible tomorrow so that we keep our confirmed seat assignment from San Juan to St Thomas in case there are a lot of stranded people trying to get there as well.

Does anyone have a projection on the storm's movement by tomorrow morning? I feel really dumb - I don't even know which island on the map St Thomas is. (see the attached pictures)

If the flight from San Juan to St Thomas is cancelled, we will be stranded there and have to take a flight out at a later time and need to get a hotel in San Juan. I have not yet asked them to change our departure date as a pre-caution - that is next, but I think that causes problems with the air fare.

Here are some pictures I found on CNN.com.

<< File: position.gif >> << File: movement.gif >> << File: radius.gif >> << File: animation.gif >> Greg Pier Client Services Director Closed-Loop Marketing Solutions gpier@doubleclick.net <<mailto:gpier@doubleclick.net>> [DIRECT] 212.497.4326 [FAX] 212.655.7330 [PAGER] 1-800-724-3624 PAGER PIN# 1434222 E-mail my pager: 1434222@pagemci.com <<mailto:1434222@pagemci.com>> (240 char. max)

DoubleClick TechSolutions (DART, Closed-Loop, NetGravity) This October, DoubleClick merged with NetGravity to offer advertisers and publishers the most comprehensive array of online advertising technology solutions. To find out why over 3,600 advertisers and 10,000 Web sites turn to DoubleClick TechSolutions to answer their online marketing needs visit <http://www.doubleclick.net>.

-----Original Message-----

From: Bruce Hutt [SMTP:bhutt@ankarcapital.com] Sent: Thursday, November 18, 1999 10:29 AM To: Mark Taylor Cc: gpier@doubleclick.net Subject: Re: Viva VI or are they?

Check the weather reports.

USVI badly hit by hurricane Lenny....145mph winds.....Clinton thinking of declaring a state of emergency.

B

- map_of_area.gif

Message 326 of 413

EnronOnline- REVISED TERMS & CONDITIONS

Sender	stanford.lin@reuters.com
Recipients	' julie.ferrara@enron.com ', ' james.garland@reuters.com ', ' lynne.carithers@reuters.com ', ' dave.samuels@enron.co...
File	taylor-m/all_documents/1850 .

Enron/Reuters Working Group:

Attached is a revised version of the Terms & Conditions which incorporates changes discussed today. Please note the following:

Section 4.1: In the interest of time, I took a shot at adding language here regarding access to Reuters Content by Reuters competitors. I am open to your comments and suggestions on this language.

Section 5.1: I have reviewed the Order Forms, and will agree to your proposal to take out the language "solely for the purpose of accessing the Reuters Content".

Section 14.2: After considerable internal debate, we will take out subsection (iv), provided that we can achieve some consensus on the remaining legal issues.

Addendum, Section 1: We understand that you are taking news in realtime via a datafeed and have approved your redistribution of such news in real time. I also understand that you are taking market data via an API and that such data is sent to you in delayed form via the API. Therefore, Section 1 does not apply to Enron at this time.

The purpose of Section 1 is to cover a situation in which Enron were to migrate from the API to an actual datafeed product or take a market data datafeed in addition to the API. We have had clients in the past who desired to upgrade their Internet site and take market data via a Reuters Datafeed in lieu of or in conjunction with the API. In such event, the client simply completed a new Order Form and we did not have to renegotiate the Terms & Conditions. With that in mind, we would like to retain Section 1 in the Terms & Conditions. I have tried to insert additional wording to make clear it will not impact the deal currently under negotiation.

(See attached file: Enron-Investor-T&C 42000 (revised).dot) Regards,

Stanford Lin Senior Legal Counsel

----- Forwarded by Stanford Lin/NYC/US/Reuters on 04/20/2000

08:55 PM -----

From: Stanford Lin on 04/20/2000 08:15 PM

To: dave.samuels@enron.com, rahil.jafry@enron.com, julie.ferrara@enron.com, mark.taylor@enron.com cc: Lynne Carithers/DAL/US/Reuters@REUTERS, James Garland/DAL/US/Reuters@REUTERS, Shawn Kaplan/NYC/US/Reuters@REUTERS Subject: EnronOnline- DRAFT OF DATA ORDER FORM

Internal Use Only

Following my earlier email, attached for your review is a draft Order Form for the data component of the EnronOnline.com transaction. Please note that my business principals have not reviewed either Order Form for completeness or accuracy and therefore the Order Forms are subject to comment by them.

(See attached file: Enron-Investor-DataOrderForm 42000.doc)

Regards,

Stanford Lin Senior Legal Counsel

----- Forwarded by Stanford Lin/NYC/US/Reuters on 04/20/2000

08:14 PM -----

From: Stanford Lin on 04/20/2000 05:29 PM

To: dave.samuels@enron.com, rahil.jafry@enron.com, julie.ferrara@enron.com, mark.taylor@enron.com cc: Lynne Carithers/DAL/US/Reuters@REUTERS, James Garland/DAL/US/Reuters@REUTERS Subject: EnronOnline- DRAFT OF NEWS ORDER FORM

Internal Use Only

As per today's telephone conference, attached for your review is a draft Order Form for the news component of the EnronOnline.com transaction. The Order Form for the data component will follow later this evening.

(See attached file: Enron-Investor-NewsOrderForm 42000.doc)

Regards,

Stanford Lin Senior Legal Counsel

Visit our Internet site at <http://www.reuters.com>

Any views expressed in this message are those of the individual sender, except where the sender specifically states them to be the views of Reuters Ltd. - Enron-Investor-T&C 42000 (revised).dot - Enron-Investor-DataOrderForm 42000.doc - Enron-Investor-NewsOrderForm 42000.doc

Message 327 of 413

DC Meeting Update

Sender	amy.fabian@enron.com
Recipients	['chris.long@enron.com', 'mark.taylor@enron.com', 'raislerk@sullcrom.com']
File	taylor-m/notes_inbox/871.

please note addition of 3:30 meeting 1:00 PM Ryan Weston House Agriculture Committee 1301 Longworth 202-225-2171
2:30 PM Shawn Pfaff Office of Congressman Pomeroy 1533 Longworth House Office Building 202-225-2611
3:00 PM David Kay Office of Congressman Chris John 1504 Longworth House Office Building 202-225-2031
3:30 PM John Hixon Office of Congressman Jerry Moran 1519 Longworth House Office Building 225-2715
4:30 PM Geof Gradler Senate Banking Committee 534 Dirksen Senate Office Building 202-224-7391
5:00 PM Steve Ganis House Banking Committee 2129 Rayburn House Office Building 202-225-7502

Message 328 of 413

Washington meetings for Monday, June 26

Sender	amy.fabian@enron.com
Recipients	['chris.long@enron.com', 'mark.taylor@enron.com', 'raislerk@sullcrom.com']
File	taylor-m/all_documents/2421.

The following meetings have been arranged for Monday, June 26. I am hoping to schedule a couple more with Senate Banking Committee and Congressman Dooley's office. It would be best for all of you to meet at the Enron Washington Office at 11:00 AM Monday morning. 1775 Eye Street, NW Suite 800

If you have any questions Chris can be reached at home this weekend at 703-671-1796

1:00 PM Ryan Weston House Agriculture Committee 1301 Longworth 202-225-2171
2:30 PM Shawn Pfaff Office of Congressman Pomeroy 1533 Longworth House Office Building 202-225-2611
3:00 PM David Kay Office of Congressman Chris John 1504 Longworth 202-225-2031
5:00 PM Steve Ganis House Banking Committee 2129 Rayburn House Office Building 202-225-7502

Message 329 of 413

RE: Blue Sox	
Sender	mark.taylor@enron.com
Recipients	['travis.mccullough@enron.com', 'Taylor', 'Mark']
File	taylor-m/sent/3382.

----- Forwarded by Mark Taylor/HOU/ECT on 05/10/2001 11:17 AM -----

Mark Greenberg@ENRON 04/27/2001 05:36 PM

To: Douglas Fuehne/ENRON@enronXgate cc: (bcc: Mark Taylor/HOU/ECT) Subject: RE: Blue Sox

Doug -

Here are my comments. Really only made one in relation to the E-rating. Want to make sure that reliance upon this rating scale/system is at Blue Sox own risk.

Have a good weekend.

Mark Senior Counsel, EWS Phone: 713-345-8897 Facsimile: 713-646-3490 E-Mail: Mark.Greenberg@enron.com

Douglas Fuehne/ENRON@enronXgate 04/27/2001 04:42 PM

To: Mark Greenberg/NA/Enron@ENRON cc: Subject: RE: Blue Sox

Mark - I've modified the document that you sent me to reflect the latest updates (meeting document.) Please review this doc. My changes are in red; yours are still in blue. Please make any changes, and then I'll accept them and create the final doc.

thanks doug

Doug Fuehne e-commerce Manager CommodityLogic (713) 345-3992 douglas.fuehne@enron.com
<mailto:douglas.fuehne@enron.com>

-----Original Message-----

From: Greenberg, Mark Sent: Friday, April 27, 2001 4:14 PM To: Fuehne, Douglas Cc: Taylor, Mark Subject: Blue Sox

Doug -

Below are my initial comments to the Blue Sox information. I have some additional points to make and will provide those in a separate document. The document attached is based upon the latest memo you forwarded; however, it must be a version prior to the one you provided at the meeting as there are some provisions in the meeting form that are not in the attached.

Call me if you want to discuss any comments.

<< File: Fleet - Negotiations (mlgcomments4-27-01).doc >>

Mark Senior Counsel, EWS Phone: 713-345-8897 Facsimile: 713-646-3490 E-Mail: Mark.Greenberg@enron.com

Message 330 of 413

Re: Bankruptcy Meeting - February 8th - 2:00 p.m. NY	
Sender	carol.clair@enron.com
Recipients	['chris.long@enron.com', 'mark.taylor@enron.com']
File	taylor-m/notes_inbox/2549.

Chris: I am available until 4:30 in the afternoon. We need to include David Mitchell and Ellen Levinson at Cadwalader. Can you set that up?

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Chris Long@ENRON 01/26/01 10:13 AM

To: Mark Taylor/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT cc: Mary Nell Browning/LON/ECT@ECT Subject: Bankruptcy Meeting - February 8th - 2:00 p.m. NY

Mark and Carol: The bankruptcy bill is on the "quick list" for consideration in the 107th Congress. ISDA and BMA are meeting in NY February 8 to determine their strategy for consideration of this legislation. I plan to attend the meeting.

I will be in Houston on Wednesday, January 31 and would like to sit down with you to ensure that our interests are properly represented. We also need to have "wish list" of changes to the bankruptcy code that we can submit as part of this process. Are you available on Wednesday afternoon?

Also, please let me know if there are others at Enron I should include in this discussion.

Thanks - Chris ----- Forwarded by Chris Long/Corp/Enron on 01/26/2001 11:04 AM -----

Stacy Carey <SCAREY@ISDA.ORG> 01/25/2001 06:44 PM

To: US REGULATORY COMMITTEE <USREGCOMM@isda.org> cc: Subject: Bankruptcy Meeting - February 8th - 2:00 p.m. NY

ISDA and the Bond Market Association are hosting a meeting on bankruptcy reform on February 8 at 2:00 at the Bond Market Association offices in New York. The purpose of the meeting is to discuss strategy (to include or not include cross-affiliate netting) and technical modifications to netting legislation.

Please advise if you will like to attend. -- Many thanks -- Stacy

Stacy Carey Director North American Regulatory Policy International Swaps and Derivatives Association (202) 457-6545 ph (703) 256-1833 fax (917) 543-9622 cell scarey@isda.org

Message 331 of 413

EOL Presentation revised to match audio

Sender	mark.taylor@enron.com
Recipients	['leslie.hansen@enron.com']
File	taylor-m/sent/1109.

----- Forwarded by Mark Taylor/HOU/ECT on 06/08/2000 04:56 PM -----

Daniel Diamond 06/05/2000 11:44 AM

To: jgilchrist@viant.com cc: Michael Danielson/HOU/ECT@ECT, Bob Shults/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Mark Palmer/Corp/Enron@ENRON Subject: EOL Presentation revised to match audio

Please REPLACE the Enron Broadband Services presentation with this one.

Thanks,

Dan ----- Forwarded by Daniel Diamond/HOU/ECT on 06/05/2000 11:40 AM ----- From: Fred Cohagan@ENRON COMMUNICATIONS on 06/05/2000 11:15 AM To: Daniel Diamond/HOU/ECT@ECT cc: Subject: EOL Presentation revised to match audio

Dan,

I didn't speak to slides 6, 9, or 14 of the original presentation sent to you. I think they are bad slides so you can either take them out or leave them in with no audio. If in the final review it is determined that these slides should stay in, I am happy to

come back in and do the audio for them. The revised presentation is below, the original presentation is further down in the e-mail

Fred Cohagan Manager, Bandwidth Origination Enron Broadband Services Office: 713-853-1805 Mobile/Pager: 713-826-4485 e-mail: fred_cohagan@enron.net

About Enron:

Most Innovative Company, 5th Consecutive Year, Fortune Magazine, February 21, 2000

Quality of Management, Voted 1st in US , Fortune Magazine, February 21, 2000

100 Best Companies to Work for in America, Fortune Magazine, February 21, 2000

----- Forwarded by Fred Cohagan/Enron Communications on 06/05/00 11:16 AM

Erik Simpson 06/02/00 10:35 AM

To: Paul Racicot/Enron Communications@Enron Communications, Fred Cohagan/Enron Communications@Enron Communications cc: Subject: EOL Presentation

Erik Simpson Global Bandwidth Risk Management Enron Broadband Services Phone: +1 713-853-0600 Mobile: +1 832-689-4939 Facsimile: +1 713-646-8795

Message 332 of 413

Bankruptcy Reform Amendments

Sender	mark.taylor@enron.com
Recipients	['carol.clair@enron.com', 'tom.mcgivern@do.treas.gov; mkrimminger@fdic.gov; jcarley@cftc.gov;']
File	taylor-m/all_documents/7833.

----- Forwarded by Mark Taylor/HOU/ECT on 02/27/2001 05:39 PM -----

Stacy Carey <SCAREY@ISDA.ORG> 02/26/2001 02:25 PM

To: US REGULATORY COMMITTEE <USREGCOMM@isda.org> cc: Subject: Bankruptcy Reform Amendments

Attached is the amendment package forwarded to the hill on Friday afternoon. Note that unlike earlier versions, which amended the Senate Bill S.220, this package amends the House Bill H.R.333. It is also a line-by-line mark-up instead of a hand written mark-up of the actual bill.

House Financial Services Committee staff is working with the Legislative Counsel of the House of Representatives to put our amendments in draft form. We will forward the final amendment as soon as it is received. It appears that our amendments will be offered by Chairman Oxley and will not be included in the Sensenbrenner amendment.

The House Rules Committee is meeting on the legislation at 2:00 on Wednesday. A floor vote is expected on Thursday.

I can be reached on 917-543-9622 should you have any questions. Many thanks. Stacy

-----Original Message-----

From: Geoffrey B Goldman [mailto:ggoldman@cgsh.com] Sent: Friday, February 23, 2001 3:03 PM To: greg.zerzan@mail.house.gov Cc: tom.mcgivern@do.treas.gov; mkrimminger@fdic.gov; jcarley@cftc.gov; mooneyj@sec.gov; fhampton@bondmarkets.com; scarey@isda.org; jjohn@cravath.com; Seth GROSSHANDLER; dina.ellis@do.treas.gov Subject: Revised H.R.333 amendments

Attached is a revised version of the amendment package to H.R.333. We have included both the annotated and unannotated versions, as well as a blackline showing changes from yesterday's version. The only changes are (1) an addition in the definition of master netting agreement on page 334 relating to guarantees and reimbursement obligations in respect of such agreements, which we understand is acceptable to Mike Krimminger at the FDIC, (2) the deletion of an

incorrect section numbering change on page 351, and (3) the insertion of a revised "placeholder" provision on page 348 relating to rulemaking by the SEC and CFTC to address the treatment of security futures products and joint securities/futures accounts in the insolvency context. As we have mentioned, the placeholder is intended to be replaced by substantive language following further discussions between the SEC and CFTC (and would presumably be removed if the agencies do not agree on substantive language). Although we have discussed the substance of the new placeholder provision with the SEC and CFTC, the SEC has not yet signed off on the specific language. We understand that although the CFTC does not "endorse" the placeholder language, it does not object to its inclusion as a placeholder for this purpose.

Please feel free to call Seth Grosshandler (at 212-225-2542) or me (at 212-225-2234) with any questions or comments regarding the attached.

Geoffrey B. Goldman Cleary, Gottlieb, Steen & Hamilton Tel: 212-225-2234 Fax: 212-225-3999 E-mail: ggoldman@cgsh.com

(See attached file: h.r.333amendmentscompare.doc)(See attached file: h.r.333amendment2-23unannotated.doc)(See attached file: h.r.333amendment2-23annotated.doc)

- h.r.333amendmentscompare.doc - h.r.333amendment2-23unannotated.doc - h.r.333amendment2-23annotated.doc

Message 333 of 413

RE: ERMT Adoption Agreement for Gas

Sender	steve.van@enron.com
Recipients	['travis.mccullough@enron.com', 't..hodge@enron.com', 'peter.keohane@enron.com']
File	taylor-m/inbox/264.

Peter,

Even with the 2 extra long voicemails that I left, I didn't manage to get everything in. Travis McCullough wanted me to relay to you that you should feel free to involve other lawyers and paralegals in the Calgary office to assist, so long as you give them the "highly confidential" speech. Feel free to call if you would like to discuss.

The list of Counterparties who, based on September 2001 Physical Gas Total Deal Counts over 100, should be documented with Adoption Agreements is as follows:

Aquila Capital & Trade, Ltd., Coral Energy Canada Inc., BP Canada Energy Company, Semptra Energy Trading Corp., Mirant Americas Energy Marketing Canada, Ltd., TMV Corporation, Reliant Enteergy Services Canada Ltd., Nexen Marketing, Engage Energy Canada L.P., El Paso Merchant Energy, L.P., Williams Enregy Marketing & Trading Company, Penn West Petroleum, e prime, inc. Dynegy Canada Inc., Duke Enregy Marketing Limited Patnership, Enserco Energy, Inc., AEC Oil & Gas Partnership, SaskEnergy Incorporated.

As I stated in the second of my very long voicemails, I'll be in tomorrow between 9:30 and 3:00 Houston time. Phone numbers are: 713-853-7238 (office); 281-955-0346(home); 713-582-6413(cell)--feel free to call any of them; I also have a Blackberry if you want to e:mail.

Thanks,

Steve

-----Original Message-----

From: Keohane, Peter Sent: Friday, November 02, 2001 2:17 PM To: Van Hooser, Steve; Hodge, Jeffrey T.; Korkmas, Deb; McCullough, Travis; Sager, Elizabeth Cc: Jones, Tana Subject: RE: ERMT Adoption Agreement for Gas

I will review the Gas Adoption Agreement with an eye on Canadian contracts. Was somebody going to provide a list of Counterparties for Canada, gas, power financial, as well as the forms for Power and Financial?

Peter

-----Original Message-----

From: Van Hooser, Steve Sent: Friday, November 02, 2001 11:16 AM To: Hodge, Jeffrey T.; Korkmas, Deb; McCullough, Travis; Sager, Elizabeth; Keohane, Peter Cc: Jones, Tana Subject: RE: ERMT Adoption Agreement for Gas Importance: High

Please use the attached Gas Adoption Agreement that I have just revised with Jeff's input. Please note that if you have Gas Industries Standards Board (GISB) Master, the Schedule B language will have to be changed to conform to the GISB nomenclature. Jeff will send everyone a sample of a GISB type adoption agreement once he's completed an example of one.

Please call me if you have any questions regarding the attached.

Steve

<< File: Adoption AgreementGAS(SVH 11-02-01).doc >>

-----Original Message-----

From: Van Hooser, Steve Sent: Friday, November 02, 2001 11:44 AM To: Hodge, Jeffrey T.; Korkmas, Deb; McCullough, Travis; Sager, Elizabeth; Keohane, Peter Cc: Jones, Tana Subject: ERMT Adoption Agreement for Gas Importance: High

Attached please find the Adoption Agreement for Gas Masters incorporating what we've learned from the Financial and Power Adoption Agreements, and modified to reference to current form of Gas Master.

Tana and Travis, I will take over the review of the Gas Masters and drafting of Adoption Agreements that Travis was slated to review.

Peter, Please call me about the Canadian Gas Masters once you have had a chance to review the attached.

All, please call with any questions about the attached. You should all now have files containing the Masters.

Steve

<< File: MARKEDAdoption AgreementGAS(SVH 11-02-01).doc >> << File: Adoption AgreementGAS(SVH 11-02-01).doc >>

Steve Van Hooser Enron North America Corp. 713-853-7238 713-646-3490 (fax)

Message 334 of 413

RESTRICTED STOCK DEFERRAL OPPORTUNITY - REMINDER

Sender	kim.bolton@enron.com
Recipients	[]
File	taylor-m/notes_inbox/921.

This message is to remind you of your opportunity to defer restricted stock that may be released to you during 2001 into the Enron Corp. 1994 Deferral Plan (or the Enron Expat. Services, Inc. Deferral Plan for expatriates). Information concerning this opportunity was delivered to you earlier this week.

If you want to participate in this program, please complete an election form at your earliest convenience. Forms should be returned to my attention (EB1614 or via facsimile 713-646-4858).

I will be away from the office next week; please do not hesitate to call Renee Ratcliff (713-345-7960) or Mary McKendree (713-345-8085) with any questions.

Thank you!

Kim Bolton Executive Compensation 713-853-7084

Message 335 of 413

Re: Rockets v. Miami Heat Tickets

Sender	janette.elbertson@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/all_documents/7654.

You got them. I'll send them up by clerk.

Janette Elbertson Enron North America Corp. Legal Department - EB3326 Telephone: (713) 853-7906 Fax: (713) 646-2600 janette.elbertson@enron.com

Mark Taylor 01/30/2001 09:39 AM

To: Janette Elbertson/HOU/ECT@ECT cc: Subject: Re: Rockets v. Miami Heat Tickets

Still available?

Janette Elbertson 01/30/2001 09:11 AM

To: Alan Aronowitz/HOU/ECT@ECT, Barbara N Gray/HOU/ECT@ECT, Jeffrey T Hodge/HOU/ECT@ECT, Travis McCullough/HOU/ECT@ECT, Julia Murray/HOU/ECT@ECT, Elizabeth Sager/HOU/ECT@ECT, Richard B Sanders/HOU/ECT@ECT, Lance Schuler-Legal/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Sheila Tweed/HOU/ECT@ECT cc: Subject: Rockets v. Miami Heat Tickets

Mark Haedicke has four tickets to the Rockets game tonight. These will be given away on a first-come, first-served basis. Please reply by e-mail.

Thanks.

Janette Elbertson Enron North America Corp. Legal Department - EB3326 Telephone: (713) 853-7906 Fax: (713) 646-2600 janette.elbertson@enron.com

Message 336 of 413

Re: Move Request for 7/10/00

Sender	joya.davis@enron.com
Recipients	['move-team@enron.com', 'mark.taylor@enron.com', 'chaundra.woods@enron.com', 'janette.elbertson@enron.com']
File	taylor-m/all_documents/2533.

YOU GUYS ARE WONDERFUL.

THANKS

Joya' F. Davis Sr. Admin. Assistant ENA Legal Department EB3855A joya.davis@enron.com (713) 853-9559 DID (713) 646-4842 FAX

Move-Team Sent by: Robert Castillo 07/07/2000 10:40 AM

To: Joya Davis/HOU/ECT@ECT cc: Dolores Sustaita/EPSC/HOU/ECT Subject: Re: Move Request for 7/10/00

The next available churn is scheduled for 7/10. Your request will be added to the 7/10 churn.

Thanks, RC

To: Move-Team/EPSC/HOU/ECT@ECT cc: Chaundra Woods/HOU/ECT, Janette Elbertson/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT Subject: Move Request for 7/10/00

On Monday, July 10th, I have two attorneys starting w/ ENA Legal Department. Marcus Nettleton is transferring from EBS and Robert Bruce is from an outside firm. Can we please get the computer equipment set up for these two gentlemen on Monday afternoon? The cubes they are moving into will be constructed on Friday 7/7/00, and completed by Monday 7/10/00.

Thanks.

Joya' F. Davis Sr. Admin. Assistant ENA Legal Department EB3855A joya.davis@enron.com (713) 853-9559 DID (713) 646-4842 FAX

Message 337 of 413

FW: Knauf

Sender	mark.taylor@enron.com
Recipients	['carol.st.@enron.com']
File	taylor-m/sent_items/212.

You probably already have this but just in case.....

-----Original Message-----

From: Douglas Dyer [mailto:DouglasDyer@msn.com] Sent: Monday, June 11, 2001 11:15 PM To: Mark.Taylor@enron.com; Idyer@enron.com Subject: Knauf

Mark,

Thanks for your help & patience today. I am providing the names, phone numbers and fax numbers of Knauf's attorneys.

Jack Reese Phone: 530.241.1611 Fax: 530.741.5106

Barry McCarthy Phone: 408.558.0950 Fax: 408.558.0955

I provided these gentlemen with your name and number at 9 am PST this morning. At 3:30 pm, they informed me that they have yet to receive all of the documents.

They have asked for:

1. ISDA Master Agreement (Carol St. Claire faxed this to Knauf on Friday) which they have not received from Knauf. They do have the Schedule to the Master Agreement, Attachment 1 (Legal Opinion), Paragraph 13, Exhibit A to Paragraph 13 of Annex A, Letter of Credit Format (Schedule 1), and Exhibit A - form of Enron guaranty. 2. Form of the Confirmation Agreement.

Sorry about the short timeframe, but I appreciate your help.

Thanks,

Laird

Message 338 of 413

Re: Construction/Move Out/Move In on Friday, July 7th

Sender	joya.davis@enron.com
Recipients	['mark.taylor@enron.com', 'Frank Ortiz/EPSC/HOU/ECT@ECT', 'dolores.sustaita@enron.com', 'Dolores', 'frank.orti...]
File	taylor-m/notes_inbox/880.

FYI -- DON'T FORGET TO GET YOUR BOXES & PACK UP!!!!

Joya' F. Davis Sr. Admin. Assistant ENA Legal Department EB3855A joya.davis@enron.com (713) 853-9559 DID (713) 646-4842 FAX

----- Forwarded by Joya Davis/HOU/ECT on 06/26/2000 10:33 AM -----

Move-Team Sent by: Jose Nieto 06/26/2000 10:17 AM

To: Joya Davis/HOU/ECT@ECT cc: Subject: Re: Construction/Move Out/Move In on Friday, July 7th

Your request will be added to the 7/7 churn.

Thanks, JLN

To: Move-Team/EPSC/HOU/ECT@ECT cc: Frank Ortiz/EPSC/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Dolores Sustaita/EPSC/HOU/ECT, Erica Braden/HOU/ECT, Mary Ogden/HOU/ECT, Kimberlee A Bennick/HOU/ECT@ECT, Kaye Ellis/HOU/ECT@ECT, Robert Walker/HOU/ECT@ECT, Matt Maxwell/Corp/Enron@ENRON, Richard Jeffrey/Corp/Enron@Enron, Chaundra Woods/HOU/ECT Subject: Construction/Move Out/Move In on Friday, July 7th

Attached is the Relocation Request for the July 7th Construction for ENA Legal.

Thanks for your assistance with this matter. All parties have been informed to have their offices boxed for the construction/move.

Joya' F. Davis Sr. Admin. Assistant ENA Legal Department EB3855A joya.davis@enron.com (713) 853-9559 DID (713) 646-4842 FAX

Message 339 of 413

ENRON ONLINE RE: ENHANCED LIMIT ORDER OPTION

Sender peter.keohane@enron.com

Recipients ['legal <taylor@enron.com>', 'wquan-forsyth@cal.stikeman.com', 'ferickson@cal.stikeman.com']

File taylor-m/archive/2001_10/10.

Fred, sorry for not getting back to you sooner, but I understand you were in communication with Mark Taylor. Thanks for the quick turn around and excellent and thorough analysis. I have both read and understand the analysis. I am somewhat concerned regarding the final comment regarding ASC's scrutiny of EOL, but other than being careful, I am not sure what we can do.

With respect to transactions with counterparties who are not "Qualified Parties", it is almost inconceivable given the breadth of the "commercial user" exemption and the representations obtained in our contract that we would ever transact with a counterparty which is not a Qualified Party.

Regards, Peter

-----Original Message-----

From: "Wilma Quan-Forsyth" <wquan-forsyth@cal.stikeman.com>@ENRON Sent: Friday, October 12, 2001 3:26 PM To: Taylor, Mark E (Legal); Keohane, Peter Cc: Keith Chatwin Subject: ENRON ONLINE RE: ENHANCED LIMIT ORDER OPTION

TO: Mark Taylor and Peter Keohane

Further to our telephone conversations of last week, please find enclosed a memorandum confirming our analysis. Please call either myself (403.266.9016) or Keith Chatwin (403.266.9088) if you have any questions. Regards.

G.F. Erickson October 12, 2001

Wilma Quan-Forsyth STIKEMAN ELLIOTT 4300 Bankers Hall West 888 - 3rd Street S.W. Calgary, Alberta T2P 5C5
Phone: 403.266.9026 Fax: 403.266.9034 wquan-forsyth@cal.stikeman.com

- 40L301!.DOC

Message 340 of 413

Re: Update

Sender	carol.clair@enron.com
Recipients	['jaime.williams@enron.com', 'mark.taylor@enron.com', 'sara.shackleton@enron.com']
File	taylor-m/notes_inbox/925.

Jaime: Please see the below comment from our counsel re your marketing materials

Carol St. Clair EB 3892 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com ----- Forwarded by Carol St Clair/HOU/ECT on 07/05/2000 08:38 AM -----

"Pablo Perezalonso" <pperezalonso@rhm.com.mx> 06/30/2000 07:20 PM

To: Carol.St.Clair@enron.com cc: JRazguzman@rhm.com.mx Subject: Re: Update

Carol I have reviewed the marketing materials. In general terms, they are acceptable. I would only include a provision stating that the services would be provided to the extent that no Mexican law or regulation is violated.

Regards

"Carol St Clair" <Carol.St.Clair@enron.com> 06/30/00 10:44AM >>>

Pablo and Jose: Thanks for the update. Based on the marketing information that you received from us yesterday, are there any restrictions on our folks in Mexico going forward with their marketing efforts? If so, please advise. Prior to receiving you written advice, would it be possible to schedule a call maybe on Wednesday of next week with myself and Jaime so that we can at least outline any potential online issues, both in connection with our marketing efforts and in connection with the online documents that you are reviewing? I am available anytime after 2:30 (Houston time) on Wednesday and I am wide open on Thursday.

Carol St. Clair EB 3892 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Pablo Perezalonso Egu?a Ritch, Heather y Mueller, S.C. pperezalonso@rhm.com.mx tel: (52) 5-2076533

Message 341 of 413

EnronOnline- DRAFT OF DATA ORDER FORM

Sender	stanford.lin@reuters.com
Recipients	['julie.ferrara@enron.com', 'james.garland@reuters.com', 'lynne.carithers@reuters.com', 'dave.samuels@enron.co...]
File	taylor-m/all_documents/1848.

Following my earlier email, attached for your review is a draft Order Form for the data component of the EnronOnline.com transaction. Please note that my business principals have not reviewed either Order Form for completeness or accuracy and therefore the Order Forms are subject to comment by them.

(See attached file: Enron-Investor-DataOrderForm 42000.doc)

Regards,

Stanford Lin Senior Legal Counsel

----- Forwarded by Stanford Lin/NYC/US/Reuters on 04/20/2000

08:14 PM -----

From: Stanford Lin on 04/20/2000 05:29 PM

To: dave.samuels@enron.com, rahil.jafry@enron.com, julie.ferrara@enron.com, mark.taylor@enron.com cc: Lynne Carithers/DAL/US/Reuters@REUTERS, James Garland/DAL/US/Reuters@REUTERS Subject: EnronOnline- DRAFT OF NEWS ORDER FORM

Internal Use Only

As per today's telephone conference, attached for your review is a draft Order Form for the news component of the EnronOnline.com transaction. The Order Form for the data component will follow later this evening.

(See attached file: Enron-Investor-NewsOrderForm 42000.doc)

Regards,

Stanford Lin Senior Legal Counsel

Visit our Internet site at <http://www.reuters.com>

Any views expressed in this message are those of the individual sender, except where the sender specifically states them to be the views of Reuters Ltd. - Enron-Investor-DataOrderForm 42000.doc - Enron-Investor-NewsOrderForm 42000.doc

Message 342 of 413

RE: Hi, hope everything is okay with you and your trip went well

Sender	legal <taylor@enron.com>
Recipients	[tedbockius@spherion.com]
File	taylor-m/sent_items/52.

I'm fine. I left you a voice mail this morning on your cell phone to let you know I'm OK and stranded in London. Not a bad place to get stranded I suppose. Linda and Amanda are here, too. I'm working from the office here while they have fun on the town. Actually, they seem to be spending a lot of time at the hotel watching the news, and I can't say that I totally blame them -- it seems almost disloyal to go out and have fun. They were going to a play this afternoon and got tickets for us to see Mama Mia (the musical based on ABBA) for tomorrow night. I was originally scheduled to fly back yesterday (Wednesday) and have been rebooked on a flight Sunday afternoon. The hotel finally told me this morning that we can keep our rooms until then. I hope the flights are running by then.

Kitty is being taken care of but I feel really bad having her be alone all this time. Jim Avant was stranded in Austin for a day -- they had to take a taxi back to Houston the next day -- and Jamie said they would go over that afternoon.

If you need to reach me, you can try the office number 011-44-207-783-6468, my UK cell phone number 011-44-778-351-2535 or the hotel number 011-44-207-491-7282. It's kind of hard to get through some times since the lines to the US are often busy.

Hope you are doing ok through all this. I'm just sort of numb.

Mark

-----Original Message-----

From: "Bockius, Ted" <TedBockius@spherion.com>@ENRON
[mailto:IMCEANOTES+22Bockius+2CTed+22+20+3CTedBockius+40spherion+2Ecom+3E+40ENRON@ENRON.com]
Sent: Thursday, September 13, 2001 5:32 PM To: Taylor, Mark E (Legal) Subject: Hi, hope everything is okay with you and your trip went well Importance: High

Please e-mail me to let me know that everything is okay.

Ted (954) 489-6292

Message 343 of 413

Re: Conf. call - Enron Online Follow up

Sender	samira.ravagnani@enron.com
Recipients	['francy.botaro@enron.com', 'joe.kishkill@enron.com', 'remi.collonges@enron.com', 'renata.teke@enron.com', 'ed...]
File	taylor-m/notes_inbox/882.

Sorry....

We had a problem with AT&T.

The conf. call is going to start at 02:30 PM Houston time :

Dial in numbers : Toll free 877-540-9892 Intl access 734-414-0270

Host code : 830-195 (for Remi Collonges use only!) Participant code: 768-138

Lynn Aven 06/26/2000 05:07 PM To: Samira Ravagnani/SA/Enron@Enron, Remi Collonges/SA/Enron@Enron cc:

Subject: Re: Conf. call - Enron Online Follow up

I just tried to get into the conference call. They tell me that the call was set up for JULY 26. Please advise when the new access numbers are available.

Regards

Lynn

Samira Ravagnani 06/21/2000 11:57 AM To: Joe Kishkill/SA/Enron@Enron, Remi Collonges/SA/Enron@Enron, Ricardo Lisboa/SA/Enron@Enron, David M Rosenberg/SA/Enron@Enron, Steve Nagy/SA/Enron@Enron, Julie Ramos/SA/Enron@Enron, Michael Guerriero/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Andrea Bertone/SA/Enron@Enron, David Forster/Corp/Enron@Enron, Denise M Macedo/SA/Enron@Enron, Mario Parra Cardoso/Corp/Enron@Enron, mark.taylor@enron.com, Ricardo Lisboa/SA/Enron@Enron, Jose Bestard/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Luiz Maurer/SA/Enron@Enron, Don Black/SA/Enron@Enron, Rod Nelson/HOU/ECT@ECT, Debbie R Brackett/HOU/ECT@ECT, Lynn Aven/NA/Enron@Enron, Patrick Hansen/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT cc: Edineth R Santos/SA/Enron@Enron, Francy Botaro/SA/Enron@Enron, Renata Teke/SA/Enron@Enron, Fabiana Lopes/SA/Enron@Enron, Gisele S Braz/SA/Enron@Enron, Joyce Teixeira/SA/Enron@Enron

Subject: Conf. call - Enron Online Follow up

Please plan on attending the above conf. call sheduled as follow :

Date : June 26th, Monday

Time : 02:00 PM Houston time / 04:00 PM S?o Paulo time

Dial in numbers : Toll free 877-322-9654 Intl access 954-797-1657

Host code : 830-195 (for Remi Collonges use only!) Participant code: 768-138

For those in S.Paulo office, you can attend it at 4C1.

Thx

Message 344 of 413

Re:	
Sender	robert.bruce@enron.com
Recipients	['sara.shackleton@enron.com', 'mark.taylor@enron.com', 'mark.e.haedicke@enron.com']
File	taylor-m/notes_inbox/1622.

Hadn't really thought about that. In each contract, counterparty reps and warrants that it physically handles each commodity on which an option is traded (tracking "trade option" regulatory language), and all r&w's are deemed repeated each time a new transaction is entered into.

The law requires that on offeror have a "reasonable basis" to believe that offeree is physically handling, so traders/marketers in the ag area must be trained to not ignore obvious indications that an ag counterparty is no longer in the business of physically moving a given ag commodity. Such indications should be reported to legal department.

This will be of heightened concern in the ag area. With other commodities, if the counterparty doesn't handle, or stops handling the commodity, we can always argue that we are the "offeree" and we are physically handling. Until we are physically handling ag commodities, though, we will always have to rely on the counterparty being a physical merchant in order to trade options

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

Mark.E.Haedicke@enron.com 10/20/2000 03:15 PM

To: Robert.Bruce@enron.com cc: Subject: Re:

It looks good to me. How do we keep up with changes in a counterparty's business? What if it no longer physically handles a particular commodity? Mark

Robert Bruce@ENRON To: Mark E Haedicke/HOU/ECT@ECT Sent by: cc: Mark Taylor/HOU/ECT@ECT Robert Subject: Bruce@ENRON

10/17/2000 06:21 PM

per my voice message to you; have tried to make memo brief

(See attached file: Haedicke et al 101700.doc)

Robert E. Bruce Senior Counsel Enron North America Corp. T (713) 345-7780 F (713) 646-3393 robert.bruce@enron.com

- Haedicke et al 101700.doc

Message 345 of 413

Re: Washington	
Sender	mark.taylor@enron.com
Recipients	['allison.navin@enron.com', 'cynthia.sandherr@enron.com']
File	taylor-m/sent/970.

Allison - I don't think they were expecting Cynthia to attend these meetings with me - there will only be one representative from each of the three companies. I did want her to know what meetings had been set up for me though and to know I was in town that day in case she wanted me to see anyone else. My flight out isn't until after 7:00 pm. and I assume that the Luken meeting will be over around 3:00.

Enron North America Corp.

From: Cynthia Sandherr @ ENRON 04/10/2000 01:52 PM

Sent by: Allison Navin@ENRON To: Mark Taylor/HOU/ECT@ECT cc: Subject: Re: Washington

Mark - Cynthia is out of town today, but I let her know that you are coming to town and she is more than happy to attend these meetings with you. She will be at 1301 Longworth for the Weston meeting at 9:30 a.m. on Wednesday. Would you mind letting me know who else will be attending the meetings so I can let Cynthia know? Thanks.

Allison Navin 202-466-9141

From: Mark Taylor @ ECT 04/10/2000 12:38 PM

To: Cynthia Sandherr/Corp/Enron@ENRON cc:

Subject: Washington

FYI ----- Forwarded by Mark Taylor/HOU/ECT on 04/10/2000 11:37 AM -----

RAISLERK@sullcrom.com on 04/10/2000 11:35:56 AM To: mark.taylor@enron.com, lanced@kochind.com, mgoldstein@sempratrading.com cc: Subject: Washington

Our schedule for Washington on Wednesday, April 12 is as follows:

9:30 a.m. Ryan Weston House Agricultural Committee 1301 Longworth House Office Building Tel: (202) 225-2171

11:30 a.m. Chairman Rainer Commodity Futures Trading Commission 1155 21st Street, N.W. Tel: (202) 418-5030

2:00 p.m. Walt Luken 825 Hart Senate Office Building Tel: (202) 224-7444

Since we are coming from different directions, I suggest we meet at Ryan Weston's office, 1301 Longworth at 9:30.

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

Message 346 of 413

Re: Transition

Sender	carol.clair@enron.com
Recipients	['sara.shackleton@enron.com', 'mark.taylor@enron.com', 'mary.cook@enron.com']
File	taylor-m/all_documents/8297.

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com ----- Forwarded by Carol St Clair/HOU/ECT on 05/07/2001 09:17 AM -----

Jane McBride@ENRON 05/06/2001 09:49 PM

To: Carol St Clair/HOU/ECT@ECT cc: Alan Aronowitz Subject: Re: Transition

Sorry I didn't reply to this by return. So far we have had no feedback re any of the newer schedules but these things take time in Japan from my experience. I guess we will just have to deal with that feedback when we get it - I think though that after all the work you have done in getting the forms into shape, it should be much easier for me to take the lead when things move forward because we will be dealing with standalone issues.

I have not replied to IBJ and am hoping to get to this this week. If I have any questions, in the first case, if you didn't mind I guess it would be good if I could try them on you. If this didn't work for any reason, I would of course be able to address them to your successor.

Re BTM - you may recall that they insisted that we work from their draft. I need to try and finalize my response to them this week and if I have any questions, would propose that I deal with them as above.

By the way has your successor been decided?

Finally, I have really appreciated the way you helped me out of the jam and hope that I will be able to repay the favor one day.

Good luck with power trading - when our power trading business here finally gets on its feet, who knows, we may work together again.

Jane

Carol St Clair@ECT 2001/04/24 02:54

To: Jane McBride/AP/Enron@Enron cc: Jeremy.Pitts@BAKERNET.com, John Suttle/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT Subject: Transition

Jane: I just wanted to let you know that I have been asked to join Elizabeth Sager's power trading group, effective this week. Can you give me a feel for where you think things are headed with respect to those counterparties that have been sent our schedules? I will let you know who my replacement is shortly. It was a pleasure to work with you and hopefully we will get to meet in person sometime soon!

Carol St. Clair EB 3889 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Message 347 of 413

Fwd: This Week with SAYA (10/15/01)

Sender	lsutaylor@hotmail.com
Recipients	[e.taylor@enron.com]
File	taylor-m/inbox/social/35.

From: "Hicks, Rob" <robhicks@sbcglobal.net> To: "'SAYA Mail List'" <robhicks@sbcglobal.net> Subject: This Week with SAYA (10/15/01) Date: Mon, 15 Oct 2001 08:08:25 -0500 Congratulations to our flag football team for a well-fought win. Upcoming: Monday, 10/15 RACI Fall Forum, 6:30pm. Join us at the Parish Center for the beginning of the Fall Right of Adult Catholics to be Informed (RACI) education series. A light supper will be served beginning at 6:30pm with the presentation to begin at 7:30pm. Tonight's sessions: "Learning to Live by the Spirit" presented by Claire Mueller and "Here Comes the Judge and other Tribunal Matters" by Fr. Richard Wahl, C.S.B., Canon Lawyer. Everyone is welcome. Monday Night Football, 8pm. Come on over to Little Woodrow's after the RACI forum to watch Washington at Dallas. Wednesday, 10/17 Children's Art Project, evenings. PACCO will be volunteering at the Children's Art Project at MD Anderson Cancer Center through November. For more information contact Matt Kiger (713-385-8450). Small Faith Community, 7:30pm. Our SFC usually meets at least twice per month at various members' homes. It is an occasion to gather informally for the purpose of more deeply exploring our Catholic faith. Contact Morgan Rice (713-526-4677) for more details. Saturday, 10/20 Fiesta Setup, all day. If you are interested in helping set up for the annual St. Anne Fiesta, plan on coming up to the church. We can use all the help we can get. There will be a special Mass for the Fiesta workers that afternoon. Sunday, 10/21 St. Anne Fall Fiesta, 11am-8pm. Come out to support the church and school at the annual fall fiesta. There will be food, drink, and fun. SAYA will be hosting the Meatball Sandwich booth. We still need additional workers to work a shift or two in our booth. If you would like to help out, please contact Jeff Duran (713-528-5040) to sign up. There will be no flag football game this week because of Fiesta. Have a great week! Rob Hicks Phone: (713) 529-4826 E-mail: robhicks@sbcglobal.net

Get your FREE download of MSN Explorer at <http://explorer.msn.com/intl.asp>

Message 348 of 413

Re: mtaylo1@ect.enron.com/Oct30-3nts

Sender	mark.taylor@enron.com
Recipients	[mail@assurednyc.com]
File	taylor-m/sent/552.

Thanks for your reply. I think I'd prefer something that's not hosted if possible. I can definately spend more for something that's either very nice or very interesting. Also prefer to avoid far reaches of upper east or west sides.

"Assured Accommodations, Inc." <mail@assurednyc.com> on 10/20/99 09:46:30 AM To: Mark Taylor/HOU/ECT@ECT
cc: Subject: mtaylo1@ect.enron.com/Oct30-3nts

Hi,

Two possibilities:

323/B&B. Village / First Avenue between 1st & 2nd Street You will feel at peace here. Single rooms @ \$99/nt. Double rooms with 2 single beds @ \$109/nt. Shared bathroom. Nutritious breakfast every morning. Kitchen for your use however only for vegetarian cooking only. This B&B accommodation is part of a yoga community located in the trendy East Village. This place is very minimal so don't expect much but expect it to be very clean & simple. A very friendly environment. If you like at no extra cost, feel free to request a meditation lesson and make sure you try out the food in the restaurant downstairs also run by this community. Photos available via email.

387/B&B. TriBeCa / Broadway between Reade & Duane Sweet looking B&B room in a loft located in trendy TriBeCa. 4 flights walk-up to this spacious accommodation. Shared bath. Double bed in private bedroom. Nicely furnished for a wonderful stay. Located in a great area. \$120/nt[1-2pax]; \$1850/mo. Photos available via email.

For more information, view photos or reserve a specific unit, please call 212.431.0569. You can also reach us by email or fax us at 212.431.7088

If you have any questions, feel free to contact me. Glad to answer any questions you may have regarding the accommodations listed.

Thank you Lena Seow Assured Accommodations, Inc. [tel]212.431.0569 [fax]212.431.7088

Note: Availability of the accommodations listed is not guaranteed due to the number of requests received each day

To make a reservation, please fax/call in with the information below:

-last & first name -arrival & departure date -time of arrival[for key arrangements] -airline & flight # -# of people in party
-home & work tel # -a fax # -a credit card with expiration date -home/billing address

mtaylo1@ect.enron.com wrote:

I'll be in New York arriving 10/30 and departing 11/2. Do you have spaces available?

Message 349 of 413

EnronOnline.com-REVISED ORDER FORMS

Sender	stanford.lin@reuters.com
Recipients	['julie.ferrara@enron.com', 'james.garland@reuters.com', 'lynne.carithers@reuters.com', 'dave.samuels@enron.co...]
File	taylor-m/notes_inbox/470.

Attached are revised Order Forms based on comments I received today from Lynne Carithers.

Accepted changes to the Order Forms are as follows:

1. The portals enroncredit.com and enrondirectfinance.com have been added to the Order Forms.
2. Under Reuters Services for Reuters Global Focus News Gallery, language which states that new reports will be made available as new countries are added to the Reuters Domestic News Pool has been added.
3. In the Fee Schedule for both Order Forms, reporting has been changed from 5 business days to 10 days.

Changes that were not accepted:

1. Proposal to change Enron Corporation to Enron Corporation & Affiliates. The reason for this is that Reuters needs to look to one entity for all fees, reporting, and enforcement for the agreement. The fact that Enron's affiliates will contribute content to a site or that the users of the sites are customers of Enron's affiliates poses no problem under the agreement, but the agreement makes clear that the Reuters news/data will be delivered to only one entity (Enron Corporation) and that Enron Corporation will be the entity that republishes the content on the URLs.

2. Proposal to change "wholly -owned and controlled" to 30% ownership interest. I have added language to reflect that subsidiaries can include "over 50% ownership interest" instead of "wholly-owned" but that is as far as we can go on this provision. The reason for this is that we need to ensure that Enron exercises effective control over the URL.

I understand Enron had a question on the Per User Royalty for the News Order Form regarding the "90,000 accesses". The \$1 million in base fees covers 4500 users. The 90,000 accesses is based on 4500 users each accessing every business day of the month (approx. 20 days).

I will contact Mark Taylor regarding other legal issues on the Terms & Conditions.

(See attached file: Enron-Investor-NewsOrderForm 42100.doc)(See attached file: Enron-Investor-DataOrderForm 42100.doc) Regards,

Stanford Lin

Visit our Internet site at <http://www.reuters.com>

Any views expressed in this message are those of the individual sender, except where the sender specifically states them to be the views of Reuters Ltd. - Enron-Investor-NewsOrderForm 42100.doc - Enron-Investor-DataOrderForm 42100.doc

Message 350 of 413

FW: Master Agreement - Form

Sender	carol.st.@enron.com
Recipients	['legal <.taylor@enron.com>']
File	taylor-m/deleted_items/124.

Mark: I will be talking to Mary Nell about this. What did you say to her about this issue?

Carol St. Clair EB 4539 713-853-3989 (phone) 713-646-8537 (fax) 281-382-1943 (cell phone) 281-890-8862 (home fax)
carol.st.clair@enron.com

-----Original Message-----

From: Browning, Mary Nell Sent: Tuesday, September 4, 2001 12:37 PM To: St. Clair, Carol; Taylor, Mark E (Legal)
Subject: FW: Master Agreement - Form

Thank y'all so much for your help on this. We are trying to improve the language relating to the termination payment (Section 5.4) in the bandwidth trading master. The old version had a very complicated and repetitive formula that tried to reflect replacement costs but in practice did not do so (I will not go into why here). Based on some ISDA materials sent to me by Elizabeth Sager, as well as the benefit of the trading forms in some of our other businesses, we have come up with the attached. I would be so grateful if you could give me some feedback on this 5.4 as soon as you can because we are a bit strapped in producing agreements.

As I mentioned to Mark on the phone today, I am also trying to work out how critical is the provision allowing for payment by the non-defaulting party to the defaulting party. As we know, most of the time a non-defaulting party would not elect to terminate if they thought they were going to have to make a payment, but given our strictly physical, not overly liquid market at the moment, this provision has the old time telecoms companies with their eyeballs swivelling around in their sockets (of course the agreement as a whole is a bit of a shock to them, but this seems to be the provision they cannot get their brains around). Although I am not necessarily suggesting we take this feature out of the form, I would just like your thoughts on whether we have any flexibility to delete it where necessary.

Finally, I note that our form does not have any provision to suspend delivery if the buyer is not paying. Again, given the physical delivery character of this market, I would recommend we add such a feature.

I will anxiously await your feedback...And again, many thanks.

-----Original Message-----

From: Wilson, Pauline Sent: 09 August 2001 10:32 To: Vickerman, James Cc: Browning, Mary Nell Subject: Master Agreement - Form

James,

Here is the Master Agreement - Form. The font is all the same size & style.

Cheers, Pauline

Message 351 of 413

Enron Online

Sender	molly_sample@eott.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/all_documents/3324.

Mark--I hate to be a pest, but this topic is still an issue over here. We are in the process of moving, but I am told that you and I have spoken many times over the past several months on this issue and the marketing people are curious why we haven't resolved this. Interesting. Your help will be appreciated. Thanks.

Molly Sample General Counsel EOTT Energy Corp. 713-993-5027 fax 713-402-2806 ----- Forwarded by Molly Sample/Houston/Eott on 09/25/00 11:57 PM -----

Molly Sample To: Dana Gibbs 09/04/00 cc: 12:47 PM Subject: Enron Online

Please let me know how hard to push this one. Thanks.

Molly Sample General Counsel EOTT Energy Corp. 713-993-5027 fax 713-402-2806 ----- Forwarded by Molly Sample/Houston/Eott on 09/04/00 12:52 PM -----

Molly Sample To: Dana Gibbs 08/13/00 cc: 02:05 PM Subject: Enron Online

I really need to speak with Mark Taylor about the structure of the shell corporation before we can go any farther on the Enron Online initiative. I realize he is busy. What is the priority on this to help me get it moved up on his list, or atleast find a few minutes to call me back? Thanks.

Molly ----- Forwarded by Molly Sample/Houston/Eott on 08/13/00 02:09 PM -----

Molly Sample To: tana.jones@enron.com 07/31/00 cc: 04:48 PM Subject: Enron Online

Here is the info I need for Enron Online. Thanks for all your help.

Molly ----- Forwarded by Molly Sample/Houston/Eott on 07/31/00 05:02 PM -----

Molly Sample To: Mark.Taylor@Enron.com 07/19/00 cc: 03:48 PM Subject: Enron Online

This topic has moved up on the radar screen over here. In addition to the issues about setting up the shell corporation, what are the rules for the Enron affiliates who trade on line? Josie Castrejana in our credit group has talked to Tom Moran in your credit group. EOTT is concerned about credit issues for the shell corporation. How do you handle that with the other Enron affiliates? Who would post letters of credit or guaranties? How does the contract get from the Enron affiliate to EOTT--is the contract assigned or do we do back to back deals? If this is a physical transaction, we need to figure out a way to coordinate names on the contract, credit, invoice, ticket, etc. Also, who would nominate the volumes?

Needless to say, we are not finished yet. Please let me know when you would be available to go over these issues. Thanks so much for your help.

Molly ----- Forwarded by Molly Sample/Houston/Eott on 07/19/00 03:38 PM -----

Molly Sample Sent by: To: Mark.Taylor@Enron.com Autumn cc: Dana Gibbs/Houston/Eott@Eott, Charles Cartier Uus/Houston/Eott@Eott Subject: Enron Online

07/17/00 01:32 PM

Please see the attached memo.

Thank you.

(See attached file: 0714m005.doc)

- 0714m005.doc

Message 352 of 413

Re: DealBench Canada

Sender	nora.dobin@enron.com
Recipients	['mark.taylor@enron.com', 'morris.clark@enron.com', 'ross.mesquita@enron.com', 'brenda.funk@enron.com']
File	taylor-m/notes_inbox/2495.

Please consider the attached e-mail from your perspective as we consider the feasibility of forming a Canadian subsidiary of DealBench L.L.C., a Delaware limited liability company wholly-owned by Enron Net Works, LLC. DealBench conducts an e-commerce business facilitating the conduct of transactions on the Internet through licensing arrangements. Brenda Funk had suggested you as a starting point from the tax perspective which usually is the primary driver of these types of issues. Let us know if we can provide additional information. Thanks for your help.

Regards, NJD

Nora J. Dobin Senior Counsel Enron Global Finance Enron Corp. 1400 Smith Street Houston, Texas 77002

713/345-7723 (phone) 713/853-9252 (fax) E-mail: nora.dobin@enron.com

----- Forwarded by Nora Dobin/Corp/Enron on 02/13/01 09:21 AM -----

Nora Dobin 01/29/01 10:59 AM

To: Brenda L Funk/HOU/ECT@ECT cc: Ross Mesquita/NA/Enron@ENRON, Mark Taylor/HOU/ECT@ECT, rbaird@velaw.com Subject: Re: DealBench Canada

Brenda, could you please investigate formation of a DealBench subsidiary formed under Canadian (Ontario) law? Initial issues include limited liability status (form of entity), control (any necessity for Canadian ownership or representation in management?), repatriation, tax, timing, and cost of formation and maintenance. At this point, we only are ascertaining feasibility. Depending upon whether this seems practical, we should at some point involve appropriate ENA tax and accounting teams. Let me know results of initial investigation and we can determine next steps. If we need outside counsel input on Canadian issues, start with Bob Baird for direction.

Thanks, NJD

Nora J. Dobin Senior Counsel Enron Global Finance Enron Corp. 1400 Smith Street Houston, Texas 77002

713/345-7723 (phone) 713/853-9252 (fax) E-mail: nora.dobin@enron.com ----- Forwarded by Nora Dobin/Corp/Enron on 01/29/01 10:18 AM -----

Ross Mesquita 01/29/01 10:14 AM

To: Nora Dobin/Corp/Enron@ENRON cc: Subject: Re: DealBench Canada

You got it -- Ontario it is.

Nora Dobin 01/29/2001 10:08 AM To: Ross Mesquita/NA/Enron@ENRON cc:

Subject: Re: DealBench Canada

Is subject province Ontario?

Nora J. Dobin Senior Counsel Enron Global Finance Enron Corp. 1400 Smith Street Houston, Texas 77002

713/345-7723 (phone) 713/853-9252 (fax) E-mail: nora.dobin@enron.com

Ross Mesquita 01/29/01 09:55 AM

To: Nora Dobin/Corp/Enron@ENRON cc: Subject: Re: DealBench Canada

Yes -- the sub would have to set up to give the appearance that DealBench deals conducted for Canada are conducted by a Canadian company.

Thanks, Ross

Nora Dobin 01/29/2001 09:51 AM To: Ross Mesquita/NA/Enron@ENRON cc:

Subject: Re: DealBench Canada

Would the sub be formed under Canadian law? Seems it would need to be to achieve goal. Let me know and I'll investigate.

Nora J. Dobin Senior Counsel Enron Global Finance Enron Corp. 1400 Smith Street Houston, Texas 77002

713/345-7723 (phone) 713/853-9252 (fax) E-mail: nora.dobin@enron.com

Ross Mesquita 01/28/01 04:20 PM

To: Nora Dobin/Corp/Enron@ENRON cc: Subject: DealBench Canada

Nora,

We may have an opportunity to do several auctions for the Ontario Electricity Finance Corp through a contact I have at Enron Canada (Aleck Dadson). Aleck mentioned that we might have a better chance to close the deal if DealBench could be presented as a Canadian product.

How difficult, costly and time intensive would it be to create a sub called DealBench Canada (or DealBench Maple Leaf or whatever)? Just wanted to get your thoughts on whether this is even a possibility.

Regards, Ross

Message 353 of 413

RE: DocuSwapLogic Marketing Slick

Sender	mark.greenberg@enron.com
Recipients	['sbrown@velaw.com']
File	taylor-m/notes_inbox/1988.

Scott -

In the DocuSwapLogic we probably need to add in the ability to do online negotiations and signing. This is contemplated but not part of the current development only because of the anticipated launch date of July 17. Let me know what you think.

Also, we need to move forward with BankLogic.

Also, I spoke to Mark Taylor earlier in the week about the status of "EOL" as a shorthand means of referring to EnronOnline. I had understood that there was a move being made to obtain this mark or to register this so that we could use it. In speaking with Mark Holsworth, I understand you may have some insight into the status. If so, please let me know. If not, we need to look into moving forward with this also.

Thanks.

Mark Senior Counsel, EWS Phone: 713-345-8897 Facsimile: 713-646-3490 E-Mail: Mark.Greenberg@enron.com

"Brown, W. Scott" <sbrown@velaw.com> 06/07/2001 02:53 PM

To: "'Mark.Greenberg@enron.com'" <Mark.Greenberg@enron.com> cc: Subject: RE: DocuSwapLogic Marketing Slick
Mark,

It should be no problem in getting a registration for ENRONONLINE REAL TIME QUOTES. However, it is a near certainty that we will be required to disclaim any right to "real time quotes" apart from the mark as a whole. If you give me a description of the goods and/or services, I can go ahead and file the application.

In regard to DOCSWAPLOGIC, please let me know if the following description of services is acceptable:

"Online transaction-support services to provide secure document storage, retrieval and sharing"

As you can see from the marks and descriptions below, I have tried to be consistent with the other "Logic" related marks.

ADMINLOGIC "Online transaction-support services to control user access to online trading platform"

CONFIRMLOGIC "Online transaction-support services to confirm physical and financial trades"

NOMLOGIC "Online transaction-support services to validate trades and exchange nomination data"

INVOICELOGIC "Online transaction-support services to provide automated invoice reconciliation"

scott

-----Original Message-----

From: Mark.Greenberg@enron.com [mailto:Mark.Greenberg@enron.com] Sent: Thursday, June 07, 2001 11:41 AM To: sbrown@velaw.com Subject: DocuSwapLogic Marketing Slick

Scott -

Please see the below on DocuSwapLogic.

Also, I need to see if we can work on trademarking "EnronOnline Real Time Quotes"

Thanks.

Mark Senior Counsel, EWS Phone: 713-345-8897 Facsimile: 713-646-3490 E-Mail: Mark.Greenberg@enron.com -----

Forwarded by Mark Greenberg/NA/Enron on 06/07/2001 11:39 AM -----

Kristin

Cantu/ENRON@e To: Mark Greenberg/NA/Enron@ENRON nronXgate cc: Kim Monk/ENRON@enronXgate

Subject: DocuSwapLogic Marketing Slick 06/07/2001

10:19 AM

Mark,

Attached is a draft marketing slick to use when obtaining the trademark. We'll have a final marketing slick by the end of the month.

Let me know if you need more information.

Thanks, Kristin (See attached file: DocuLogic Marketing Slick_Draft.doc)

+++++CONFIDENTIALITY NOTICE+++++ The information in this email may be confidential and/or privileged. This email is intended to be reviewed by only the individual or organization named above. If you are not the intended recipient or an authorized representative of the intended recipient, you are hereby notified that any review, dissemination or copying of this email and its attachments, if any, or the information contained herein is prohibited. If you have received this email in error, please immediately notify the sender by return email and delete this email from your system. Thank You

Message 354 of 413

Weather Products	
Sender	mark.taylor@enron.com
Recipients	['Robert B Cass/HOU/ECT@ECT', 'mark.taylor@enron.com', 'Melba Lozano/HOU/ECT@ECT']
File	taylor-m/notes_inbox/1868.

yours? ----- Forwarded by Mark A Taylor/EFS/EES on 12/05/2000 08:21 AM -----

Kevin Meredith@ENRON 12/04/2000 06:10 PM

To: Michael Nguyen/HOU/ECT@ECT, Mark A Taylor/EFS/EES@EES cc: Robert B Cass/HOU/ECT@ECT, Melba Lozano/HOU/ECT@ECT Subject: Weather Products

The following products have been created in Test. Please review and advise.

US Wthr CDD Swap HNG KNG 100/20K Jun01 USD/CDD A US Weather (Cooling Degree Day) Financial Swap Transaction with Enron North America Corp., under which the Seller is obliged to pay the Payment Amount to the Buyer where the Floating Amount is above the Strike Amount, or where the Buyer is obliged to pay the Payment Amount to the Seller where the Floating Amount is below the Strike Amount. The Strike Amount is the amount in Cooling Degree Days submitted in the "price" field by Counterparty via the website. The Notional Amount is the product of the quantity submitted by Counterparty via the website and the Pay Unit. The Payment Amount is the product of (i) the Notional Amount and (ii) the absolute value of the difference between the Floating Amount and the Strike Amount. The Calculation Period is from and including the Effective Date of 01 Jun 2001 to and including the Termination Date of 30 Jun 2001. The Calculation Period shall commence at 12:01am on the Effective Date and conclude at 12:00am on the Termination Date at the relevant Reference Weather Station or Fallback Reference Weather Station. The Reference Weather Station is Hong Kong Observatory, WMO Station Number 45005. The Fallback Reference Weather Station is King's Park, WMO Station Number 45004. Reporting Service, Reporting Agency and Data Source all mean the Hong Kong Observatory 134A Nathan Road, Kowloon, Hong Kong or its successor organisation. Reference Time means 12.01 AM LST. The price is quoted in US Dollars per unit of volume, which will be the Contractual Currency. CDD shall mean Cooling Degree Day. The Reference Basis is 65 Degrees Fahrenheit and the Reference Degrees are in Fahrenheit. The Pay Unit shall be 100USD. The Maximum Payout Limit shall be 20000USD, multiplied by the quantity submitted by the Counterparty via EnronOnline.

US Wthr HDD Swap HNG KNG 100/20K Jan01 USD/HDD A US Weather (Heating Degree Day) Financial Swap Transaction with Enron North America Corp., under which the Seller is obliged to pay the Payment Amount to the Buyer where the Floating Amount is above the Strike Amount, or where the Buyer is obliged to pay the Payment Amount to the Seller where the Floating Amount is below the Strike Amount. The Notional Amount is the product of the quantity submitted by Counterparty via the website and the Pay Unit. The Strike Amount is the amount in Heating Degree Days submitted in the "price" field by Counterparty via the website. The Payment Amount is the product of (i) the Notional Amount and (ii) the absolute value of the difference between the Floating Amount and the Strike Amount. The Calculation Period is from and including the Effective Date of 01 Jan 2001 to and including the Termination Date of 31 Jan 2001. The Calculation Period shall commence at 12:01am on the Effective Date and conclude at 12:00am on the Termination Date at the relevant Reference Weather Station or Fallback Reference Weather Station. The Reference Weather Station is Hong Kong Observatory, WMO Station Number 45005. The Fallback Reference Weather Station is King's Park, WMO Station Number 45004. Reporting Service, Reporting Agency and Data Source all mean the Hong Kong Observatory 134A Nathan Road, Kowloon, Hong Kong or its successor organisation. Reference Time means 12.01 AM LST. The price is

quoted in US Dollars per unit of volume, which will be the Contractual Currency. HDD shall mean Heating Degree Day. The Reference Basis is 65 Degrees Fahrenheit and the Reference Degrees are in Fahrenheit. The Pay Unit shall be 100USD. The Maximum Payout Limit shall be 20000USD, multiplied by the quantity submitted by the Counterparty via EnronOnline.

Message 355 of 413

RE: TNRCC State Summary File	
Sender	jparks@tnrcc.state.tx.us
Recipients	[e.taylor@enron.com]
File	taylor-m/inbox/tnrcc/2.

Mr. Taylor: Here are the emissions data files from the appropriate State Summary Files for the years 1997, 1998, 1999. The attached files are in Excel v. 5 format. If Excel v. 5 format is not acceptable I will be able to send them to you in ASCII.TXT, comma-delimited, first row of data used as field names format. Let me know if you want them in the latter described format. This data is just for the TNRCC account numbers supplied in your request.

Please let me know if this data is acceptable. There is no charge for this data because it is not the entire State Summary File for each year.

I want to thank you for typing the account numbers. This saves me considerable typing time when setting up the queries.

If you have any questions or need additional data, you may contact me at the locations listed below. Thank you for the opportunity to serve your data request. Jim Parks PH 512 239-2544 FAX 512 239-0888 jparks@tnrcc.state.tx.us

"Taylor, Michael E" <Michael.E.Taylor@ENRON.com> 09/25/01 01:37PM >>>

Jim,

I wanted to know how I would find this data. I am looking for the NOx emissions for the accounts below for 1997-2000. I have some of the data for 1999, and very little for 2000. How do I find the rest of the data? Website? Database? I believe you sent me the state database in August which included some 1999 and 2000 numbers for the accounts below. I suppose some more accounts may have been updated for 2000.

ACCOUNT # HG1495V HG0071Q GB0004L GB0153Q HG1174V HG0713S MQ0009F HG0232Q HG0234M HG0228H
MQ0007J HG0033B HG0048L FG0020V GB0037T CI0012D HG0659W BL0082R BL0022M

Sincerely, Michael Taylor Enron Global Markets (713) 853-1885

-----Original Message-----

From: Jim Parks [mailto:JPARKS@tnrcc.state.tx.us] Sent: Thursday, August 23, 2001 3:48 PM To: Taylor, Michael E
Subject: RE: TNRCC State Summary File

Mr. Taylor: 1) The allowable data is generally unique to each permit. Because of this a general statement like "the allowable tons/year for SO2 in Harris County is" would not be defensible or valid. 2) I believe that the allowable data varies in relation to the season of year and part of the state - a.k.a., "ambient background threshold". In other words, if it is ozone season, allowable emissions probably would be lower. 3) The allowable emissions threshold is also variable over time. 25 years ago, Harris county probably did not need an allowable cap for certain emissions. As industry grows the allowable emissions will be adjusted. The period of time for the data to become outdated could be as little as 1 month, depending on when new allowables or new permits are initiated. 4) Texas charges corporations a "tax" for emissions over their allowable limit. It is sort of a pay-as-you-go plan. Of course I am being very simplistic here, but the point is still the same.

Your questions are excellent and I am giving you as specific an answer as possible. I hope I am not being too pointed but to the data oriented person, the previous points are important for data integrity. Jim Parks

"Taylor, Michael E" <Michael.E.Taylor@ENRON.com> 08/23/01 03:10PM

Jim,

Could you please explain to me where these numbers would NOT be accurate? I was warned that the data (allowables) would not be 100% accurate because of certain reasons. Can you please detail those reasons for me?

Michael Taylor Coal and Emissions Trading Enron Global Markets (713) 853-1885

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Message 356 of 413

REVISED DATE: Your Invitation to Enron's Executive Forum - 1st

Sender	debbie.nowak@enron.com
Recipients	['stuart.rexrode@enron.com', 'greek.rice@enron.com', 'brad.richter@enron.com']
File	taylor-m/notes_inbox/2261.

The March 30th Executive Forum has been moved to Friday, April 20th from 3:00=20 p.m. to 4:30 p.m.

If your calendar permits and you would like to attend, please RSVP to the undersigned no later than April 18th.

Thanks very much!

Debbie Nowak Executive Development Houston, TX Tel. 713.853.3304 Fax: 713.646.8586

-----Original Message-----

From: Debbie Nowak Sent: Wednesday, March 07, 2001 9:31 PM To: Steve Reistetter; Stuart G Rexrode; Greek Rice; Brad Richter; Paula Rieker; Tom Riley; Mike A Roberts; Joe Robertson; Mike Rogala; Rex Rogers; William Rome; George Rood; Mark Ruane; Jenny Rub; Robert Saltiel; James Sandt; Rod Sayers; Frank Sayre; Dave Schafer; Barry Schnapper; Ulrich Schomakers; Lance Schuler-Legal; Cassandra Schultz; Jim Schwieger; Stewart Seeligson; Ted Seitz; Bryan Seyfried; Vasant Shanbhogue; Vicki Sharp; Eric Shaw; David Shields; Hunter S Shively; William Simpson; Gary P Smith; Michael Smith; Spiro Spirakis; Stuart Staley; Terry Stavropoulos; James D Steffes; Keith Stepp; Rocky Storie; Peter Styles; Bruce Sukaly; Marty Sunde; Dale Surbey; Craig H Sutter; Mike Swerzbin; Brian Swinford; Mark Taylor; Mitchell Taylor; Michael Terraso; Jake Thomas; John Thompson; Rick Tio; David P Tregar; Carl Tricoli; Tim Underdown; Timothy Edward Vail; Rene Van Hoorde; B Virani; Christoph Waltenspuel; Lloyd Wantschek; Sherron Watkins; Doug Weaver; Peter E Weidler; Martin Wenzel; Brett R Wiggs; Jimmie Williams; Jan Wilson; Greg Wolfe; Steve Wurzel; Scott Yeager; Randy Young; Richard Zdunkewicz; Andy Zipper Subject: Your Invitation to Enron's Executive Forum - 1st Quarter 2001

The Office of the Chairman would like to invite you to participate at an Enron Executive Forum. This invitation is extended to anyone who attended an Executive Impact and Influence Program within the past two years. These informal, interactive forums will be 90 minutes in length and held several times per year.

Most of the participants in the Executive Impact and Influence program have indicated a strong desire to express opinions, share ideas, and ask questions to the Office of the Chairman. Although not mandatory to attend, the forums are designed to address those issues. They also afford the Office of the Chairman opportunities to speak directly to the executive team, describe plans and initiatives, do reality checks, create a rallying point and ensure Enron's executive management is on the same page about where Enron is going---and why.

To accommodate anticipated demand, we currently have two sessions:

Choice: (Please rank in order of preference 1 or 2 for a session below. You will attend only one session.)

_____ Thursday, March 29, 2001 from 2:30 p.m. to 4:00 p.m. in EB50M

_____ Friday, March 30, 2001 from 2:30 p.m. to 4:00 p.m. in EB50M

The Office of the Chairman will host the forum. Here's how it will work: ? Each session will have approximately 20 participants. ? The format will be honest, open, interactive dialogue. ? This will be your forum. Don't expect to simply sit and listen to presentations. ? This will not be the place for anonymity. You can safely ask your own questions and express your own opinions. ? You can submit questions/issues in advance or raise them during the forum. ? Some examples of topics you might want to discuss include, but are not limited to: the direction of Enron, business goals/results, M&A activities, projects/initiatives, culture, leadership, management practices, diversity, values, etc.

Because the forum will work only if everyone actively participates, we encourage you to accept this invitation only if you intend to have something to say and if you are willing to allow others to do the same. For planning purposes, it is essential that you RSVP no later than Friday, March 16, 2001 by return e-mail to Debbie Nowak, or via fax 713.646.8586.

Once we have ensured an even distribution of participants throughout these sessions, we will confirm with you, in writing, as to what session you will attend. We will try to honor requests for first choices as much as possible.

Should you have any questions or concerns, please notify Gerry Gibson by e-mail (gerry.gibson@enron.com). Gerry can also be reached at 713.345.6806.

Thank you.

Message 357 of 413

Nymex	
Sender	justin.rostant@enron.com
Recipients	['leonardo.pacheco@enron.com', 'legal <taylor@enron.com>']
File	taylor-m/archive/2001_07/17.

Mark, we are trying to get some information on the Nymex Access Electronic Trading System. It is our understanding that during the day the electronic trading system cannot be used because all prices must be announced on the Trading floor so all members are aware of the prices at the same time. However, Nymex wants to use the Access system to post prices after trading hours. Does EnronOnline have any legal obstacles to overcome if we want to post our prices on Access and/or Nymex post their prices on EnronOnline? Thank you in advance for your assistance.

Justin Rostant EnronOnline LLC. Phone: 713-853-6460 Mobile: 832-264-6333 Fax: 713-646-2126

Message 358 of 413

Valhalla Note	
Sender	scano@velaw.com
Recipients	['projvalhallagen@velaw.com', 'harry.arora@enron.com']
File	taylor-m/notes_inbox/456.

SENT ON BEHALF OF ROBERT RABALAIS

Here are revisions to the Note as we discussed with Weil Gotshal and Deutsche Bank. We have attempted to revise and clarify the provisions pertaining to the coupon payment and the selection of options. No substantive changes resulted from these revisions. If you have any questions, please call Robert Rabalais at (713) 758-4526.

Sandy Cano Executive Legal Secretary to Robert R. Rabalais Vinson & Elkins L.L.P. Telephone: (713) 758-2927 (800) 833-1594, ext. 2927 Email: scano@velaw.com

<<CMP of doc 163849 3v4.DOC>> <<Structured Note 4-19-00.DOC>>

- CMP of doc 163849 3v4.DOC - Structured Note 4-19-00.DOC

Message 359 of 413

Gramm Legal Certainty Language

Sender	mark.taylor@enron.com
Recipients	[]
File	taylor-m/sent/1532.

Does this raise uncertainty for products offered by non-banks? ----- Forwarded by Mark Taylor/HOU/ECT on 12/08/2000 09:13 AM -----

Stacy Carey <SCAREY@ISDA.ORG> 12/08/2000 08:23 AM

To: US REGULATORY COMMITTEE <USREGCOMM@isda.org> cc: Subject: Gramm Legal Certainty Language

Attached is the proposed language reflecting the compromise reached between Senator Gramm and the Chicago Futures Exchanges.

<<Gramm Legal Certainty Proposal 12-6.doc>>

Stacy Carey Director North American Regulatory Policy International Swaps and Derivatives Association (202) 457-6545 ph (703) 256-1833 fax (917) 543-9622 cell scarey@isda.org

- Gramm Legal Certainty Proposal 12-6.doc

Message 360 of 413

RE: Damien's Reservations

Sender	legal <.taylor@enron.com>
Recipients	['holly.keiser@enron.com']
File	taylor-m/sent_items/439.

Please switch to Wednesday, Nov. 7

-----Original Message-----

From: Keiser, Holly Sent: Wednesday, October 31, 2001 2:36 PM To: Taylor, Mark E (Legal) Subject: Damien's Reservations

DAMIEN'S 3011 Smith Street 713-522-0439

Reservations: 7:30 p.m. on Thursday, November 1, 2001

Directions from Hobby airport area:

Take I-45 N toward downtown Exit number 45 SCOTT ST/ DOWNTOWN Keep LEFT at the fork in the ramp Keep LEFT at the fork in the ramp Stay straight to go onto ST. JOSEPH PKWY. Turn LEFT onto FANNIN St. Turn RIGHT onto ANITA

ST. Corner of Anita/Smith

Holly Keiser Enron Wholesale Services Legal Department Phone: 713-345-7893 Fax: 713-646-3490 Location: EB 3887
Holly.Keiser@enron.com

Message 361 of 413

FW: directions

Sender	justin.rostant@enron.com
Recipients	[e.taylor@enron.com]
File	taylor-m/inbox/social/16.

Different field, see below for directions

Justin Rostant Enron Financial Trading Desk. Phone: 713-853-6460 Mobile: 832-264-6333 Fax: 713-646-3239

Directions for those who need them:

Cullen Park: from Enron Building go west on I-10, past Beltway 8 and Highway 6, exit Barker Cypress Road, turn right onto Barker Cypress, go north about 1 mile, turn left onto Saums Road, go about 1/2 mile, fields are on left. Look for the lit fields!

Alief Park: from Enron Building go west on I-10, exit Highway 6, go south on Highway 6 for about 2-3 miles, turn right onto Westheimer Parkway, go west about 3 miles (Park will be on right), turn right on Barker Cypress Road, go north about 1/2 mile. at 4-way stop turn left, go about 1/4 mile, fields on left.

Message 362 of 413

FW: financial contracts for ammonia & urea

Sender	legal <taylor@enron.com>
Recipients	[holly.keiser@enron.com]
File	taylor-m/sent_items/127.

Please arrange this for me.

-----Original Message-----

From: Distefano, Marc Sent: Thursday, October 04, 2001 4:39 PM To: Taylor, Mark E (Legal) Subject: financial contracts for ammonia & urea

Mark, We are currently getting prepared to trade ammonia and urea in Enron Global Markets. We started the group within EGM - NGL's late July, and with the help of John Viverito, getting ourselves ready for the physical trade. We would like to meet with you for a few minutes early next week, if possible, to discuss the financial contract, what we will need to get one prepared, etc. Our goal is to be prepared to do both the physical and financial trading of fertilizer by the end of the year.

V/R Marc J. Distefano Enron Global Markets office 713-345-4734 cell 713-302-7745 fax 713-750-5124

Message 363 of 413

EnBank Auctions now live

Sender	david.forster@enron.com
Recipients	['mark.taylor@enron.com', 'michael.guadarrama@enron.com', 'jay.webb@enron.com', 'product.houston@enron.com', '...]
File	taylor-m/all_documents/1310.

EnronOnline Auctions are now live in the Production database, with EnBank virtual storage as the first product offering.

There is a new Auctions button on the bottom of the Quotes screen (replaces the old Market Info. button). Please look over the site contents and let me know if you spot anything which needs to be edited.

For detailed EnBank questions, please refer customers to the EnBank HelpDesk at 011 44 (0) 207 783 7700. All media calls concerning EnBank should be directed to Jonathan Whitehead: 011 44 (0) 207 783 6534. Media calls concerning EnronOnline Auctions within Enron's broader EnronOnline/e-commerce strategy will be handled by myself: 001 713 853 1861.

Many thanks to those who have put in long hours to bring EnBank and the new auctions site to fruition in record time.

Dave

Message 364 of 413

Re: US REGULATORY CALL - FRIDAY NOVEMBER 10

Sender	mark.taylor@enron.com
Recipients	['janette.elbertson@enron.com']
File	taylor-m/sent/1482.

Yes, I was on the call.

Janette Elbertson 11/10/2000 08:41 AM

To: Mark Taylor/HOU/ECT@ECT, Taffy Milligan/HOU/ECT@ECT cc: Subject: US REGULATORY CALL - FRIDAY NOVEMBER 10

Mark:

Mark wanted me to see if you can do this call today.

Janette Elbertson Enron North America Corp. Legal Department - EB3326 Telephone: (713) 853-7906 Fax: (713) 646-2600 janette.elbertson@enron.com ----- Forwarded by Janette Elbertson/HOU/ECT on 11/10/2000 08:40 AM -----

Scott Marra <SMARRA@isda.org> 11/09/2000 01:59 PM

To: US REGULATORY COMMITTEE <USREGCOMM@isda.org> cc: Subject: US REGULATORY CALL - FRIDAY NOVEMBER 10

Our next conference call will be held this Friday, November 10th at 10:00 a.m. New York time. If you wish to participate, please call 888-904-9318 and give passcode "US REG" and leader is Stacy Carey.

Message 365 of 413

Potential Meeting Next Week

Sender	mark.taylor@enron.com
Recipients	['taffy.milligan@enron.com']
File	taylor-m/sent/1224.

Taffy - could you please reply & coordinate with the relevant people. ----- Forwarded by Mark Taylor/HOU/ECT on 08/04/2000 09:29 AM -----

"Pryzant, Paul" <ppryzant@chematch.com> 08/03/2000 07:35 PM

To: "mark.taylor@enron.com" <mark.taylor@enron.com> cc: Subject: Potential Meeting Next Week

Mark,

I will be back in Houston this weekend, so I wanted to check with you for a time to come meet you and the other people next week.? Right now my schedule is wide open so let me know a time that is convenient for you.

Sorry if you have left any messages on my cell phone.? Estes Park is outside the Sprint PCS network range so my phone does not work here.

I look forward to hearing from you.

Paul E. Pryzant 713-681-8622 (direct) 832-754-4514 (cell) 713-973-9224 (home) ppryzant@chematch.com
ppry@hal-pc.org (home)

Message 366 of 413

Meeting with Senate Agriculture Staff

Sender	scarey@isda.org
Recipients	['usregcomm@isda.org']
File	taylor-m/all_documents/1752.

ISDA along with the Ad Hoc Coalition was invited by Senate Agriculture Committee staff to meet with the Chicago Board of Trade and the Chicago Mercantile Exchange on Tuesday to discuss a Chicago proposal on legal certainty and regulatory reform. I have attached the Chicago proposal for your review. This is a confidential document and should not be circulated beyond our regulatory committee. I appreciate your sensitivity to this request. We will brief you after the meeting either by e-mail or conference call. Should you have any questions please do not hesitate to contact me at home this weekend - 703-256-1719 or at the office on Monday. -- Many thanks.

<<Chicago Proposal.doc>>

Stacy Carey Director North American Regulatory Policy International Swaps and Derivatives Association (202) 457-6545
ph (202) 457-6315 fax scarey@isda.org

- Chicago Proposal.doc

Message 367 of 413

Re: Friday's Conference Call

Sender	mark.taylor@enron.com
Recipients	['janette.elbertson@enron.com']
File	taylor-m/all_documents/3527.

Yes, I'll take the call.

Janette Elbertson 10/24/2000 04:17 PM

To: Mark Taylor/HOU/ECT@ECT cc: Taffy Milligan/HOU/ECT@ECT Subject: Friday's Conference Call

Mark:

Mark Haedicke will be travelling on Friday. Can you participate in this?

Janette Elbertson Enron North America Corp. Legal Department - EB3326 Telephone: (713) 853-7906 Fax: (713) 646-2600 janette.elbertson@enron.com ----- Forwarded by Janette Elbertson/HOU/ECT on 10/24/2000 04:19 PM -----

Barbara Hanlon <BHANLON@isda.org> 09/26/2000 09:31 AM

To: US REGULATORY COMMITTEE <USREGCOMM@isda.org> cc: Subject: Friday's Conference Call

Our next conference call will be held this Friday, November 3rd at 10:00 a.m. New York time. If you wish to participate, please call 888-904-9318 and give passcode "US REG" and leader is Stacy Carey.

Stacy Carey Director of U.S. Regulatory Policy

Message 368 of 413

Re: Remote Access Request

Sender	janette.elbertson@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/2420.

Mark:

Cheryl would have access through IPass. Have her talk to our floor tech so he can explain how it works.

Janette Elbertson Enron North America Corp. Legal Department - EB3326 Telephone: (713) 853-7906 Fax: (713) 646-2600 janette.elbertson@enron.com

Mark Taylor 03/01/2001 11:22 AM

To: Janette Elbertson/HOU/ECT@ECT cc: Subject: Remote Access Request

Any idea how I should handle this? ----- Forwarded by Mark Taylor/HOU/ECT on 03/01/2001 11:22 AM -----

Cheryl Nelson@ENRON Sent by: Keegan Farrell@ENRON 03/01/2001 11:03 AM

To: Mark Taylor/HOU/ECT@ECT cc: Subject: Remote Access Request

I would like permission to request remote access from home. I have a personal laptop, and it would benefit me greatly to be able to work out of the house. Thank you for your attention to this matter. Sincerely,

Cheryl Nelson Senior Counsel EB3880D (713) 345-4693

Message 369 of 413

New Newsletter on EnronOnline

Sender	mark.greenberg@enron.com
Recipients	[]
File	taylor-m/notes_inbox/2074.

Justin,=20

Please take a look at the attached and let me know your thoughts. =20

I am a bit concerned about putting anything out there that has an Enron=20 opinion about the market (see Page 2 of attachment).

Mark Senior Counsel, EWS Phone: 713-345-8897 Facsimile: 713-646-3490 E-Mail: Mark.Greenberg@enron.com -----
Forwarded by Mark Greenberg/NA/Enron on 05/29/2001 09:05 AM -----

=09Lorie Hernandez/ENRON@enronXgate =0905/21/2001 09:50 AM =09=09=20 =09=09 To: Mark Greenberg/NA/Enron@ENRON =09=09 cc:=20 =09=09 Subject: New Newsletter on EnronOnline

Mark, =01; We are looking to place a new newsletter on EnronOnline.=01; The newsletter= will=20 reside within the secure site under the Enron Content section.=01; Can you = take=20 a look and let me know if you have any issues or concerns that would prohib= it=20 us from displaying it on the site?=01;=20 =01; =01; Thanks, Lorie E. Hernandez
713.853.6283

Message 370 of 413

Re: New Newsletter on EnronOnline

Sender	mark.greenberg@enron.com
Recipients	['lorie.hernandez@enron.com']
File	taylor-m/all_documents/8461.

Lorie -

Sorry for the delay in responding. I have no comments on the content,=20 however, the disclaimer at the bottom needs to be changed. I have attached= a=20 draft of the language I think works best and is consistent with similar=20 pieces promoted by other Enron UK affiliates.

Please let me know if you should need anything further.

Mark Senior Counsel, EWS Phone: 713-345-8897 Facsimile: 713-646-3490 E-Mail: Mark.Greenberg@enron.com

=09Lorie Hernandez/ENRON@enronXgate =0905/21/2001 09:50 AM =09=09=20 =09=09 To: Mark Greenberg/NA/Enron@ENRON =09=09 cc:=20 =09=09 Subject: New Newsletter on EnronOnline

Mark, =01; We are looking to place a new newsletter on EnronOnline.=01; The newsletter= will=20 reside within the secure site under the Enron Content section.=01; Can you = take=20 a look and let me know if you have any issues or concerns that would prohib= it=20 us from displaying it on the site?=01;=20 =01; =01; Thanks, Lorie E. Hernandez
713.853.6283

*Message 371 of 413***Re: Reliable Power Products (Nuclear Outage Call Options) on**

Sender	mark.taylor@enron.com
Recipients	['leonardo.pacheco@enron.com']
File	taylor-m/all_documents/2665.

Numbers 2 and 3 still appear to be in the draft section.

Leonardo Pacheco@ENRON 07/19/2000 10:49 AM

To: Tom Moran/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Rudi Zipter/HOU/ECT@ECT, Jeff Blumenthal/HOU/ECT@ECT cc: Dale Neuner/HOU/ECT@ECT, David Forster/Corp/Enron@Enron, Gaurav Babbar/HOU/ECT@ECT Subject: Reliable Power Products (Nuclear Outage Call Options) on EnronOnline

We have built three new Products Types called:

US East Power Fin Opt Knock-in 1 US East Power Fin Opt Knock-in 2 US East Power Fin Opt Knock-in 3

Please go into DataManager and approve these Product Types (look at attached Document for long description). We plan to go life next week. If you need help with the approval process contact Dale Neuner (ext. 39746) or myself (ext. 39938). Please Do Not Reject the Product Type. If you have questions or changes to the Product Type please contact me at your convenience.

Thank you very much for your co-operation!

Leonardo Pacheco ext. 39938

*Message 372 of 413***Re: Draft Request for No-Action Letter**

Sender	vicki.sharp@enron.com
Recipients	['james.keller@enron.com', 'everaertn@sullcrom.com']
File	taylor-m/inbox/12.

I will look at this over the weekend. Scott and Jim, I would appreciate your comments by Monday am. Thanks.

EveraertN@sullcrom.com on 09/07/2001 08:45:03 AM To: vsharp@enron.com cc: mark.e.taylor@enron.com, Raislerk@sullcrom.com, GilbergD@sullcrom.com Subject: Draft Request for No-Action Letter

Please find attached the draft Request for No-Action Letter for Enron Energy Services. This draft incorporates Mark Taylor's comments on the letter.

We believe that it would be an excellent idea to send this letter to the CFTC as soon as possible.

Please call Ken Raisler at (212) 558-4675, David Gilberg at (212) 558-4680 or me at (212) 558-3255 with any comments or questions.

Sincerely,

Natalie Everaert

<<No-Action Request - CFTC(v6).DOC>>

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

- No-Action Request - CFTC(v6).DOC

Message 373 of 413

Bankruptcy Update

Sender	mark.taylor@enron.com
Recipients	['carol.clair@enron.com']
File	taylor-m/sent/3229.

----- Forwarded by Mark Taylor/HOU/ECT on 02/21/2001 07:20 PM -----

Stacy Carey <SCAREY@ISDA.ORG> 02/21/2001 10:36 AM

To: US REGULATORY COMMITTEE <USREGCOMM@isda.org> cc: Subject: Bankruptcy Update

Meetings have been held this week on bankruptcy reform with the CFTC and the Treasury Department. FDIC also hosted a technical meeting this morning with the FED, SEC, Treasury and CFTC. Seth Grosshandler, Josh Cohn and Geoff Goldman attended on behalf of the Bond Market Association and ISDA.

Various modifications have been made to our package as a result of these meetings in an attempt to facilitate an amendment package the administration will be able to support and send to the Capitol Hill for inclusion into the overall bill. These modifications are reflected in a revised Summary Document page that will be faxed to you this morning.

Stacy Carey Director North American Regulatory Policy International Swaps and Derivatives Association (202) 457-6545 ph (703) 256-1833 fax (917) 543-9622 cell scarey@isda.org

Message 374 of 413

Letter to House Rules Committee Supporting Netting Amendment

Sender	mark.taylor@enron.com
Recipients	['carol.clair@enron.com']
File	taylor-m/sent/3249.

----- Forwarded by Mark Taylor/HOU/ECT on 02/27/2001 08:27 PM -----

Stacy Carey <SCAREY@ISDA.ORG> 02/26/2001 06:58 PM

To: US REGULATORY COMMITTEE <USREGCOMM@isda.org> cc: Subject: Letter to House Rules Committee Supporting Netting Amendment

The Bond Market Association and ISDA have circulated the attached letter in support of our amendment package to other trade associations asking for their decision about joining the letter by noon tomorrow. The purpose of the letter is to signal widespread support for the netting amendment package. It has been proposed that individual firms also have the opportunity to sign the attached letter. To that end, would you please let me know if your firm will be or will not be in a position to sign the letter tomorrow. Many thanks -- Stacy

<<Dreier Netting Letter.doc>>

Stacy Carey Director North American Regulatory Policy International Swaps and Derivatives Association (202) 457-6545 ph (703) 256-1833 fax (917) 543-9622 cell scarey@isda.org

- Dreier Netting Letter.doc

Message 375 of 413

Maclaren Energy Inc.

Sender	peter.keohane@enron.com
Recipients	['stephanie.panus@enron.com', 'legal <.taylor@enron.com>']
File	taylor-m/deleted_items/358.

Please prepare the following response, and copy Dalton McGrath of Blake, Cassels & Graydon, for Mark Taylor's signature:

"We are writing in reply to your letter of November 16, 2001. There simply has been no change in the manner or methodology by which the Floating Price for the referenced Transaction has been, and continues to be determined. Your correspondence and the previous from you client either represents a thinly veiled attempt to renegotiate a transaction without any basis in fact, law or good faith for so doing. We expect the referenced Transaction to be performed in accordance with its terms, and intend to enforce and pursue all of our remedies in the event of any non-performance by you client.

Please forward all of your future correspondence on this matter to the attention of Mr. Dalton McGrath, Blake, Cassels & Graydon, 3500, 855-2nd Street SW, Calgary, Alberta, T2P 4J8, Fax: 403.260.9654."

Peter C.M. Keohane Vice President, Assistant General Counsel and Secretary Enron Canada Corp. Phone: (403) 974-6923 Fax: (403) 974-6707 E-mail: peter.keohane@enron.com

Message 376 of 413

Bankruptcy Letters & Conference Call Tomorrow at 9:00 a.m.

Sender	scarey@isda.org
Recipients	['sam.baptista@morganstanley.com', 'dalexander@bondmarkets.com']
File	taylor-m/deleted_items/397.

Pursuant to Friday's meeting with the House Financial Services Committee, we have drafted an industry letter to Chairman Sensenbrenner supporting passage of the netting provisions. We have also drafted a similar letter to send to the House and Senate leadership that supports the sentiment expressed by the key financial regulators in the October 31 letter to Speaker Hastert which is attached below. We would like to get a good showing of trade associations and firms sign-on the attached letters we hope to send tomorrow. Please let Stacy Carey (212) 332-1202 or Frank Hampton (202) 434-8400 know if you would be willing to sign the letter. We have also scheduled a conference call for 9:00 a.m. tomorrow. The call details are as follows: CALL TIME: 9:00 AM USA Toll Free Number: 888-904-9318 PASSCODE: BANKRUPTCY LEADER: Ms Stacy Carey If you have any questions please contact either Stacy or Frank. Many thanks.

<<Sensenbrenner Letter.doc>> <<House-Senate Leadership Letter.doc>>

<<Monday, November 05, 2001.pdf>>

- Sensenbrenner Letter.doc - House-Senate Leadership Letter.doc - Monday, November 05, 2001.pdf

Message 377 of 413

Continental Airlines - Elite Upgrade**Sender** eua@coair.com**Recipients** ['legal <taylor@enron.com']**File** taylor-m/travel/11.

Dear OnePass Elite Member,

Continental Airlines is pleased to advise you that you have been upgraded to First Class on your upcoming flight due to your OnePass Elite Membership.

Confirmation: VX528N Flight Number: 1969 Date: July 14, 2001 Origination: IAH Destination: LGA Seat: 03B*

This e-mail notice does not replace the need to check-in for the flight. Recommended check-in time is 1 hour prior to departure for domestic flights. If you do not check in at least 20 minutes prior to departure your seat can be given away.

PLEASE DO NOT REPLY TO THIS EMAIL. UNFORTUNATELY MAIL SENT TO THIS ADDRESS CANNOT BE ANSWERED.

To make changes to your email address, access the Your Account area of the OnePass site (<http://www.onepass.com/asp/youraccount.asp>) or contact the OnePass Service Center as (713) 952-1630.

For changes to your itinerary, contact your Travel Agent or Continental Reservations at 1-800-525-0280 (Domestic) or 1-800-231-0856 (International).

To unsubscribe from all OnePass partner e-mail programs, please visit <http://www.onepass.com/emailpartoffers>

Thank you for choosing Continental Airlines.

Message 378 of 413

Continental Airlines - Elite Upgrade**Sender** eua@coair.com**Recipients** ['legal <taylor@enron.com']**File** taylor-m/travel/13.

Dear OnePass Elite Member,

Continental Airlines is pleased to advise you that you have been upgraded to First Class on your upcoming flight due to your OnePass Elite Membership.

Confirmation: VX528N Flight Number: 1973 Date: July 17, 2001 Origination: LGA Destination: IAH Seat: 04A*

This e-mail notice does not replace the need to check-in for the flight. Recommended check-in time is 1 hour prior to departure for domestic flights. If you do not check in at least 20 minutes prior to departure your seat can be given away.

PLEASE DO NOT REPLY TO THIS EMAIL. UNFORTUNATELY MAIL SENT TO THIS ADDRESS CANNOT BE ANSWERED.

To make changes to your email address, access the Your Account area of the OnePass site (<http://www.onepass.com/asp/youraccount.asp>) or contact the OnePass Service Center as (713) 952-1630.

For changes to your itinerary, contact your Travel Agent or Continental Reservations at 1-800-525-0280 (Domestic) or 1-800-231-0856 (International).

To unsubscribe from all OnePass partner e-mail programs, please visit <http://www.onepass.com/emailpartoffers>

Thank you for choosing Continental Airlines.

Message 379 of 413

ERCs for Sale in Calif.

Sender	jlbstone@sbcglobal.net
Recipients	['emissions@enron.com']
File	taylor-m/inbox/emissions_e_mail/1.

Hello

My name is John Poundstone. I manage my family's farm in Northern California.

The attached Excel file details ERCs our family has for sale in Colusa County, California. Under California law, phasing out the burning of rice straw, our family was able to certify our emission tonnage.

We are in an "attainment area" and if the Rice portion of the credits are sold to a "non attainment area", EPA phases that portion of our tonnage down to 38%. If sold within the area, EPA, hopefully, is not involved and there is no phase down.

We have been negotiating with Reliant Energy to sell our PM10 and SOx for use at their proposed 500 mw plant to be built in Colusa County. Our PM10 will meet approximately 20% of their facility's needs. We have been negotiating with a local vegetable oil company for our ROG and NOx.

I have heard your company has been active in the California market and I wanted to see if your company might have interest in our credits.

I may be reached at the following phone numbers: Mobile 530-304-0083 - will get quickest response Ranch Office 530-437-2486 Home Office 530-662-9244 email: jlbstone@sbcglobal.net <mailto:jlbstone@sbcglobal.net>

I look forward to your response.

Sincerely, John Poundstone

Message 380 of 413

Feedback - Louise Kitchen

Sender	lydia.cannon@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/archive/7_00/140.

July 31, 2000

Mark Taylor EB3889

Mark,

I will be participating in Enron's Executive Impact and Influence Program on September 12 - 13, 2000. Prior to attending the program, each participant is asked to gather input on individual management styles and practices from his/her immediate manager, each direct report, and up to eight peers/colleagues.

I value your input and have asked Keilty, Goldsmith & Company to send you a feedback packet to provide feedback about my management practices. Your answers will be kept confidential, so please be candid and honest. Based on your input combined with the input of others I will develop an action plan to improve.

The booklet and materials for your feedback will be shipped on August 15, 2000. When you receive your packet, it is important that you adhere to the deadline date indicated. If you do not receive the forms within a week of

August 15, 2000, please notify Deborah Evans at 713-942-8436 or =20 debe@fsddatasvc.com..

If you have any questions about the program, what feedback is expected, or =20 how the feedback will be used, please contact Susan Lewis (713-853-9712) or =20 Dick Amabile (713-853-3972) at Enron Corp.

I appreciate your input.

Louise Kitchen

Message 381 of 413

Continental Airlines - Elite Upgrade

Sender	eua@coair.com
Recipients	['legal <.taylor@enron.com']
File	taylor-m/travel/9.

Dear OnePass Elite Member,

Continental Airlines is pleased to advise you that you have been upgraded to First Class on your upcoming flight due to your OnePass Elite Membership.

Confirmation: VF92WS Flight Number: 249 Date: October 28, 2001 Origination: FLL Destination: IAH Seat: 02A*

This e-mail notice does not replace the need to check-in for the flight. Recommended check-in time is 2 hours prior to departure for domestic flights. If you do not check in at least 20 minutes prior to departure your seat can be given away.

PLEASE DO NOT REPLY TO THIS E-MAIL. UNFORTUNATELY E-MAIL SENT TO THIS ADDRESS CANNOT BE ANSWERED. PLEASE DIRECT ALL INQUIRIES TO THE ELITE PRIORITY LINE, WHICH CAN BE FOUND ON YOUR ELITE CARD.

To make changes to your e-mail address, access the Your Account area of the OnePass site (<http://www.onepass.com/asp/youraccount.asp>) or contact the OnePass Service Center as (713) 952-1630.

For changes to your itinerary, contact your Travel Agent or Continental Reservations at 1-800-525-0280 (Domestic) or 1-800-231-0856 (International).

To unsubscribe from OnePass Elite upgrade e-mail notification, please visit <http://onepass.continental.com/emailupgrades>

Thank you for choosing Continental Airlines.

Message 382 of 413

Continental Airlines - Elite Upgrade

Sender	eua@coair.com
Recipients	['legal <.taylor@enron.com']
File	taylor-m/travel/2.

Dear OnePass Elite Member,

Continental Airlines is pleased to advise you that you have been upgraded to First Class on your upcoming flight due to your OnePass Elite Membership.

Confirmation: VHYLT4 Flight Number: 63 Date: September 19, 2001 Origination: EWR Destination: IAH Seat: 04A*

This e-mail notice does not replace the need to check-in for the flight. Recommended check-in time is 1 hour prior to departure for domestic flights. If you do not check in at least 20 minutes prior to departure your seat can be given away.

PLEASE DO NOT REPLY TO THIS E-MAIL. UNFORTUNATELY E-MAIL SENT TO THIS ADDRESS CANNOT BE ANSWERED. PLEASE DIRECT ALL INQUIRIES TO THE ELITE PRIORITY LINE, WHICH CAN BE FOUND ON YOUR ELITE CARD.

To make changes to your e-mail address, access the Your Account area of the OnePass site (<http://www.onepass.com/asp/youraccount.asp>) or contact the OnePass Service Center as (713) 952-1630.

For changes to your itinerary, contact your Travel Agent or Continental Reservations at 1-800-525-0280 (Domestic) or 1-800-231-0856 (International).

To unsubscribe from OnePass Elite upgrade e-mail notification, please visit <http://onepass.continental.com/emailupgrades>

Thank you for choosing Continental Airlines.

Message 383 of 413

Continental Airlines - Elite Upgrade

Sender	eua@coair.com
Recipients	['legal <.taylor@enron.com']
File	taylor-m/travel/8.

Dear OnePass Elite Member,

Continental Airlines is pleased to advise you that you have been upgraded to First Class on your upcoming flight due to your OnePass Elite Membership.

Confirmation: VF92WS Flight Number: 1748 Date: October 26, 2001 Origination: IAH Destination: FLL Seat: 01E*

This e-mail notice does not replace the need to check-in for the flight. Recommended check-in time is 2 hours prior to departure for domestic flights. If you do not check in at least 20 minutes prior to departure your seat can be given away.

PLEASE DO NOT REPLY TO THIS E-MAIL. UNFORTUNATELY E-MAIL SENT TO THIS ADDRESS CANNOT BE ANSWERED. PLEASE DIRECT ALL INQUIRIES TO THE ELITE PRIORITY LINE, WHICH CAN BE FOUND ON YOUR ELITE CARD.

To make changes to your e-mail address, access the Your Account area of the OnePass site (<http://www.onepass.com/asp/youraccount.asp>) or contact the OnePass Service Center as (713) 952-1630.

For changes to your itinerary, contact your Travel Agent or Continental Reservations at 1-800-525-0280 (Domestic) or 1-800-231-0856 (International).

To unsubscribe from OnePass Elite upgrade e-mail notification, please visit <http://onepass.continental.com/emailupgrades>

Thank you for choosing Continental Airlines.

Message 384 of 413

Continental Airlines - Elite Upgrade

Sender	eua@coair.com
Recipients	['legal <.taylor@enron.com']
File	taylor-m/travel/91.

Dear OnePass Elite Member,

Continental Airlines is pleased to advise you that you have been upgraded to First Class on your upcoming flight due to your OnePass Elite Membership.

Confirmation: VKJ705 Flight Number: 1745 Date: November 25, 2001 Origination: CLE Destination: IAH Seat: 02A*

This e-mail notice does not replace the need to check-in for the flight. Recommended check-in time is 2 hours prior to departure for domestic flights. If you do not check in at least 20 minutes prior to departure your seat can be given away.

PLEASE DO NOT REPLY TO THIS E-MAIL. UNFORTUNATELY E-MAIL SENT TO THIS ADDRESS CANNOT BE ANSWERED. PLEASE DIRECT ALL INQUIRIES TO THE ELITE PRIORITY LINE, WHICH CAN BE FOUND ON YOUR ELITE CARD.

To make changes to your e-mail address, access the Your Account area of the OnePass site (<http://www.onepass.com/asp/youraccount.asp>) or contact the OnePass Service Center as (713) 952-1630.

For changes to your itinerary, contact your Travel Agent or Continental Reservations at 1-800-525-0280 (Domestic) or 1-800-231-0856 (International).

To unsubscribe from OnePass Elite upgrade e-mail notification, please visit <http://onepass.continental.com/emailupgrades>

Thank you for choosing Continental Airlines.

Message 385 of 413

Mid Year 2001 Performance Evaluation Process

Sender	janette.elbertson@enron.com
Recipients	['lance.schuler-legal@enron.com', 'teresa.bushman@enron.com', 'jeffrey.hodge@enron.com', 'gail.brownfeld@enron...]
File	taylor-m/notes_inbox/2128.

The Mid Year 2001 Performance Management process began May 7. It is important you access the Performance Evaluation Process (PEP) system (<http://pep.enron.com>) to approve your Assistant's list of suggested reviewers. The list of suggested reviewers should include all of the Assistant's assignments, and possibly 2 of her peers or 2 reviewers from outside our department (people they work with, not personal friends). She should also complete the self-evaluation form (even if she is a new hire). Each employee can select up to a maximum of 7 reviewers, and they have an opportunity to submit a list of up to 5 accomplishments on the self-evaluation form. In my role as Administrative Coordinator, I will be completing an evaluation form for all Assistants so it is not necessary for them to include me in the list of suggested reviewers.

As the immediate supervisor it is important you gather data, summarize it, and provide written feedback on your Assistant to your group's OGC representative. All feedback must be completed by May 25.

Help Desk representatives are available to answer questions and provide technical support throughout the process. You can reach the PEP Help Desk at:

Houston: 713.853.4777, Option 4 or email: perfmgmt@enron.com

Thank you for your attention to this matter.

Janette Elbertson Enron Wholesale Services Legal Department - EB3326 Telephone: (713) 853-7906 Fax: (713) 646-2600 janette.elbertson@enron.com

Message 386 of 413

Project bluesox contract / legal rep for deal team

Sender	mark.taylor@enron.com
Recipients	['travis.mccullough@enron.com']
File	taylor-m/sent/3379.

----- Forwarded by Mark Taylor/HOU/ECT on 05/10/2001 11:15 AM -----

=09Mark Greenberg@ENRON =0904/23/2001 06:21 PM =09=09=20 =09=09 To: Mark Taylor/HOU/ECT@ECT =09=09 cc:=20 =09=09 Subject: Project bluesox contract / legal rep for deal team

Mark -

Here is the e-mail we talked about. The project is in relation to the=20 BankLogic module. Please take a look at this and let me know if you think= =20 Travis should be involved. =20

Thanks.

Mark Senior Counsel, ENA Phone: 713-345-8897 Facsimile: 713-646-3940 E-Mail: Mark.Greenberg@enron.com ----- Forwarded by Mark Greenberg/NA/Enron on 04/23/2001 06:19 PM -----

=09Douglas Fuehne/ENRON@enronXgate =0904/20/2001 02:45 PM =09=09=20 =09=09 To: Mark Greenberg/NA/Enron@ENRON =09=09 cc:=20 =09=09 Subject: Project bluesox contract / legal rep for deal team

Mark=20 Attached is a prelim term sheet from "Bluesox" on our potential deal with= =20 them.=01; I'd like you to review it and to get the contract on this thing= =20 started.=01; Of course some of the points will change, but we'd like to hav= e at=20 least a contract structure to start out with.=01;=20 =01; I'd like you to be the legal representative on the deal team.=01;=01; We're= =20 starting our meetings next monday. =01; thanks mark doug =01; FYI=01;- also attached is the "generic software license agreement template"= I=20 received from a guy in Portland.=01; I don't know if this will help your=20 contract structure out or not.=20 =01; Doug Fuehne e-commerce Manager CommodityLogic (713) 345-3992 douglas.fuehne@enron.com =01;

Message 387 of 413

Enron - License and Services Agreement.

Sender	mark.taylor@enron.com
Recipients	['carlos.alatorre@enron.com', 'carl.carter@enron.com']
File	taylor-m/sent/3215.

Apparently this came yesterday but I didn't see it since it didn't come directly from David. Sorry about that. ----- Forwarded by Mark Taylor/HOU/ECT on 02/15/2001 11:05 AM -----

Mcintyrk@sullcrom.com 02/14/2001 01:12 PM

To: Mark.taylor@enron.com cc: GILBERGD@sullcrom.com, Kuzmika@sullcrom.com, RAISLERK@sullcrom.com Subject: Enron - License and Services Agreement.

Mark,

I have attached our draft version of the Enron License and Services Agreement.

As we discussed on our call, there are a number of issues which require clarification and which we have highlighted in the Agreement. There are a number of areas, in particular Service Support, where we have proposed possible approaches but we obviously do not know whether these suggestions will work for Enron or are consistent with the intention to run the service (e.g., Service Levels in Schedule B.)

If you have any comments or questions please email or call either myself at (212) 558-3491, David at (212) 558-4680 or Anna at (202) 956-7575.

Regards,

Kieran McIntyre

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

- Enron - License and Services Agreement.doc

Message 388 of 413

Oracle, Tibco, BEAS Contacts

Sender	carl.carter@enron.com
Recipients	['n..gray@enron.com', 'bob.shults@enron.com', 'legal <taylor@enron.com', 'enw <palmer@enron.com']
File	taylor-m/archive/2001_08/32.

Mark, It has been a while since we last discussed the Oracle, TIBCO and BEAS contacts and what effect, if any, they will have on our e-commerce solutions that we are presenting to third parties. As a review the following are the basic sets of offerings: 1) Third parties (gas pipelines, gas storage companies) will post their products on the EnronOnline website. 2) EnronOnline will build a private e-marketplace, essentially an EnronOnline look-alike, for third parties. EnronOnline will host the private e-marketplace using Enron hardware on Enron's premises. (Note: a second tier to this offering will allow the same third party to cross post its products simultaneously on EnronOnline as well as the private e-marketplace.) 3) A software license giving a third party the right to use EnronOnline software but maintain the application and website on its own premises using its own hardware. 4) A software sale (selling the object or source code) of EnronOnline software to third parties. At one point, we were expecting a response from outside legal council. Did we ever get anything in writing? If so, would you please forward it to me. We are very close to defining commercial terms for building several private e-marketplaces (#2 above). We need to know if certain contractual conflicts exist and if so, what freedom do we have. Please inform us of where you stand on these points so that we can move forward with pricing these options. Thanks. Carl

Carl M. Carter EnronOnline LLC 713-345-3854 (Tel) 713-504-0963 (Cell) 713-646-2126 (Fax) carl.carter@enron.com

Message 389 of 413

GREAT ROTATION OPPORTUNITY IN EBS ORIGINATION AMERICAS

Sender	andrea.richards@enron.com
Recipients	['lisa.jones@enron.com', 'brian.spector@enron.com', 'erica.adams@enron.com', 'john.addison@enron.com', 'arize....
File	taylor-m/inbox/analyst_prog/5.

*****ATTENTION ANALYSTS*****

GREAT ROTATION OPPORTUNITY IN EBS ORIGINATION AMERICAS

There is a great rotation opportunity available in EBS Origination Americas under the management of Brian Spector available immediately. This rotation offers a vast amount of experience that would be beneficial in your future rotations and an opportunity to work with a fun group of hard working professionals.

You will have the opportunity to: ? Learn and apply leading edge technology ? Learn about the deregulating industry (strategies are in flux, way of doing business is changing) ? Develop products to assist in the execution of a company's new strategy ? Innovate intermediation structures (i.e. monetizations, blend and extend) ? Focus on interaction with trading, mid-marketing, structures, and engineering ? Work on deals from start to finish ? Model interesting and complex structures

Your specific role would entail: ? Working on over 10 deals with more in the prospect pipeline ? Working with a group responsible for selling another \$400 mm worth of our network. This needs to be done in the next 12 months. ? Analyzing and understanding companies within telecom industries (cable, wireless, satellite, wireline) ? Understanding EBS' technological perspective, financial implications, and strategic issues related to deals ? Assisting in helping to determine new market targets

If this sounds like the perfect rotation for you, please forward your resume or contact:

Brian Spector 713-853-4276 And cc: Andrea Richards, Career Development Specialist 713-853-6499 Lisa Jones, Career Development Specialist 713-853-5213

Message 390 of 413

Ready To Go Program

Sender	holly.keiser@enron.com
Recipients	['frank.sayre@enron.com', 'francisco.pinto.leite@enron.com']
File	taylor-m/notes_inbox/2143.

fyi...

Holly Keiser Enron Americas Legal Department - EB 3887 713-345-7893 (ph) 713-646-3490 (fx) Holly.Keiser@enron.com
----- Forwarded by Holly Keiser/ENRON_DEVELOPMENT on 05/09/2001 08:15 AM -----

Jason Sherman/ENRON@enronXgate 05/09/2001 08:09 AM

To: Suzanne Adams/HOU/ECT@ECT, Connie Castillo/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Margaret Doucette/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Janette Elbertson/HOU/ECT@ECT, Kaye Ellis/HOU/ECT@ECT, Keegan Farrell/NA/Enron@Enron, Nita Garcia/NA/Enron@Enron, Carolyn George/Corp/Enron@ENRON, Esmeralda Gonzalez/ENRON@enronXgate, Vanessa Griffin/ENRON@enronXgate, Martha Keesler/ENRON@enronXgate, Holly Keiser/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Legal Temp 3/HOU/ECT@ECT, MaryHelen Martinez/NA/Enron@Enron, Rae Meadows/ENRON@enronXgate, Taffy Milligan/HOU/ECT@ECT, Linda J Simmons/HOU/ECT@ECT, Dina Snow/Corp/Enron@Enron, Becky Spencer/HOU/ECT@ECT, Twanda Sweet/HOU/ECT@ECT, Stephanie Truss/ENRON@enronXgate, Theresa Zucha/NA/Enron@Enron cc: Subject: Ready To Go Program

Hey guys, there is a new program for people who travel frequently to make sure they are setup for remote access called Ready To Go. I thought it might be something you'd want to check out. Here is the link on the intranet explaining how it works: [http://itcentral.enron.com/Data/Services/Ready2Go\(NAonly\)/](http://itcentral.enron.com/Data/Services/Ready2Go(NAonly)/). Remember when you schedule your people for appointments in the comment field put my name as your floor tech. That way they can track how successful the program is by floor. Thanks alot!

Jason Sherman ENA Desktop Support Office: (713) 345-7764 Email: Jason.Sherman@enron.com

*Message 391 of 413***(01-408) Large Trader Reporting Requirements and Accountability L**

Sender	marketing@nymex.com
Recipients	['marketing@nymex.com']
File	taylor-m/inbox/223.

Notice No. 01-408 November 29, 2001

TO: ALL MEMBER FIRMS ALL CLEARING MEMBERS ALL OPERATIONS MANAGERS

FROM: J. Robert Collins, Jr., President

RE: Large Trader Reporting Requirements and Accountability Levels for the Henry Hub Swap Contract

This is a reminder that the Henry Hub Swap Contract will begin trading on December 3, 2001, beginning with the NYMEX ACCESS session on Sunday, December 2, 2001. The first delivery month (or futures termination) will be January 2002. The Daily Large Trader Report for the Henry Hub Swap Contract submitted on December 4, 2001, for the close of business on December 3, 2001, must include reportable positions for this contract.

The quantity fixed for filing reports pursuant to NYMEX Rule 9.33 (Position Reporting) is 100 contracts for the Henry Hub Swap Contract. If a person controls or holds a position equal to, or greater than, 100 long or short in any one month, then all such futures, whether above the reportable level or not, shall be deemed reportable positions.

For the Clearing Members that file reports pursuant to NYMEX Rule 9.33 in a machine readable format, the six digit CFTC commodity code for the Henry Hub Swap Contract is 023654.

Additionally, the Accountability Level for the Henry Hub Swap Contract, pursuant to NYMEX Rule 9.26, is as follows:

Any One Month/All Months: 12,000 Net Futures

The Expiration Month in the Henry Hub Swap Contract will not have an Accountability Level or Position Limit.

Should you have any questions, please contact Nicholas Galati, Director of Market Surveillance, at (212) 299-2920, Nicholas Falcone, Manager of Market Surveillance, at (212) 299-2919, or Bonnie H. Yurga, Supervisor of Market Surveillance, at (212) 299-2879.

*Message 392 of 413***Re: MG update**

Sender	jefferson.sorenson@enron.com
Recipients	['mark.taylor@enron.com', 'eric.gadd@enron.com', 'stephen.douglas@enron.com', 'leslie.reeves@enron.com']
File	taylor-m/archive/8_00/137.

Eric,

Please find Mark Taylor's comments related to your request:

Steve Douglas-Tax person working on the MG Acquisition suggested an October 1 date related to MG acting as a clearing broker due to the following: -Value of the transaction would be impacted if imputed income was made related to acting as a clearing broker. Phone number - 713 853-0938

David Mitchell-CFTC Attorney with the Law firm of Kad, Walder, Wickershe, and Taft Mark Taylor needed to address some items with David

Mark Taylor - phone number 713 853-7459

I would suggest talking to Steve Douglas for Tax questions and Mark Taylor for legal questions. Please let me know if I can be of any assistance. (have not heard from Al)

Thanks, Jeff (713 853-5294)

----- Forwarded by Jefferson D Sorenson/HOU/ECT on

08/23/2000 10:56 AM -----

Eric Gadd 08/22/2000 10:02 AM To: Jefferson D Sorenson/HOU/ECT@ECT cc: Alfred Pennisi/NYC/MGUSA@MGUSA
Subject: Re: MG update

Jeff-

Thanks for the memo. After meeting with Al Pennisi in NY on Friday and discussing your memo, I am confident that all the issues you raise can be addressed so that we can have MG London act as Enron's clearing broker. I've asked him to contact you to review in more detail. Please let me know the outcome and action plan - - - is it feasible to complete this week?

From: Jefferson D Sorenson 17/08/2000 19:08

To: Eric Gadd/LON/ECT@ECT cc: Brent A Price/HOU/ECT@ECT, Leslie Reeves/HOU/ECT@ECT

Subject: MG update

Please find attached an action plan to determine the feasibility of MG acting as a clearing broker on Enron's behalf. As indicated on my voice message please call me so that we can discuss. (713 853-5294)

Thank you, Jeff ----- Forwarded by Jefferson D Sorenson/HOU/ECT on 08/17/2000 01:02 PM

David P Dupre 08/17/2000 12:59 PM To: Jefferson D Sorenson/HOU/ECT@ECT cc: Subject: MG update

Message 393 of 413

Re: ISDA with Citibank Subsidiary

Sender	carol.clair@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/1134.

I have not heard anything about this either.

Carol St. Clair EB 3892 713-853-3989 (Phone) 713-646-3393 (Fax) carol.st.clair@enron.com

Mark Taylor 08/04/00 09:26 AM

To: Tana Jones/HOU/ECT@ECT cc: Brent Hendry/NA/Enron@Enron, Carol St Clair/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Robert Bruce/NA/Enron@Enron, Samantha Boyd/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT Subject: Re: ISDA with Citibank Subsidiary

It would be nice if they could give us a counterparty name - I've never heard of Jerry Peskuchi.

Tana Jones 08/04/2000 09:16 AM

To: Brent Hendry/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Robert Bruce/NA/Enron@Enron cc: Subject: ISDA with Citibank Subsidiary

Anyone know anything about this? ----- Forwarded by Tana Jones/HOU/ECT on 08/04/2000 09:15 AM -----

Mary Tudon 08/04/2000 09:11 AM

To: Russell Diamond/HOU/ECT@ECT, Brant Reves/HOU/ECT@ECT, John Suttle/HOU/ECT@ECT, Paul Radous/Corp/Enron@ENRON, William S Bradford/HOU/ECT@ECT, Molly Harris/HOU/ECT@ECT cc: Tana Jones/HOU/ECT@ECT, Tanya Rohauer/HOU/ECT@ECT, Tom Moran/HOU/ECT@ECT Subject: ISDA with Citibank Subsidiary

Everybody,

Tanya suggested I ask all of you if you know anything related to a hotline call I took yesterday afternoon. I got a call from John Arnold who wanted to know who was working on getting an ISDA in place with a subsidiary of Citibank. He thought it was a hedge fund, he wasn't sure. He said that they were getting very impatient to start dealing with us. He left a contact for Citibank: Jerry Peskuchi (212) 723-7065, who wants to be updated on the status of the master.

Sorry I didn't bring this up in the morning meeting, but please let me know if any of you know anything about this, because I had no idea who to direct his call to and could only promise to try and find the right person handling this and pass the info on.

Message 394 of 413

RE: Viva VI or are they?

Sender	gpier@doubleclick.net
Recipients	['mark.taylor@enron.com', 'bhutt@ankarcapital.com']
File	taylor-m/all_documents/869.

I spoke with the Hotel in St Thomas - all systems go for now - they seemed totally unfazed by the entire thing. They have the reservation and no problem.

The Airline has cancelled all flights from San Juan to St Thomas for today. They did not have an outlook at this time for tomorrow. They suggested we check in as early as possible tomorrow so that we keep our confirmed seat assignment from San Juan to St Thomas in case there are a lot of stranded people trying to get there as well.

Does anyone have a projection on the storm's movement by tomorrow morning? I feel really dumb - I don't even know which island on the map St Thomas is. (see the attached pictures)

If the flight from San Juan to St Thomas is cancelled, we will be stranded there and have to take a flight out at a later time and need to get a hotel in San Juan. I have not yet asked them to change our departure date as a pre-caution - that is next, but I think that causes problems with the air fare.

Here are some pictures I found on CNN.com.

<<position.gif>> <<movement.gif>> <<radius.gif>> <<animation.gif>> Greg Pier Client Services Director Closed-Loop Marketing Solutions gpier@doubleclick.net <mailto:gpier@doubleclick.net> [DIRECT] 212.497.4326 [FAX] 212.655.7330 [PAGER] 1-800-724-3624 PAGER PIN# 1434222 E-mail my pager: 1434222@pagemci.com <mailto:1434222@pagemci.com> (240 char. max)

DoubleClick TechSolutions (DART, Closed-Loop, NetGravity) This October, DoubleClick merged with NetGravity to offer advertisers and publishers the most comprehensive array of online advertising technology solutions. To find out why over 3,600 advertisers and 10,000 Web sites turn to DoubleClick TechSolutions to answer their online marketing needs visit <http://www.doubleclick.net>.

-----Original Message-----

From: Bruce Hutt [SMTP:bhutt@ankarcapital.com] Sent: Thursday, November 18, 1999 10:29 AM To: Mark Taylor Cc: gpier@doubleclick.net Subject: Re: Viva VI or are they?

Check the weather reports.

USVI badly hit by hurricane Lenny....145mph winds.....Clinton thinking of declaring a state of emergency.

B

- position.gif - movement.gif - radius.gif - animation.gif

Message 395 of 413

FW: Merger Agreement

Sender	legal <taylor@enron.com>
Recipients	['peter.keohane@enron.com']
File	taylor-m/sent_items/507.

-----Original Message-----

From: =09Schuler, Lance (Legal) =20 Sent:=09Tuesday, November 13, 2001 8:51 PM To:=09Ale, John; Cheek, Charles; Derrick Jr., James; Evans, Mark (London Le= gal); Fossum, Drew; Haedicke, Mark E.; Labanowski, Elizabeth; Mintz, Jordan= ; Newell, Eric; Rogers, Rex; Sharp, Vicki; Wallace, Stephen; Walls Jr., Rob= ; Tweed, Sheila; Hodge, Jeffrey T.; Sager, Elizabeth; Cash, Michelle; Butch= er, Sharon; Taylor, Mark E (Legal); Gray, Barbara N.; Murray, Julia; Aronow= itz, Alan; Rogers, Daniel R.; Lundstrom, Bruce; Novak, John; Eickenroht, Ro= bert Cc:=09Del vecchio, Peter; Henry, Joseph Subject:=09Merger Agreement

Attached is an electronic version of the Merger Agreement that we executed = with Dynegy. As is typical with these types of transactions, there are lim= itations imposed on Enron's operations between signing and closing of the M= erger Agreement. Please help ensure that each transaction entered into by = Enron and its subsidiaries complies with the agreement, and particularly Se= ction 7.1 of the agreement relating to conduct of business. Peter del Vecc= hio (at ext. 39875) and Joe Henry (at ext. 51549) are available to help add= ress specific questions regarding our interim operations. Rob Walls, John = Ale, Mark Haedicke and myself are also available, and we will help determin= e if we need Dynegy's consent for any particular proposed transaction. We = are in the process of summarizing the interim covenants, as well as establi= shing certain procedures to ensure our compliance. I anticipate distributi= ng these items on Thursday. We are also having prepared a memorandum regar= ding certain anti-trust and other issues that we need to consider in any in= volvement we have with Dynegy regarding our respective operations. We curr= ently plan on having various presentations regarding the anti-trust matters= . Please pass the merger agreement and the subsequent materials on to othe= rs in your group as you think appropriate. Thank you for your help and und= erstanding in this matter. Lance. =20 Merger Agreement for Project Gipper.DOC=20

W. Lance Schuler Enron North America Corp. 1400 Smith Street Houston, Texas 77002 Phone: 713/853-5419 Fax: 281/664-4890 Email: lance.schuler-legal@enron.com

Message 396 of 413

Oxley Amendment - Call to House Judiciary Committee Democrats

Sender	mark.taylor@enron.com
Recipients	['chris.long@enron.com']
File	taylor-m/all_documents/7858.

Just wanted to make sure you had received this. ----- Forwarded by Mark Taylor/HOU/ECT on 03/01/2001 11:29 AM -----

Stacy Carey <SCAREY@ISDA.ORG> 03/01/2001 11:16 AM

To: US REGULATORY COMMITTEE <USREGCOMM@isda.org> cc: Subject: Oxley Amendment - Call to House Judiciary Committee Democrats

We have received word that Conyers and House Judiciary Democrats will oppose the Oxley Amendment based on jurisdiction and acceptance of substantial amendments. We further understand that Gephardt remains supportive of the

amendment. I would encourage as many calls as possible to the list of members below encouraging support of the Oxley/LaFalce Amendment.

Points to keep in mind/mention: - Most of the amendments are necessary to conform bankruptcy statute to the Commodity Futures Modernization Act passed last year. - Certain other provisions are necessary in order to update the bankruptcy code for financial product netting. - These are necessary to diminish systemic risk to the financial system. - This is a bipartisan amendment supported by John LaFalce. - Please support the Oxley-LaFalce Amendment.

Democratic Members Mr. Conyers <<http://www.house.gov/conyers/>>(Michigan) Ranking Mr. Frank <<http://www.house.gov/frank/>>(Massachusetts) Mr. Berman <<http://www.house.gov/berman/>> (California) Mr. Boucher <<http://www.house.gov/boucher/>>(Virginia) Mr. Nadler <<http://www.house.gov/nadler/>>(New York) Mr. Scott <<http://www.house.gov/scott/>>(Virginia) Mr. Watt <<http://www.house.gov/watt/>> (North California) Ms. Lofgren <<http://www.house.gov/lofgren/>> (California) Ms. Jackson Lee <<http://www.house.gov/jacksonlee/>>(Texas) Ms. Waters <<http://www.house.gov/waters/>> (California) Mr. Meehan <<http://www.house.gov/meehan/>>(Massachusetts) Mr. Delahunt <<http://www.house.gov/delahunt/>> (Massachusetts) <<http://www.house.gov/delahunt/>> Mr. Wexler <<http://www.house.gov/wexler/>>(Florida) Ms. Baldwin <<http://www.house.gov/baldwin/>> (Wisconsin) Mr. Weiner <<http://www.house.gov/weiner/>>(New York) <<http://www.house.gov/weiner/>> Mr. Schiff <<http://www.house.gov/schiff/>> (California)

Stacy Carey Director North American Regulatory Policy International Swaps and Derivatives Association (202) 457-6545 ph (703) 256-1833 fax (917) 543-9622 cell scarey@isda.org

Message 397 of 413

Re: Broadband Online Products

Sender	gerry.willis@enron.com
Recipients	ljane.mcbride@enron.com , david.minns@enron.com , alan.aronowitz@enron.com , angeline.poon@enron.com
File	taylor-m/all_documents/7577 .

Thanks for the note. I will need a bit more background than below in order to be of any help. What are your commercial plans, has any analysis been done to date, etc. Feel free to call me at 713-345-4436 or 281-225-9855 (home) if necessary.

Regards,

Jane McBride@ENRON 01/18/01 07:34 PM

To: Ian Brungs/EU/Enron@Enron, Gerry Willis/Enron Communications@ENRON COMMUNICATIONS cc: Angeline Poon/SIN/ECT@ECT, David Minns/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Justin Boyd/LON/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Matthias Lee/SIN/ECT@ECT, Mark Evans/Legal/LON/ECT@ECT, Alan Aronowitz/HOU/ECT@ECT Subject: Re: Broadband Online Products

Dear Ian and Gerry,

Gerry is handling the legal aspects of EBS' operations from Houston at this stage so he is probably the appropriate person to move forward on this with outside counsel as appropriate.

Jane McBride Senior Legal Counsel Enron Japan Corp.

Otemachi 1st Square Bldg. West 11th Floor 1-5-1 Otemachi, Chiyoda-ku Tokyo 100-0004 Japan

URL: www.enron.co.jp

Tel.: 81-3-5219-4500 (Main) 81-3-5219-4553 (Direct) Fax: 81-3-5219-4510

Assistant (Maggy Yamanishi) Tel.: 81-3-5219-4554 Email: Yo.Yamanishi@enron.com

Ian Brungs 2001/01/19 01:32

To: Mark Taylor/HOU/ECT@ECT, David Minns/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Matthias Lee/SIN/ECT@ECT, Jane McBride/AP/Enron@Enron, Angeline Poon/SIN/ECT@ECT cc: Justin Boyd/LON/ECT@ECT
Subject: Broadband Online Products

Hello Mark, David, Matt, Jane and Angeline,

I have provided the additional questionnaire which we sent to our European counsel with respect to trading in Bandwidth capacity. You may wish to provide this to your counsel as a basis for the questionnaire regarding the physical trading of Bandwidth capacity. Please note that one of the key issues may be the location of the respective geographical points for each Bandwidth transaction. We would anticipate that there would be fewer issues or none at all where a particular counterparty wishes to trade in Bandwidth capacity where the two respective geographical points are not located in their jurisdiction. (ie. A German counterparty trading Bandwidth from Brussels to Paris)

If you have any questions or concerns please do not hesitate to contact me at 0207 783 4084.

Kind Regards,

Ian Brungs

Message 398 of 413

Sumas Bid Prices	
Sender	mark.powell@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/2626.

Hey Mark,

Grant Oh of the Calgary office has been approached with respect to the posting by BC Gas of certain prices from Enron Online.

I have given Grant some feedback as to some issues which immediately come to mind (i.e. protection of intellectual property rights, protection of the rights we reserve in our Enron Online agreements, limitation of liability, etc).

However, I also thought that it is likely that this type of request has been made in the past by other website hosts. Being "THE Enron Online guy", as my colleague Greg Johnston points out, I was wondering if you were aware of any such similar request.

Could you let me know when you get the chance? My direct number is (403) 974-6708.

Thanks,

Mark. ----- Forwarded by Mark Powell/CAL/ECT on 01/16/2001 04:46 PM -----

Grant Oh 01/16/2001 10:52 AM To: Bob Shults/HOU/ECT@ECT, Mark Powell/CAL/ECT@ECT cc: Subject: Sumas Bid Prices

Mark - wanted your thoughts on what legal traps we need to run to make sure BC Gas can do this... It would be commercially prudent to have our name and price out there but there are issues.

What might be most commercially preferable is to provide a timed delayed web link from EOL to the BC Gas website - any thoughts Bob?

Cheers gents..

Grant

----- Forwarded by Grant Oh/CAL/ECT on 01/16/2001 11:47 AM

Melissa Phillion <mphilion@bcgas.com> on 01/16/2001 11:41:23 AM To: ""Grant.Oh@enron.com""
<Grant.Oh@enron.com> cc: Greg Simmons <GSimmons@bcgas.com> Subject: Sumas Bid Prices

Dear Grant,

As per our telephone conversation, I'm requesting permission to post the Sumas Bid Price as quoted on Enron's daily pricing sheet. I am revising our web graphics, which consist of summer and winter forward strips and am wanting to quote the Sumas Bid Price for the current year, past year and next gas year. Our graphs will be updated once a week on Tuesdays, and will therefore assume Tuesday's Bid Price at Sumas. All graphics will visibly cite Enron Canada Corp.

I would appreciate your consideration regarding this request. If this request is accepted, please provide disclaimer information to be included on all graphics.

Yours truly,

Melissa Phillion

Melissa Phillion Customer Account Manager, BC Gas tel: 604-443-6461 fax: 604-443-6770 cell: 604-240-7506
mphilion@bcgas.com

Message 399 of 413

Re: Gramm Legal Certainty Language

Sender	chris.long@enron.com
Recipients	['mark.taylor@enron.com', 'linda.robertson@enron.com']
File	taylor-m/all_documents/3976.

Do you agree with Ken's analysis on the Gramm language?

----- Forwarded by Chris Long/Corp/Enron on 12/11/2000 02:06 PM -----

Chris Long 12/11/2000 11:01 AM

To: Linda Robertson/NA/Enron@ENRON cc: Tom Briggs/NA/Enron@Enron Subject: Re: Gramm Legal Certainty Language

I spoke to Ken. He has reviewed the language. The only problem he sees theoretically is that the banking swaps will be given greater legal certainty. However, pushing for this treatment for the energy/metals provisions will likely not be helpful at this juncture. ----- Forwarded by Chris Long/Corp/Enron on 12/11/2000 10:53 AM -----

RAISLERK@sullcrom.com 12/11/2000 10:04 AM

To: Chris.Long@enron.com cc: Subject: Re: Gramm Legal Certainty Language

Yes. I don't think there is an issue. I will call you shortly.

<Chris.Long@enron.com> 12/11 9:49 AM >>>

Ken - Did you get a chance to review the Gramm language and follow up on the "rumor" that it would imperil the energy/metals exemption?

----- Forwarded by Chris Long/Corp/Enron on 12/11/2000 09:49 AM -----

Stacy Carey <SCAREY@ISDA. To: US REGULATORY COMMITTEE <USREGCOMM@isda.org> ORG> cc: Subject: Gramm Legal Certainty Language 12/08/2000 09:23 AM

Attached is the proposed language reflecting the compromise reached between Senator Gramm and the Chicago Futures Exchanges.

<<Gramm Legal Certainty Proposal 12-6.doc>>

Stacy Carey Director North American Regulatory Policy International Swaps and Derivatives Association (202) 457-6545
ph (703) 256-1833 fax (917) 543-9622 cell scarey@isda.org

(See attached file: Gramm Legal Certainty Proposal 12-6.doc)

This e-mail is sent by a law firm and contains information that may be privileged and confidential. If you are not the intended recipient, please delete the e-mail and notify us immediately.

Message 400 of 413

FW:	
Sender	legal <taylor@enron.com>
Recipients	[n..gray@enron.com]
File	taylor-m/sent_items/305.

-----Original Message-----

From: Nelson, Cheryl Sent: Wednesday, July 25, 2001 2:23 PM To: Taylor, Mark E (Legal) Cc: Fowler, Mike J Subject: FW: Importance: High

(sorry for the spelling errors guys but I am rushing out the door because I am not feeling well. If anyone needs to talk further with me, call me at home at 713-785-6152 in an hour. -----Original Message----- From: Nelson, Cheryl Sent: Wednesday, July 25, 2001 2:20 PM To: Taylor, Mark E (Legal) Cc: Fowler, Mike J Subject: FW: Importance: High

Mark,

Mike Fowler asked me to send you a note indicating tthat he wated to come by and see you about this contract. As you may recall from our conversation last week, this is the agreement in which the counterparty absolutely refuses to give Enron any limitation of liability provisions. I have asked the counterparty via email to reconsiderr this point about five times and the last request/email was not returned so I know they are not moving on this point. Mark says it is up to you.

The counterparty -- SNL -- did negotiate/give on some other points which otherwise but the contract into compliance with any other material policies/guidelines; so it is otherwise a good contract for us. For more information on the counterparty, see the note from Sheila Glover below, check out SNL's website or I can discuss further with you.

-----Original Message-----

From: Glover, Sheila Sent: Wednesday, July 18, 2001 1:21 PM To: Nelson, Cheryl Cc: Fowler, Mike J; Gonzalez, Selena Subject: FW: Importance: High

Cheryl, In response to your questions. Sheila

SNL is an Informational Service targeted for analysis of the Financial Services Industry. The information provides historical financial and current analysis for Financial Services companies. SNL is the only comprehensive provider of this information that we are aware of. Financial Trading is trading a portfolio for Financial Services and requires a relevant research tool.

FACTSET is currently used. However, FACTSET does not have the company coverage nor does it analyze financial services companies in a relevant way. FACTSET is slanted more toward industrial firms.

The agreement is a subscription to the database for a one year term, requiring positive renewal. The initial year term is \$15,000 a year and the second year is capped at a 10% increase.

We do not use this service at the current time.

Sheila M. Glover Sr. Director Financial Trading Risk Management EB3081a Tel: 713-853-3210 Fax: 713-646-2196

Message 401 of 413

EnronOnline Broker Client	
Sender	mark.greenberg@enron.com
Recipients	['mark.taylor@enron.com']
File	taylor-m/notes_inbox/2393.

Mark -

See the below FYI.

Mark Senior Counsel, ENA Phone: 713-345-8897 Facsimile: 713-646-3940 E-Mail: Mark.Greenberg@enron.com -----

Forwarded by Mark Greenberg/NA/Enron on 03/06/2001 04:19 PM -----

Bob Shults@ECT 03/06/2001 03:48 PM

To: John J Lavorato/Corp/Enron, Scott Neal/HOU/ECT@ECT, Phillip K Allen/HOU/ECT@ECT, Hunter S Shively/HOU/ECT@ECT, Thomas A Martin/HOU/ECT@ECT, John Arnold/HOU/ECT@ECT, Kevin M Presto/HOU/ECT@ECT, Jim Fallon/Enron Communications@Enron Communications, Jeffrey A Shankman/HOU/ECT, John L Nowlan/HOU/ECT@ECT, Kevin McGowan/Corp/Enron@ENRON, George McClellan/HOU/ECT@ECT, Tim Belden/HOU/ECT@ECT, Jonathan McKay/CAL/ECT@ECT, Rogers Herndon/HOU/ECT@ect, Fletcher J Sturm/HOU/ECT@ECT, Mark Dana Davis/HOU/ECT@ECT, William White/ENRON@enronXgate, Paul Racicot/Enron Communications@Enron Communications, Marcello Romano/Enron Communications@Enron Communications, Richard Lewis/LON/ECT@ECT, Thor Lien/OSL/ECT@ECT, Gregor Baumerich/LON/ECT@ECT, David Gallagher/LON/ECT@ECT, Paul Mead/LON/ECT@ECT, Louise Kitchen, Chris Mahoney/LON/ECT@ECT, John Sherriff/LON/ECT@ECT cc: Andy Zipper, Savita Puthigai/NA/Enron@Enron, Sheri.Thomas@enron.com, Mark Greenberg, Michael.bridges@enron.com Subject: EnronOnline Broker Client

We have begun the testing phase of a broker application that will allow Brokers to execute transactions over EnronOnline on behalf of their clients. We anticipate that there will be four brokers online when we launch on or about March 19, 2001. Between now and the launch date we will be giving these brokers additional user ids to view prices on EnronOnline.

Listed below are the brokers that will have access and the products they will have execute rights on:

1. Amerex: Worldwide gas, power, crude products and bandwidth 2. Prebon: North American gas and power; European gas and power 3. Natsource: North American gas and power; Emissions; Coal 4. Power Merchants: US Financial Gas

All transactions which are executed by brokers on EnronOnline numbers will be free of brokerage charges. We are under non-disclosure agreements with each of these brokers and therefore should not discuss the terms of these deals. The brokers are particularly concerned about the impact with other customers if the terms of these agreements become public.

We are in discussion with other brokers to provide this same service. I encourage you to contact us with any brokers that may have an interest in viewing and executing on EnronOnline prices.

Please call me with any questions or concerns at 713 853-0397.

Message 402 of 413

CEA Update	
Sender	mark.taylor@enron.com
Recipients	['cynthia.sandherr@enron.com', 'tom.briggs@enron.com']
File	taylor-m/sent/1436.

I'm not sure if you guys are on this mail list but here is the most recent message from Stacey at ISDA. ----- Forwarded by Mark Taylor/HOU/ECT on 10/26/2000 09:17 AM -----

Stacy Carey <SCAREY@ISDA.ORG> 10/25/2000 08:38 PM

To: US REGULATORY COMMITTEE <USREGCOMM@isda.org> cc: Subject: CEA Update

Senate Agriculture and Banking staff, Treasury, the CFTC and the SEC met this afternoon to discuss Senator Gramm's proposed changes. Preliminary reports indicate that agreement on 7 of the 34 issues was made earlier in the afternoon. It is unclear what the 7 items were, however, the meeting broke in order for Gramm's staff to brief the Senator on developments. When the meeting resumed Gramm's staff reportedly backed off the prior agreements. In sum, no progress was made at the end of the day. The staffs agreed to meet again tomorrow morning at 9:30 a.m. (On an side note Senator Gramm's staff indicated that only a handful of banks supported the bill)

We also participated on a conference call with the AdHoc Coalition and the Chicago Futures Exchanges held by Tom Ewing this afternoon. Ewing advised that he had a discussion with Speaker Hastert who is well aware of the importance of this issue. He encouraged all of us to make renewed appeals to the House and Senate leadership and as many Senate contacts as possible.

In my estimation, tomorrow will likely be our last opportunity to have any sort of impact on Senate activity. At the end of the day we will either have a deal or negotiations will have failed. I would suggest making the following contacts tomorrow morning with a simple message: 1) We are aware that the staffs are continuing to work on resolution of outstanding issues. 2) It is vitally important that these issues be resolved and that passage of the legislation occur this year.

My recommendation would be to deliver this message to the following entities:

1. Senator Gramm -- since his staff is under the impression that only a handful of banks support the bill.
2. Senator Leadership -- Lott and Nickels
3. Senate Agriculture Committee Members - Republican and Democrats
4. Senate Banking Committee Members - Republican and Democrats
5. House Leadership - Hastert, Delay and Arney

* Calls to Lugar are not necessary

Finally, I am of the firm belief that this legislation stands a worse if any chance of enactment next year. We need to give this our best shot tomorrow!

Many thanks!

Stacy Carey Director North American Regulatory Policy International Swaps and Derivatives Association (202) 457-6545 ph (703) 256-1833 fax (917) 543-9622 cell scarey@isda.org

Message 403 of 413

Swapco -- Outstanding Items

Sender	trish.lindloff@weil.com
Recipients	['legal <taylor@enron.com>', 'deb.korkmas@enron.com']
File	taylor-m/inbox/299.

In order to complete our files, please send copies of signatures to the following documents:

1. Certificate of Amendment to Certificate of Formation of ERMT LLC (regarding name change to NETCO Holdings LLC)
2. Certificate of Amendment To Certificate of Incorporation of ESVL Corp. (regarding name change to ERMT Corp.)
3. Amended and Restated Certificate of Incorporation of ERMT Corp. (regarding name change to The New Energy Trading Company)
4. Written Consent of the Sole Stockholder of ERMT Corp. (dated 11/8/01)
5. Unanimous Written Consent of the Board of Directors of ERMT Corp. (dated 11/8/01)
6. Unanimous Written Consent of the Board of Directors of Enron North America Corp. (dated 11/5/01 regarding contribution to RMT)
7. Unanimous Written Consent of the Board of Directors of Risk Management & Trading Corp. (dated 11/5/01 regarding contribution to ERMT LLC)
8. Unanimous Written Consent of the Board of Directors of ERMT LLC. (dated 11/5/01 regarding contribution to ERMT Corp.)
9. Cross Receipt (of ERMT and RMT regarding \$250,000,000)
10. Unanimous Written Consent of the Board of Directors of ERMT Corp. (dated 11/6/01 authorizing certain agreements)
11. Unanimous Written Consent of the Board of Control of ERMT LLC

(dated 11/6/01 regarding issuance of 20 Units) 12. Acknowledgment of Receipt of ENA 13. Unanimous Written Consent of the Board of Control of ERMT LLC (dated 11/7/01 regarding issuance of Class B Unit) 14. Cross Receipt (of ERMT LLC and GSS Contract Services -- I will hold this until we get the \$10 check from GSS) 15. Counter signature for the Services and Indemnity Agreement with GSS

We will also need copies of the Stock Certificate of ERMT Corp. issued to ERMT LLC and the Unit Certificates of ERMT LLC issued to ENA and RMT. If you would forward to me the original Class B Unit Certificate issued to GSS, I will send that to them and coordinate getting their signature on the Cross Receipt and check.

Please call me if you have any questions. My number is (214) 746-8116 and my fax number here in Dallas is (214) 746-7777.

Thanks, Trish

*****NOTE***** The information contained in this email message is intended only for use of the individual or entity named above. If the reader of this message is not the intended recipient, or the employee or agent responsible to deliver it to the intended recipient, you are hereby notified that any dissemination, distribution or copying of this communication is strictly prohibited. If you have received this communication in error, please immediately notify us by telephone (214-746-7700), and destroy the original message. Thank you.

Message 404 of 413

US Benzene Fin Option - Please review and Approve

Sender	melba.lozano@enron.com
Recipients	['kevin.meredith@enron.com', 'christian.lebroc@enron.com', 'legal <taylor@enron.com', 'chris.walker@enron.com...
File	taylor-m/deleted_items/32.

Mark,

Please review the attached language for the Benzene options. Please let me know if you have any questions. I am not too sure about the language which is bolded. If you don't mind giving me a hand.

Thanks, Melba Lozano 713-345-8986=20 713-646-8511 Fax 713-698-4847 Pager

US Benzene Fin Opt =20 A financial Option Transaction with Enron North America Corp., under which = the Seller receives the Premium and the Buyer receives the Cash Settlement = Amount. Each calendar month during the Term of the Transaction will be a De= termination Period, provided that if the Term of the Transaction is less th= an one calendar month the Determination Period shall be the Term of the Tra= nsaction. The Notional Quantity per Determination Period shall be calculate= d from the volume submitted by Counterparty on the website in accordance wi= th the unit of measure. The Premium shall equal the product of (i) the pric= e submitted by Counterparty via the website, multiplied by (ii) the number = of calendar days during the Term of the Transaction, multiplied by (iii) th= e volume submitted by Counterparty on the website. The Payment Date for the= Premium shall be 2 business days after the Trade Date of the Transaction. = The Payment Date(s) for the Cash Settlement Amount shall be 5 business days= after the Cash Settlement Amount is determinable. Where this Transaction i= s a Call Option, the Cash Settlement Amount shall be the sum of the product= of (a) the Notional Quantity per day during the Determination Period, mult= iplied by (b) the greater of (i) zero, or (ii) the Index minus the Strike P= rice. Where this Transaction is a Put Option, the Cash Settlement Amount sh= all be the sum of the product of (a) the Notional Quantity per day during t= he Determination Period, multiplied by (b) the greater of (i) zero, or (ii)= the Strike Price minus the Index. Where this Transaction is a Straddle Opt= ion, the Cash Settlement Amount shall be the sum of the product of (a) the = Notional Quantity per day during the Determination Period, multiplied by (b=) the absolute difference between the Strike Price and the Index.

The Exercise Period(s) shall be the last Trading Day of the month. The Inde= x for a month shall be the mean of the average of the high and low price in= Cents/Gallon of Benzene published under the headings "Prices for Period En= ding [DATE]: United States: Benzene)" under the caption "SPOT: Cents/Lb." i= n each issue of Chemical Market Associates, Inc.'s Aromatics Market Report = (Weekly) that reports prices effective for such month.

The price is quoted in US Dollars per unit of volume, which will be the Contractual Currency.=20

The unit of measure against which the price is quoted shall be gallons and the volume shown shall be in total number of Barrels (42 US Gallons) per month.

Message 405 of 413

Undeliverable message

Sender	mark.taylor@enron.com
Recipients	[per.sekse@enron.com]
File	taylor-m/sent/12.

This message was returned to me - it looks like your name is misspelled in the Performance Management program.

----- Forwarded by Mark - ECT Legal Taylor/HOU/ECT on 11/13/98 04:09 PM -----

Enron Capital & Trade Resources Corp.

From: POSTMASTER@notes.ect.enron.com 11/13/98 02:58 PM

To: Mark - ECT Legal Taylor/HOU/ECT cc: Subject: Undeliverable message

----- Failure Reasons -----

User not listed in public Name & Address Book psekes@notes.ect.enron.com

----- Returned Message ----- Received: from dserv1.ect.enron.com ([172.16.1.37]) by notes.ect.enron.com (Lotus SMTP MTA v4.6.1 (569.2 2-6-1998)) with SMTP id 862566BB.00732E41; Fri, 13 Nov 1998 14:57:54 -0600 Received: from [172.16.161.191] ([172.16.161.191]) by dserv1.ect.enron.com (8.8.8/8.8.8) with SMTP id OAA21564 for <psekese@ect.enron.com>; Fri, 13 Nov 1998 14:57:48 -0600 (CST) Message-Id: <199811132057.OAA21564@dserv1.ect.enron.com> X-Authentication-Warning: dserv1.ect.enron.com: [172.16.161.191] didn't use HELO protocol From: mtaylor1@ect.enron.com To: psekes@ect.enron.com Subject: 1998 Year-End Performance Feedback Mime-Version: 1.0 Content-Type: text/plain; charset="iso-8859-1" Date: Fri, 13 Nov 1998 14:57:52

Nov 20, 1998 - DEADLINE TO REMEMBER!

NOTE: YOU WILL RECEIVE THIS MESSAGE EACH TIME YOU ARE SELECTED AS A REVIEWER.

You have been selected to participate in the 1998 Year-End Performance Feedback process by providing meaningful feedback for specific employee(s) that have been identified for you. Your feedback plays an important role in the performance evaluation process, and your participation is very critical to the success of ECT's Performance Management goals.

Please provide feedback on the employee(s) listed below by accessing the Performance Management System and completing an online feedback form as was described in the "ECT Performance Management Quick Reference Guide". You may begin your feedback input immediately. Please have all feedback forms completed no later than Friday, November 20th.

If you have any questions regarding the Performance Management System or your responsibility in the process, please call the Performance Management User Support Hotline at the following numbers:

For U.S. Payroll Employees - 713-853-4777, Option 4 For Canada Payroll Employees - 403-974-6724 For UK and other international employees - 44-171-316-5314 or 5419

Thank you for your participation in this important process.

The following list of employees is a CUMULATIVE list of all feedback requests that have an "OPEN" feedback status. An employee's name will no longer appear once you have completed the feedback form and submitted as "COMPLETE" in the Performance Management System.

GROTH, MAGNUS SHACKLETON, SARA

Message 406 of 413

FW: NOx OTR to SIP CALL

Sender	mary.schoen@enron.com
Recipients	[e.taylor@enron.com]
File	taylor-m/inbox/mary_schoen/15.

Michael - I pulled this out of one of the memos I just forwarded to you. Let me know if you have questions.

The next phase of control (or lowering in the total amount of allowances in the cap) for the OTR Trading Program goes into effect in 2003. Despite the delays in the broader NOx SIP Call process, the OTR states have filed their SIPs targeted to start in 2003 that include the standard provisions of the SIP call structure. One of those provisions is that allowances banked from Phase II (the current OTR Program) can only move into Phase III (2003) via the compliance supplement pools (CSP). The total compliance supplement pool for the OTR is only about 25,000 tons.

At the current pace of banking, we could have 80,000 to 100,000 tons of allowances in the bank by the end of 2002. These would be discounted or prorated by the states to the CSP level to move into 2003. Nominally then, allowances left at the end of 2002 would be discounted by as much as 4 to 1 moving into 2003.

There is another twist, however. The 1999 vintage allowances are not allowed to move into 2003 at all. They will expire at the end of 2002. There are probably about 35,000 1999 vintage allowances in the system. That leaves about 50,000 to 70,000 allowances left to move into 2003 - still a 2 or 3 to 1 discount factor. Those allowances in the CSP probably will not be subject to flow control in 2003, though flow control is likely to come in to play in 2004.

Finally, in order to be in the compliance supplement pool, allowances must be in compliance accounts. So traders like Enron will either need to sell all of their inventory at the end of 2002 or find a place to park it in a compliance account in order allow the allowances to pass through to 2003. Since the prorating is done on a state-by-state basis, where the allowances are parked will be important as well.

The value of these banked allowances obviously depends on the value of allowances in 2003. The OTR is relatively clean and will not require major new investment to meet its 2003 emission cap. Thus, the 2003 price for the OTR NOx allowances may not be as high as the \$4000/ton that people are currently paying. If it's only \$2000 to \$3000/ton then the discounted value of today's allowances is probably less than \$1000 - maybe a lot less.

Bringing all of this together: At the end of 2002 there will be a large bank of allowances. Some of them will expire with zero value at the end of 2002 if not used. The remainder must be parked in the right place to avoid expiration. Even then they will be heavily discounted going forward. The allowance price in 2003 is likely to be relatively low.

Mary Schoen Environmental Strategies Enron Corp 415.782.7803 (phone) 415.782.7854 (fax)

-----Original Message-----

From: Taylor, Michael E Sent: Monday, October 15, 2001 12:57 PM To: Schoen, Mary Subject: NOx OTR to SIP CALL

Mary,

How will OTR allowances roll into the NOx SIP CALL program?

Thanks, Michael Taylor Coal and Emissions Trading Enron Global Markets (713) 853-1885

Message 407 of 413

Re: Broadband Online Products

Sender	jan.haizmann@enron.com
Recipients	['ian.brungs@enron.com', 'david.minns@enron.com', 'justin.boyd@enron.com', 'angeline.poon@enron.com']
File	taylor-m/notes_inbox/2579.

Ian,

Please take note that I am in charge of regulatory affairs for the Asian region. Until local counsel will be hired, this will be coordinated out of London. Thanks

Jan D. Haizmann Director Regulatory Affairs Enron Broadband Services 40 Grosvenor Place Enron House London SW1X 7EN Telephone: +44 (0) 207 783 4474 Fax: +44 (0) 207 783 1045 e-mail: Jan.Haizmann@enron.com
<http://www.enron.net> About Enron: Most Innovative Company, 5th Consecutive Year, Fortune Magazine, February 21, 2000 Quality of Management, Voted 1st in US , Fortune Magazine, February 21, 2000 100 Best Companies to Work for in America, Fortune Magazine, February 21, 2000

----- Forwarded by Jan Haizmann/LON/ECT on 22/01/2001 16:29

From: Gerry Willis@ENRON COMMUNICATIONS on 19/01/2001 07:39 CST To: Jan Haizmann/LON/ECT@ECT cc:

Subject: Re: Broadband Online Products

Jan, a new name and player. What is your/our role?

Regards, ----- Forwarded by Gerry Willis/Enron Communications on 01/19/01 07:47 AM

Jane McBride@ENRON 01/18/01 07:34 PM

To: Ian Brungs/EU/Enron@Enron, Gerry Willis/Enron Communications@ENRON COMMUNICATIONS cc: Angeline Poon/SIN/ECT@ECT, David Minns/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Justin Boyd/LON/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Matthias Lee/SIN/ECT@ECT, Mark Evans/Legal/LON/ECT@ECT, Alan Aronowitz/HOU/ECT@ECT Subject: Re: Broadband Online Products

Dear Ian and Gerry,

Gerry is handling the legal aspects of EBS' operations from Houston at this stage so he is probably the appropriate person to move forward on this with outside counsel as appropriate.

Jane McBride Senior Legal Counsel Enron Japan Corp.

Otemachi 1st Square Bldg. West 11th Floor 1-5-1 Otemachi, Chiyoda-ku Tokyo 100-0004 Japan

URL: www.enron.co.jp

Tel.: 81-3-5219-4500 (Main) 81-3-5219-4553 (Direct) Fax: 81-3-5219-4510

Assistant (Maggy Yamanishi) Tel.: 81-3-5219-4554 Email: Yo.Yamanishi@enron.com

Ian Brungs 2001/01/19 01:32

To: Mark Taylor/HOU/ECT@ECT, David Minns/ENRON_DEVELOPMENT@ENRON_DEVELOPMENT, Matthias Lee/SIN/ECT@ECT, Jane McBride/AP/Enron@Enron, Angeline Poon/SIN/ECT@ECT cc: Justin Boyd/LON/ECT@ECT Subject: Broadband Online Products

Hello Mark, David, Matt, Jane and Angeline,

I have provided the additional questionnaire which we sent to our European counsel with respect to trading in Bandwidth capacity. You may wish to provide this to your counsel as a basis for the questionnaire regarding the physical trading of Bandwidth capacity. Please note that one of the key issues may be the location of the respective geographical points for each Bandwidth transaction. We would anticipate that there would be fewer issues or none at all where a particular

counterparty wishes to trade in Bandwidth capacity where the two respective geographical points are not located in their jurisdiction. (ie. A German counterparty trading Bandwidth from Brussels to Paris)

If you have any questions or concerns please do not hesitate to contact me at 0207 783 4084.

Kind Regards,

Ian Brungs

Message 408 of 413

RE: VOC ERC

Sender	lisa.jacobson@enron.com
Recipients	['e.taylor@enron.com', 'jeff.keeler@enron.com', 'mary.schoen@enron.com']
File	taylor-m/inbox/lisa_j/52.

I spoke to George Hienen at the air office and Rubby Gil at the Northern Regional office -- George suggested that I speak with Rubby.

To determine whether the VOC ERC would qualify under the new rule - it would need to 1) be a major source and 2) represent emissions (post-1990) or be a pre-1990 ERC that was approved as part of the attainment plan.

The regional office confirmed that it is a major source and gave me a date of Jan. 31, 1998. So the certificate meets the criteria.

Just to double check the date - I asked Rubby Gil to check the file to confirm the date -- making sure that 1998 was the original date of reduction.

I will let you know when I hear back.

Thanks.

-----Original Message-----

From: Taylor, Michael E Sent: Friday, August 17, 2001 12:11 PM To: Jacobson, Lisa Subject: RE: VOC ERC

Lisa,

Can you please call the regional office and confirm this for me. I am not 100% confident with whom I talked to at the office. George gave me a generic answer for certificates which I believe puts the certificate in question in an attainment area. I am new to VOCs and the terminology which causes problems at times on the phone with these people. Also, try to talk to somebody besides Kai at the regional office.

Thank you. certificate number: N140-1 Cranbrook Associates

-----Original Message-----

From: Jacobson, Lisa Sent: Friday, August 17, 2001 9:17 AM To: Taylor, Michael E Subject: RE: VOC ERC

great - thanks.

-----Original Message-----

From: Taylor, Michael E Sent: Friday, August 17, 2001 9:19 AM To: Jacobson, Lisa Subject: RE: VOC ERC

The reduction credit was given in 1998 (I do not have the exact date close by). I didn't give George the certificate number but he implied that it would be good. Kai at the regional office did not seem to know exactly what the attainment area meant. He said it was valid.

I believe this is valid, but I felt the regional office was unsure of the legislation.

-----Original Message-----

From: Jacobson, Lisa Sent: Friday, August 17, 2001 8:11 AM To: Taylor, Michael E Cc: Schoen, Mary Subject: RE: VOC ERC

sure thing - how did it work out? Did you reach George last night?

-----Original Message-----

From: Taylor, Michael E Sent: Thursday, August 16, 2001 6:21 PM To: Jacobson, Lisa Cc: Schoen, Mary Subject: RE: VOC ERC

We need to keep this inquiry quiet. Please keep this between us.

-----Original Message-----

From: Jacobson, Lisa Sent: Thursday, August 16, 2001 3:49 PM To: Taylor, Michael E Cc: Schoen, Mary Subject: RE: VOC ERC

http://www.valleyair.org/busind/plans/Appendex_D_96_ROP.pdf

The website above has the link to the list of ERCs that are part of the approved attainment plan.

If it is pre-1990, and could be used under the new rule, it will be on this list.

If it is not on this list, we would need to contact the Northern regional office to inquire into its history. If it is post 1990 it would be part of the baseline and would also work -- so we need to know the date.

In the case of the certificate you mention, it is not on the list, so we would need to contact the regional office to find out its status.

The main number for the office is 209 557-6400. Jim Swaney is the manager -- but an engineer might be able to look it up quickly. Or we could fax the request to 209-557-6475. While EPA says that this type of request is fairly rare, it is not unusual.

Please let me know if you need further help on this.

-Lisa

-----Original Message-----

From: Taylor, Michael E Sent: Thursday, August 16, 2001 4:12 PM To: Jacobson, Lisa Subject: VOC ERC

certificate number: N140-1 Cranbrook Associates

Michael Taylor Coal and Emissions Trading Enron Global Markets (713) 853-1885

Message 409 of 413

Re: Merger - El Paso Merchant Energy, L.P.

Sender	mark.taylor@enron.com
Recipients	['tanya.rohauer@enron.com', 'tana.jones@enron.com']
File	taylor-m/all_documents/7408.

Sounds good to me.

Tanya Rohauer 01/04/2001 03:35 PM

To: Mark Taylor/HOU/ECT@ECT cc: Tana Jones/HOU/ECT@ECT Subject: Merger - El Paso Merchant Energy, L.P.

I would think adding the name would be adequate; do you agree? ----- Forwarded by Tanya Rohauer/HOU/ECT on 01/04/2001 03:21 PM -----

From: Veronica Espinoza @ ENRON 01/04/2001 03:26 PM

To: Tanya Rohauer/HOU/ECT@ECT cc: Subject: Merger - El Paso Merchant Energy, L.P.

Pertaining to the email below--I spoke to El Paso this morning about the gty's (there are a total of 3 in question covering financial and physical deals w/ENA, HPL, and EPMI). They agreed to have those three amended to include the name El Paso Merchant Energy, LP (as they only include Gas, LP). This is what their Legal is recommending in order to have the gty amendments executed ASAP and to make it as clean as possible (since 2 of the 3 gty's are tied to contracts). Also, the amendments will be made effective as of 12/31/00.

Let me know if you think we should ask for completely new gty's.

Veronica ----- Forwarded by Veronica Espinoza/Corp/Enron on 01/04/2001 03:20 PM -----
From: Tana Jones@ECT on 01/04/2001 02:28 PM To: Bob Bowen/HOU/ECT@ECT, Laurel Adams/HOU/ECT@ECT, Andrea R Guillen/HOU/ECT@ECT, Larry Joe Hunter/HOU/ECT@ECT, Gordon Heaney/Corp/Enron@ENRON, Janie Aguayo/HOU/ECT@ECT, Derek Bailey/Corp/Enron@ENRON, Diane Anderson/NA/Enron@Enron, Kevin Meredith/Corp/Enron@ENRON, Scott Tackett/Corp/Enron@Enron, Celeste Cisneros/NA/Enron@Enron, Tiffany Williams/NA/Enron@Enron, Kim S Theriot/HOU/ECT@ECT, Dianne Seib/CAL/ECT@ECT, Melissa Ann Murphy/HOU/ECT@ECT, William S Bradford/HOU/ECT@ECT, Debbie R Brackett/HOU/ECT@ECT, Tanya Rohauer/HOU/ECT@ECT, Brant Reves/HOU/ECT@ECT, Tracy Ngo/PDX/ECT@ECT, Lesli Campbell/HOU/ECT@ECT, Veronica Espinoza/Corp/Enron@ENRON, Paul Radous/Corp/Enron@ENRON, Wendi LeBrocq/Corp/Enron@Enron, Russell Diamond/HOU/ECT@ECT, Tom Moran/HOU/ECT@ECT, Edward Sacks/Corp/Enron@Enron, Nidia Mendoza/HOU/ECT@ECT, Bradley Diebner/HOU/ECT@ECT, Wendy Conwell/NA/Enron@ENRON, Brent Hendry/NA/Enron@Enron, Sara Shackleton/HOU/ECT@ECT, Mark Taylor/HOU/ECT@ECT, Carol St Clair/HOU/ECT@ECT, Susan Bailey/HOU/ECT@ECT, Mary Cook/HOU/ECT@ECT, Samantha Boyd/NA/Enron@Enron, Robert Bruce/NA/Enron@Enron, Stephanie Panus/NA/Enron@Enron, Marilyn Colbert/HOU/ECT@ECT, Diane Ellstrom/HOU/ECT@ECT, Lynn E Shivers/LON/ECT@ECT, Bill D Hare/HOU/ECT@ect, Leslie Reeves/HOU/ECT@ECT, Jason Moore/HOU/ECT@ECT, Dianne Seib/CAL/ECT@ECT, Samuel Schott/HOU/ECT@ECT, Anthony Campos/HOU/ECT@ECT, Bernice Rodriguez/HOU/ECT@ECT, Mary G Gosnell/HOU/ECT@ECT, Dale Neuner/HOU/ECT@ECT, Karen Lambert/HOU/ECT@ECT, Frank L Davis/HOU/ECT@ECT, Carrie Southard/LON/ECT@ECT, Amber Ebow/HOU/ECT@ECT, Adnan Patel/Corp/Enron@ENRON, Melissa Ann Murphy/HOU/ECT@ECT, Stacey Richardson/HOU/ECT@ECT, Lisa Lees/HOU/ECT@ECT, Georgi Landau/NA/Enron@ENRON cc: Jeffrey T Hodge/HOU/ECT@ECT, Jennifer Bagwell/NA/Enron@ENRON, Taffy Milligan/HOU/ECT@ECT

Subject: Merger - El Paso Merchant Energy, L.P.

We have received copies of a Certificate of Merger filed with the Delaware Secretary of State on 12/22/00, effective 12/31/00, wherein El Paso Merchant Energy-Gas, L.P. (Global Counterparty #72297), a Delaware limited partnership, merged with and into El Paso Merchant Energy, L.P. (Global Counterparty #53350), a Delaware limited partnership, with El Paso Merchant Energy, L.P. (Global Counterparty #53350) as the surviving corporation.

By virtue of this merger, the ISDA Master Agreement dated 12/01/99 should now reflect El Paso Merchant Energy, L.P. as the Counterparty. In connection with this merger, Credit will be getting a new parent guaranty from the Counterparty. Upon its receipt, copies will be distributed.

Copies of the Certificate of Merger will be distributed.

Message 410 of 413

Pls Complain

Sender	mark.taylor@enron.com
Recipients	['tbockius@aol.com']
File	taylor-m/sent/721.

----- Forwarded by Mark Taylor/HOU/ECT on 01/06/2000 10:08

AM -----

"Cutler, Marc" <Marc_Cutler@bmc.com> on 01/05/2000 10:15:59 AM To: Mark Taylor/HOU/ECT@ECT cc: Subject: Pls Complain

don't know if G has already email you... Heights Blvd is now only one lane. if you have time, please email your complaints to the people referenced in G's long & attached email.

I just got Ms. Dorsey's email address, it's mdorsey@pwe.ci.houston.tx.us.

-----Original Message-----

From: Gordon Hagendorf Sent: Wednesday, January 05, 2000 10:09 AM To: Kenneth.Council; gfredo; brettg31; shawkins; jmueller; carlssmith; jstys; morlanwhittle; Marc.Cutler Subject: RE: the weekend - Grab a cocktail - this is a long one.

If any of you care to voice your opinion about Height Blvd. the best person to speak to is: Mignette Dorsey, City of Houston Bikeway Coordinator

713-837-0003

I spoke to her and found out that this has been planned since the early 90's (see how fast our government works). She said that she has received several complaints but the project will continue until completion (they have to put down the bike symbols) before it would be reconsidered. If you don't like the restriped Heights Blvd. I suggest you call Ms. Dorsey and email the following:

Jeff King - Public Works

wjohnson@pwe.ci.houston.tx.us

Robert Litke - Planning & Development Dept rlitke@pd.ci.houston.tx.us

Annise Parker - City Councilwoman aparker@cnl.ci.houston.tx.us

Thanks!!

Gordon Hagendorf

On another issue, I don't know if you've driven down Height Blvd. lately

but they turned it into one lane (yes only one lane) and made a side

bike lane. I don't like it and think it's unsafe. I've written the

following email to Ms. A. Parker and would appreciate if you would

share it with any Heights residents to see if they feel the same.

Thanks very much, miss ya, Gordon Dear. Ms. Parker, I would like to know who I should address a complaint about the way

Heights Blvd. has been turned into one lane with a bike lane and parking

taking up what used to be a driving lane. I do not like the re-striping

for the following reasons: 1. There is too much traffic for one lane. 2. It is now very difficult and dangerous to cross Heights Blvd.

from one of the side streets because the line of cars is much

longer (since there's only one lane). Cars are having to

shoot across very quickly to make it to the other side. 3. Cars are using the bike lane as a driving lane making it

very

dangerous for bicyclist. 4. We have too much parking on Heights Blvd. and this only encourages many more people to park there. This will also encourage large trucks to park on Heights Blvd. making it

very

unsafe. 5. The more cars that park on Heights Blvd. the less

attractive the

area looks. All of the cars parked along the street take

away from

the historic beauty of the area. 6. Besides all of the above, why do we need a bike lane for

only 2

miles? It would be much safer for the bikers to use any of

the

side streets in the neighborhood to bike the short 2 miles

between

110 & 20th street. Is there anyway to have this reversed? Thanks very much for time

and

attention. I really do appreciate you time, Gordon Hagendorf 713-270-2450 Day 713-861-0885 Night>

Message 411 of 413

(01-353) Approved Amendments to COMEX Rule 4.94, "Settlement Price Procedures for Copper Contracts"

Sender	marketing@nymex.com
Recipients	['marketing@nymex.com']
File	taylor-m/deleted_items/166.

Notice to Members No: 01-353 October 23, 2001

TO: ALL COMEX DIVISION MEMBERS ALL COMEX DIVISION MEMBER FIRMS ALL COMEX DIVISION CLEARING MEMBERS

FROM: J. Robert Collins, Jr., President

SUBJECT: Approved Amendments to COMEX Rule 4.94, "Settlement Price Procedures for Copper Contracts"

The Exchange has complied with regulatory requirements by filing with the Commodity Futures Trading Commission amendments to COMEX Rule 4.94, "Settlement Price Procedures for Copper Contracts". The approved amendments to Rule 4.94 modify the settlement price procedure for the current delivery month by taking into consideration, not only the weighted average price (rounded to the nearest minimum fluctuation) of all outright transaction that occur in the closing range, but also the weighted average for all spreads executed and all spread bids and offers actively represented between the most active month and the current delivery month during the final thirty minutes of trading.

A copy of the amended Rule 4.94 is attached. These Rule amendments will become effective on Monday, October 29, 2001.

Should you have any questions please contact Michael Campanelli at 212-299-2072, Albert J. Getz at 212-299-2608 or Ploumi Efkarpidis at 212-299-2334.

Approved Rule Amendments (Asterisk indicates additions: bracketing indicates deletions)

Rule 4.94 Settlement Price Procedures for Copper Contracts.

(A)(i) The term "base month" shall mean the March, May, July, September, and December delivery months; (ii) the term "most active month" with respect to this rule and the rules of COMEX Chapters 11 and 17 shall mean the base month that is not the current delivery month, with the greatest reported open interest on the official COMEX daily open interest report.

* (B) The settlement price for the current delivery month shall be comprised of the weighted average price (rounded to the nearest minimum fluctuation) of all outright transactions that occur in the closing range combined with the weighted average price of all spreads executed between the current delivery month and the most active month and all spread bids and offers between the current delivery month and the most active month actively represented during the final 30 minutes of trading. If no outright transactions occur in the closing range or no spreads are executed or there are no spread bids and offers actively represented during the final 30 minutes of trading in the current delivery month, the settlement price shall be the last trade price, unless during the closing range a bid higher or offer lower than the last trade price is made. In such event, such higher bid or lower offer shall be the settlement price. *

[(B)] *(C) * The settlement price for the [current delivery month and the] most active month shall be the weighted average price (rounded to the nearest minimum fluctuation) of all outright transactions that occur in the closing range. If no outright transactions occur in the closing range of [either the current delivery month and] the most active month, the settlement price [for the applicable month] shall be the last trade price, unless during the closing range a bid higher or offer lower than the last trade price is made. In such event, such higher bid or lower offer shall be the settlement price.

[(C)] *(D)* In all other delivery months, the settlement prices shall be determined based upon spread relationships between and among contract months, which relationships shall be determined in the judgment of the Settlement Price Committee with: (a) greater weight given to spreads executed late in the trading day in large volumes, and (b) lesser weight given to (i) spreads traded in lesser volumes, (ii) spread bids and offers actively represented late in the trading day, and (iii) spread transactions, bids and offers from earlier in the trading day. Notwithstanding the foregoing, no settlement price shall be established that would be lower than the best outright bid, or higher than the best outright offer, that: (a) was for at least 20 contracts, and (b) had been posted with the Exchange and had remained available for execution and unfilled for the final 30 minutes of trading of that trading day.

[(D)] *(E)* If any settlement price, determined pursuant to Paragraph [(C)] *(D)*, is inconsistent with transactions that occurred during the closing range for other delivery months of the same futures contract or with other market information known to the Committee, the Committee may establish a settlement price at a level consistent with such other transactions or market information. In such event, the Committee shall prepare a written record of the basis for any settlement price so established.

Message 412 of 413

ChemConnect w/ Attachment

Sender	david.forster@enron.com
Recipients	['Ellen Fowler/HOU/ECT@ECT', 'mark.taylor@enron.com', 'Douglas S', 'John L Nowlan/HOU/ECT@ECT']
File	taylor-m/notes_inbox/140.

----- Forwarded by David Forster/LON/ECT on 02/18/2000 04:55

PM -----

Enron Capital & Trade Resources Corp.

From: Brandon Luna 02/18/2000 02:51 PM

To: David Forster/LON/ECT@ECT cc: Ellen Fowler/HOU/ECT@ECT, John L Nowlan/HOU/ECT@ECT, Douglas S Friedman/HOU/ECT@ECT, Louise Kitchen/LON/ECT@ECT, Bob Shults/HOU/ECT@ECT, Drew Ries/HOU/ECT@ECT, Stephen R Horn/HOU/ECT@ECT, James A Ajello/HOU/ECT@ECT, Greg F Piper/HOU/ECT@ECT, Jay Fitzgerald/Corp/Enron@ENRON

Subject: ChemConnect w/ Attachment

We are aware of the potential market perception issues of EnronOnline and this investment, and I believe we have addressed these concerns. John Nowlan, Jim Ajello, and I revised the language in the agreement. The document now states that Enron North America acknowledges ChemConnect as a leading internet-based third party exchange for

purchases and sales of chemicals and plastics raw materials. I want to emphasize that this agreement in no way limits Enron's ability to trade on any other exchange (EOL , or a third party exchange). In addition Enron is under no obligation to buy or sell any products on the ChemConnect exchange. The purpose of the agreement is to say Enron and ChemConnect will work together in the future to discuss future business opportunities. The only real obligation Enron is making in this agreement is to work with ChemConnect to explore future business opportunities. In return, Enron will be able to participate in their "e-Commerce Roundtable" with major chemical companies.

Also, market perception issues can be managed in the press release, which will be approved by public relations and investor relations. The Strategic Alliance Agreement is not public , and it specifically states Enron has the right to approve any announcement ChemConnect makes using Enron's name or logo. We are not proposing Enron make any announcement endorsing ChemConnect as our preferred exchange. (We have made it clear with ChemConnect that we will continue to use EOL, and/or any other exchange.) In summary, we will be able to control the publicity issues by controlling any announcements with Enron's name.

The full agreement is attached for your review. I hope this addresses your concerns.

Regards, Ellen Fowler

David Forster 02/17/2000 06:44 PM To: Brandon Luna/HOU/ECT@ECT, Ellen Fowler/HOU/ECT@ECT cc: John L Nowlan/HOU/ECT@ECT, Douglas S Friedman/HOU/ECT@ECT, Louise Kitchen/LON/ECT@ECT, Bob Shults/HOU/ECT@ECT, Drew Ries/HOU/ECT@ECT, Stephen R Horn/HOU/ECT@ECT Subject: Fw: ChemConnect

I am concerned about elements in this deal which appear to conflict with the development strategy of EnronOnline.

Please do not proceed until such time as we have resolved any potential areas of conflict.

Thank you

Dave

----- Forwarded by David Forster/LON/ECT on 02/18/2000 12:32

AM -----

----- Forwarded by Louise Kitchen/LON/ECT on 16/02/2000

15:42 -----

Enron Capital & Trade Resources Corp.

From: "Douglas Friedman" <DFRIEDMAN@houston.rr.com> 15/02/2000 23:08

To: <brandon.luna@enron.com>, <ellen.fowler@enron.com> cc: <john.nowlan@enron.com>, <louise.kitchen@enron.com>

Subject: Fw: ChemConnect

Brandon, Ellen:

I find the current wording about ChemConnect being our Preferred Third Party Exchange still unexceptionable. It also is simply not true, since the market for all NGL's (read as: "chemical and plastics raw materials") is already standardized on Chalkboard. I realize this is only the second draft (with a third one pending) and has been watered down some - but not enough in my opinion. Section 4 gives us the right to somewhat control releases and publications. But, I am afraid all the market will ultimately hear is that they are our "Preferred Exchange" - reference their release today about BASF. Ultimately they'll totally confuse the market about our direct efforts with EnronOnline.

I still very much like the idea of using them as a portal to drive traffic to EnronOnline. Additionally, as previously mentioned, the right of first refusal to be "the market maker" if they ever do go forward on their exchange ideas has great value.

Will read the other sections on the plane this evening and comment further.

By copy, John & Louise, what are your thoughts?

Doug

----- Original Message -----

From: Brandon Luna <Brandon.Luna@enron.com> To: <dfriedman@houston.rr.com> Cc: Ellen Fowler <Ellen.Fowler@enron.com> Sent: Tuesday, February 15, 2000 2:59 PM Subject: ChemConnect

Doug Attached is the agreement; we specifically want your comments/approval on the

Sections 1 - 3. The potential changes are in Sections 9.1 and 9.3 (typos and

other). Please let us know your thoughts. Brandon 713 853-0531 Ellen 713 853-5741 Drew 713 345-6075 -----
Forwarded by Brandon Luna/HOU/ECT on 02/15/2000

02:55 PM

Message 413 of 413

EPA delays NSR recommendations

Sender	jeffrey.keeler@enron.com
Recipients	['john.massey@enron.com', 'trevor.woods@enron.com', 'kevin.mcgowan@enron.com']
File	taylor-m/inbox/lisa_j/53.

As the article below discusses in more detail, EPA has announced it will delay any recommendations on New Source Review reform until September, when it releases a more complete package of Clean Air/Multipollutant reform legislation. NSR/multipollutant issues will be in the forefront in September, with the release of EPA's plan and congressional consideration of these issues in hearings and "stakeholder" meetings. Enron will remain closely involved in these efforts -- we have been invited to participate in Senate Environment Committee stakeholder meetings on the topic, and we are in close contact with EPA and the White House as they develop their plan.

Consideration of these issues in a larger "package" will present an opportunity for reform not only for limited segments of the power sector, but for all sources -- existing and new. NSR reform will always be criticized by environmentalists, but adding NSR to the debate with multipollutant emission reductions could open avenues for some interesting deals to be cut over NSR revisions and various pollutant cap levels.

Jeffrey Keeler Director, Environmental Strategies Enron CT Office - (203) 245-0828 Washington DC office - (202) 466-9157 Cell Phone (203) 464-1541

Fearing Backlash, EPA To Package NSR Study As Part Of Utility Emissions Reduction Plan

Fearing a backlash of criticism, EPA Administrator Christine Todd Whitman has announced that the agency is delaying release of its long-awaited study on its new source review (NSR) program so that it can package the study as part of the Bush administration's proposed "three-pollutant" emissions reduction plan for power plants, which is scheduled for release next month.

Whitman's Aug. 14 announcement, which came following consultations with President Bush, came just three days before EPA was scheduled to release the results of its 90-day review of NSR, the Clean Air Act program that requires facilities to obtain permits when installing new or modified emissions sources.

"Our review of the NSR regulation is part of our larger effort to craft a new, comprehensive strategy to combat air pollution, and I am not prepared to come to any conclusions about one isolated issue before we finish work on our entire proposal," Whitman said.

In recent weeks, administration officials have faced a slew of criticism from state attorney generals, environmentalists and other critics who have charged that the review would recommend scaling back the program and allow the Bush

administration to "pardon" polluters.

Whitman has previously said that the administration's proposal to limit emissions of sulfur dioxide (SO₂), nitrogen oxide (NO_x) and mercury would set sufficiently strict limits to make NSR and other Clean Air Act requirements unnecessary.

Whitman pointed to a recent National Governors Association policy calling for NSR reform as justification for the administration's forthcoming effort. "This bipartisan action by the nation's governors provides a firm foundation for consensus and action this fall on this major environmental goal of the administration," she said.

However, Whitman's announcement drew strong criticism from environmentalists, who charged that the administration was seeking to hide the NSR reforms in its overall emissions reduction plan. "The administration should not expect that it can hide the roll-back of these important clean air protections into an emissions reduction package. That would be as obvious as putting a cheap frame on an ugly picture," according to the environmental group Clear the Air.

The group said the NSR program was "safe for now," adding that the Bush administration should acknowledge that a host of favorable comments submitted to EPA as part of the review should force the agency to admit that the NSR program is an essential element of the Clean Air Act.

Excerpt from EPA Press Release U.S. Environmental Protection Agency (EPA) Administrator Christie Whitman announced today that EPA will propose a comprehensive strategy to significantly reduce air pollution and protect public health that will be released in September. EPA will incorporate its review of the New Source Review (NSR) program into this comprehensive strategy, and as a result, will not release its NSR report this week. Whitman spoke with President Bush today about this important proposal.

Our top priority is protecting public health and the environment, and we are in the final stages of developing a comprehensive strategy that will allow us to take the next step forward into a new generation of air pollution controls for the 21st century," Whitman said. "This fall, we will put forward an ambitious proposal that will reduce air pollution from power plants significantly more than the existing system. Subsequently, we will release the NSR report called for by the National Energy Policy."

EPA and the White House are working to finalize the details of an ambitious legislative proposal that will set strict limits on utility emissions of the three major air pollutants that affect public health - nitrogen oxides (NO_x), sulfur dioxide (SO₂), and mercury - through the use of an innovative and effective market-based approach. In addition, the air pollution reduction strategy will address concerns about the NSR program's effect on energy efficiency and capacity.

The Administration's proposal will maintain stringent health-based standards and establish firm, mandatory caps on levels of pollution, while providing industry with the flexibility to find the most cost-effective means of meeting those standards. This approach would also significantly reduce the administrative burden on state and federal environmental agencies, allowing them to devote limited resources to other programs.